

THE RIDER OF GOLDEN BAR



WILLIAM PATTERSON WHITE

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The girl seized his stirrup to save herself from falling. FRONTISPIECE. *See page 55.*

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FRONTISPIECE. [See page 55.](#)

THE RIDER OF GOLDEN BAR

BY

WILLIAM PATTERSON WHITE

**WITH FRONTISPIECE BY
REMINGTON SCHUYLER**

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**TO
MY POINT O' WOODS COUSINS
LAURA, CHARLOTTE, JULIA, AND DOROTHY**

By William Patterson White

THE OWNER OF THE LAZY D
LYNCH LAWYERS
HIDDEN TRAILS
PARADISE BEND
THE HEART OF THE RANGE
THE RIDER OF GOLDEN BAR

CONTENTS

CHAPTER

- I [BILLY WINGO](#)
- II [A SAFE MAN](#)
- III [WHAT SALLY JANE THOUGHT](#)
- IV [HAZEL WALTON](#)
- V [JACK MURRAY OBJECTS](#)
- VI [CROSS-PURPOSES](#)
- VII [RAFE'S IDEA](#)
- VIII [THE NEW BROOM](#)
- IX [THE DISTRICT ATTORNEY](#)
- X [A SHORT HORSE](#)
- XI [THE TRAPPERS](#)
- XII [THE TRAP](#)
- XIII [OPEN AND SHUT](#)
- XIV [WHEN THIEVES FALL OUT](#)
- XV [THE BEST-LAID PLANS](#)
- XVI [OBSCURING THE ISSUE](#)
- XVII [WHAT HAZEL THOUGHT](#)
- XVIII [THE BARE-HEADED MAN](#)
- XIX [THE PERSISTENT SUITOR](#)
- XX [A DISCOVERY](#)
- XXI [THE DISTRICT ATTORNEY'S NIGHTMARE](#)
- XXII [THE HUNCH](#)
- XXIII [THE GUNFIGHTERS](#)
- XXIV [CONTRARIETIES](#)
- XXV [JONESY'S ULTIMATUM](#)
- XXVI [THE FOOL-KILLER](#)

XXVII THE LONG DAY CLOSES

THE RIDER OF GOLDEN BAR

CHAPTER ONE

BILLY WINGO

"But why don't you *do* something, Bill?" demanded Sam Prescott's pretty daughter.

Bill Wingo looked at Miss Prescott in injured astonishment. "Do something?" he repeated. "What do you want me to do?"

"I don't want you to do anything," she denied with unnecessary emphasis. "Haven't you any ambition?"

"Plenty."

"Then use it, for Heaven's sake!"

"I do. Don't I ask you to marry me every time I get a chance?"

"That's not using your ambition. That's playing the fool."

"Nice opinion of yourself you've got," he grinned.

"Never mind. You make me tired, Bill. Here you've got a little claim and a little bunch of cows—the makings of a ranch if you'd only work. But instead of working like a man you loaf like a—like a——"

"Like a loafer," he prompted.

"Exactly. You'd rather hunt and fish and ride the range for monthly wages when you're broke than scratch gravel and make something of

yourself. You let your cows run with the T-Up-And-Down, and I'll bet when Tuckleton had his spring round-up you weren't even on the job. Were you?"

"Well, I—uh—I was busy," shamefacedly.

"Fishing over on Jack's Creek. That's how busy you were, when you should have been looking after your property."

"Oh, Tuckleton's boys are square. Any calves they found running with my brand, they'd run the iron on 'em all right."

"They'd run the iron on 'em all right," she repeated. "But what iron?"

"Why—mine. Whose do you suppose?"

"I don't know," she said candidly. "I'm asking you."

"Shucks, Sally Jane, those boys wouldn't do anything crooked. Tuckleton wouldn't allow it."

"Bill, don't you ever distrust anybody?"

"Not until I'm certain they're crooked."

"I see," said the lady disgustedly. "After you wake up and find your hide, together with the rest of your worldly possessions, hanging on the fence, then and not till then do you come alive to the fact that perhaps all was not right."

"Well——" began Bill.

"Don't you see by that time it's too late?" interrupted the lady.

"Aw, I dunno. I—I suppose so."

"You suppose so, do you? You suppose so. Don't you know, my innocent William, that there are a sight more criminals outside of jail than there are in?"

"Why, Sally Jane!" said the innocent William, scraping a fie-fie forefinger at her. "Shame on you, shame on you, you wicked girl. I am surprised. Such thoughts in a young maid's mind. No, I ain't either. I always said if your pa sent you away to school you'd lose your faith in human nature. He did; and you did. And now look at you, talking just like a district attorney. And suspicious—I'd tell a man!"

"Oh, darn!" wailed Sally Jane. "I hate a fool!"

"So do I," concurred Bill warmly. "Tell a feller who's the fool you hate and I'll hate him, too. One pair of haters working together might do said fool a lot of good."

"Sometimes, Bill, my fingers simply ache to smack your long and silly ears."

He nodded soberly. "I know. I often have the same feeling about people. But don't let it worry you. It don't mean anything."

"Bill, can't you understand that I like you, and——"

"Easily," he grinned. "Of course you like me. So do lots of other people. It comes natural. And that is another thing you mustn't let worry you, Sally Jane. Just you take that liking for me and tend it real careful. Put it on the window-sill between the pink geraniums and water it morning, noon and night, and by and by that li'l liking will wax strong and great and all that sort of thing, and you won't be able to do without me. You'll have to marry me, I'm afraid, Sally Jane."

"I will, will I? And you're afraid, are you? You big, overgrown, lazy lummo! I wouldn't marry you ever."

"I'm not so sure, but you needn't stamp your foot at me anyway. It ain't being done this season. People slam doors instead. I'm sorry there isn't a door near at hand. It must have been overlooked when Linny's Hill was made."

"Bill, don't fool. This is not any joking matter. This come-day-go-day attitude of yours is bad business. It's ruining you, really it is."

"Drink and the devil, huh?"

"Oh, you're decent enough far as that goes. You never have been beastly."

"I thank you, madam, for this good opinion of your humble servant."

"Shut up! I mean to say— What I'm trying to beat into your thick head, you simple thing, is that in this world you don't stand still. You can't. You either go ahead or you slip back. And—you aren't going ahead."

"If not, why not, huh? I know you mean well, Sally Jane, and——"

"And it's none of my business? Oh, I know you weren't going to say that but you think it. You're quite right, Bill—but can't you see I'm talking for your own good?"

"Sure, yes. My pa used to talk just like that before he'd go out behind the corral with a breeching-strap in one hand and my ear in the other. I've heard him many's the time. I used to hurt most unpleasant for two-three days after, special if he'd forget which end of the strap carried the buckle. Old times, old times. Now, I take it you were never licked, Sally Jane. That was a mistake. You should have been— What? You don't mean to say you're going home? And we were getting along so nicely too. Well, if willful must, she must. I'll hold your horse for you. Again let me offer my apologies for the lack of a door."

He sagged down on his heel and watched her ride away along the side of Linny's Hill.

"I've often heard a woman's 'no' doesn't mean what it says," he muttered, fishing out the makings from a vest pocket. "But Sally Jane is so persistent with it, I dunno. I wonder if I really love her, or do I only think I do because I can't have her? I suppose I'd feel worse'n I do every time she turns me

down if I did. Lord! she said, I said, he said, and may Gawd have mercy on your soul!"

When his cigarette was going well he lazed over on his side, supporting his head on a crooked arm, and gazed abroad between half-shut lids.

The view from Linny's Hill was all that could be desired. At the base of the hill the Golden Bar-Hillsville trail, a yellow-gray ribbon across the green, led the eye across flats and gentle rises through shady groves of pine and cedar westward to where Golden Bar, a collection of toy houses, each one startlingly clear and distinct in that rarefied atmosphere, sprawled along the farther bank of Wagonjack River.

The stream itself, a roaring river in the spring of the year, was now but a poor thing. Shrunk to quarter-size, and fordable almost anywhere, it flowed in sedate and midsummer fashion between its cut-banks and miniature bluffs. Bordered throughout its length by willows and cottonwoods, Wagonjack River meandered and wound its way southward from the blue and hazy tumble of peaks that was the main range of the Medicine Mountains to where the wide and pleasant reaches of the Peace Pipe watered the southern section of the territory.

From Golden Bar to the Medicine Mountains was a long two hundred miles. From Golden Bar to the Peace Pipe was twice that distance.

Crocker County, four hundred miles long by three hundred miles wide, bounded on the east by the Wagonjack, ran well up into the Medicine Mountains before giving way to Storey County. Across the river from Crocker were two counties, of which Tom Read County was the northern and Piegan County the southern. Shaler County ran the whole length of the southern side of Crocker, whose western line was the boundary of the neighboring territory.

There you have Crocker, a county three hundred miles wide by four hundred miles long, and Golden Bar was its county seat.

Political pickings in Crocker, which pickings the neighbors called by a much worse name, were consistently good. A small Indian reservation lay

partly in Crocker and partly in Shaler, but somehow the Crocker citizens always secured the beef contracts. Crocker laws, provided the suspected person or persons were friendly with the county officials, were not administered with undue severity. Coarse work was never tolerated, naturally; but if one were judicious and a good picker, one could travel far and profitably. Thus it may be seen that Crocker was, as counties go, fertile ground for easy consciences.

But, like Gallio, Bill Wingo cared for none of these things. He watched the moving pencil-end that was Miss Prescott and her mount descend to the trail and ride along it in the direction of Golden Bar.

Another pencil-end was riding the same trail,—away from Golden Bar. Traveling at their present rate of speed, the riders would meet not far from the scattering grove of cedars marking the entrance to the low-walled draw that led to the Prescott ranch house.

Bill Wingo intently scrutinized the way-farer from Golden Bar side.

"Looks like Jack Murray's sorrel," he mused, holding the cigarette in the corner of his mouth and rocking it up and down. "If they stop, it's Jack."

The pencil-ends drew together at the lower end of the grove. They stopped.

"Shucks," Mr. Wingo muttered mildly. "I never did like that man."

Said the first pencil-end to the second pencil-end, "Hello, Sally Jane."

"Morning, Jack."

"I was just a-riding to your place."

"Don't let me stop you."

"I'll ride along with you."

"It's a free country." She lifted her reins and "kissed" to her horse. "And at times I've known you to be amusing, Jack. It's four miles to our ranch and you'll help to brighten the weary way."

He spurred alongside and turned in his saddle to stare at her.

"Is that all I'm good for—to help pass the time?"

"What else is a man good for?"

"Don't be so flip, Sally Jane. You know——" He stopped short.

She waited a moment. Then, "I know what?"

"You know I've been loving you a long, long time," he said abruptly. "I didn't want to tell you till I had something to offer you besides myself. And now I've got something—Rafe Tuckleton has promised to make me sheriff."

"I thought the voters usually decided such things," said she.

He laughed cynically. "Not in Crocker. We know the better way. Well, I've told you, Sally Jane. What do you say?"

She looked at him coolly. "What is this—a proposal?"

"Sure, I want you to marry me."

"No, you don't." There was no hint of coquetry in either her tone or the direct gaze of her violet eyes.

He crowded his horse almost against hers and dropped a hand on top of her hand where it lay on the saddle horn. She did not withdraw her hand at his touch. She simply suffered it impassively.

"Don't you understand?" he said earnestly. "Don't you understand that I love you, Sally Jane? And I want you."

Sally Jane continued to look at him.

"I understand that you want me," she told him calmly. "Why not? You're dark and tall and thick-lipped and headstrong. I'm slim and red-haired and my mouth is full, too—but I'm headstrong, thank Heaven. My type appeals to your type, that's all. Appeals physically, I mean. You'd like to possess me, but you don't love me, Jack Murray."

"I tell you——" he began passionately.

"You don't have to tell me," she said calmly. "I know."

"How do you know?"

"By your eyes."

"My eyes!"

"Your eyes. Love is something besides desire, Jack. I know that lots of men don't think so; but women know. You bet women know. And I, for one, don't intend to risk my happiness on a twenty-to-one-shot."

"What you talking about?" he demanded, scowling and withdrawing his hand.

"You—and me—us. If I married you, it's twenty to one our marriage would be unhappy. There's too much of the animal in you, Jack."

"You listen to me, Sally. I tell you I love you and I'm going to have you."

"I said you only wanted to possess me," she observed placidly.

"Dammit, I tell you——"

"That's right, swear," she interrupted. "A man always does that when he can't think of anything else to say."

"I'm gonna marry you," he persisted sullenly.

"If it does you any good, keep right on thinking so. It can't hurt me."

"Has Bill Wingo——" he began, but sensed his mistake and stopped—too late.

"You mean am I in love with Billy Wingo?" she put in helpfully. "My answer is, not at present."

"Meaning that you may be later on, I suppose."

"I didn't say so. Lord, man, haven't I a right to bestow my heart anywhere I like? I intend to, old-timer."

"You ain't gonna marry anybody but me," he insisted stubbornly.

"There you go again. Leave the melodrama alone, can't you? This isn't a play. It's real life."

"I said I was gonna have you and I am," he said slowly. "Neither Bill Wingo nor anybody else is gonna get you. You were always intended for me. You're mine, understand, mine!"

Jamming his horse against hers he pinioned both her hands with his right, swung his left arm round her waist and crushed her gasping against his chest. Be sure she struggled; but he was a man, and strong. Forcing the back of the hand that confined her two hands under her chin, he tilted her head up and backwards. Tightly she screwed up her mouth so that her lips were invisible. Once, twice and again he kissed her compressed mouth.

"There," he muttered, releasing her so abruptly that she almost fell out of the saddle and only saved herself by catching the saddle horn with both hands. "There. I've heard you boasted that no man had ever kissed you. Well, you're kissed now and you won't forget it in a hurry."

She settled her toes in the stirrups and faced him, her body shaking. Her hat had fallen off, her copper-colored hair hung tousled about her ears. Violet eyes sparkling under the black eyebrows, lips drawn back revealing the white, even teeth—her features were a mask of rage—a rage that seethed and boiled in her passionate heart.

Never in her life had she been so spitefully used. Had she had a gun, she would have shot the man. But she did not have a gun—nor any other weapon. She had even dropped her quirt somewhere.

"Oh!" she cried, striking her fists together. "Oh! I could kill you! You dog! You beast! Faugh!" Here she wiped her mouth with the back of her hand and wiped her hand on her horse's mane. "When I get home," she raved on, "I'll try to wash the touch of your mouth off with soap, but I don't believe even ammonia will ever make my lips feel clean again!"

He laughed. She began to cry as her rage overflowed her heart.

"When I tell my father," she sobbed, "he will kill you!"

"Here, stop crying," he directed, stretching forth an arm and leaning toward her.

At that she came alive with startling suddenness and with a full-armed sweep scored his cheek with her finger nails from temple to jaw.

"Don't touch me!" she squalled. "Don't touch me! When my father gets through with you——" She left the sentence unfinished and wheeled her horse.

But he was too quick for her and seized the bridle rein and swung her mount back.

"Listen," he said, his voice quiet but his eyes ablaze, "don't say anything to your father."

"Afraid now, are you?" she taunted sneeringly.

"Not for me, for him. I don't want any trouble with your pa, not any. But if he jumps me, I'll have to defend myself. And you know your pa was never very quick on the draw, Sally Jane. So long."

He let her bridle go and moved aside. She snatched her horse around with a jerk and flew homeward at a gallop.

CHAPTER TWO

A SAFE MAN

"We gotta be careful," cautioned Tom Driver, the local justice of the peace.

"Careful is our middle name," Rafe Tuckleton said reassuringly.

"I know, I know," persisted Driver. "But you can't fool all the people all _____"

"Abe Lincoln said it first," Felix Craft interrupted impatiently. "But he didn't live in Crocker County."

"Or he wouldn't have said it, huh?" flung in Tip O'Gorman. "Don't you fool yourself, Crafty. Tom's right. Human nature don't change any."

"I s'pose you mean give the people a square deal then," sneered Felix.

"If he does, he's crazy," said a lanky citizen named Shindle.

O'Gorman grinned a wide Irish smile. "No, I ain't crazy, but we'll give 'em a square deal alla same."

"He is crazy," declared lank Shindle.

"A square deal," repeated O'Gorman. "A square deal—for us."

"I thought so," nodded plump Sam Larder, speaking for the first time since the beginning of the discussion. "A square deal—for us. Let's hear it, Tip."

O'Gorman sat back in his chair and crossed his legs. "When a dog is hungry it ain't sensible to feed him a whole juicy steak. He'll gobble it down an' come pesterin' round for more in five minutes. But give him a bone and he'll gnaw and gnaw and be a satisfied dog for quite a long while."

"What kind of a bone were you figuring on giving our dog?" inquired Tom Driver.

"Sheriff." Thus Tip O'Gorman with finality.

Felix Craft shook a decided head.

"Guess again. Too much meat on that bone."

"Not if it's the right kind of meat," said O'Gorman blandly.

"Stop walking in the water," grunted the impatient Felix. "Say it right out."

"A sheriff with a ring in his nose," explained O'Gorman.

"A weak sister, huh?" put in Tom Driver.

"Or words to that effect," smiled O'Gorman. "Can't you see how it is, gents? To shove our ticket through we gotta give 'em one good man. If we don't, the four legislators are a stand-off. We may elect them. We may elect our three justices, county clerk and coroner. You can't tell what will happen to them. Folks will scratch their heads this election and they'll vote their own way. Take my word for it. And when it comes to sheriff, folks are gonna do more than scratch their heads. They're gonna think—hard. That's why we gotta give 'em a good man."

"One of themselves, for instance?" said plump Sam Larder, locking his hands over his paunch.

"Sure," O'Gorman drawled. "Do that. Give 'em somebody they trust and like for sheriff an' they'll be so busy thinkin' about electin' him that the rest of the ticket will slide in like a greased pig through a busted fence."

"To tell the truth. I'd more than half-promised the job to Jack Murray," remarked Rafe Tuckleton, incidentally wondering why Jack had not yet turned up at the meeting. "He should have been here an hour ago."

"You half-promised it to Jack Murray, huh?" exclaimed the lank citizen Shindle. "Lemme tell you that I was a damsight more than half-counting on that job myself."

"Neither of your totals is the right answer, Skinny," explained O'Gorman pleasantly. "Nominatin' either you or Jack would gorm up the whole ticket."

"Aw, the party is strong enough to elect anybody!" protested Felix Craft.

"Not this year," contradicted O'Gorman. "You ain't been round like I have, Felix. I tell you I know. Gents, if we go ahead and nominate either Skinny Shindle or Jack Murray, we'll all have to go to work."

"Who you got in mind?" queried Rafe Tuckleton.

"Bill Wingo."

Dead silence for a space. Then Rafe Tuckleton looked at Sam Larder and whistled lowly. Sam's eyes switched to Tip.

"I don't see the connection," said Sam Larder.

"Me either," concurred Rafe.

"I should say not," Shindle declared loudly.

"I'll tell you," said Tip O'Gorman, beaming impartially upon the assemblage. "Take Skinny Shindle. He——"

"Aw right, take me!" burst out the gentleman in question. "What about me! What——"

"Easy, easy," cautioned Tip O'Gorman, his smile a trifle fixed. "I ain't deaf in either ear, and besides ain't we all li'l friends together?"

"But you said——" Skinny tried again.

"I ain't said it yet," interrupted Tip, "but I'm going to—gimme a chance. It won't hurt. It's only the truth. Take Skinny and look at him. He buys scrip at three times the discount anybody else does, and there was a lot of talk about that beef contract the agent gave him."

"What of it? Folks don't have to bring scrip to me if they don't wanna, and suppose there was chatter about the contract. It's the government's funeral."

"It came near being the agent's," slipped in Sam Larder, with a reminiscent grin. "Some of them feather dusters like to chased him off the reservation when they saw the kind of cattle he gave 'em. I saw 'em. They were thinner than Skinny. No exaggeration. Absolutely."

"Well, that's all right, too," said Skinny. "A feller's got to make money somehow. Who ever heard of giving a Injun the best of it? Not in Crocker County, anyway."

"That's all right again, too," declared Tip. "But that last deal with the agent was a li'l too raw. Taking that with your prices for scrip, Skinny, has made a heap of talk. You ain't a popular idol, Skinny, not by any means."

"Damn my popularity!" snarled the excellent Skinny. "I wanna be sheriff."

"Like the baby wants the soap," said Tip. "Well, you'll never be happy then, because you'll never get it."

"Lookit here, Tip——"

"You lookit here, Skinny," swiftly interjected Rafe Tuckleton. "Is this campaign your own private affair, or is it the party's?"

"The party's, I guess," Skinny reluctantly admitted. "But I want my share of it."

"You can have your share without being sheriff," Rafe told him. "You'll be taken care of, don't fret. This here's a case of united we stand, divided we tumble. Suppose any li'l thing upsets our plans, and our ticket don't go through? What then? What happens? For one thing you won't get the contract for furnishing the lumber for the new jail and town hall that's gonna be built next year. And for another, that land deal you and I put through last month will be investigated. How'd we like that, huh?"

"Rafe's right," said Tom Driver. "This is no time for taking any chances. It ain't a presidential year, and you can gamble there ain't gonna be a thing to take folks' eyes off the county politics. We've all gotta give up something for the sake of the party."

"I don't notice you givin' up anything," snapped the disgruntled Skinny. "I seem to be the only one that loses."

"And Jack Murray," supplemented Rafe Tuckleton. "Hell's bells, Skinny, why didn't you say something sooner? To-night's the first I ever heard you even wanted an office. That's why I told Jack he could have it. He's a good man, but if I'd known——"

"What difference does that make?" interrupted Skinny, bitterly. "You couldn't give me the nomination anyway."

"You could have had another office—say county clerk."

"Wouldn't take it on a bet—not enough opportunity. Aw hell, it's a dead horse! Let it go, Rafe. Tip, you've had a lot to say about me, now let's hear what you got against Jack Murray."

"Yep," said Rafe Tuckleton, "let's have it. I'll have to give Jack some reason for going back on him, and I don't see exactly——" He did not complete the sentence.

"Speaking personal," observed Tip, again on the broad grin, "I ain't got a thing against Jack. Him and me get along fine. But when Jack was first deputy two years ago he managed to kill four men one time and another."

"That was in the line of duty," said Rafe. "They all resisted arrest."

Tip O'Gorman nodded. "I ain't denying it. And we've got Jack's word for it besides; but the four men all had friends, and when, as you know, each and every one of 'em turned out to be more or less innocent, why the friends got to talking round and saying Jack was too previous. Ain't you heard anything a-tall?"

"I've heard it said he was a *leetle* quicker than he maybe needed to be," conceded Rafe. "But folks always talk more or less about a killing. It didn't strike me there was enough in it to actually keep Jack from being elected."

"There is. They're only talking now, but nominate Jack and they'll begin to yell."

"You must have been mighty busy these last few weeks, Tip," sneered Skinny.

"I have," declared Tip. "Seems like I've talked with every voter in the county. I've gone over the whole field with a finetooth comb, and I tell you, gents, the bone for our dog is Bill Wingo. Most everybody likes Bill. He's a damnsight more popular than the opposition candidate. Bill will get a lot of the other feller's votes, but if we put up anybody else the other feller will get a lot of ours—and so will the rest of his ticket."

Tip O'Gorman sat back in his chair and eyed his friends. It was obvious that the friends were of two minds. Rafe Tuckleton, his fingers drumming on the table, stared soberly at the floor.

"Are you sure, Tip," inquired Larder suddenly, "that Bill Wingo is the breed of horse that will *always* drink when you lead him to water?"

Tip O'Gorman nodded his guarantee of Mr. Wingo's pliability of character. "Bill is too easy-going and good-natured to do anything else."

"I'd always had an idea he was a good deal of a man," said Sam Larder.

"Oh, he'll stand the acid," Tip said. "He'll go after anybody he thinks he oughta go after; but if we can't manage to give him the right kind of thoughts we're no good."

"You needn't start losing flesh, Sam," slipped in Tom Driver. "Bill would never go back on his friends. H's just a big overgrown kid, that's all."

Rafe Tuckleton leaned back in his chair and stared dubiously at Tip O'Gorman. "All right for Bill, but how about Tom Walton?"

"I'll bite," Tip averred blandly. "How about him?"

"Nothing, oh, nothing a-tall. Only Tom Walton has been one too many round here for a long time."

"He does talk too much," admitted Tom Driver, his bright little eyes, like those of an alert bird, fixed on Rafe Tuckleton.

"He's a very suspicious man," said the latter. "He like to broke Simon Reelfoot's neck last week over a horse of his he said Simon rustled."

"Serve Simon right," said Tip promptly. "Simon's a polecat. Always was. Felt like breaking his neck more than once myself. Good for Walton."

"But Simon's one of our crowd," Rafe reminded him, "and he's been mighty useful. We gotta consider his feelings."

"Oh, damn his feelings. The old screw ain't got any right to feelings."

"Yes, but there wasn't any real actual proof about the horse—only some tracks in Simon's corral that Walton thought he recognized."

Tip quirked a quizzical mouth. "Between us, Rafe, what did Simon do with the horse?"

"Sold him to a prospector who was leaving the country. So it couldn't be traced."

"Good horse was it?"

"It was that chestnut young Hazel rides."

"Hazel's own pony? Lord! Man alive, Simon is worse'n a polecat. He's a whole family of them. Why couldn't he have rustled some other horse?"

"I ain't Simon, so I can't tell you," said Rafe dryly. "But if you don't want anything done on Simon's account, how about this: yesterday one of my boys was shot at while he happened to be doing a li'l business on the Walton range."

"What did your boy happen to be doing?" smiled Tip.

Rafe attempted to excuse himself and his cowboy. "It was a long-ear."

"Branding it on the Walton range?"

"Yes."

"With its mammy?"

"Yes."

"Serve the boy right." Tip gave judgment. "You and your outfit are getting too reckless for any use, Rafe. The territory is not a Sunday-school. You can't pick a man's pocket openly any more. It isn't safe. And you know it isn't safe. Who was the boy and what time of day was it?"

"Ben Shanklin; and it was round noon."

"Worse and more of it. My Gawd, Rafe, you gimme a pain!"

Sam Larder shook a fat-cheeked head. "Dangerous, Rafe; dangerous. You've got to consider a man's feelings now more than you used to. Haven't you told your man to always work round sunrise and sunset, and never to shoot a calf's mammy on her owner's territory?"

"Others do, and get away with it. Besides, he didn't shoot the cow."

"He might as well have shot her," declared Tom Driver. "He got caught, didn't he?"

"Ben didn't get caught. He made the riffle all right with two holes in his saddle-horn and one in his cantle that tore his pants."

"What range? Did he say?"

"About fourteen hundred."

"Fourteen hundred, huh? Then he couldn't have been recognized."

"Luckily not."

"Luck is the word—for you—for us."

"Wonder who did the shooting?"

"I don't know. Ben dug out one of the bullets from his horn. It was fifty caliber—a Sharps."

"That was Tom Walton himself," declared Tom Driver. "He's the only one in his outfit owning a Sharps, and he won't let any one else shoot it. 'Twas Tom Walton. And don't be so positive Ben wasn't recognized, Rafe. I hear Walton carries field glasses now."

"He *is* getting suspicious," smiled Tip O'Gorman.

The smile stung the amiable Rafe. "He's gotta be stopped."

"How?" Thus Tip.

"There are ways," snarled Rafe.

"Of course, but it doesn't pay to be too rough. Tom has a great many friends. We can't afford to stir up a whole kettleful of discontent. A little care, Rafe, is all that's necessary. I think I'd impress my men, if I were you, with the absolute necessity of being careful."

"I did tell 'em," said Rafe sullenly.

"Your telling seems to have left them cold. At least it left Ben Shanklin. Damn his soul! I almost wish Tom Walton had got him, the coyote! He deserves to be got, gorming up our plans thisaway."

"Well, everything turned out all right," Felix Craft tucked in hastily. "So why worry? I'm sure Rafe's men will be more careful after this."

"I wish I was sure," grunted Tip O'Gorman. "They're a wild bunch, every last one of 'em. I believe they just try to stir up trouble. They're eternally getting drunk and shooting up saloons and other places of business. People don't like it."

"Oh, boys will be boys," deprecated Rafe.

"Your boys will be dead boys if they don't watch out. Anyway, you put the hobbles on that Ben boy, Rafe. We can't afford to have him spoil things."

"How about having him spoil Walton?"

"And antagonize all of Walton's friends, huh? Bright, oh, very!"

"If the feller who spoiled Walton was a stranger, it would be all right. You couldn't connect an absolute stranger with us, could you?"

"Let's hear your li'l plan," said Tip O'Gorman.

Every man of them listened intently to the Tuckletonian plan.

As plans go it was a good plan. Procuring an assassin to do the dirty work is always a good plan. Rafe knew a gunman, named Slike, in a neighboring territory. For two hundred and fifty dollars, according to Rafe, Dan Slike would murder almost any one. For five hundred it was any one, without the almost.

"Can he do it?" doubted Tom Driver.

"We all know how slow Tom Walton is on the draw," sneered Rafe. "Which he's slower than Sam Prescott. If Slike don't plug Walton three times before he can draw, I'll eat my shirt."

"That sounds well," said Tip O'Gorman, eyeing Rafe with frank disgust. "But, somehow, I don't like the idea of having Walton killed."

"Whatsa matter with you?" demanded the originator of the idea. "Losing your nerve?"

Tip O'Gorman's expression did not alter in the slightest. He gazed upon his questioner as if the latter were a new and interesting specimen of insect life.

"No," he said, "I don't think I'm losing my nerve. Do you think I'm losing my nerve, Rafe?"

Rafe looked upon Tip. Tip looked upon Rafe. The others held their respective breaths. In the room was dead silence.

"Do you, Rafe?" persisted Tip, his voice velvety smooth.

Rafe found his tongue. "No, I don't," he declared frankly. "But, I don't see why you don't like my scheme."

"Don't you? I'll explain. Tom Walton's niece, Hazel, is the drawback. Rubbin' out Tom would most likely put a crimp in her, sort of. She lost her ma and pa only five years ago."

"Aw, the devil!" exclaimed Rafe Tuckleton. "We can't stop to think of all those li'l things. We're here to make money, no matter how. Good Gawd, Tip! We ain't——"

"Good Gawd, Rafe!" interrupted Tip. "We ain't hiring any gunman to wipe out Tom Walton. I'm no he-angel—none of us are, I guess; but I've known Hazel since she was a li'l squaller, and I won't sit still and see her hurt. And that *goes!*"

Tip nodded with finality at Rafe Tuckleton. Rafe sat back on the middle of his spine and gnawed his lower lip. His eyes were sulky.

"I don't want to see Hazel hurt either," said Skinny Shindle with an indescribable leer, "but when it comes to a question of li'l Hazel or us, I'm for us every time."

"You look here, Skinny," said Tip O'Gorman in a low dispassionate voice, "what I said to Rafe, I say to you: Hands off Tom Walton."

"Oh, all right," said Skinny Shindle, "but if anything happens out of this, don't say I didn't tell you."

"I won't say so, Skinny," Tip said good-naturedly. "I won't say a word."

"Gentlemen," Felix Craft put in hurriedly, "let's go slow about now. No use saying anything hasty, not a bit of use. Tip's right. None of us want to hurt Hazel, and——"

"And we want to be damn sure we don't want to hurt Hazel," interrupted Tip O'Gorman, his eyes fixed on Rafe Tuckleton's sullen face.

"'T'sall right, 't'sall right," said Rafe, forcing a smile. "Have it your own way, Tip. Tom Walton's safe for all of me."

"Good enough," Tip said heartily, shooting at Rafe a glance that was not completely trustful.

Entered then Jack Murray, wearing a set smile across his scratched face. He nodded to the assemblage, sat down jauntily on the edge of the table and brought out the makings.

"Well!" he said, his eyes on Rafe Tuckleton, rolling the while a meticulous cigarette. "Well, I suppose you've got the ticket all made up."

"Just about," nodded Rafe.

"What prize did I draw?"

"A large, round goose-egg," Skinny Shindle answered for Rafe with malice.

"Huh!" Thus Mr. Murray, the hand he had reached upward to his hatband coming down without the match. "You serious, Skinny?"

"I wish I thought I wasn't," was the reply.

Jack Murray turned a slow head back toward Rafe Tuckleton. "You told me the sheriff's job was mine," he said bluntly.

"I thought it was," admitted Rafe, looking straight into his eyes. "But we've heard some bad news, unexpected news. It seems you ain't as popular with our citizens as you might be. We understand that you're so little liked you wouldn't be elected in a million years."

"Who told you that?" Jack's tone was sharp.

"I did." Thus Tip O'Gorman in a tone no less sharp. "And I know what I'm talking about, you can gamble on that."

"Tip's had his ear to the ground pretty steady," said Rafe Tuckleton. "He knows what's on every voter's mind, and if we nominate you for sheriff it means the defeat of the party. Listen, and I'll explain the whole thing."

Jack Murray listened in silence. When Rafe said his last word, Jack Murray laid his unlighted cigarette across the end of his left index finger and teetered it slowly.

"Who you figurin' on running in my place," he drawled, his dark gaze on the cigarette.

"Bill Wingo."

The teetering stopped. The cigarette slipped into the fork of two fingers. The man slid to his feet.

"Bill Wingo," he repeated. "Bill Wingo, huh? Well, this is a surprise."

Without another word he left the room, closing the door behind him very gently.

When he had gone Tip O'Gorman threw a whimsical glance at Rafe Tuckleton.

"I'd feel better if he'd slammed that door," said Tip O'Gorman.

CHAPTER THREE

WHAT SALLY JANE THOUGHT

"Careless child," observed Bill Wingo, coming up on the porch where Sally Jane lay in the hammock. "You dropped your hat in the draw. I found it this morning. Here it is. Don't move, sweet one. Of course, if you asked me to sit down or didn't ask me I would, and if you felt like rustling some coffee and cake, or lemonade and doughnuts, or even just a piece of pie with a bite of cheese on the side—just a bite, not over half a pound, I don't like cheese much—I wouldn't stop you."

"Stop calling me 'sweet one,'" Miss Prescott said crossly. "I'm not your sweet one, or anybody else's sweet one, and I'll get you something to fill your fat stomach, you lazy loafer, when I get good and ready. Not before."

"Well, all right," he murmured resignedly, settling down on the stout pine rail of the porch and fanning himself with his hat. "But I love you just the same. What's that? Did I hear you curse or something?"

"Something. I only said damn because you make me sick. Love, love, love, morning, noon and night! Don't men ever think of anything else?"

"Not when you're around," he told her.

"Oh, it's the very devil," admitted Sally Jane, rubbing her red mouth with a reflective forefinger. "Am I so alluring?"

"Who has been kissing you now?" he asked idly and wondered why her face should flame at the word. Wondered—because everybody knew Sally Jane.

On her part she wondered if he had seen what had passed in the draw the day before, then decided instantly that he had not, else his manner toward her would have been decidedly different.

"You haven't answered my question?" he persisted, still idly.

"Does it need one?"

"Well, no, not yet, anyway. When you're engaged to me, I'll know who's kissing you."

"Don't be disgusting."

"No disgusting about it. I'll probably hug you, too."

"What dismal beasts men are," she said, with a mock shiver, having regained control of her jumpy nerves. "I suppose you'd enjoy having me sit on your knee."

"I would indeed," he told her warmly. "I think that chair there would hold the two of us if we sat quiet—fairly quiet."

It was at this juncture that her father, Sam Prescott, came out on the porch.

"Howdy, young Bill," said Sam. He invariably prefixed the adjective to Bill's name. Why, no one knew. It was doubtful if he knew himself.

"Lo, Sam," said young Bill.

"Sam," said Sally Jane from the hammock, "s'pose now a man tried to hug you, and kiss you and make you sit on his knee, what would you do?"

"If I was you, you mean?" inquired Sam judicially. Middle-aged though he was, he never ceased to experience a pleasurable thrill when his daughter called him "Sam." It reminded him so much of her mother. "If I was you," he went on, without waiting for an answer, "and the feller which tried to make me do all those things was young Bill here, I'd do 'em. I really believe he likes you, Sally Jane."

"You think so, do you?" sighed Sally Jane, smoothing her frock down over her ankles. "You too, Samuel? What chance has a poor girl got—without a club?"

"I told her if she married me," spoke up Bill, "she could have jam on Sundays and butter the rest of the week."

"There, you see, Sally Jane!" said Sam Prescott. "He'll be good and generous. And if you asked him for a new dress now and then, or a pair of shoes, I'll bet he wouldn't say no."

Sally Jane stubbornly shook her copper-colored head of hair. "Samuel," said she, "you're the only man I ever loved. Bill's all right in his futile, thumb-handed way, but he's not my Sam. Now don't forget that one drink is enough for a plumpish man with a beautiful daughter, and that I want you to bring back a dozen cans of baking-powder, a dozen bars of May Rose soap, three dozen boxes of matches, four sacks of flour, sack of salt, sixty pounds of sugar, two papers of pins, four spools of number forty cotton and a pail of chocolate creams. Be sure and take the cover off and see it's a full pail, and if Nate tries to palm off any stale stuff or hard candy on you, why just throw it in his face and tell him I'll come in and complain in person my next trip."

"My Lord, Sally Jane," Sam exclaimed helplessly, "I can't remember all that!"

"I know you can't," said Sally Jane calmly. "I've merely been impressing it on you that there's a lot of errands for you to do. You'll find a carefully written list of everything I want stuck in the coil of the tie-rope under the seat of the buck-board. You can't miss it when you go to tie the team."

"And Sam," she added, raising her voice to a shout, for her father had already departed corralward, "be back by seven. I'm gonna make a lemon pie."

Her father waved a comprehending hand and disappeared behind the blacksmith shop.

"You see," said Billy Wingo, with a smirk of self-satisfaction, "the male parent approves. The last obstacle is removed. Be a sport. Take a chance. You might go farther and fare worse."

"I doubt it, William. Not that you aren't a nice boy and all that sort of thing. However, tell sister why you seek her company this morning?"

"Oh, yes, of course, sister not being a good excuse for coming, I did another reason. I have a fresh bale of news for her li'l pink ear. Last night I was approached—" He paused dramatically.

"How much did he try to borrow?" Sally Jane inquired indifferently.

"Nothing like that, sweet one. The political steersmen of our fair county rode out to my place last night and——"

"What did the old thief want?" Sally Jane brutally wished to know.

"*Steersmen*, beloved. There were two of him, and you do both old gentlemen an injustice. They——"

"So Tip came with Rafe, did he? And you mean to tell me you didn't even miss your watch after they'd gone? You didn't? They must be sick, the pair of them. What did they do?"

"Offered me the nomination for sheriff!"

Sally Jane sat up abruptly, stuck her finger in her mouth, then held it up to catch the vagrant breeze.

"The wind's still in the west," she said, making her eyes round as saucers. "And you are still sitting there as large as life, and I'm here alive

and in my right mind!" Here she pinched her forearm. "That hurt," she added. "I really am not dreaming. They want you for sheriff, huh?"

"Don't 'huh' at me, Sally Jane. It ain't being done by the best people no more. And they want me for sheriff, really."

"I wonder just how much of that really is real?"

He wrinkled his forehead at her. "Sometimes, Sally Jane, you talk most awful puzzling."

"Those two old rascals!" she cried.

"Don't you think their intentions are honorable?"

Sally Jane's laughter was sardonic.

"Are they trying to fool me, or what?" he persisted.

"I don't know whether they're trying to fool you or not," was the reply, "but they're trying to fool somebody, that's a cinch."

"Do you know now, Sally Jane, I was thinking something like that myself."

She looked at him with a gleam of respect in her eyes. "I wonder if you really have a brain after all, William. Occasionally you give out a spark that leads one to believe that there may be a trace of reasoning power underneath your waving hair. What makes you think they have an ulterior motive?"

"Humanly speaking, I dunno why; but I do."

"Instinct is the white woman's burden, boy. You'd better leave it alone. But it doesn't take any instinct to tell me that there's a man and brother hiding in the cord-wood. To find the dark-hued gentleman—that is the question."

"Why take the trouble?"

"Why? Listen to the man! Why? So you'll know what you're up against, that's why."

"But I'm not up against anything," he objected mildly. "I told 'em I didn't want the job."

"What?"

He rubbed an outraged ear. "No need to deafen me," said he.

"Deafen you?" she cried. "I could take a club to you, you fat-head! The opportunity of a lifetime and you turn it down! Oh! I could shriek my head off with rage! I never was so hopping in my life! The first time an honest man is offered a political job in this county, for the honest man to turn up his nose, is——" Words failed her. She almost choked.

"So-o, so-o," he soothed. "Don't get so excited. Remember we are young but once, and every outburst brings us nearer the grave. I hadn't reached the end of my tale when you blew up and hit the ceiling. Lemme finish, that's a good child. I told 'em I didn't want the job, but they wouldn't take 'no' for an answer. They said for me to think it over, and they'd be back in a couple of days and take it up with me again."

"Bill," said Sally Jane, leaning forward, her violet eyes shining, "I'm serious."

"I'll try to believe it," he said, regarding her with admiration. "But just this minute you look like the most unserious thing I ever saw—and the most beautiful. Listen, Sally Jane, I wish you'd do as I ask you. Close your eyes and plunge right in. We'd be as happy as two pups in a basket. Sign on the dotted line and leave the rest to me."

Which nonsense she quite properly disregarded utterly. "Bill, I want you to take that nomination."

"But why, Sally Jane? I don't wanna be sheriff."

"Suppose I want you to?"

"But why should you want me to?"

"Isn't it enough that I ask it?"

"You flirt! You're utterly shameless! You know you can twist me all round your li'l pink finger like a piece of string. You know I'm fool enough to do anything you ask, and——"

"Well then, good fool," she smiled her interruption, "it's all settled. You accept the nomination, and if you don't make things hum after you're elected, you're not the man I take you for."

Bill slipped right off the porch rail and sat down limply on the floor. His eye-balls rolled up. His hand fluttered over his heart. He breathed with difficulty. "At last," he muttered. "Accepted! The shock will be the death of me! Water! Water! With a little whisky stirred in. Just a little. Not more than four or five fingers, or perhaps six. No sugar."

He got to his feet slowly and reseated himself on the rail. "You won't go back on your word, Sally Jane," he told her soberly.

"I can do lots of things you never heard of," said she. "But making two meanings grow where only one grew before is not one of them."

"Joking aside," he said, "will you marry me if I take this sheriff job?"

"Joking aside," said she, "would you want me for a reason like that?"

"Well, no," he admitted frankly. "I'd want you to love me a lot."

"I'd make a pretty worthless wife otherwise. Honestly, Bill, I like you a great deal, but there's something lacking. And when there's something lacking, there's nothing to be done. Love is the greatest thing in the world, Bill. It's what makes life worth living. And you mustn't cheat it. If you do, you might better never have been born."

He nodded. Try as he might, he was unable to feel very badly. He decided to give it up as a hopeless job.

"I see," he said gravely. "Sometimes, Sally Jane, I get an idea that maybe you and me won't marry each other, after all. But no matter what happens, I'll always be a brother to you. You can count on me."

He arose and made her a flourishing bow.

"That," said Sally Jane, with her bright smile, "takes a load off my heart. As a sister, I know I'd fill every requirement. Be a good brother now, and do as I ask. Be a sheriff."

"All right," said Billy Wingo. "I will."

CHAPTER FOUR

HAZEL WALTON

"Now there," said Riley Tyler, staring at the driver of a buckboard who was tying her team in front of the Rocky Mountain store, "now there is a girl that is pretty as a li'l red wagon, new-painted."

Billy Wingo, unmoved, continued to whittle the end of the packing case he was sharing with Tyler. He did not even look at the girl, and she was a very handsome girl.

"Yeah," said Billy Wingo.

"Not that I cotton to a female girl as a usual thing," resumed Riley, "ever since a experience I had when young. I'll tell you about it some time; maybe I better now."

"No, not now," Billy made haste to say; for he had heard the story of every single one of Tyler's love affairs at least a dozen times. "Le's talk about somethin' pleasant. Try the weather."

"You know, just for that," trundled on Riley Tyler, "we'll go on talking about young Hazel Walton over there. Pity she's gone in the store. You've never taken a good look at her, have you?"

"Nor I don't want to," denied Billy with what seemed to Riley an unnecessary heat.

"Why not? Do your eyes good. Tell you, Bill, she's got the best-looking black hair y'ever saw."

"I saw her once or twice with her uncle," Billy admitted desperately. "She's all you say she is and more too. Anything to please the children. Don't you ever stop talkin', Riley?"

"Not when I got somethin' like Hazel to talk about," declared the relentless Riley, warming to his subject. "Y'oughta notice her eyes once, Bill. Tell you, you never saw *eyes* till you see hers. They're eyes, they are! Big and black and soft and eyewinkers long as a pony's. Fact. And she ain't lost a tooth. She's still got the whole thirty-four. You take my word for it, Bill, she's a whole lot different from other folks."

"She's two teeth different anyway. Most generally all other folks can crowd in their mouth are thirty-two."

"What's a tooth more or less between friends?" said the unabashed Riley. "She's got a whole mouthful, and when she smiles she shows 'em all."

"That's great," yawned Billy, closing his pocket-knife with a click. "You forgot to say whether she's a good cook or not."

"She's a number one cook," Riley told him seriously. "Her coffee is coffee, lemme tell you, and she don't fry a steak to boot-leather neither. Not her. No. She broils it, she does. *Y'oughta* taste her mashed potatoes. No lumps in 'em or grit or nothin', only the mealy old potato; and butter beets! My Gawd!"

"Mixes 'em up with the potato, huh?"

"Of course not, you jack—separate. And canned peas—separate. Actually she cooks those peas so they're tender as fresh ones; tenderer, by gummy! Makes her own butter, too, in a churn."

"Well, well, in a churn. I never knew they made butter thataway."

"Shut up, Bill. You ain't got any soul. I stop at Walton's for a meal every chance I get. Y'oughta see her cookin' a meal, Bill. She rolls her sleeves up and she's got dimples in her elbows. She's a picture, and you can stick a pin in that."

"Why don't you marry the girl?"

"I've asked her," was the reply made without rancor. "She said, 'No thanks.'"

"That's one thing in her favor."

"Yeah, I think—Hey! what you tryin' to do, insult me?"

"Insult you, you tarrapin? You wouldn't know it if I did."

"If I wasn't so comfortable, I'd show you something," declared Riley Tyler, sliding farther down on the small of his long back. "But the heat has saved your life, William. Yeah, otherwise you'd be a corpse all bluggy in the middle of Main Street. I'm a wild wolf when I'm riled, you can gamble—Yonder she comes. She didn't stay long."

Billy dug the Tyler shortribs with a hard elbow. "Where's your manners? Go over and untie the lady's team."

"Too far. She'd have 'em untied by the time I got there. Besides, I'm too comfortable. Another thing, I'd have to get up. No, no, I'll stay here."

Hazel Walton stepped into the buckboard, kicked the brake-lever and swung her team like a workman. The tall near mule laid back his long ears and planted both hind feet on the dashboard. *Smack! Smack!* went the whip. The mule tucked his tail, shook his mean head and tried to jump through his collar. The brake-lever shot forward under the shove of the girl's

straightened right leg. The sensible off mule threw his head to the left to ease the hard drag on his mouth as the girl swayed back on the near rein. The near mule, hearing the slither of the locked wheels behind him, and with his windpipe bent like a bow and his chin forced back to his chest, decided that fighting would avail him nothing and quieted at once.

"Regular driver, that girl," Billy said approvingly. "It ain't every woman can drive a pair of those big freight mules. I never knew she was like that."

"Lots of things you dunno," Riley hastened to say. "You didn't even know she was pretty."

Billy hopped across the sidewalk and ran out into the middle of Main Street. The mules, hard held, slid to a halt. Billy scooped up the package that had fallen from behind the seat and hurried up to the buckboard.

"Your tarp's slipped a little, ma'am," said he, stowing away the package without raising his eyes to Miss Walton, who was leaning over the back of the seat. "I'll tie it fast."

Not till the tarpaulin was fastened to his complete satisfaction did he look up. Then he realized that Riley Tyler had not told half the truth about Hazel Walton's eyes. True, they were big and black and soft, but they were deep too, deep as cool rock pools, and they looked at you steadily with a straight look that somehow made you wish that you had been a better boy.

Queer that he hadn't noticed this attribute before. But at none of the two or three times he had passed the girl on Golden Bar's Main Street had she impressed him in the least. He could not have described her to save his life. Perhaps it was because he had not looked into her eyes before to-day. But he wasted no time thinking about that. He kept right on looking into her eyes.

"You don't come in town very often," was his sufficiently inane observation.

"Not very often," said she, and smiled.

Yes, there were the teeth. And weren't they white! He didn't know when he had seen such white teeth. And her mouth had a dimple near one corner. Now the dimple was gone. He wished it would appear once more.

"Do it again," he found himself saying like a fool.

She wrinkled her pretty forehead at him. "What?"

"Smile," he said, with a boldness that surprised himself.

It surprised Hazel Walton, surprised her so that she jerked around to the front, "kissed" to the mules and drove away without a word.

Billy stood quite still in the middle of Main Street, with his hat off, and looked after her a moment. Then he pulled on the hat with a jerk and returned to his packing case.

"What did she say to you?" Riley wanted to know.

"None of your business," was the ungracious reply.

"She left you sort of sudden," persisted Riley. "And why did you stand still in the middle of the street and look after her so forlorn and long?"

"I wasn't lookin' more than ten seconds," denied Billy, jarred off his balance for once in his life.

"Shucks, I had time to roll a cigarette, and smoke it to the butt while you stood there nailed to the earth. Yeah. Tell you, Bill, you don't wanna let your feelings give you away so much. Bad business that is. Somebody's bound to pick your pocket forty ways. Y'oughta play poker more. That would teach you self-control."

"Bluh," grunted Billy. "Think you're smart, don't you?"

"I know I am," returned Riley, crossing one knee over the other and diddling his foot up and down to the thin accompaniment of a tinkling spur-rowel. "I got eyes, I have. I can see through a piece of glass most generally. Oh, mush and milk, love's young dream, and when shall we meet again."

"Aw, hell, shut up!" urged Billy, and shoved his friend off the packing case and went elsewhere hastily.

Riley first swore, then laughed and reseated himself on the case. Jack Murray, passing by, stopped and sneered openly. It was obvious that Jack was in liquor.

"He don't care how much he picks on you, does he?" observed Jack.

Riley Tyler did not move hand or foot. But a subtle change took place. Iron turning into steel undergoes such a metamorphosis. The sixth sense of an observing old gentleman across the street and directly in line with Jack Murray informed its owner of the sudden chill in the air. The observing old gentleman, whose name was Wildcat Simms, oozed backward through a doorway into the Old Hickory saloon.

"Why are you walking like a crab, Wildcat?" queried his friend the bartender.

"Because Jack Murray is talking to Riley Tyler."

The bartender, wise in his generation, was well able to fill in the rest for himself. He joined the old gentleman behind a window at one side of the line of fire.

Riley Tyler, meanwhile, was fixedly regarding Jack Murray.

"Meaning?" said Riley Tyler.

Jack Murray came right out into the open. "Ain't you able to stand up for yourself no more?"

There it was—the deliberate insult. Followed the movement so swift no eye could follow. But Riley's gun caught. Jack Murray's didn't. When the smoke began to wreath upward in the windless air, Jack Murray was calmly walking away up in the street and Riley Tyler was hunched across the packing case. Blood was running down the boards of the packing case and seeping through the cracks in the sidewalk.

Billy Wingo was the fourth man to reach Riley. The boy, for he was not yet twenty-one, had been turned over on his back on the sidewalk. He was unconscious. Samson, the Green-Front Store owner, was bandaging a wound in Riley's neck.

"Lucky," observed Samson, "just missed the jugular."

"Where else is he shot?" queried Billy, his eyes on the blood-soaked front of Riley's shirt.

"Right shoulder," Samson informed him.

"I heard three shots," said Billy. "Two was close together but the last one was maybe ten seconds later."

"I only found the two holes," declared Samson.

But when Billy and another man picked up Riley to carry him to the hotel, Billy found where the third shot had gone. It had penetrated Riley's back on the left side, bored between two ribs, missed the wall of the stomach by a hair and made its exit an inch above the waistband of the trousers.

The marshal, who had seen the crowd going into the hotel, arrived as Billy and Samson were making Riley as comfortable as possible on a cot in one of the hotel rooms.

The marshal, whose surname being Herring was commonly called "Red," thrust out a lower lip as he surveyed the man on the bed.

"Even break, I hear," said the marshal.

Billy set him right at once. "You heard wrong, Red. Riley's gun caught. I found where the sight had slipped through a crack in the leather. Besides, Riley was plugged in the back after he was down. Do you call that an even break?"

"Well, no," admitted Red Herring, who was inclined to be just, if being just did not interfere with his line of duty. "Anybody see it besides you?"

"I didn't see it a-tall. I didn't have to. I heard the shots—two close together and one a good ten seconds later. Oh, Riley was plugged after he was down and out, all right enough. Besides, Riley was lying across his gun hand when he was picked up, Samson says."

"That's right," nodded Samson.

"Jack was a little previous, sort of," frowned the marshal.

"You think so," said Billy sarcastically. "Maybe you're right."

"Well, I can't do a thing," said the marshal. "I didn't see it. And these fraycases will happen sometimes."

"Nobody's asking you to do anything," said Billy. "I'm looking after this."

"Now don't you go pickin' a fight with anybody," urged the marshal, instantly perceiving his line of duty. "Judge Driver is dead against these promiscuous shootings."

"Judge Driver can go to hell," Billy said with heat. "What's this here but a promiscuous shooting, I'd like to know? And I don't see you arrestin' anybody for it. You said you couldn't."

"I didn't see this one, and besides Riley ain't been killed, and no complaint has been made," defended the marshal, who was no logician. "But where a feller says he's gonna attend to somebody, that shows premeditation and malice aforethought, which both of 'em is against the statute as made and provided in such cases."

"How you do run on," commented Billy.

But the Red Herring lacked a sense of humor. Heavy of soul, he frowned heavily at Billy.

"You go slow," was his fishy advice.

"Be careful and otherwise refrain from violence," observed Billy, whose English became better as his temper grew worse. "I grasp your point of view," he added gravely. "But I don't like it. Not for a minute I don't. I'll do as I think best. I'd rather, really."

"Don't you go startin' nothin' you can't finish," said the marshal, lost in a maze of words. "I don't want to have to arrest you."

"I don't want you to have to either," Billy averred warmly. "Arrestin' me would surely interfere with my plans. Yeah."

"A sheriff-elect had oughta set a good example," argued the marshal.

Riley Tyler rolled his head from side to side. He muttered incoherently. The men about the cot turned to look down at him. Then he said, speaking distinctly:

"He shot me after I was down."

Billy Wingo raised his eyes and stared at the marshal.

"How's that, umpire?" said Billy.

"He's raving," snapped the marshal.

"A man speaks the truth when he's thataway," rebuked Billy. "I'm going to see about this."

But the marshal blocked his way. "I told you——" he began.

"Get out of my way!" directed Billy, his gray eyes ablaze.

The marshal got. After all, he had no specific orders to prevent a meeting between Jack Murray and Billy Wingo. Let Jack look out for himself. No doubt Rafe and sundry other of his friends would be annoyed, but it couldn't be helped. The marshal betook himself hurriedly to the back room of the Freedom Saloon.

Billy, coldly purposeful, made a round of the saloons first. In none of them did he find his man or news of him. Finally, from the stage company's hostler tending a cripple outside the company corral, he learned that Jack had left town.

"Which he went surging off down the Hillsville trail," said the hostler, "like he hadn't a minute to lose. He told me he was going to Hillsville."

"Told you?" Surprisedly.

"Yes, told me, sure. 'If the marshal wants me,' says he, as he loped past, 'tell him I've gone to Hillsville.'"

Here was an odd thing. Jack Murray knew where he stood with the powers that were and consequently knew that the marshal would not want him for the shooting. Yet here was Jack Murray not only leaving town hastily, as though he feared capture, but taking pains to leave word where he was going. The two facts did not fit. True, a gentleman seeking to mislead possible pursuers might lie as to where he was going. In which case such a gentleman would not take a trail like the Hillsville trail—a trail visible from Golden Bar for almost five miles in both directions. But if a person wished to be pursued——

"I think I can see his dust still," said the hostler helpfully, pointing toward the spot where the Hillsville trail entered a grove of pines five miles out.

"I think I see it too," declared Billy grimly, and went hurriedly to the hotel for his rifle and saddle.

Hazel Walton, jogging along the homeward way, was overtaken by a horseman. He nodded and called, "'Lo," as he galloped by. She returned his greeting with careful courtesy. But she scowled and made a little face after his retreating back. She did not like Jack Murray. She never had. The man had repelled her from the moment she first set eyes on him.

It is human nature for one to take an interest in the movement of a person one dislikes. Hazel wondered where Jack Murray was riding so fast.

For it was a hot day. Her wonder grew when, twenty minutes after he had passed from sight, she perceived by the hoofmarks that he had left the trail and turned into a dry wash. She knew that the wash led nowhere, that it was a blind alley, a cul-de-sac ending in a rock-strewn, unclimbable slope that was the base of Block Mountain. This wash was a good two miles beyond where the trail entered the grove of pines five miles out of Golden Bar.

Beyond the wash the trail wound up the side of a hill. At the crest of the hill the off mule picked up a stone. Hazel set the brake, tied the reins to the felley of a wheel and jumped to the ground. The stone was in a near fore, and jammed tight. After ten minutes hard hammering and levering with her jackknife she had the stone out.

As she released the foot from between her knees and straightened her back, her gaze swept along the back trail. She saw only sections of trail till it passed beyond the grove of pines five miles out of town. The grove was now three miles behind her. The wash into which Jack Murray had ridden was distant not half a mile. The land on either side of the wash had once been burnt over and had grown up in brush and scraggly jack pine.

Of the pines and spruce that had once covered the ground surrounding the wash, but one tall gray stub remained. The eye of the beholder was naturally drawn to this salient characteristic of the landscape. She saw more than the stub. She saw Jack Murray's horse tied to its bole. There was something queer about the horse's head. Whereas Jack Murray's horse when it passed her on the trail had been a sorrel of a solid color, the head was now whitey-gray.

Hazel was not of an abnormally inquisitive nature, but that a horse's head should change color within the space of half an hour was enough to make any one ask questions. Ever since she and her uncle had come to realize that some one was rustling their cattle, neither of them ever left home without field glasses. Hazel pulled her pair from beneath the seat cushion and focused them on the odd-looking horse.

"Why, it's a flour sack over the horse's head!" she exclaimed. "They say a horse won't whinny if you cover his head. I wonder why Jack doesn't want him to whinny. And *where* is Jack?"

Two minutes later she found Jack. He was lying on his stomach in the brush behind an outcrop. The outcrop overlooked the trail. Jack's rifle was poked out in front of him. It was only too obvious that Jack was also overlooking the trail. Why?

A few minutes later that question was answered by the sudden appearance of a rider at a bend of the trail a mile back. Jack Murray must have glimpsed the rider at the same time, for Hazel saw him snuggle down like a hare in its form, and alter slightly the position of his rifle, although the rider was not yet within accurate shooting range. With a gasp she recognized the rider on the trail by his high-crowned white hat: only one man in Golden Bar wore such a hat and that man was Billy Wingo. Instantly she recalled what folks were saying of Jack Murray since it had become positively known that the party nomination for sheriff had gone to Billy Wingo, that Jack Murray "had it in" for Billy, that he had made threats more or less vague, and that he had taken to brooding over his fancied wrongs. She realized that the threats had crystallized into action, and that this was an ambush.

She knew that Billy would be masked by a certain belt of trees before he traveled another thirty yards, not to emerge into view again till he topped a rise of ground about a thousand yards from the base of the hill on which she stood. It was a certainty that Jack would not risk a shot till his enemy had crossed the rise of ground. If Hazel could only reach the top of the rise first —

Hazel popped up into the seat of the buckboard as Billy reached the belt of trees. It has been shown that Hazel Walton was a good driver, and she needed every atom of her skill to turn the buckboard in the narrow trail without smashing a wheel against the rocks that some apparently malign agency had seen fit to strew about at that particular spot. The near mule, devil that he was, when he found that he was no longer headed for home, stuck out his lower lip and front legs and balked.

This was unwise of the near mule. He should have chosen a more opportune moment. Hazel had no time to reason with him. She set her teeth, slacked the reins, opened her jack-knife and jabbed an inch and a half of the longer blade into the mule's swelling hip.

It is doubtful whether the recalcitrant mule ever moved faster in his life. The forward spring he gave as the steel perforated his thick hide almost snapped the doubletree. Hazel, her toes hooked under the iron foot-rail, poured the leather into the off mule.

She made no attempt to guide her galloping team. She did not need to. She barely felt their mouths, but ever she kept her whip going, and the mules laid their bellies to the ground and flew down that hill like frightened jack rabbits. And like a rubber ball the buckboard bounced behind them.

Hazel knew that Jack Murray behind his outcrop must hear the thunder of the racing hoofs, the rattle of the swooping buckboard. Half-way down the hill she lost her hat. Promptly every hairpin she possessed lost its grip and her hair came down. In a dark and rippling cloud it streamed behind her.

"Keep your feet, mules!" she gritted through her locked teeth. "Keep your feet, for God's sake!"

And they kept their footing among the rolling stones, or rather a merciful Providence kept it for them. For that hill was commonly a hill to be negotiated with careful regard to every bump and hollow. Hazel's life was in jeopardy every split second, but so was another life, and it was of this other life she was thinking. Reach that white-hatted rider she must before he came within thousand-yard range of the man behind the outcrop.

Within thousand-yard range, yes. Jack Murray's reputation with the long arm was of territorial proportions. He had made in practice, hunting and open competition almost unbelievable scores. Given anything like a fair shot, and it would be hard if he could not hit an object the size of Billy Wingo. All this Hazel Walton knew, and her heart stood still at the thought. But she was of the breed that fights to the last breath and a gasp beyond.

She breathed a little prayer, dropped her right hand on the reins ahead of her left and turned the team around the curve at the foot of the hill as neatly as any stage-driver could have done it. That they swung round on a single wheel did not matter in the least. Beyond the curve one of the front wheels

struck a rock that lifted Hazel a foot in the air and shot every single package and the tarpaulin out of the buckboard.

And now the road passed the wash and ran straight for more than half a mile till it disappeared over the rise of ground. Throughout the whole distance it was under the sharpshooting rifle of the man behind the outcrop.

As she clung to the pitching buckboard and plied the whip, she speculated on the probability of Jack Murray firing on her. He must realize her purpose. He had been called many things, but fool was not one of them. He might even shoot her. She recalled dim stories of Jack Murray's ruthlessness and grim singleness of purpose.

"Bound to get what he wants, no matter how," men had said of him.

Four hundred yards from the curve where the buckboard had so nearly upset, a Winchester cracked in the rear. The near mule staggered, tried to turn a somersault, and collapsed in a heap of sprawling legs and outthrust neck. The off mule fell on top of his mate, and Hazel catapulted over the dashboard and landed head first on top of the off mule.

The off mule regained his feet with a snort and a lurch, in the process throwing Hazel into a squaw bush. Dizzy and more than a little shaken, that young woman scrambled back into the trail and feverishly set about unhitching the mule.

She heard a yell from the direction of the outcrop above the wash. Fingers busy with the breast-strap snap, she looked back to see a man hurdle the outcrop and plunge toward her through the brush.

"Wait!" he bawled. "Wait!"

Her reply to this command was to spring to the tail of the mule and shout to him to back. He backed. She twitched both trace cockeyes out of the singletree hooks (she was using the wagon harness that day) tossed the traces over the mule's back and ran round in front to unbuckle the dead mule's reins.

"Halt or I shoot!"

She giggled hysterically. How could she halt when she had not yet started? She freed the second billet, tore the reins through the terrets, and bunched the reins anyhow in her left hand. He was a tall mule, but she swarmed up his shoulder by means of collar and hames, threw herself across his withers and besought him at the top of her lungs to "Go! Go! Go!"

He went. He went as the saying is, like a bat out of hades. Hazel slipped tailward from the withers, settled herself with knees clinging high, and whanged him over the rump with the ends of the reins. He hardly needed any encouragement. Her initial cry had been more than enough.

The man in the brush stopped. He raised his rifle to his shoulder, looked through the sights at the galloping mule, then lowered the firearm and uttered a heartfelt oath. It had at last been borne in upon his darkened soul that he possibly had made a mistake. Instead of shooting the mule, in the first place, he might better have relinquished his plan of ambush and gone his way in peace. There were other places than Golden Bar, plenty of them, where an enterprising young man could get along and bide his time to square accounts with his enemy.

But the killing of the mule had fairly pushed the bridge over. It was, not to put a nice face on it, an attack on a woman. He might just as well have shot Hazel—better, in fact. She had undoubtedly recognized him. Those Waltons both carried field glasses, he had heard.

"I'll get the mule anyhow," he muttered. "That'll put a crimp in her."

He dropped on one knee between two bushes, took a quick sight at the mule's barrel six inches behind the girl's leg and pulled trigger. Over and over rolled the mule, and over and over a short foot in advance of his kicking hoofs rolled Hazel. Luckily she was not stunned and she rolled clear. She scrambled to her feet and set off up the trail as fast as her shaking legs would carry her.

"Damn her!" cursed Jack Murray, notching up his back sight. "I'd oughta drop her! She's askin' for it, the hussy!"

His itching finger trembled on the trigger, but he did not pull. Reluctantly, slowly, he lowered the Winchester and set the hammer on safety. The drink was dying out in him. Against his will he rendered the girl the tribute of unwilling admiration. "Whatsa use? She's got too much nerve; but maybe I can get him still."

On her part the girl pelted on up the rise, stumbled at the top and came down heavily, tearing her dress, bruising her knees and thoroughly scratching the palms of her hands. But she scrambled to her feet and went on at a hobbling run, for she saw below her, rising the grade at a sharp trot, the rider of the white hat.

Now she was waving her arms and trying to shout a warning, though her voice stuck in her throat and she was unable to utter more than a low croak.

Billy Wingo pulled up at sight of the wild apparition that was Hazel Walton. But the check was momentary. He clapped home the spurs and hustled his horse into a gallop. He and Hazel came together literally, forty yards below the crest. The girl seized his stirrup to save herself from falling and burst into hysterical tears.

"Lordy, it's the girl that dropped the package!" exclaimed Billy, dismounting in haste.

He had his arm round her waist in time to prevent her falling to the ground. She hung limply against him, and gasped and choked and sobbed away her varied emotions.

"There, there," he said soothingly, patting her back and, it must be said, marveling at the length and thickness and softness and shininess of her midnight hair. "It's all right. You're all right. You're all right. Nothing to worry about—not a-tall. You're safe. Don't cry. Tell me what's bothering you?"

And after a time, when she could speak coherently, she told him.

It was a disconnected narrative and spotty with gasps and gurgles, but Billy made no difficulty of comprehending her meaning. They who can construct history from hoofmarks in the dust do not require a clear explanation.

When he had heard enough for a working diagram he plumped her down behind a fortuitous stone and adjured her to lie there without moving, which order was superfluous. She did not want to get up again—ever.

Billy stepped to his horse, dragged the Winchester from the scabbard under the near fender and trotted to the top of the rise. Arrived at the crest, he dropped his hat and went forward crouching, his rifle at trail. Sheltering his long body behind bushes he dodged zigzaggingly across the top of the ridge to an advantageous position behind a wild currant bush growing beside a jagged boulder.

He lay down behind the wild currant bush and surveyed the landscape immediately in front of him. At first he saw nothing—then two hundred yards away on his right front a sumac suddenly developed an amazingly thick shadow. He automatically drew a fine sight on that sumac.

The shadow of the sumac became thin. A dark object flitted from it to another bush. The dark object was a man's head. It was hatless. Billy smiled and decided to wait. He understood that he was dealing with a man who could shoot the buttons off his shirt, but on the other hand, Billy did not think meanly of himself as a still hunter. He lay motionless behind the currant bush and watched Jack Murray's advance.

Billy smiled pityingly. It was obvious to him that Jack Murray had never been on a man hunt before. If he had he would have been more careful.

"Good Gawd," Billy said to himself, "it's like taking candy from a child."

It was destined to be even more like taking candy from a child.

Four times before the bold Jack reached the crest of the hill he offered Billy a target he couldn't miss. And each time the latter refrained from shooting. Somehow he was finding it difficult to shoot an unconscious

mark. If Jack had been shooting at him or had even been aware of his presence, it would have been different. But to shoot him now was too much like cold-blooded murder. There was nothing of the bushwhacker in the Wingo make-up.

Suddenly at the top of the rise, Jack Murray ducked completely out of sight.

"Must have seen the horse," thought Billy, and looked over his shoulder. No, it was not the horse. Billy was on higher ground than was Jack and he could not see even the tips of his mount's ears.

"It can't be my hat he sees," Billy told himself.

Evidently it was the hat, for while Billy's eyes were on the hat, a rifle cracked where Jack Murray lay hidden and the hat jumped and settled.

"Good thing my head ain't inside," said the wholly delighted Billy, his eyes riveted on the smoke shredding away above the bushes on the right front. "I wonder if he thinks he got me."

It was evident that Jack Murray was wondering too. For the crown of a hat appeared with Jack-in-the-box unexpectedness at the right side of the bush below the smoke. Experience told Billy that a stick was within the crown of the hat which moved so temptingly to and fro.

Three or four minutes later, Jack Murray's hat disappeared and the rifle again spoke.

"Another hole in my hat," Billy muttered resignedly and cuddled his rifle stock against his cheek. "He'll wave his hat again, and then he'll be about ready to go see if the deer is venison."

Even as he foretold, the hat appeared and was moved to and fro, and raised and lowered, in order to draw fire. Then, peace continuing to brood over the countryside, the hat was crammed on the owner's head and the owner, on hands and knees, headed through the brush toward Billy's hat.

Billy was of the opinion that Jack Murray's course would bring him within ten feet. He was right. Jack Murray passed so close that Billy could have reached forth his rifle and touched him with the muzzle. Instead he waited till Jack's back was fairly toward him before he said, "Hands up!"

Jack Murray possessed all the wisdom of his kind. He dropped his rifle and tossed up his hands.

"Stand up. No need to turn around," resumed Billy, Riley Tyler's six-shooter trained on the small of Jack's back. "Lower your left hand slowly and work your belt down. You wear it loose. It'll drop easy. And while you're doing it, if you feel like gamblin' with me, remember that this is Riley's gun and I ain't used to it, and I might have to shoot you three or four times instead of only once, y' understand."

Obviously Jack Murray understood. He lowered his left hand and worked his gun-belt loose and down over his hip bone with exemplary slowness. The shock of his capture had evaporated the last effects of the liquor. He was cold sober and beginning to perceive the supreme folly he had committed in shooting a woman's mount from under her.

"One step ahead," directed Billy when the gun-belt was on the ground. "And up with that left hand."

Jack Murray, thumbs locked together over his head, stepped out of the gun-belt. Billy went to him, rammed the six-shooter muzzle against his spine and patted him from top to toe in search of possible hide-outs. He found none except a pocket knife which did not cause him apprehension.

"Le's take up the thread of our discourse," said Billy, "farther down the hill. Walk along, cowboy, walk along."

With Billy carrying both rifles and Jack's discarded gun-belt, they walked along downhill to where Billy's pony stood in a three-cornered doze. It was then that Jack Murray caught sight of Hazel Walton lying on her back behind a stone, her arms over her face. She looked extremely limp and lifeless.

"I didn't shoot her!" cried the startled Jack.

"I know you didn't," said Billy. "The lady's restin', that's all. We'll wait till she feels like moving."

Hazel Walton uncovered her face. There was a large and purpling lump in the middle of her forehead, the skin of her pretty nose was scratched, a bruise defaced one cheek bone, and one eye was slightly black.

"Your work, you polecat," Billy declared succinctly. "You'll be lynched for mauling her like that."

But Hazel Walton was just. She sat up, supporting herself by an arm, and dispelled Billy's false impression. "He never touched me—and he could have shot me if he'd wanted to."

"So kind of him not to," said Billy with sarcasm. "Who is responsible for hurting you? Your face is bruises all over."

"Is it?" she said, with an indifference born of great weariness. "I suppose it must be. I remember I struck on my face when he shot the mule I was riding. He—he shot both mules."

"He'll be lynched for that, then," Billy said decisively.

"Who'll pay for the mules?" Hazel wished to know. "We needed those mules," she added.

Billy nodded. "That's so. If he's lynched for this attack on you—your mules—same thing if you know what I mean—you lose out on the mules. Maybe we can fix it up."

"Sure we can," Jack Murray spoke up briskly.

"I'm not talkin' to you," pointed out Billy. "Whatever fixing up there is to do, I'll do it. You have done about all the fixing you're gonna do for one while. Yeah. I came out after you, Jack, to make you a better boy, but now that we got you where you'll stand without hitching, I can't do it. I ain't got the heart. Of course, if you were to jump at me or something, or make a

dive for your gun I'm holding, I don't say but I'd change my mind in a hurry. I kind of wish you had seen me back there a-lying under my currant bush. Then we'd have had it out by this time, and I'd be going back to town for a shovel."

"Don't you be too sure of that," snarled Jack Murray. "Just you gimme my gun back, and I'll show you something."

"I'll bet you would," acquiesced Billy, "but I'm keeping your guns, both of 'em. I'd feel too lonesome without 'em."

"Can't you do nothing but flap your jaw?" demanded Jack in a huff. "I'd just as soon be downed outright as talked to death."

"But you haven't any choice in the deal," Billy told him in mild surprise. "Not a choice. You shut up. I'll figure out what to do with you. Y'understand, Jack, I've got to be fair to Miss Walton too. If you're lynched she won't get paid for her team, and I can't have her losin' a fine team of mules thisaway and not have a dime to show for it. That would never do. Never. Lessee now. You got any money, Jack?"

"A little."

"How much?"

"Maybe ten or twelve dollars."

"Maybe you've got more. You know you never were good at figures. Lemme look."

He looked. From one of Jack Murray's hip pockets he withdrew a plump leather poke that gave forth a jingling sound. A search of the inner pocket of the vest produced a thin roll of greenbacks. But the bills were all of large denominations.

"There," said Billy, "I knew you'd made a mistake in addition, Jack. You count what's here, Miss Walton."

He tossed the greenbacks and the heavy poke into the lap of the girl who was now sitting up cross-legged, her back against the rock.

"Sixteen hundred and twelve dollars and sixty-five cents," announced Hazel a few minutes later.

"How much did your mules cost?" queried Billy.

"Five hundred and a quarter the team," was the prompt reply.

"Call it six hundred," said Billy briskly. "It's only right for you to take something at an auction thisaway. Strip off six hundred dollars worth of greenbacks and put them in your pocket."

"Oh, I wouldn't feel right about taking more than the regular price," demurred Hazel.

"No reason why you shouldn't. No reason a-tall. Jack's only paying you for the damage he did. He's glad to pay. Ain't you, Jack?"

"I suppose so," grunted Jack.

"There, you see. Your uncle would want you to. I know he would. In fact, he'd be a heap put out if you didn't. Those bumps of your's now. What do you say to one hundred wheels a bump? You got three bumps and a scratched nose. Which last counts as a bump. In round numbers that makes four hundred dollars. One thousand dollars to you, Miss Walton."

"Here!" cried the outraged Jack Murray. "You're robbin' me! You're takin' every nickel I got!"

"No, I ain't," denied Billy, "and don't go and get excited and put those hands down. Don't you, now. About that money—the worst is yet to come. Young Riley Tyler not being here to assess his own damages, I'll assess 'em for him. You put three holes in Riley. Call it two hundred dollars a hole. That makes six hundred dollars. Just put that six hundred in a separate pile for Riley, Miss Walton."

"I don't mind the man paying for the mules," said Miss Walton firmly, "but I can't take any money for my scratch or two."

Billy looked at her, decided she meant it and said:

"All right, put that four hundred with Riley's six. Riley won't mind."

"But I do!" shouted Jack Murray, his arms quivering with rage. "You can't rob me thisaway. By Gawd——"

"Now, now," Billy cut in sharply, "no swearing. You forget Miss Walton. You're right about the money, though. I can't rob you. Miss Walton, dump all that money back in the poke and hand it to him. He wants to go back to Golden Bar and be lynched."

"I got friends in Golden Bar," blustered the prisoner.

"None of 'em will be your friends after I tell 'em what you did to Miss Walton, Jack. There's a prejudice in this country against hurting a woman. Folks don't like it. Aw right, get a-going, feller. No, the other way—toward Golden Bar."

A hearty groan wrenched itself from the depths of Murray's being. "Uncle! Uncle!" he cried angrily. "Have it your own way. I don't want to go to the Bar. Take all my money and be done with it."

"I wouldn't think of such a thing," declared Billy, "though it wouldn't be any more than right if I did. You're getting off too easy. You'll live to be hung yet, I'm afraid, but I can't just see my way to downing you now and here. No, you divide the money again, Miss Walton. Six hundred for you, a thousand for Riley and twelve dollars and sixty-five cents tobacco money for this gentleman.— Don't bother reaching for the money, Jack. I'll put it in your pocket. There you are. Now, Miss Walton, if you'll wait here while I get this citizen started— You've got a horse somewhere, I expect, Jack. Lead the way."

"Oh, sure I saw him off all right. I don't guess he'll be back for a while—not if he has brains. You know, I owe you a lot, Miss Walton. You did the bravest thing I ever knew a man or woman to do. You gambled your life to save mine. You might have been killed, you know it? And after me getting fresh there in the street, I dunno what to say, I don't."

He knew that he was talking too much. But in the reaction that had set in he was so embarrassed that it hurt.

"Yeah!" he gabbled on, red to the ears, "you certainly are a wonder. I—uh—I guess we better be getting back to town. You feel able to ride now? My horse is gentle. Besides, I'll lead him."

It was then that reaction set in for Hazel Walton. As the strain on her nerves eased off, everything went black before her eyes and she keeled over sidewise in a dead faint.

CHAPTER FIVE

JACK MURRAY OBJECTS

"You hadn't oughta shot the girl's mules," said fat Sam Larder, shaking a reproving head at disconsolate Jack Murray.

The latter endeavored to defend himself. "I was drunk."

"That's no excuse," averred Felix Craft. "You had no business picking a fight with young Riley in the first place. He's a popular lad, that one, and you ain't."

"He made me mad, setting there in the sun joking with that damn Bill Wingo who's gonna be sheriff in my place. Besides, I was drunk."

"I saw the whole affair," said Sam Larder. "Bill pushed Riley off the cracker box and you had to slur Riley about it. Fool caper."

"I never did like Riley," grumbled Jack Murray. "He's a friend of Bill Wingo's and that's enough. I figured by downin' Riley and skippin' out and lettin' that stage hostler know where I was going, Bill Wingo would come pelting after and gimme a chance to settle with him all salubrious and private on the trail somewheres."

Sam Larder bluntly called the spade by its correct name. "Bushwhack him, you mean."

"Well, if I did, it's none of your business," snapped Jack Murray with an evil glance.

"Then why make it our business by coming here bellyaching to me and Craft?" Sam Larder wished to know.

"I came to you because I want my money—sixteen hundred dollars that bandit Bill Wingo stole off me."

"He didn't say anything about any sixteen hundred," said Felix Craft, his eyes beginning to gleam. "Tell us about it."

"Yeah," urged Sam. "Give it a name."

Jack proceeded to give it a name—several names and all profane. When he was calmer he gave a fairly truthful account of the financial transaction between Hazel Walton, Bill Wingo and himself.

"And I'm telling you here and now," he said in conclusion, "that six hundred dollars is too much for that broken-down team of jacks. And a thousand dollars for putting a few holes in Riley Tyler is plumb ridiculous. My Gawd, he'll be out of bed in a month. Wha' t'ell you laughin' at?"

For his hearers were laughing—laughing immoderately. They whooped, they pounded the table, they beat each other on the back till they sank exhausted into their chairs.

Jack demanded again to be told what they were laughing at.

"I'll leave it to anybody if this ain't the funniest thing ever happened in the territory," declared Sam Larder, when he could speak with coherence.

Felix Craft nodded. "Sure is. One on you all right, Jack."

"Aw, hell, you fellers can't make a monkey out of me."

"Bill Wingo seems to have done that pretty thoroughly," said Sam Larder with a fat man's giggle.

"I'm not through with him yet," snarled Jack Murray.

"Where's your sense of humor?" grinned Felix. "If you'll take my advice you'll walk round Bill Wingo like he was a swamp. Ain't you had enough?"

"I want my money back!" squalled the indignant Jack.

Sam Larder kissed the tips of his plump fingers. "The money's gone. Can't do anything about it now. Can we, Crafty?"

"Don't see how."

Jack sat up stiffly, his face red with rage. "You fellers mean to tell me you're gonna let me be robbed of sixteen hundred dollars?"

Felix Craft spread eloquent hands. "What can we do?"

"I thought you were friends of mine," disgustedly.

"We are," Sam hastened to assure him. "If we weren't we'd have called in the sheriff long ago."

"What's the sheriff got to do with it?"

"He's got a warrant for your arrest—for assault and battery, malicious mischief, and assault with intent to kill. Besides, the folks hereabout have

got it in for you. I wouldn't be surprised if they hang you—give 'em half a chance."

"I know they would, damn 'em, but as long as they don't see me they can't lynch me, and they ain't likely to see me here in your house, Felix. But I don't like the idea of that warrant."

"I suppose not," said Felix. "A warrant follows you all over while a necktie party generally stays close to home. And no matter what the present sheriff does, I got an idea Bill won't forget that warrant any after he takes office— Yeah, I know, cuss him out by all means, but after all, what are you gonna do about it?"

"I didn't think he'd swear out a warrant," said Jack.

Felix tendered his mite. "There's a reward offered, too."

A warrant was bad enough, but a *reward*! Many people would be on the lookout to earn such easy money.

Jack Murray felt an odd and sinking sensation in the region of his stomach. "How much is it?"

"Only three thousand dollars."

"Only, huh. Only? Who's puttin' up the cash?"

"Riley Taylor put his name down for a thousand and Hazel's uncle, Tom Walton, added six hundred, and——"

"Why, that sixteen hundred is *my own money*!" interrupted Jack Murray.

"I expect so," continued Felix. "The other fourteen hundred was made up around the town."

"I suppose you'll tell me you fellers put it up yourselves," said the sarcastic Mr. Murray, who did not expect any such thing.

"Sure we did," said Felix. "We had to. Bill Wingo and Sam Prescott and Wildcat Simms brought the paper round, and we had to sign up. I'll be out a hundred if you're caught, Sam two hundred, Tip a hundred, Rafe the same, and that's the way it went. Even the district attorney chipped in his ante."

Jack Murray was too horrified to speak for a minute. While he wrestled with his thoughts Sam Larder spoke.

"You see, Jack," said he, "we had to sit in. If we hadn't, everybody would have said we sympathized with you, and we couldn't afford that—not with elections coming on. It would never do. Never. You see how it is, I guess."

"Yes, I see," said Jack bitterly. "I see all right. I see you've skun me between you. That damn reward will make me leave the territory for a while."

"Most sensible thing you could do," declared Sam Larder warmly. "We don't want to see you get into any trouble, Jack. You're young. Starting somewhere else won't be a hardship for you a-tall. We'll be sorry to lose you," he concluded thoughtfully.

"You ain't lost me yet," Jack snapped back. "I may pull out for awhile, but I'll be back. You bet I'll be back, and when I do come back I'll sure make Bill Wingo hard to find."

"Don't yell so loud," Sam cautioned him, "or you may have the opportunity sooner than you want it. You hadn't oughta come here, anyhow. You dunno whether you were seen or not."

"And you don't want to get a bad name, I expect," sneered Jack Murray.

"You expect right," Felix Craft said with candid bluntness.

"You see, we ain't been openly connected with any scandal yet," contributed Sam Larder, glancing at the clock, "and while it ain't daylight yet, still—" He paused meaningly.

"You want me to drag it, huh?" growled Jack.

"We-ell, maybe you'd better," admitted Sam.

"If fifty dollars would do you any good, here it is," said Felix, thrusting a hand into his trousers pocket.

Jack Murray spat on the floor. "T'ell with your money. I know who ain't my friends now, all right, and you can gamble I'm a-going right quick. See you later."

So saying, Jack Murray rose and left them. He was careful to close the door quietly. When he was gone, Sam grinned at Felix. The latter broke anew into laughter.

"His own money!" crowed Felix Craft. "His own money offered as a reward! If that ain't——"

But what it was, was drowned in the bellowing cackle of Sam Larder.

Billy Wingo removed his hat and stuck a brown head round the corner of the door jamb. "Hello, Hazel!"

"Lo, Billy," said Hazel Walton, breaking another egg into the mixture of sugar and shortening in the yellow bowl. "Chase that sprucy chicken out, will you, there's a dear."

Billy did not misunderstand. He had discovered that Hazel called any friend "dear." It was her way of showing her liking, that was all. Nevertheless, the appellation never failed to give him a warm feeling that felt pleasant around his heart. He shooed out the marauding and molting Wyandotte and then sat down on the doorstep and regarded Hazel with approving eyes.

And Hazel Walton was undoubtedly good to look at as she stood there behind the kitchen table, stirring with a great spoon the contents of the yellow bowl. There were dimples in her pretty elbows that matched the one in her cheek. Billy could not see the ones in her elbows, but he knew they

were there. Her eyes were downcast. He thought he had never seen such long lashes. The eyebrows were slim and perfect crescents. The round chin was made for the palm of a man's hand. But her hair,—that was what Billy admired most of all. It was so heavy and thick. There was a bit of a wave in it, too. And it always looked neat and tidy. There were never any "scolding locks" at the nape of her neck, as there were on other necks that had come under his eye. But he was not in love with her. Oh, no, not he. After his latest turn-down by Sally Jane, he had made a resolve not to fall in love again, ever. But there was no harm in going to see a girl. How could there be? Quite so.

"Your uncle home?" he asked after a cigarette had been constructed and lit.

"He'll be in for dinner," replied Hazel, with a swift flash of dark eyes. "And there I was hoping all along you had come to see me."

"I came to see you, too."

"Me too is worse, lots worse. Shows what an afterthought I am. Life's an awful thing for a girl."

"I'll bet it is. For you especially. This is the first time I ever came here that some one else wasn't here ahead of me. Usually a feller has to fight his way through a whole herd in order to say good evening to you."

Hazel put her head on one side and looked at him demurely. "They come to see Uncle Tom."

"Which is why they spend all their time talkin' to you."

Hazel smiled. "I feed 'em. I'm a good cook, if I do say it myself. Stay to dinner, William?"

"Not after that," he told her firmly. "I don't want another meal here long's I live."

"Just you let me catch you sloping out before dinner's over and done with, and I'll never speak to you again as long as *I* live. Besides, I want you to go fill the waterbucket for me in about ten minutes, and after dinner I need some help in the chicken-house, and Uncle is busy this afternoon. So you stay and be mother's li'l helper, Bill, won't you?"

"Putting it thataway," said Bill, "what can a poor man do?" Here he licked his lips cat fashion and added "Is that cake for dinner?"

"Of course not, you simple thing. Here it is half-past eleven and the cake not even mixed yet. I've got a dried-peach pie though. It's outside cooling. And there'll be fried ham, Bill, and corn fritters—the batter's all ready in that blue bowl. Lima beans, too, the last you'll see this year."

"I saw some young ones for another crop on the vines when I came through the garden," said Billy, who was no farmer.

Hazel smiled pityingly. "The frost will kill 'em before they get a chance to ripen. It can't hold off much longer. Do you realize it's nearly October, Bill? We almost had frost last night."

"Winter's coming."

"Election will be here first. Uncle Tom says you're sure to be elected. My, how important you'll be. Will you speak to a feller then, Bill?"

"I might. You never can tell. Seen Riley lately?"—elaborately casual.

"Saw him last Sunday. To look at him now you'd never know he'd been shot, would you? He's coming to dinner to-day—has some business with Uncle Tom."

"Yeah, like the rest of 'em. Fen dubs on the chicken-house. You said I could help you with that, remember."

Hazel nodded. "Here comes Riley now."

"No," said Billy, when Riley, having put his horse in the corral, made as if to step over him. "You stay right here. She's busy. She doesn't want a

long, lazy lump like you clutterin' up her nice clean kitchen. Sidown on the step next mine. I don't care how close you sit."

"But I do," returned Riley, seating himself opposite his friend. "Last time I sat next you I lost my tobacco. Good thing my watch wasn't on that side."

"Shucks, that watch!" Bill said scornfully. "It was good maybe when your grandad had it. It must have cost him two dollars easy."

"Alla same, that's a good watch." Riley returned tranquilly. "It only loses thirty minutes a day now since I had it fixed. Say, Hazel, lemme throw this jigger out, will you? He's only sliming round to mooch a bid to dinner."

"I've asked him to stay," smiled Hazel, "but I don't remember saying anything about it to you."

"You didn't. I said I was coming. Here I am. What's fairer than that, I'd like to know? As I was sayin' before you interrupted, I saw you out ridin' last Sunday."

"Did you?" indifferently.

"Yeah—with that nice old Samson man."

"He's not old," Hazel denied vigorously, "and anyway, he's nice."

"He gives her lollypops," Riley confided to Billy, "and sometimes as much as half-a-pound of chalklet creams. Oh, he's a prince."

Hazel stamped a small foot. "It wasn't half-a-pound. It was—it was—" Her voice dwindled away.

"Say a pound," offered Billy, entering into the spirit of the thing, "and that's a generous estimate."

"Almost as generous as Samson," grinned Riley. "Hazel, go easy on the poor old feller. He can't afford to be givin' you expensive presents like that."

"Sure not," slipped in Billy. "Why, I don't believe Samson makes a bit more than fifty per cent on everything he sells."

"You two think you're smart, don't you. He's a nice man, Mr. Samson is, and he spends an evening here quite often."

"He never spends anything else," said Billy.

"Cheap wit," flung back Hazel.

"Almost as cheap as Samson," tucked in Riley.

Hazel's eyes were beginning to sparkle, and Billy seized his opportunity. "Here, here, Riley, stop it! Don't you lemme hear you making any more slurs against Mr. Samson. He's a friend of mine, and——"

"Oh, you!" cried Hazel, instantly regaining her good humor. "You're as bad as Riley, every bit. But you almost did get a rise out of me. I don't like to hear my friends run down."

"I didn't mean it—anything," said Riley, with well-feigned humbleness. "I like Samson, I do, the poor old good-for-nothing lump of slumgullion."

Billy shook a sorrowful head. "Honest, Hazel, I'm ashamed of you, robbing the grave thataway."

"I don't believe he's much over sixty, Bill," said Riley.

"Say sixty-one."

"He's forty-one, if you must know," Hazel said.

"I knew it was getting serious," mourned Billy. "They're exchanging birthdays. We'll have to find us a new girl, Riley."

"Not me. I'm satisfied. I'll stick to the last shout and a li'l beyond. Hazel's only fooling these other fellers. I'll make her the best husband in four counties, and she's the girl that knows it. Don't you, Hazel?"

"I'm not that hard up," replied the girl, with a smile that belied the harshness of her words.

"There, you hear?" chuckled Billy. "Now you'll be good, I guess."

"If you won't have me for the twenty-fourth time hand-running, why not take Bill here? He's a good feller, don't drink much, and he's got a heart of gold and a brand of his own—six horses and one calf at the last round-up. Besides, if all that ain't enough, he's gonna be our next sheriff. What more could a girl want?"

"She'd want him to ask her first," said Hazel, not a whit put out.

Riley turned to Billy in mock surprise. "Ain't you asked her yet, Bill? Shucks, whatsa matter with you? You make me sick, and she don't like it either. G'on—propose. I'm with you. We all are. And she expects it, can't you see? G'on, Tommy Tucker, sing for your supper."

But Tommy Tucker firmly refused to sing. Instead he seized the jibing Mr. Tyler by the ankle and skidded him off the step.

"Ow-wow! You poor flap!" bawled the erstwhile humorist, who had picked up a splinter. "Leggo my leg, or I'll roll you!"

But it was Riley Tyler who was rolled, and rolled thoroughly.

"You boys stop that!" directed Hazel, appearing in the doorway with a bucket. "Acting just like overgrown kids! You ought to be ashamed! Bill, I'll take that bucket of water now, and Riley, how about fetching in an armful of wood for your auntie?"

The two men started to obey, but stopped short in their tracks.

Billy cocked a listening ear. "Wasn't that a shot?"

"Down the draw," responded Riley.

"Near the Hillsville trail," was Hazel's opinion. "There goes another, and another."

"It's no hunter," declared Billy. "I can hear horses galloping."

Within five minutes they three saw a horse come galloping. He was tearing up the draw. The man on his back was half-turned about in the saddle, a rifle at his shoulder. He fired. They could not see what he was firing at. There was a bend in the draw concealing what was behind him.

But they could hear the galloping of the other horses quite plainly. The drum of the racing hoofs grew louder. Three horses swept round the bend in the draw. They were followed by two others. The pursuers uttered a yell as they sighted the house. The pursued fired twice without effect. There was a crackle of shots from the five horsemen. Apparently none took effect on either the pursued or his mount.

Billy regarded the pursued's mount with critical eyes. "That horse is about done."

"Yeah," acquiesced Riley. "Not another mile left in him."

It was but too evident that the horse was in distress. He rolled a little in his stride. Once he stumbled. The rider caught him up with a jerk. The man turned a desperate, determined face toward the house in the draw ahead of him. He was not fifty yards from the house. The draw was wide. He sheered his horse to one side. The animal staggered, crossed his legs and turned a complete somersault. The rider flew from the saddle, turned over in the air and struck hard on his head and right shoulder. The horse lurched to his feet and stood trembling. The man lay still.

The pursuing horsemen were coming along at their tightest licks, but it was Billy and Riley Tyler who were the first to reach the fallen man. Hazel, kilting her skirt in both hands, had run with them.

Billy stooped and turned over the sprawled-out citizen. The man, a square-jawed youngster with a stubby brown mustache, lay breathing heavily. His sun-burnt skin was a little white. Hazel pushed Billy to one side and sat down beside the young fellow.

"Let me," she said quietly, and took his head in her lap. "Riley, get me some water quick and the whisky bottle on the shelf over the fireplace."

Riley darted toward the house.

The five riders dashed up and flung themselves from their saddles. They were Rafe Tuckleton, Jonesy, the Tuckleton foreman, Ben Shanklin and two more of the Tuckleton outfit. Billy faced them, his thumbs hooked in his sagging belt.

"Caught him!" Rafe ejaculated with satisfaction, striding forward, his men at his heels.

"He don't look shot any," said Jonesy.

"Not a hole in him," Billy told them. "He'll be all right in a minute."

Tuckleton laughed harshly. "He's due for a relapse about a minute after that. Jonesy, get your rope. That spruce up there on the flat will be fine."

Hazel uttered a gasp of horror.

"What do you expect to hang him for, Rafe?" demanded Billy.

"Caught him branding one of my calves," was the ugly reply. "Reason enough?"

"I don't believe it!" cried Hazel.

"You know him?" Rafe inquired contemptuously.

"I never saw him before in my life. But he doesn't look like a rustler. He's got a good face."

The Tuckleton outfit was moved to mirth.

"A good face!" yelped the fox-faced Ben Shanklin, slapping his leg. "A good face! That's a fine one!"

"I expect we'll have to turn him loose, boys," Jonesy said sarcastically, returning from his horse, and shaking out the coil of rope.

"Oh, I guess we'll string him up all right," Rafe said with confidence.

"Don't let them, Billy!" begged Hazel.

Billy made instant decision. "'Nds up!"

Which command was backed by a six-shooter trained on the center of Rafe's abdomen. The way the Tuckleton hands flew upward and locked thumbs above the Tuckleton hat was gratifying. But the Tuckleton face was empurpled with rage.

"Of course," remarked Billy, "one of you may hit me, but if I go Rafe goes with me."

"It's all right, boys," Rafe assured his hesitating followers in a voice thick with anger. "Lemme argue this thing."

"There'll be no hanging here," said Billy.

"You bet not!" chimed in the voice of Riley Tyler from a position thirty yards distant on the right.

Riley had returned with the water and whisky. He had been sufficiently thoughtful to bring with him a double-barreled shotgun. He stood, the firearm held level with his hip, the blunt twin muzzles gaping at the Tuckleton outfit.

"Hazel," said Riley, "I wanna borrow this shotgun for a few minutes. I found it leaning inside the door. Ben, I wish you'd come over here and take this water and whisky to the lady. I'm stuck here, sort of."

"You go ahead, Ben," said Billy. "Don't lemme detain you."

Ben went slowly. He plumped whisky and bucket on the ground beside Hazel and then began to sidle casually toward the house.

"You come right back," urged Riley, gesturing with the shotgun. "The best place for you is right beside Jonesy. He's gettin' lonesome for you already, ain't you, Jonesy?"

Jonesy spat upon the ground. Ben slouched back to his comrades. While this byplay had been going on, Tuckleton had been talking at Billy.

"Would you mind repeating all that?" said Billy, when Ben had rejoined the group at Rafe's back. "I didn't catch some of it."

Tuckleton glared, his little eyes hot with rage. "I said that man's a cow thief and we're gonna stretch him!"

"But you said that at first," pointed out Billy. "And I said 'no' then. I haven't changed my mind."

"Since when have you been dry-nursing rustlers?" snarled Rafe.

"I don't know he's a rustler."

"I said he was, didn't I?"

"You said so, sure. But you might be mistaken."

"I don't make mistakes like that. And, anyway, all my boys here saw him branding that calf."

"We sure did," corroborated Jonesy. "Feller had a fire all lit, and was heating a running-iron when we jumped him."

"Did the calf have its mammy along?" was Billy's next question.

No one answered. Billy, however, did not remove his eyes from Rafe's face. The pause was becoming almost embarrassing when the five Tuckletonions made reply with a rush. Two of them said "Yes," and the other three said "No."

"There seems to be a difference of opinion," said Billy. "Don't you know whether the cow was along?"

"She wasn't along," declared Jonesy, sticking to his original assertion.

"But Rafe said she was," said Billy.

"I made a mistake," Rafe hastened to assure him.

Billy nodded in triumph. "Then you do make mistakes. I always knew you did. Funny how you and Jonesy saw things so different and all. Ben didn't see any cow either, and Tim Mullen and Lake did."

"Maybe I made a mistake too," said Lake sullenly, taking his cue from his employer.

"How about you, Tim?" persisted the questioner.

Tim looked furtively from his employer to his foreman and back again before answering.

"Speak up, Tim," directed Billy, "speak up. You did or you didn't. Yes or no?"

"Maybe I made a mistake," was Tim Mullen's final decision.

"They seem to have come over to your point of view, Jonesy," Billy observed dryly. "How about you? Did you make a mistake too?"

But Jonesy was not to be caught. "The cow wasn't along. I oughta know."

"You don't need to be so fierce about it. I was just askin' questions. If this feller had a fire and was heating a running-iron, I suppose he had a calf handy."

"I said we caught him *with* a calf," insisted Rafe Tuckleton.

"That's right, so you did. Was the calf hog-tied?"

"Naturally."

"And when you saw this stranger and jumped him, I suppose you came boiling along right after him?"

"Sure did." Thus Rafe Tuckleton.

"None of you stopped anywhere, huh?"

"Why, no, of course not. It wouldn't be reasonable, would it, if we were chasin' him, to get off and fiddle around?"

"No, it wouldn't be reasonable," admitted Billy. "Then if none of you got off to turn the calf loose, the calf must still be there—calf, fire and running-iron?"

Rafe looked a little blank at this. So did the others. Jonesy was the first to recover his spirits.

"Unless somebody else turned it loose," suggested Jonesy brightly.

"But the fire and running-iron will still be there."

"Of course they will," Rafe Tuckleton declared heartily. "Of course they will. But it just occurs to me that this man may have had a friend with him we didn't see. And that hog-tied calf and fire and running-iron—that last may have been a cinch ring, Bill—are evidence that'll hang this man. Jonesy, suppose now you ride back to the fork of that split draw south of Saddle Hill, where we saw this man's fire, and see that nobody destroys the evidence before we get there. Ben, I think you'd better go with Jonesy."

"No," said Billy decidedly. "Jonesy and Ben will stay right here."

"Remember," called Riley, "that this Greener is double-barreled."

"But see here—" Rafe began desperately.

"No see about it," interrupted Billy. "You'll all stay right here with us till Tom Walton gets here."

"But suppose somebody destroys the evidence," worried Rafe.

"I don't guess they'll destroy all of it," said Billy cheerfully. "You see, Rafe, we want to go with you to the fork of that split draw south of Saddle Hill."

Rafe's blazing eyes were fairly murderous. His men muttered behind him. But they made no hostile move. They realized that Rafe would never forgive them if they did. He would not be able to.

In the meantime Hazel had been alternately bathing the senseless one's forehead and dribbling drops of whisky between his teeth.

"He's coming round," she said suddenly.

The man opened his eyes, groaned, grunted, and sat up. He blinked his eyes rapidly several times and smiled pleasantly at Hazel.

"That was a jolt I got," said he. "Is there whisky in the bottle?"

He took a long and healthy pull, drove in the cork with the heel of his hand, wiped his lips and then seemed to see Rafe Tuckleton and his men for the first time.

"I seem to remember those bandits giving me the chase of my young life," he remarked, nodding his head. "I don't know why. I don't know why my unknown friend with the six-shooter and my other equally unknown friend with the scatter-gun are holding them up, but I'm glad they're doing it. Still, why? Why all this fuss and these feathers?"

"I don't know either," replied Billy, continuing to watch Rafe Tuckleton and his men like the proverbial hawk, "but we hope to find out. When a couple of friends of mine get here, we aim to find out."

CHAPTER SIX

CROSS-PURPOSES

"... and my name is John Dawson," continued the stranger, "and I'm on my way to visit my uncle at Jacksboro."

"Uncle! Jacksboro!" exclaimed Jonesy. "Pretty smooth and thin."

Tom Walton took no notice of Jonesy. "Where'd you work last?"

"Cross T in Redstone County."

Tom Walton nodded. "Turberville ranch? Left ribs cattle, left shoulder and jaw horses?"

"No, Tasker's," corrected John Dawson. "Left hip cattle and horses, no jaw brand."

"I know," said Tom Walton gently. "I knew it was Tasker's. I had to—be sure."

"Whatsa use of this gassing?" demanded Rafe. "I tell you, Tom, we caught this feller branding one of my calves, and I'll gamble he's the boy been doing all the rustling on your range too."

"You might be right. I don't know. But he tells a straight story."

"They all do. He's a rustler. Take my word for it."

"But he said in the beginning," objected Tom, "that he never was near that split draw."

"We saw him, I tell you!"

"All right. Soon as we eat, we'll all ride over to the draw and take a squint at the evidence."

"What for? Ain't my word enough?"

"I don't believe in gamblin' with a man's life," said Tom smoothly.

"Better be sure than sorry," said Billy.

"I won't be sorry none to hang him, the cow thief!"

"If I had my gun I'd argue that with you," remarked the prisoner pleasantly.

Rafe was understood to damn all creation. Oh, he was wild.

"Dinner!" called Hazel from the kitchen door.

"Too bad the sheriff ain't here," grumbled Rafe, on the way to the house.

"It is too bad," Tom Walton flung over his shoulder. "But I sent Roy for Sam Prescott. He'll meet us on the Hillsville trail."

Roy was the half of his outfit. The Walton ranch was a little one. Even in big seasons Tom could not afford to employ more than three men. In winter he let them all go. What little work there was to be done he managed to do himself. Small rancher though he was, Tom Walton was not a nonentity in the community. Folk trusted him. He was known to be honest.

After dinner the whole party, excepting Hazel, took horse and rode down the draw to the Hillsville trail. Rafe and his outfit would have ridden to the trail at once. But Billy Wingo carefully shepherded them from it.

"We'll keep off the trail," said Billy. "This Dawson man says he's never been off the trail till he got chased off by you fellers. We may want to examine that trail for tracks later."

The Tuckleton men muttered and swore, but they kept away from the trail. Soon after the party reached the vicinity of the trail, Roy, Sam Prescott

and two of his men trotted into sight. Billy rode to meet them and turned them from the trail before they reached the spot where John Dawson said he had left it.

Sam Prescott listened in silence to the respective stories of Rafe Tuckleton and John Dawson. He seemed unimpressed by either. When he had heard all they had to say, he dismounted and examined the hoofs of Dawson's horse. Then he and Riley, closely followed by the others, rode along the edge of the trail scrutinizing the tracks upon its dusty surface.

"Here's where he says he left the trail all right," observed Bill. "You can't mistake the point of that near fore shoe. He says Tuckleton and his boys rode at him from over yonder, but if they chased him all-away from that split draw like they say they did, there wouldn't be a single track here. They'd all be on the other side of those cottonwoods."

He jerked his thumb over his shoulder toward said cottonwoods growing about a hundred yards to the south.

"Let's go over yonder where he said they came from," said Sam Prescott.

They all went over yonder. There they found the tracks of five horses. Not only that, but in a near-by depression behind some red willows they found where five horses had stood a considerable time.

Sam Prescott picked up in turn the hoofs of every Tuckleton horse.

"These five horses were standing here at least two hours," remarked Sam Prescott, staring at Rafe.

The latter said nothing. Really, there was nothing to say.

Led by Sam Prescott and Billy, the party followed the tracks of these five horses back to the trail and into the draw leading to the Walton ranch.

"You see," said Billy to Sam Prescott. "Those horses were coming on the dead jump. It's just like Dawson says. They were chasing him."

Although Billy's voice was loud enough for all to hear, none of the Tuckleton outfit took it upon himself to deny the statement. It may be said that they were growing a trifle discouraged.

"Le's go to the split draw," resumed Billy, when Sam Prescott had openly agreed with him. "Maybe we'll find that calf and the fire and the running-iron. But I expect that fire will be out by this time."

"I guess likely." Thus Sam Prescott, and turned his horse.

But they did not find the calf and the extinct fire and the running-iron. There was nothing in the split draw even remotely resembling any of these.

"Come to think of it," said Rafe, weakly attempting a last defense, "maybe it was another draw."

"Maybe it was," admitted Sam, turning to young Dawson. "Maybe it was, but I'm satisfied it wasn't. It was a good thing for you, young feller, that Billy Wingo and Riley Tyler were on the spot when your horse fell."

"I know it," responded young Dawson heartily. "I'm not forgettin' it. And maybe I can return the favor some bright and sunny day. Now if I can have my gun, I'll just have a word or two with the man you call Tuckleton."

"No words," said Sam Prescott firmly. "Not a word. This thing has gone far enough. There'll be no shooting round here. Rafe and his outfit are goin' home now, and you're riding with me back to Tom's ranch. And to-morrow morning I'll see you off to Jacksboro. Rafe, I don't want to hurry you——"

Rafe Tuckleton and his outfit took the hint.

"And you mean to tell me they can get away with a deal like that?" demanded John Dawson.

Sam Prescott smiled wearily. "What could they be arrested for—always supposing you could get the sheriff to arrest 'em, which he wouldn't."

"Well——"

"There y'are. Of course you could call it attempted assault. What's that? Under the statute, a week in jail. And who'd convict 'em?"

Tom Walton laughed bitterly. "You don't know this county, Mr. Dawson. Anything can happen here."

"Seemingly it can," said Mr. Dawson in frank disgust.

"You see," said Rafe, "I'd figured we'd have to find somebody to lynch for rustlin' so that infernal Tom Walton wouldn't be suspectin' us alla time. Shindle ran across this Dawson party in Hillsville and guessed he'd fill the bill, he being a stranger and all."

"So Skinny rode ahead and let you know he was coming, huh?" queried Sam Larder.

"Yeah. Oh, damn the luck! Who'd have expected Wingo and Tyler to be at Walton's?"

"They did put a crimp in your plans, sort of," assented Larder.

"And now Tom Walton is more suspicious than ever," contributed Tip O'Gorman.

"I can fix that Wingo, though," snarled Rafe Tuckleton. "He'll never get elected sheriff now."

Tip smiled. "Won't he?"

"No he won't he!"

"That's just the thing will cinch his election. I'm gonna play it up strong in the campaign."

"What! Why, he tried to show us up!"

"And succeeded in doing it, according to your tell. That's all right; Rafe, you were a little too raw, you know. I've cautioned you about being more careful. You wouldn't take advice and you'll have to take your medicine—this time. I'll explain matters to Bill, where you stand and everything. You'll find it won't happen again."

With which Tuckleton was forced to be satisfied.

That night Tip O'Gorman had a long talk with Billy Wingo. Tip did not tell him all he knew, by any means. Such was not his custom. To understand Tip one had to do a deal of reading between the lines. But when Tip went home, he carried with him the belief that Billy understood perfectly the desires and aims of the county machine and would be a willing worker.

Billy sat looking up at the ceiling for quite a long time after Tip was gone. Finally he laughed silently.

"Tip, you're an old scoundrel," he said aloud, "but I can't help liking you, just the same. I hope I don't have to step too hard on your toes."

CHAPTER SEVEN

RAFE'S IDEA

"Tell you what, Jonesy," said Rafe, "this ranch needs a mistress."

Jonesy laughed as at a pleasantry and continued to talk of the mischance in the matter of young Dawson.

"I mean it," interrupted Rafe, wagging his head. "I'm tired of living single."

"Well," said Jonesy, "you can always get some petticoat to live with you for a while."

"I don't mean a floozie. I mean a sure-enough lady like."

"Oh, one of *them*, huh? I dunno, Rafe. I married a good woman once, and take it from me they sure cramp a feller's style."

"It depends on the woman. There are women and women. If a feller is careful who he picks, he don't run a bad chance. Me, I got my eye on young Hazel Walton."

Jonesy looked his astonishment. "Her?"

"Why not?"

"After this Dawson business?"

"Why not?"

"She wouldn't look at you."

"Don't you fool yourself. Why wouldn't she look at me, I'd like to know? I got money. She could wear good clothes and have help in the kitchen. What more could a woman want?"

Jonesy shook his head. "This Dawson business has queered you there, and you can bet on it."

"Oh, that's easy explained—to her."

"H-m-m-m, well, maybe so. I dunno, she looks to me like one girl who knows her own mind. And there's Tom Walton who don't like us, either. You gotta think of all these things."

"I have. The more I think of it, the more I think she'll do."

"Funny you never noticed it before. She's been around with her uncle several years now."

"I never even gave her more'n a short look till I seen her holding that Dawson man's head in her lap, and then stickin' up for him the way she did."

I tell you, she looked mighty handsome."

"She's a lot younger than you."

"What's a few years between man and wife? Besides, I ain't so old. I ain't forty yet."

"You will be next year, and I'll bet she ain't twenty yet."

"She'll last all the longer."

It was mid-morning next day, when Hazel was making butter, that a rap sounded on the kitchen door.

"Come in," she called continuing to turn steadily the handle of her box churn.

It was Rafe Tuckleton who opened the door and walked in. Hazel's eyes narrowed at sight of the man. Rafe Tuckleton! What on earth did he want?

"Uncle's out," she said shortly.

"I didn't come to see him," explained Rafe, with a smile he strove to make ingratiating. "I came to see you."

"I don't know what you can want to see me about."

"I have my reasons," said Rafe vaguely.

Hat in hand, he started to sidle to a chair.

"Don't they have any doors where you live?" Hazel inquired sharply.

"Oh," Rafe wheeled hastily and closed the door. He set a trifle to the young lady's account. He was not accustomed to being talked to this way. The snip!

He gained the chair at last, sat down, crossed his legs and crowned a sharp and bony knee with his hat.

"Yeah," he intoned, pulling one horn of his crescent-shaped mustache. "I come to see you." It never occurred to him to offer to turn the churn-handle for her. In his estimation women were made for the especial comfort and delectation of men. Why put oneself out? Quite so.

Hazel continued to turn the handle in silence.

"Makin' butter?" was Rafe's next remark.

"Not at all," Hazel replied sweetly. "I'm washing blankets."

As humor it was not subtle. But neither was the man subtle. He laughed aloud and slapped his knee.

"Pretty good. Got a tongue in your head, ain't you?"

Again he pulled his mustache and favored her with what he conceived to be a most fetching leer. He succeeded in making her yearn to hurl the churn at him.

"You've seen me," she said suddenly, raising her dark eyes to his face. "Why not move right along?"

"That's all right," he said easily. "You're only mad at me account of that business the other day. Nothing at all, that wasn't. Just a li'l mistake. We all make them. You mustn't hold it against me."

"But I do hold it against you!" she cried vehemently. "You tried to murder him!"

Rafe raised a bland hand, palm outward. "Not a-tall. You've got it all wrong. I might have known you would. Women never do get things straight."

"I got this straight all right, and you might as well know I haven't a bit of use for you, and I don't want you in my kitchen. So there!"

"Now listen, li'l girl," he said persuasively. "You don't understand me a-tall, I tell you. I may look hard—a rough diamond but I'm the pure quill

underneath, and I like you."

Hazel was so surprised that she stopped churning. She stared at him, saucer-eyed, her mouth open.

Rafe nodded his head at her. "Yeah, I like you. I have liked you a-uh-long time. And I've got a proposition to make you. How'd you like to marry me?"

Hazel's expression registered immediate distaste. "I wouldn't like. Not for a minute. No."

Rafe considered it necessary to explain matters more fully. "I mean marry me all regular and go to live at my ranch. You wouldn't have to work hard. You could have the washin' done and have help in the kitchen. I'm a mighty easy feller to get along with too, once you get to know me."

"I don't want to get to know you!" Hazel had resumed her churning, but her negation was no less decisive.

"I'd be good to you. Give you all the dresses and fixings you want—in reason. Say, I'd even have one of these cabinet organs packed in for you. New furniture, too—in reason. I'll be generous. I've got money, and I'd sure be willing to spend it on a girl like you."

"You needn't bother."

He removed his hat from his knee, uncrossed his legs and dropped the hat on the floor. He propped his hands on his knees and surveyed her, his head on one side.

"You don't know what you're refusing," he told her. "Marry me and you won't have to work like this. Nawsir. I'm a rich man, I am. Here, let's talk it over."

He rose to his feet and came toward her. She promptly reached behind her and possessed herself of the singing kettle.

"If you touch me," she said hysterically, "I'll douse you with boiling water!"

"There, there," he said, with a light laugh, "I didn't mean to scare you. Set the kettle down, there's a good girl."

But the good girl had other ideas. "You get out of here. I don't want you around."

Her show of temper caused his own to flare up. "There's no use for you to get mad. None a-tall. You act like I'd insulted you instead of doing you a honor."

At which her sense of humor came to her rescue and she laughed in his face. He picked up his hat and faced her, scowling.

"I ain't mad," he told her. "Not a bit. It don't pay to get mad with a woman. But I want you to know I'm comin' back for another answer. I ain't satisfied you mean 'no.' And, anyway, I want you, and I'm gonna have you. That's all there is to it. You think it over."

He nodded stiffly, still scowling, and started toward the door, but paused with his hand on the latch. When he turned and came back to the table, she instantly retreated to the stove and laid her hand on the kettle.

"You needn't go to pick up that thing," he said, both fists clenched on the tabletop. "I ain't gonna hurt you. I want to know something. Billy Wingo comes here, doesn't he?"

"He comes—yes. Why not?"

"You like him?"

"What's that to you?"

"Do you like him?"

"He's a friend of mine."

"A girl don't flush up that way over a friend. I know. And I've heard, too. They say you like Bill Wingo a lot. They say you were going with Nate Samson till you met Bill. Is that right?"

"It's none of your business."

"Lemme tell you something, young lady. Don't you think for a minute that Bill Wingo feller can give you one tenth what I can. Just because he was elected sheriff last week don't signify. Yours truly is the dog with the brass collar around here, and don't you forget it. You marry Bill, and you'll regret it."

"If I marry you, I'll regret it,—that's sure."

"Not a bit of it. I'm ace-high in the county now, and I'll go higher in the territory. You can't keep me down. I'll make money, more'n you can shake a stick at. You needn't think you'll have to live on a ranch all your life. Within three years after you marry me I'll take you—yes, I'll take you to Hillsville to live where you can see folks all you want. You know Hillsville has almost three thousand people. You wouldn't be lonesome there. I——"

"It's no use talking," she interrupted, taking care not to remove her fingers from the kettle. "I wouldn't marry you or anybody else of your crowd, not if he was the last man on earth."

"My crowd! What's the matter with my crowd?"

"Your crowd! Yes, I'd ask, I would! What do you suppose I mean? The gang that runs this county, that's what I mean! The gang that has a finger in every crooked land deal and cattle deal, the gang that cheats the Indians on the government contracts. Yes, and if it hadn't been for your gang and for what they've done to the morals of Crocker County, you wouldn't have dared to try and lynch young John Dawson the way you did! Let *me* tell you something: The new sheriff will show you a thing or two. *He* is honest!"

"Is that so? Honest, is he? You know who elected him, don't you? We did, and we own him, body and soul and roll. He'll sit up and talk when we tell him to, and he will lie down and go to sleep when we tell him to; and if

he don't, he's mighty liable to run into a spell of bad health. Not that we'll want him to do anything he shouldn't. Not us." Thus Rafe Tuckleton, realizing his temper had carried him away and he had said too much by half, thinking it well to right matters if he could, continued hurriedly:

"Those cattle deals you spoke of and the government contracts weren't crooked a-tall. Just straight business, but of course the fellers we got 'em away from are riled up and bound to talk. Naturally, naturally. But don't you get the notion in your head that everything wasn't all right. Everything was perfectly straight and aboveboard, you bet. Shucks, of course it was. I could explain it to you mighty easy, but it would take a lot of time and whatsa use? Politics ain't for women, or business either, for that matter. You better forget what you've heard about our crowd. It's just a pack of jealous lies, that's all, and if you'll tell me the name of who told you anything out of the way about us, I'll make him hard to find."

"I know what I know," said the stubborn Miss Walton. "You can't fool me! Not for a minute! And I've listened to you long enough! You get out of here and don't you come back! Flit!"

She swung the kettle from the stove. Rafe Tuckleton sprang back two yards. His temper had again gained the ascendancy. He was so mad he could have beaten her to a frazzle. But there was not a club handy, and moreover the lady had, by way of reinforcing the kettle, slipped a butcher knife from the table drawer.

"All right," gritted Rafe, and turned around from the door to shake his fist at her. "I'll get you, you li'l devil! You needn't think for a minute you can get away from me by marrying some one else. I don't give a damn whether it's Bill Wingo or who it is! Within a week after you get married, you'll be a widow! A widow, y'understand! I'll show you!"

He went out, slamming the door. Hazel made haste to run around the table and drop the bar in place. Then she went to the window and watched the man cross to the cottonwoods where he had tied his horse.

She uttered a sharp "Oh!" of disgust as he jerked at the horse's mouth and made the animal rear. He brought it down by kicking it in the stomach.

"What a beast!" muttered she, with a shudder. "What a cruel beast that man is."

Not till Rafe rode away, quirting his mount into a wild gallop, did she return to her churning. She found the butter had come, and she removed the elmwood dasher and poured off the buttermilk. She put the butter into a long bowl full of water and began to wash and knead it, but not with her accustomed briskness. She was thinking of what Rafe Tuckleton had said. He would come again, the brute. She did not want him to. He had made her afraid.

She shivered a little as she poured off the water in the bowl and refilled it from the water bucket behind the door. She had no desire to marry anybody yet. She supposed she would some time, of course. All girls did eventually. But he would have to be some nice boy she loved. She guessed yes.

At that very moment a certain nice boy was riding up the draw toward the Walton ranch. He met Rafe Tuckleton riding away. Rafe gave him a nasty look. The nice boy smiled sweetly and pulled his horse across the trail. "Why all the hurry-scurry this bright and summer day?"

It was not a bright and summer day. It was late fall, the clouds were lowering darkly and there was more than a hint of winter in the air.

Rafe Tuckleton pulled up with a jerk and a slide. "What do you want?"

"I don't know yet," was the reply, delivered with still smiling lips but accompanied by a look as chilling as the day. "You been at Walton's?"

"Yep, I have. Not that it's any of your business."

"Maybe you're right. Let's go back and make sure."

Rafe's blazing rage was so augmented by this naïve suggestion that his native prudence was almost overcome by the sharp impulse to argue the matter. But almost is not quite. His coat was buttoned, and his six-shooter was under his coat. Bill Wingo's six-shooter was likewise under its owner's

coat, but the coat was unbuttoned and—Rafe recalled another day, a day when he had held his hands above his head while the muzzle of Wingo's gun gaped at his abdomen. That had been a quick draw on the part of Billy Wingo. Uncommonly quick. What happened once may happen again. This is logic.

The logician spat upon the ground. "Because you're elected sheriff now, you needn't think that you can boss everybody in the county."

"But I ain't trying to boss anybody," denied Bill. "I'm only askin' a favor of you, only a li'l favor. And I'm hoping you'll see it that way. I don't *want* any trouble with you, Rafe," he added, "or with anybody else."

Rafe hesitated. He stared into Bill's eyes. Bill stared back. Rafe did his best to hold his eyes steady. But there was something about that gray gaze, something that seemed to bore deep down into that place where his sinful soul lived and had its being. The Tuckleton eyes wavered, veered, came back, clung an instant, then looked away over the landscape.

"Turn your horse, Rafe," said Billy Wingo in a soft voice.

Rafe Tuckleton turned his horse. They rode back to the Walton ranch in silent company. Dismounting at the door, Billy was careful to keep his horse between Rafe and himself.

Billy looked across the saddle at Rafe. "You better knock at the door, feller."

With extremely bad grace, Rafe obeyed. Following the knock, a window curtain was pulled aside and Hazel looked out. She nodded and smiled at Billy. The curtain dropped. Billy heard the grating of the bar as it was withdrawn from the iron staples. The door had been barred, then. Why? Was Rafe indeed the qualified polecat Billy had half-way suspected him of being when he meet him hurrying away from the Walton ranch? But Hazel's smile had been natural as ever. Bill took comfort in that fact.

The door opened. Hazel stood wiping her damp hands on her apron.

"Lo, Hazel," said Bill. "Everything all right?"

Hazel smiled again. She *did* have beautiful teeth. There was the fetching dimple too.

"Why, of course everything's all right," she told him. "Why wouldn't it be?"

Bill noticed that she did not look at Rafe Tuckleton.

"Here's Mr. Tuckleton," said he.

"I see him," shortly.

"And—you're—sure—everything's—all—right?" Bill drawled in a lifeless voice.

"Of course I'm sure."

"And—you're—sure everything—has—been—all—right—all day?"

Hazel nodded. "Of course it has. Won't you come in, Billy—before the kitchen gets all cold?"

"I'll put the li'l horse under the shed first. He's kinda warm. Rafe, don't lemme detain you. You seemed all in a rush when I met you."

Rafe Tuckleton lingered not.

Billy Wingo led his mount under the shed and returned to the house. Hazel was pouring off the washing water when he entered the kitchen.

"What made you bring Tuckleton back?" she asked pouring fresh water over the butter.

"I met him coming away from here, and I didn't like the way he looked. I thought maybe—" He let it go at that.

"He was here for a while," said Hazel, bringing her bowl to the table and beginning again to knead the yellow mass of butter. "I don't like that man."

Billy was at the table instantly. "Look here, Hazel——"

"Look here, Billy," she mimicked, lifting calm black eyes to his face. "Don't you go fussbudgeting. I'm quite capable of managing my admirers."

"Admirers! Him!" gasped Wingo.

"He proposed to me. I turned him down."

"Shows your good sense," said Billy, going over to the chair lately vacated by Rafe Tuckleton and sitting down. "But I'd like to know what he's thinking of, the old jake."

Her amused eyes sought his. "Am I such a poor match as that?"

"You know what I mean," he grumbled. "He's got no right proposing to you, no right a-tall. Why, he's old enough to be your father."

"So he is. Do you know, I never thought of that?"

"You're foolin' now," grunted Billy. "Tell you, Hazel, what you want is some young feller with property and all his teeth."

"I don't want anybody," she declared, "young or otherwise. Billy, you're sheriff now——" she continued, changing the subject.

"Not yet," he interrupted. "I don't take office till the first of the year."

She nodded. "I understand. And I want to ask you a question. It's—it's—you will say it's none of my business, I expect."

"Anything's your business you want to ask questions about. Fly at it."

"Who elected you sheriff, Billy?"

He regarded her in some surprise. "The voters."

"I know, but who manages the voters?"

"You mean the party machine?"

"That's it. Well now, Bill, suppose the machine put a man in office, would he have to do what the machine told him?"

"He would, if he was that kind of a man."

She straightened and gave him a level look. "Billy, they say the gang that runs this county elected you sheriff."

"Who's they—Rafe Tuckleton?"

"Never mind who. What I want to know is do you have to do what that gang tells you to do?"

"I don't have to. Has anybody been saying I'd have to?"

"I—you hear rumors sometimes, Billy. Will you have a free hand, then?"

"So far as my powers extend, I will," he said.

"And you'll use it?"

"I'll use it," curiously.

"Is—is that quite safe?"

"Safe?"

"Safe to antagonize the gang?"

"It may not be safe for the gang."

Hazel raised a great gob of butter in her two hands and squeezed it out slowly between her fingers. "Couldn't you give 'em their way, sort of? Not in everything. I don't mean that. But just enough to keep 'em good-natured?"

His curiosity changed to blank amazement. "You know what you're asking, I suppose," he said coldly. "I thought you didn't like Rafe Tuckleton?"

"I hate him," was her simple statement. "But I—I'm afraid."

"Afraid? How afraid?"

"Afraid for you."

"Why for me?"

"Because—oh, it's so hard to explain!" she almost wailed. "You misunderstand me so. You think I'm asking favors on their account!"

He believed he detected a sob in her voice. This would never do. Couldn't have Hazel crying.

"If you'd only explain," he suggested soothingly.

"Well," she said, her hands busy in the butter, "Sally Jane Prescott was over here yesterday, and she said what a darn good thing your election was for Crocker County; how you'd reform it and all that, and how you'd surely put out of business the gang that's running it now. I agreed with her, of course, but I never really realized till—till later what it might mean to you."

She paused. He awaited her pleasure. After a minute's silence she continued.

"You see, Billy, you've been pretty nice to me—uncle and me. And you've come to be sort of a—sort of a friend—kind of and—and I—we don't want to see you hurt," she finished with a rush.

"So that's the reason you think I'd better go easy on the gang."

"It will be safer. You don't have to be too open about it. You can arrest the people the gang doesn't care anything about."

"That would be hard on the people, I should say."

"It's better than running into danger all the time. I tell you, Billy, as true as I stand here this minute, if you try to fight the gang, you won't last out your term."

She clasped her hands and regarded him piteously. When a pretty girl clasps her hands and regards you piteously, what are you going to do? Right. You can't help yourself, can you? Neither could Billy.

But when he had kissed her three times on the mouth she pushed him away and cried distractedly. "You mustn't! You mustn't! You don't know what you're doing!"

"Oh, yes, I do," he assured her and seized her buttery hands. "We'll be married to-morrow!"

At which she whipped her hands from his grasp and put the table between them. "No! Go over there and sit down!"

"I won't! I love you! And you love me!"

"I don't," she stormed.

"What did you kiss me back for then?" he demanded triumphantly. "You did! You know you did! I felt you!"

This was true. But she continued to keep the table between them, despite his efforts to come around to her side.

"You go over there and sit down—please!" she begged. "Please, please, pretty please!"

He went slowly. He sat down. He stretched his long legs out in front of him and teetered his heels on the rowels of his spurs.

"Look here, Hazel," he complained, for he was feeling most ill-used, "I don't understand this a-tall. You lemme kiss you three times and then you shove me away, and when I ask you to marry me, you run behind the table. What did you let me kiss you for if you don't love me?"

"I couldn't help myself. You were so quick."

"You kissed me back, too. Don't forget that."

"It was a mistake, all a mistake. You don't love me."

"You don't know a thing about it. I do love you. And you love me, you know you do."

But by this time she had regained complete control of herself. "I don't know anything of the kind. Let's forget it."

As if he could forget the pressure of her soft lips! Why, for another such kiss he would cheerfully have fought a grizzly. For that's the kind of a kiss it was.

He shook his head. "I can't forget."

Her poor heart almost choked her at the words. She wanted him to kiss her again, and keep on kissing her till she told him to stop. How wonderful that would be! But she stifled the desire with an effort of will that turned her cheeks white.

"You must forget," she told him, her chin wobbling.

"Tell me you don't love me, and I'll do my best."

"I don't—" she began and paused. To save her life she could not tell this man the contrary of what every fiber of her being was proclaiming. She could not. She compromised. "I don't know," she said tightly. "I don't know."

"But I know," objected Billy. "You just give me a——"

"No," she interrupted, "don't plague me, Billy, please don't. Just—just don't ask me again, that's all."

"Is there anybody else?" he demanded.

She shook her head. "No one."

"Then I've got a chance."

But at this she took fright anew. "You mustn't think of it! You mustn't! I can't marry you now, Billy."

"Now? All right, some other time."

He stooped over as though to pick up something from the floor. Apparently he overbalanced himself, for he fell forward on his hands and knees. When he picked himself up he was within arm's length of Hazel. He reached out two triumphant arms and swept her against him. A bare instant she struggled desperately. Then with a sigh she relaxed and put up her mouth to be kissed.

"There, there," he said later, his lips pressed against her hair, "I knew it would be all right once you let yourself go."

She lifted her body slightly in his arms. "Tell me you love me, dearest."

Then when he told her, she asked, "How much? More than anything else in the world? Are you sure?"

What ridiculous questions. Of course he was sure.

"Then you'll do anything I ask, won't you? Promise?"

She raised her head from his shoulder. "Promise?" she repeated, her warm lips on his.

Even as her arms tightened about his neck, he felt a tightening at his heart. And the latter was not a pleasant tightening. What did she mean? He loved her. God, how he loved her dark loveliness, but—what was she driving at?

"I can't promise till you tell what you want me to do."

"No, say you promise. Say it, say it."

But he would not, and she tried a new angle. "If I tell you, will you promise?"

"After you've told me," he persisted.

She sat up straight at this and took his face between her two arm palms.

"Billy, you know I love you, don't you?"

Looking into her eyes how could he doubt it.

She resumed. "You know I wouldn't ask you to do anything that wasn't for your own good, yet you won't promise the first promise I ever asked you to make."

He shook his head. "I can't."

"All right, I'll have to tell you then, Billy. I've heard things—about your job. I've heard that if you don't do exactly as the gang says you'll be kuk-killed. Oh, not exactly in those words, but I know what was meant. No, I shan't tell you where I heard it. It doesn't matter anyway. It was bad enough when you—I thought you were just a friend, but now—now when you're just everything to me, I cuc-can't bear to have you run any risks. Suppose something happens to you, what would I do? I'd die, I think. I'd want to, anyway."

At which he tried to kiss away her fears, but these were too deep-rooted for any such old-fashioned remedy as that to be of any avail.

"No, no, don't!" she protested, holding his head away by main force. "Not now. I'm not through yet. Listen. You'll fight the gang, I know you will."

He nodded a slow head. "I've got to. That's why I took the job of sheriff."

"I knew it," she said sadly. "But you can resign, can't you?"

"I could, but I won't."

"Not if I ask you to?"

"I can't. It would be lying down without a fight, and I've never done that yet. They'd say I was afraid of 'em."

"What does it matter what they say? You'll have me. We'll be together."

He put up a hand and stroked the tumbled waves of her black hair. "You wouldn't love me if I did a thing like that. You'd know I wasn't doing right."

She shook his face between her hands with gentle earnestness. "Yes, I would! I would! I know I would! Everything you do is just right! It would be right if you did it! Don't you see? What does anything matter so long as we have each other? Why do you have to risk your life? Oh, take me away, beloved, take me away and I'll marry you to-morrow!"

Because of what he did then, you'll say he did not love her. But he did, heart and soul and body, he loved her. Yet he put her resolutely from him and held her off at the full stretch of his arms. "There's more to this than you've told me," said he shrewdly. "You're scared. You're scared bad, but it isn't only the thought of the gang that scares you. There's something else. What is it?"

At first she would not tell him. He argued with her.

Finally she surrendered. "If you marry me and stay here, you'll be killed."

He threw back his head and laughed. "Is that all that's worrying you? We'll be married to-morrow, like I said."

"No, we won't—unless you take me away at once. No, don't kiss me. I mean it."

"Who told you I'd be killed?"

"I won't tell you."

"Tell me, and I'll make him come here and take back everything he said."

But the recollection of what Rafe Tuckleton and his outfit had almost succeeded in doing to John Dawson was too fresh in her mind. She did not dare tell Billy who had told her. She knew right well that if she did it would simply mean that her lover would be killed the sooner. The odds against him were great enough as it was.

She shook her head. Her eyes were bright with pure terror. "I can't tell you!" she whispered in agony of spirit. "I can't!"

"Was it Rafe?"

"I can't tell you!" twisting her head to escape his eyes.

"It was Rafe!"

"It wasn't Rafe!" she lied wearily. "It doesn't matter who it was. Oh, boy, boy, I don't dare marry you if you stay here. And I want to marry you, dear heart. I love you so! I love you! Oh, let's go away where we can be happy together! Why won't you be sensible and take the easiest way out?"

"God knows I would if I could, but I've got to play the hand out. I can't back down because there may be a li'l danger. You know I can't, and down deep you don't want me to. Listen. When you saw Jack Murray was out to bushwhack me, what did you do? Did you take the easiest way out and go on about your business, or did you jump right in and risk your life to save mine?"

"That was different," said she piteously, realizing that her cause was lost, but fighting to the last. "I did it for you. I'd be willing to die for you any time. Boy! I love you so hard, nothing else matters! Nothing! I'd lie, steal, cheat and fight for you! Oh, I'm shameless, shameless! But that's the way I love you! Why can't you give up everything for me the way I would for you and take me away and marry me?"

He was more than a little shaken. He had to summon all his resolution to withstand her pleadings. But he did more. He got upon his feet and thrust her down into his place in the chair and held her there with one hand for all she struggled might and main to wind her arms again around his neck.

"Listen to me," he said in a voice that trembled. "You don't know what you are asking me to do. If I did it, I'd be a dog, and I won't be a dog even for your sake. Marry me now and we'll see it through, you and I together."

She shook her head. "I—I can't," she whispered, and added with most human logic, "I don't believe you love me!"

At which he was moved to wrath. "It's you that don't love me! You listen here! I've asked you for the last time to marry me! You turned me down for some fool notion that isn't worth a hill of beans. All right, let it go at that. If ever you change your mind, you'll have to come to me and put your arms around my neck and tell me I was right to stick it out and you were wrong to want me not to. And if you don't do it, you're not the girl I took you for, and I wouldn't look at you with a telescope!"

She sat speechless. Without another word he stooped, swept his hat from the floor and went out. And, it must be said to his discredit, he slammed the door behind him.

A long five minutes Hazel was staring wide-eyed at the door. But he did not come back. She crept to the window. He was riding away down the draw. He did not look back. He passed out of sight around the bend. Hazel slid quietly to the floor and, her face buried in her hands, began to cry as if her heart would break.

For her little world had been shattered and she was left disconsolate among the fragments. Her man did not understand.

CHAPTER EIGHT

THE NEW BROOM

Tip O'Gorman sat comfortably near the red-hot stove. The wind and the snow were blustering outdoors. It was what the people you yearn to kill call a bracing day in January. Actually the weather was such that the well-known brass monkey would have been frostbitten in at least one ear.

"It's a good old world." Tip sighed luxuriously and wiggled the toes of his roomy slippers.

Entered then one who changed the pleasing aspect of the good old world.

Judge Driver slammed the door behind him and untied the comforter that held the hat to his head. He removed the hat and buffalo coat, hung both on pegs behind the door, sat down and glared at Tip O'Gorman.

"You've done it now," exclaimed Judge Driver.

"What particular thing have you on your mind?" Tip queried equably.

"The sheriff you were so set on having elected! Oh, yes, says you, put in an honest man. Give the dear people a bone to chew on. And we took your advice and gave 'em their bone. And now look at the damn thing."

"What's happened to the sheriff?"

"Not a thing. I wish something would. It's what's happening to us that bothers me. Your fine li'l love of a sheriff is appointing his own deputies."

"The law gives him that privilege."

"You don't understand. I had picked two deputies for him to appoint—good safe men. You know that part was left to me, and I fixed on Johnson and Kenealy. This morning I mentioned their names to the new sheriff. 'I thank you kindly for your good intentions,' says Bill, or words to that effect, 'but I have already decided to appoint Shotgun Shillman and Riley Tyler.'"

"What?"

"I'd say what! I'd say hell, I would! Ain't it nice, ain't it funny, ain't it a pretty state of affairs? And what are you going to do about it?"

"Has he appointed 'em yet?"

"They're sworn in by now. He said he was expecting 'em any minute when I left."

"Shillman's the nearest," said Tip, glancing out of the partly frosted window pane, "and he lives forty miles away. I wouldn't count on those boys being appointed to-day. The storm may have kept 'em away."

"No such luck," growled the judge. "They're appointed, all right enough."

"Think so if it makes you happy," Tip said with a grin. "You're always such a pessimist."

"Here!" snarled the judge. "Don't you try to ride me, Tip. Say right out what you mean."

"I did," smiled Tip. "However——"

"Huh," snorted the judge, and put his feet on the table and began to pull at his lower lip.

"Shotgun Shillman and Riley Tyler," murmured Tip musingly. "Hum-m-m!"

"Can't you think of anything to do but buzz like a bee?" demanded the irritated judge.

"There's lots of things you can learn from bees," protested Tip O'Gorman. "Maybe they do buzz some, but they gather lots of honey."

"We'll gather lots of honey, won't we?" snapped the other. "Both Shotgun and Riley are absolutely honest."

"And sharp—infernal sharp. Don't forget that."

"You take it easy."

"Spilt milk. We've overlooked a bet, that's all."

"Oh, that's all is it? I tell you it won't be all. I've got a hunch."

"Don't be superstitious. Politics is no place to play hunches."

"Apparently it isn't even a place to play common sense," said the judge. "If it hadn't been for you and your advice, we wouldn't be in this fix. You got us in. Now you get us out."

"You make me sick, Tom. You're getting to be a regular old granny. I tell you there is no rat in the hole. Suppose Bill does appoint two honest deputies. There is still Bill, isn't there? What are two deputies going to do against Bill's orders? And Bill will do what I tell him. Oh, yes, he will. You needn't shake your head. I can manage Bill Wingo."

"I wish I could be sure of that," worried the judge.

"You can be, old-timer, you can be. I'll manage Bill as per invoice, so you just bed your mind down and give it a rest. The bottle's in that cupboard, water's in the kettle, sugar's on the table, lemons in that box. Help yourself, make punch and be happy. Make enough for two, while you're about it. Your punch always did taste better than mine. I never could mix one to taste anything like. Lord knows how you do it. It's a gift. I hear you had a long run of luck at Crafty's last night."

Et cetera, words with end and amen. Tip O'Gorman was a skilful scoundrel. He knew precisely how far to go and he rarely employed a shovel. For even the dullest have a wit flash now and then.

He soon had the jurist purring.

To Billy Wingo that evening came Tip O'Gorman; a bluff, hearty, good-hearted Tip; a Tip that told funny stories and was a good listener himself and laughed at the right place. You've heard it all before doubtless and know the method: "A chair for Mr. Dugan. He owns the stockyards. His pockets are full of greenbacks. Let him win as much as he can and don't forget to

tell Patsy to be waiting for him at the corner with the lead pipe when he goes out."

The old, old game, you see. Shabby, moth-eaten through and through, fairly obvious; but it works—most of the time.

"That's fine whisky, Bill," observed Tip, cupping an affectionate hand ground his glass. "No, no, tempt me not, brother. I know when to stop, if I am old and sinful. A pleasant fire, a comfortable room, a hot drink, and a cold and winter's night. What more can a man want?"

"What indeed?" said Billy politely. Inwardly he thought, "What the devil does he want?"

You will perceive that the game was not running true to form. For it to be successful, the victim must not become a prey to low suspicion.

"Sworn in your deputies yet?" Tip made casual inquiry.

"Not yet. Storm might have kept 'em away."

Then all was not lost. Tip began to feel a mental glow. He had been counting on the storm.

"Have you appointed 'em?" he put the dread question.

"Sure thing."

"Who are they?"

"Shotgun Shillman and Riley Tyler."

"Oh, yes. Good men, both of 'em, but——"

Tip O'Gorman fell silent. He toyed with his glass.

Billy Wingo regarded him slantwise. That "but." "Yes?"

"But," continued Tip O'Gorman, "I know of better men."

"Yeah?" Rising inflection and a cocked eyebrow.

"Yeah."

"For instance?"

"Johnson and Kenealy."

"Why Johnson and Kenealy? Why not Shillman and Riley?"

"Shillman and Riley never have done anything for the party. Johnson and Kenealy have."

"What have Johnson and Kenealy done for the party?"

"For one thing, they have always voted right."

"That is one thing, but not a large thing. Other men have voted right too—frequently. Some too frequently; if you know what I mean."

"Politics, my dear fellow, is not child's play. We do what we must to win. But it doesn't pay to look a gift horse in the mouth too closely. He may bite." Tip O'Gorman stared at the new sheriff.

The latter smiled a long, slow smile. "There are muzzles," said Bill Wingo.

Tip dismissed this with a wave of his hand. "Too big a horse and too many teeth," said he.

"Ah!" murmured Billy Wingo.

"Come, come, Bill, you're no fool. You know what I'm after. You know what you owe the party. Johnson and Kenealy must be taken care of."

"Must," observed Billy, "is the hardest word in the dictionary."

"Sometimes it means the most," declared Tip O'Gorman. "This is one of those times."

"Ah!"

There it was again, that irritating monosyllable. For the first time Tip O'Gorman began to experience a doubt.

"We expect you to appoint Johnson and Kenealy," he said bluntly.

"And if I don't?"

"Oh, you will—after you've thought it over."

"I thought it over after Judge Driver came to me. And I decided not to. I prefer my own men."

"Johnson and Kenealy will be your own men."

"That is a question." Billy sat back in his chair and made a church roof and a steeple with the fingers of his two hands. He raised lazy gray eyes to Tip's face. "That is a question," he repeated. "They may be my men and then again—" He ceased speaking, leaving the sentence unfinished. The church steeple became a gallows. "You see, I can't risk it," drawled Billy.

Tip O'Gorman carefully set his glass down on the table. "You must," he remarked softly.

"As I said before," murmured Billy, his drawl drawlier than ever, "must is a hard, hard word. But I'll tell you what I'll do, Tip," he continued in a louder, more cheerful tone. "You show me what 'musts' in the statutes apply to the sheriff's office, and I'll obey every last one of 'em. When I took office, I made oath to obey and support the laws, you know."

He smiled at Tip. The latter smiled back. "Lookit here, Bill," he said in his best and most fatherly fashion, "I like you——"

"I suppose that was why I was elected," interrupted Billy.

"Partly," was the brazen reply. "But there were other reasons, of course. We needed a good man to win, a man that was on the level, an honest man, a——"

"Not a crooked man, or a dishonest man, or a pink man, or even a man with purple spots. So you elected me. I'll take it as a compliment. Go on."

"A straight man doesn't throw down his friends," said Tip O'Gorman.

"Sure not," declared Billy warmly. "He'd be a pup if he did. I agree with you, Tip. We won't fight over that."

"You're throwing us down," insisted Tip.

"Now, we're getting down to carpet tacks," said Billy. "But who are 'us'?"

"The party."

"The party?"

"The party."

"But the party and my friends are not necessarily the same thing."

"We elected you."

"That doesn't make you my friends. Understand me, Tip, there are a lot of folks in the party I like and admire—a lot of 'em. But the folks I like and admire don't come to me and give me orders, and my friends don't either. Not that you've been giving me any orders, Tip. You wouldn't do such a thing."

"It's all right to ride me," said Tip, without losing for a minute his amiable smile, "but you might better leave off the spurs."

"I ain't riding anything to-day," averred Billy. "There's the bowl. Dip you out another glassful."

Tip O'Gorman did not accept the invitation. "I wish I could make you understand," he said slowly, crossing his legs and clasping both hands around a plump knee. "This is a serious matter, Bill."

"Sure it is," asserted Billy. "You're serious. I'm serious. He, she or it is serious. Outside of that, it's a fine, large evening."

"Lookit here, Bill, what's your game?"

"Game? What game are you talking about?"

"What do you want? What are you after, anyway?"

Billy made swimming motions with his arms and hands. "Paddle out, paddle out. You're over my head and getting deeper."

"Are you trying to give me the double-cross?" inquired Tip.

"Now why should I do a fool thing like that?"

"I don't know. I'm asking."

"What makes you think I'm giving you the double-cross?"

"The first favor I ever asked of you—the appointment of these two men."

"When I was elected, then, it wasn't intended I should have a free hand?"

"Free hand? Of course, of course." Tip was beginning to find the atmosphere oppressive. He passed a handkerchief across his beaded brow.

Observing which, Billy said affectionately, "It is hot in here. Shall I open a window?"

"Nemmine a window," Tip said. "Think a shake, Bill. Is it wise?"

"Wise?"

"You know what I mean."

"Not I," denied the cheerful Bill.

"You can't buck the party."

"There ain't no such word, but just for the sake of argument, why can't I?"

"It has been done, but——"

"Where are the snows of yesteryear, huh?"

Tip nodded. "Something like that."

"If I don't appoint your men and do appoint mine, what particular form of devilment would the party feel called upon to put on me?"

"Devilment," grinned Tip. "You don't know us."

"Backward and forward, sideways and from the bottom up. Don't you fool yourself I don't know you. I been looking over the situation a long time. It's been a liberal education."

"So that's it," murmured Tip. "Driver told me, but I didn't believe him."

"The judge sometimes tells the truth."

Tip O'Gorman sighed. He thought he saw what he would have to do. And he didn't want to do it. It meant one more mouth to feed, and one more finger in the pie.

"You understand, Bill," said he, "that it was always intended you should have your share."

"Nothing was ever said to me about any share," said Billy truthfully.

"We occasionally prefer to leave something to the imagination."

"It beats leaving it to the taxpayer," smiled Billy.

"Sure, sure."

"But my share you were speaking of, Tip," prompted Bill. "What is this share—large, small or indifferent?"

"That depends," replied O'Gorman cadgily.

"On the weather, or some one's generosity?"

Was there mirth or something sinister in the gray eyes? Tip O'Gorman couldn't be sure. But Lord, there was no cause for apprehension. He'd been making himself unnecessary worry. Bill Wingo was too easy-going and good-natured to hold out on the boys. He was just making a play for his legitimate share. That was only right. Not that Tip had intended in the beginning that Bill should have his legitimate share. These politicians!

"You see, Bill, it's thisaway," said Tip. "Some years the party makes more than other years, and——"

"And the years it makes the most," insisted Bill, "are the years I make the most. Is that it?"

"You get the general idea."

"But not the general idea of what I get," persisted the strangely obtuse sheriff. "What is the minimum I can expect?"

Tip did not relish being pinned down to cases in this fashion. He preferred generalities.

"The minimum," repeated Tip.

"And the maximum," suggested Bill. "I might as well know all the horrible details."

"From three to five thousand dollars," said Tip, watching his *vis-à-vis* closely.

Said *vis-à-vis* looked disappointed. "Small change," he remarked coldly. "Who gets the other nickle?"

"Your salary is two thousand," Tip told him reproachfully, "and three to five thousand above that makes five to seven thousand. What more do you want?"

"Whatever's right," declared the amazing Mr. Wingo.

"That's right—what I told you."

"What did the last sheriff get?"

"I told you it varied."

"I know you told me. Tell me again."

Tip O'Gorman shifted his position in the chair. He was being baited. He realized it now. A slow anger rose in his breast. But an admixture of dismay in the anger kept it from boiling over.

He continued to temporize. "Your slice will be worth while, well worth while. Leave it to us. You can trust me."

"Can I? I wonder."

"Meaning?" O'Gorman's face was cold as his heart was hot.

"I wonder. I do it now and then. Habit, I suppose. No harm in it, is there?"

"Lookit here, you don't doubt me, do you?"

"Unhand me, Jack Dalton! I may be poor—I may starve to death, but I will never be an old man's plaything. Better death than dishonor-rur-rur. Don't be so melodramatic, Tip. Who am I to doubt you? You? What a question!"

The fingers with which Billy Wingo then proceeded to make a cigarette were steady and sure in every movement. Billy licked the length of the white roll, smoothed it down and twisted one end. Tip O'Gorman did not

know what to make of him. Or rather he thought he knew too well, which frequently amounts to the same thing.

"You'd better trust me," rumbled Tip.

"Be reasonable, Tip. You ask for trust and you give me a stone."

"A stone?"

"What else is three to five thousand bucks, I'd like to know. I'm no child, man. I've got my growth, and I've put away childish things, including all-day suckers."

"You must take me for one."

"Not you, not in a million years. But—" Mr. Wingo paused and looked up at the ceiling. His lips moved. He muttered of figures and sums.

Tip O'Gorman awaited his pleasure. What else was there to do?

"I think between nine and ten thousand is nearer the correct amount for li'l me," Billy said at last.

"What?" screeched Tip, fairly jarred off his balance at last.

Billy made his position plain. "Say ten thousand in round numbers."

"Ten thousand devils!"

"Not devils—dollars."

"You're crazy!"

"It's the least you can do," insisted Billy.

Tip O'Gorman made an odd noise in his throat. After making which, a dog would have bitten Mr. Wingo. Tip may have been a bad old man, but he was not a dog. He really dissembled his foamingly murderous rage very well indeed.

"I'll have to see the rest of the boys," said Tip O'Gorman, and he actually smiled.

"Why, no," contradicted Billy. "You won't. Why should you? Rafe and you are the dogs with the brass collars in Crocker County, and you wear more brass than Rafe, when you come right down to it. What you say usually goes without question."

"I never said ten thousand for a sheriff before," protested Tip.

"There's nothing like establishing a precedent. Don't be hidebound. This is the newer generation, and advanced age, you know; one that's advanced by jumps, if you could only be brought to realize it."

Tip held up an arresting hand. "Don't joke," he said. "I realize what the blessed age is doing, but doubling the ante this way is more than a jump—it's a mighty wild leap."

"It can be done," Billy said placidly. "What are impossibilities to-day become realities to-morrow. Q.E.D. P.D.Q."

Tip O'Gorman raised plump hands to the level of his ears. "I didn't think when I proposed you for sheriff," he remarked earnestly, "that I was proposing a road agent too. Oh, you burglar! I do admire a hawg. Yes, sir. But what can a feller do? Ten thousand goes. About those deputies—I don't suppose you'll have any objections, now that you've got what you want, to appointing Johnson and Kenealy?"

"Oh, yes, indeed I have—plenty. No Johnson and no Kenealy. Shillman and Tyler. Yes."

"No. You've got to earn that ten thousand."

"Bribery and corruption, Tip, is a serious crime."

"Bosh! You listen to me, young feller. We're buying you, body, soul and roll, with that ten thousand cases! You've got to do as we say. Hells bells, what do you think you are?"

"A stranger in a strange land. Damn strange, too. Tip, you're an old scoundrel!"

Tip O'Gorman's hand halted half-way to his armpit.

"No, no, Tip, not that," Billy warned him, keeping turned on the other man's stomach the gun that had suddenly appeared from nowhere. "Don't turn rusty in here. The carpet is new and so is the furniture. Go a li'l slow, or a li'l slower, whichever appeals to you."

Tip locked his hands behind his head. "Be sensible, Bill," said he calmly. "You can't hope to buck us, if that's your idea. You can't."

"Can't I? We'll see."

"What can one man do?" contemptuously.

"One-two-three. Three men. Three men can do a lot. Yep. I've seen it done."

"Have you?"

"I have. But I want to be fair to you, Tip. You'll notice I haven't removed your gun. I'll return mine where it came from—behind the waistband of my pants. Now turn your wolf loose."

But Tip O'Gorman merely smiled. "I thank you kindly," said he. "You mean well; but as you say, the carpet and the furniture are new. It would be a pity to spoil both them and the evening."

"You mean we'll go outdoors then?"

"We will not, but *I* will. You will stay here and, I hope, enjoy one good night's rest."

"One, huh? Do I hear you say one? I do. I get your meaning, thank you. So good of you. Don't get up. I would a tale unfold. Did you ever hear the story of Benjy and the bear. No? This is it. Benjy was out hunting one day and it happened the bear was out hunting too. For the bear was hungry, and

the bear saw Benjy before Benjy saw the bear. And after the dust had cleared away and all, the bear was bulgy and the bulge was Benjy."

"Huh," snorted Tip O'Gorman, "what does that prove?"

"It proves that it's better to be the bear than Benjy. At least, that's the way it looks to a man up a tree. I made up my mind some time ago that if I got tangled up in a situation like that I'd be the bear and not Benjy."

Tip O'Gorman stared with an odd expression at Billy Wingo. "You *have* changed," he remarked with conviction. "I wonder——"

"Give it a name," begged Billy, when Tip failed to complete the sentence.

Mr. O'Gorman shook his bullet head. "No, I got other fish to fry."

He got up heavily and began to pull on his overcoat.

When he was gone, Billy Wingo crossed the room unhurriedly and barred the door. He threw a quick glance at the blankets nailed across the windows ostensibly to keep out the drafts. All tight. No one could look in.

"All right, boys," he said in a conversational tone. "You can come out now."

The door of an inner room opened. Two men emerged. One was a long, lean citizen with a long, lean face barred by a heavy grizzled mustache. The other was shorter, of equally lean build, and considerably younger. The older man was Shotgun Shillman, the younger was Riley Tyler.

In Riley's hand was a thin block of paper. A pencil stuck up behind his ear.

"Did you get it all?" queried Billy, sitting down in his chair and hunching it close to the table.

"Most of it," Riley replied. "All the important part, especially where he tried to buy you up. Gee, you've got him now. Send him over the road any

time."

"But it's only Tip," said Billy, taking the block of paper from Riley and riffling through the scribbled leaves.

"Arresting him would sure throw a heap scare into the others," Riley grinned.

"And that is what I want to avoid," said Billy. "There's no use in scaring off the flock by downing one bird. We'll just file away Tip O'Gorman's remarks for future reference. We can afford to wait. Where's that Bible? I'll swear you boys in right away."

CHAPTER NINE

THE DISTRICT ATTORNEY

It was the next day that Arthur Rale, the district attorney, called on the new sheriff. He was a heavy-jowled, heavy-handed, heavy-bodied individual, with black hair, close-set eyes, and, what was curiously at variance with those heavy jowls, a long and pointed nose.

Billy Wingo was expecting the district attorney to pay him a visit. For Shotgun Shillman had been told that Tip O'Gorman, Rafe Tuckleton and Judge Driver had spent the morning closeted with that gentleman.

Billy Wingo was cleaning a Winchester when the district attorney knocked and entered.

"Si'down, Arthur," invited Bill, indicating a chair with the barrel of the rifle.

The district attorney returned the salutation gruffly. Billy smiled sweetly down at the rifle stock he was hand-rubbing. Mr. Rale stamped his feet,

hung up his hat and coat and sat down heavily in the chair. Resting both fists on his knees, he fixed Billy with a hard eye.

"What's this I hear?" he wished to hear.

"I dunno," said truthful William.

"I hear you've appointed Shillman and Tyler deputies," Rale said accusingly.

"Seems to me I *have* done something like that," admitted Billy.

"You've got to cancel their appointments."

"Got to?"

"Got to."

"I must be gettin' deaf," drawled Billy. "Seems like I heard you say got to."

"You heard me right," declared Rale, with a vicious snap of strong, white teeth. "You cancel those appointments and put in Johnson and Kenealy instead."

"Everybody seems to want those two fellers," said Billy, wagging a puzzled head. "I don't understand it."

The district attorney leaned forward. His broad, flat face was venomous in its expression.

"Look here," he said harshly, "you like Hazel Walton, don't you?"

Whang! In that confined space the crash of the gun was deafening. The district attorney, coughing in the smoke, picked up himself and his chair from the ground. He had fallen over backward at the shot, struck the back of his head and now his actions were purely mechanical.

"Dazed you like, didn't it?" Billy queried in a soft voice. "You did hit pretty hard. Luck is with you to-day. I'll bet if you went down to Crafty's, you'd bust the bank and Crafty's heart."

Rale did not take the palpable hint. He sat down again and looked uncertainly at Billy Wingo. He had courage, this district attorney, the species of courage, you understand, that to function properly must have a shade the better of the break, that bets always on a sure thing and never on an uncertainty.

Rale had been knocked off balance mentally and physically. He did the wrong thing.

"You tried to murder me," he blurted out.

Billy shook a solemn head. "You're mistaken. If I'd tried to murder you, I'd have done it. Accidents will happen, though, even to the most careful fellers. Yeah. You were speaking of the Waltons, Arthur. I didn't quite catch what you said."

He gazed expectantly at the district attorney. It seemed to the latter that the barrel of the rifle was in a line with the third button of his vest. Certainly the muzzle looked as large as a mine opening. Was the rifle cocked? Billy Wingo's large hand covered the breech. Billy moved the large hand a trifle. Yes, the rifle was cocked. The district attorney's eyes strayed downward. At Billy's feet was a spent shell.

"Look here," said Rale, "if that shot was an accident, why did you flip in a fresh cartridge?"

"How do you know I worked the lever?" demanded Billy.

"Because the spent shell's on the floor between your feet."

"You've been reading those detective stories again. Arthur. It would look mighty bad for me if you were to pass out in here to-night. You're a big man and a heavy man. And the ground is frozen harder than rock. Bet I'd have to

use a pick. I hope, Arthur, you're not thinking of doing anything to make me use a pick."

Billy had uttered these sinister words in a mild and plaintive tone. The expression of his countenance was even milder and more plaintive. The district attorney found it difficult to believe that he had heard aright. Yet he had heard the report of the rifle aright. There could be no mistake about that.

The district attorney sat rigidly erect. He cleared his throat. He wished his heart would stop pounding so hard. Odd, too, that it should seem to have moved out of its usual position to another that was already occupied by his windpipe. Breathing and speaking were rendered difficult. Quite so.

He cleared his throat again. "Wingo," he said, "are you threatening me?"

"Threatening you?" Billy said in a shocked tone. "Certainly not. Wouldn't think of such a thing."

The district attorney tried again. "Wingo, I don't know what to do with you. I——"

"Don't do anything," suggested Billy. "I'd feel better about it, too."

"Huh?"

"Yeah, I would. I've got a new job here, Arthur, and I guess it will keep me busy—busy enough, anyway. And how am I going to swing it and do justice to the taxpayers, if well-meaning fellers like you are alla time experimentin' with me?"

"Wingo," said the district attorney sternly, "stop this tomfoolery! Instantly! You have played the buffoon long enough."

"All right," smiled Billy. "I'll be good."

"That's better. Much better. Keep to that tone and we'll get along, we'll get along."

Again the district attorney cleared his throat.

"Lord, Lord," thought Billy Wingo, "what a foolish thing this man is!"

The district attorney picked up the thread of his discourse. "We can't have you upsetting our plans in any way, Wingo. We can't have it, and we won't have it. I order you to immediately cancel the appointments of Shillman and Tyler and appoint instead Johnson and Kenealy. Do you understand?"

"Yes," said Billy in a weary voice, "I understand. I understand perfectly. You can go now."

"I'll go when I have your answer."

"Your mistake. You're going now."

So saying, Billy arose, lowered the hammer of his rifle to the safety notch and laid the weapon on the table. Then he raised himself on tiptoe and stretched luxuriously. His arms came down slowly. He turned a surprised gaze upon the district attorney.

"Haven't you started yet?" he said briskly. "Come, come, get a-going."

Even as he spoke he leaped with cat-like agility upon the district attorney where he sat in his chair and wrenched the right arm of that surprised gentleman around behind his back. With his left hand, despite the struggles and protesting roars of the captive, he removed a six-shooter from a shoulder holster and a derringer from a vest pocket.

"You must be scared of some one," observed Billy Wingo, as the derringer followed the six-shooter to a place on the table. "Arise, pushing your stomach ahead of you, and depart in peace."

But the district attorney was averse to departing that way. "You will regret this outrage!" he bellowed, his ripe cheeks and the veins in his neck swollen with passion.

"So will you," said Billy, twisting the man's arm ever so slightly. "You are in a serious position. If you'd only realize it, and be reasonable, we'd all be happier. I don't want to break your arm—unless I have to. Observe, Mr. Man, how easily I could do it."

So saying, he pushed the district attorney's arm somewhat farther up his back. The district attorney groaned. Billy eased the pressure. The district attorney began to curse. Billy, boosting him with his knee, assisted him toward the door.

With his left hand Billy withdrew the bar from the staple, opened the door, swung his right foot and kicked the district attorney out into a snowdrift. After him Billy tossed his coat and cap. Then he closed the door and shoved the bar into place.

"And that's that," said Billy Wingo.

CHAPTER TEN

A SHORT HORSE

"You took your own time about coming," grunted Rafe Tuckleton.

Dan Slike crossed his knees and stared at Rafe and Skinny Shindle. "I always take my own time," said he, in a voice as blank and expressionless as his ice-blue eyes. "Why hurry?"

"Because you should have hurried," nagged Rafe. "Y'oughta come when I wrote you last summer. This Tom Walton has gone on living all fall, and here it is January and he ain't dead yet."

"That's tough," sympathized Mr. Slike and wagged a belying foot.

Skinny Shindle, looking somewhat worried, went to the door, opened it and looked out into the short hall. Satisfied that the breed cook was busy in the kitchen, he closed the door and returned to his chair.

"It's worse'n that. Tom ain't the only li'l job I want you to attend to. There's the sheriff, Billy Wingo."

"That will be extra."

"Extra?"

"You haven't any idea I'm gonna do two jobs for the price of one, have you?"

"Well——"

"Well, nothin'. I ain't in the business for my health, you can gamble on that. If you're looking for charity, you're roping at the wrong horse."

"No, no, nothing like that," Rafe hastened to say. "I'll do whatever's right and fair. You can trust me."

Dan Slike shook a slow head. An amused twinkle lightened those blank eyes. "Oh, yes," he said. "I'm almost sure I can trust you. Yeah. Almost."

"What do you mean?" blustered Rafe Tuckleton.

"Folks I talk to don't generally need any dictionary," said Slike.

"Huh," grunted Rafe, content to let it go at that. "Anyway, you'll be well paid."

"I didn't come alla way from the Jornada just to hear you say I'd be well paid. Your 'well paid' and my 'well paid' might be two different things. Sometimes you and I don't talk the same language."

Rafe Tuckleton considered a moment. "Five hundred dollars apiece for Tom and the sheriff," said he, looking at Slike from beneath lowered eyebrows.

"We'll bargain for 'em separately," said Slike. "One thousand for Tom, payable in advance."

"No," denied Rafe. "Too much."

"Aw right," assented Slike cheerfully. "I'll be pulling my freight for New Mexico to-morrow. What you gonna have for dinner?"

"Let's talk it over. One thousand dollars is a lot of money for a li'l job like rubbing out Tom Walton."

"If it's a li'l job, why don't you attend to it yourself?"

"Oh, I can't. Impossible. Why, man, consider my position."

"Sure, I understand. You'd rather live than have Tom Walton kill you. Don't know that I blame you, Rafe. You always were a sensible jasper."

Slike's eyes dwelt on Rafe's face with tolerant contempt. The red color of Rafe's leathery cheeks was not entirely due to the heat of the cannon-ball stove. No.

"I'm not a gunfighter," disclaimed Rafe quickly. "Never was. That's your job."

"And I am a gunfighter. Always was. And it's my job. And I intend to get my price for my job. One thousand in advance, or the deal's off."

"I'm not a rich man," protested Rafe. "I lack ready money. So does Mr. Shindle here. Say five hundred now and the rest in the spring."

"I know how rich you are," said Slike. "And I can make a fair guess how you and Mr. Shindle stand for ready money. You can raise the thousand without too much trouble, I guess. Anyhow, it goes."

"You drive a hard bargain."

"A man in my business can't afford to be squeamish." As Slike spoke his eyes narrowed.

"But——"

"No buts. You want Walton killed——"

"Sh-h! Not so loud," cautioned Skinny Shindle. "Removed is a better word than killed, anyway."

"Aw, hell," sneered Dan Slike, "you make me sick. I've got no use for a jigger that don't call a cow by its right name. I dunno the first thing about removing. But I'll kill anybody you say. I ain't a bit particular. Not a bit." Here Slike bent on Skinny Shindle the full measure of a most baleful regard.

The strangely squeamish Shindle strove manfully to stare down the other man, but dropped his eyes within the minute. This appeared to please Mr. Slike. He smiled crookedly and turned his attention to Tuckleton.

"Rafe," said he, "my time is money. I can't stand here higgle-hoggling with you from hell to breakfast. One thousand, or you get somebody else to do the job."

"I suppose I'll have to do as you say," Rafe grumbled. "And the same amount for the sheriff."

"Not-a-tall," denied Slike. "Not a-tall. Do you think I'm gonna rub out a sheriff for a thousand cases? You must have mush for a brain! Killing a rancher is a short hoss, but a sheriff is another breed of cat. Besides, he's got two deputies, to say nothing of the feelings of the county. Killing this sheriff for you means I gotta leave the county on the jump. Do you think I'm gonna run the risk of being lynched for a measly thousand dollars? If you do, take another think. Take two of 'em! Me, I'll take two thousand for your man."

"Two thousand dollars for simply shooting a sheriff?"

"Again lemme remark that if the business was as simple as you say it is, you'd do it yourself. Two thousand in advance."

"But that's three thousand in all."

"You're a wonder at arithmetic. I make three thousand too."

"But look here, Dan, we——"

"I'm looking," interrupted Slike, "and three thousand dollars is all I can see. You gotta expect to pay for your mistakes, Rafe. If you didn't want to have this sheriff hold office, what did you elect him for? You told me your political outfit was responsible."

"How could we tell he'd turn out this way? We took it for granted he'd do what the party wanted, and the first card out of the box he appoints his own deputies."

"Good men with a gun?"

"Both of 'em," Rafe nodded absently.

"Wingo's no slouch himself," Shindle supplied without thinking.

"And that's the kind of bunch you want me to go up against for a thousand dollars!" exclaimed Dan Slike. "You fellers sure have your nerve!"

Slike teetered his chair back on two legs and laughed loudly, but without cheer. Rafe and Skinny found themselves somewhat chilled by the sardonic merriment. They looked one upon the other. Slike caught the look and laughed anew.

"You're a fine pair," he said loudly, "a fine pair. Letting a two-by-four sheriff run you. Ha-ha, it's a joke!"

"You go slow, you hear!" directed Skinny Shindle.

Dan Slike's eyes slid round to survey Skinny. "Me go slow?" he drawled, "Who'll make me? You? Not you or Rafe either. Wanna know why? Because I'm the best man in the room, that's why. Wanna argue the matter?"

Apparently neither Skinny nor Rafe cared to argue. At least they made no audible reply to the challenge.

Dan Slike nodded a satisfied head. "Now that's settled, let's go back to business. About that three thousand—yes or no?"

Skinny looked at Rafe. Rafe looked at Skinny. Skinny shook his head. Rafe nodded his. Dan Slike, missing nothing of the byplay, smiled delightedly. His thin lips curled into a crooked sneer.

"There seems to be a difference of opinion," said Dan Slike. "Give it a name."

"Three thousand is too much," averred Skinny Shindle.

"You'll only have to pay half of it," said Rafe.

"But this payment in advance—I don't like it," objected Skinny Shindle.

Dan Slike's boots came down from the table. They came down with a certain amount of speed, yet curiously enough they made not the slightest noise as soles and heels struck the floor. Dan Slike's chair creaked as his body turned ever so slightly sidewise.

"Shindle," said he softly, "you ain't thinking I wouldn't keep my part of the bargain if I take your money, are you?"

"No, oh, no," Skinny reassured him hastily. "Of course you would."

"This being so," pursued Dan Slike, "what's the difference whether you pay me now or later?"

"Why, none," admitted Skinny, finding himself fairly cornered. "None whatever. I—we will pay you what you ask."

"Spoken like a li'l man," fleered Dan Slike, and switched his gaze to Tuckleton's face. "Second the motion, Rafe?"

"On one condition."

"Let's have it?"

"You finish both jobs within thirty days."

"No, not thirty days, old-timer, nor yet forty-five. Sixty."

"Thirty."

"Sixty days from to-night and the three thousand dollars, half gold, half bills, in my pocket by noon to-morrow."

"Oh, hell, all right!" Rafe cried, tossing up helpless hands. "Come around here to-morrow noon and get your money."

Dan Slike nodded. "Guess I'll be going, Rafe—No, nemmine dinner, I ain't hungry now."

CHAPTER ELEVEN

THE TRAPPERS

"It's the women make half the trouble in the world," mused young Riley Tyler, who had received the mitten from his girl of the period, the restaurant waitress, and was a misogynist in consequence.

"You're wrong," said Shotgun Shillman. "They make all of it."

"All?"

"All. And not only that—they make all the good, too. Yep, Riley, you can put down a bet there ain't a thing happens to a feller—good, bad or indifferent—that you won't find a woman at the bottom of it. A good man goes to hell or heaven—it depends on the woman."

"That's right, dead right," corroborated young Riley.

"Those fatal blondes!" grinned Shotgun; for the waitress was decidedly of that type.

"They're all deceivers," muttered Riley Tyler, reddening to his ear tips.

"Ain't it the truth!" said Shotgun Shillman. "They can lie to you with a straighter face than a government mule. Like that jail lady in the Bible who put the kybosh on a feller named Scissors by nailing his head to the kitchen floor with a railroad spike. Yeah, her. Hugging him she was ten minutes before using the hammer. Oh, that's their best bet; kiss you with one hand and cut your throat with the other."

"That's news," said Riley Tyler. "Where I come from the gent kisses with his mouth, and if he has to cut your throat he uses the butcher knife."

"Did that hasher do all those things?" Shotgun asked instantly.

Riley made believe not to hear. Shotgun chuckled.

"Billy's coming back," observed the latter, gazing through the window. "Where did he go?"

"Walton's, he said."

"I thought he liked Hazel Walton."

"He likes 'em all." Thus Riley, thinking of the scornful waitress who did not like him. "'Lo, Bill, remember to wipe your feet on the mat. Li'l paddies all cold?"

"She's a-thawing," replied Billy Wingo, kicking the snow from his boots. "But I need a large, long, hot drink alla same. Where is that bottle?"

When the bottle and the three glasses had been returned to their appointed place between the horse liniment and the spare handcuffs, Riley moved listlessly to the front window and drummed on the pane.

"Oh, the devil," Riley groaned. "Here's work for li'l boys. As if there wasn't enough to do in summer."

"Good thing to-day's a chinook," remarked Shillman, without interest.

Billy joined Riley at the window. "Looks like Simon Reelfoot. It's Simon's horse, anyway. It is Simon. I can see his long nose."

Riley squinted at the approaching man. "I wonder what he wants."

"I thought maybe I'd ask him when he comes in," said Billy.

"I would," observed Riley. "That'll show you're interested in your job. It'll please Simon, too. He'll think you've got his interests at heart. After that shall I kick him out, or will you let Shotgun bite him?"

For Simon Reelfoot was not well thought of by the more decent portion of the community. Men that put money out at high interest and are careless of their neighbors' property usually aren't. It was said of him that he still had the first nickel that he ever earned. Certainly he was not a generous person. Three women, at one time and another, had been unlucky enough to marry him. Each wife died within two years of her marriage—murdered by her husband. Not in such a way, however, that the law could take its proper course and hang Simon by the neck till he was dead. The murders were done in a perfectly legal manner and all above-board—overwork and undernourishment. The two in conjunction will kill anything that lives and breathes. So Simon, if not a murderer, was at least an accomplice before and after the fact. A cheerful creature, indeed. There were no children.

Something of all that Simon was and stood for passed through Riley Wingo's mind as he stood with Riley at the window.

"He always keeps his horses in good condition," said Billy.

"He does—the skunk!" acquiesced Riley.

"Stop calling a honest citizen names," directed Shotgun Shillman. "Mr. Reelfoot is an upright man. I don't believe he'd rob a child or steal the

pennies off a dead baby's eyes. I don't believe he would—if any one was looking."

Simon Reelfoot rode up, tied his horse on the lee of the building—he was always tender of his stock—and entered.

"Howdy," he said glumly. "Cold day."

"If you'd wear something besides that relic of the days of '61 you wouldn't find it such a cold day," observed the straightforward Shotgun.

At which allusion to his ratty old blue army overcoat Simon's upper lip lifted. It might almost be said that he snarled silently.

"Feller as poor as I am can't afford to buy buffalo coats," he declared in the grumbling rumble so oddly at variance with his build. For he was a little clean-shaven man, this Simon Reelfoot, with a hatchet face and the watery peering eyes of the habitual drunkard.

"Yeah," he grumbled, staring from one to another of the three officers with open disapproval. "I ain't got money to buy buffalo coats. I have to work to earn my living, I do. I ain't got time to sit on my hunkers around a hot stove come-day-go-day a-taking the county's money for doing nothin'."

"Which will be just about all from you, Reelfoot," Billy Wingo suggested sharply.

"Oh, you can't scare me," said Simon, shaking a lowering and dogged head. "I say what I think, and if folks don't like it they know what they can do."

"Of course, Reelfoot," pursued Billy, with his most pleasant smile, "folks naturally know what they can do. But you don't guess now it gives a feller any pleasure to squash every spider, caterpillar, hoptoad or snail he runs across. And— But I don't know that I ever saw any snails in this part of the county. Suppose now we hold it down to spiders, caterpillars and hoptoads. Yeah. Why kill 'em? Yeah again. Why put the kibosh on you, Mr. Reelfoot, just because you make me think of a hoptoad? You may be a bad old man. I

dunno that I care. But I don't like your company. Not a bit. You're a slimy old devil, and you never wash. Therefore let's hear what your business is so you can take it away with you in a hurry."

So saying Billy sat down, cocked his feet up on the table and regarded Reelfoot gravely. Shillman and Tyler stood before the fireplace, their legs spread, their hands in their pockets and their faces expressionless.

Simon Reelfoot's upper lip lifted in the same soundless snarl.

"I'll go when I please," he began, "and——"

"You're mistaken," contradicted Billy, taking out his watch and holding it open in the palm of his hand. "Not to give it too coarse a name, you'll go when I please. Yep. If you haven't begun to state your official business with the sheriff within forty-five seconds, out you go, Mr. Reelfoot, out you go."

"You fellers are paid to see that the law is obeyed," growled Simon Reelfoot. "You can't throw me out."

"'Round and 'round the mulberry bush,'" quoted Billy Wingo. "Reverse. Try the other way for a change. You're getting dizzy."

"You make me sick, you fellers. Talk! Talk! Talk! That's all you do. Talk all a time. All right, I will see if you're able to do anything besides talk. Two of my cows have been shot and there's two or three strangers baching it in that old shack of Cayler's on Mule Creek. Cows are worth thirty dollars per right now, and I want you to find out if them fellers beefed my cattle."

"Been over there yourself?"

"Sure I have. They wouldn't lemme get inside the door. Threw down on me. Bad actors, them two lads."

"I thought you said there were three," said Billy Wingo.

"Two or three," snappily.

"Suspensions don't count for much," said Billy. "You know that, Reelfoot. Have you any evidence against these men?"

"Sure I have," was the reply. "The bodies of my two cows and a plain track of blood and moccasins to within a mile of the cabin."

"Did the trail stop there—within a mile?"

"Feller had a horse tied. He packed on the beef and rode himself. I trailed the horse to the corral back of the cabin."

"Were you alone?"

"My friend Jack Faber was with me. He can back up everything I say."

"And you mean to tell me, Reelfoot, that you trailed this beef to the Cayler cabin and then allowed the men inside to get the drop on you and run you off?"

"They threw down first," Reelfoot insisted sullenly. "They got the drop. What could we do?"

"I don't know," replied Billy Wingo dryly. "I wasn't there."

"Perhaps," put in the irrepressible Riley Tyler, "the parties of the second part forgot their guns."

"A gun ain't much good when the other feller's got the drop," Simon said sourly.

"The trick is," observed Billy, his manner that of one stating a newly discovered fact, "the trick is, Reelfoot, to get the drop first."

Reelfoot gaped at him. Then his jaws closed with a click. But they reopened immediately in violent speech. "What about my cows?" he squalled. "What you gonna do about them cattle?"

"We can't unscramble any eggs for you, Reelfoot, not being magicians, but maybe we can dump the rustlers for you. How will you have them—"

shot or half-shot? Now, son, you shut up, close your trap, swallow your tongue or something. Riley Tyler is the only one allowed to swear around me. Where do you want to cool off—in here or out in a snowdrift?"

Simon Reelfoot subsided into a chair. He produced a plug of tobacco from one capacious bootleg, a clasp-knife from the other, snicked open the claspknife and haggled off a generous chew.

Billy nodded approvingly. "That's better. Shotgun and I will be with you in two minutes."

Simon Reelfoot glared out of the window. Billy Wingo, whose eyes, for all their casualness, had not strayed from Simon for a minute, had not overlooked the pucker of worry that had appeared between Simon's chin and straggly eyebrows at the mention of the two minutes. With folk like Simon it is always well to proceed with caution, to learn the real reason, not the apparent one at the bottom of every move. Quite so. Why was Simon worried?

Simon's gaze returned from the world without. It skimmed across Billy Wingo, dodged around both Shillman and Tyler, and dropped to the floor, where it fastened upon and clung to the nobbly tips of the Reelfoot boots.

"I don't guess there's any tearing rush," he mumbled.

Strangely enough or rather naturally enough, Billy experienced no surprise at the remark. "No hurry, huh?" he observed. "A minute ago you were in a hot sweat to have us do something right away quick. And now you ain't. What has changed you, Mr. Reelfoot? I ask to know."

"I want the job done right," was the lame explanation. "If you hustle off too sudden you might forget something."

"What do you think we're liable to forget?" queried Billy.

"How do I know what? But I know it don't pay to go off half-cocked."

Again Simon Reelfoot's eyes strayed to the window. When the eyes swiveled back to meet those of Billy Wingo, the pucker of worry had been wiped from Reelfoot's eyebrows.

"No," he resumed, in a tone that was unmistakably relieved, "it don't pay to go off half-cocked."

"No, it don't," concurred Billy, wondering greatly, both at the change in Simon's expression and the relief in his tone. Why? He desired to know why. And he made up his mind to know why. For among his other vices, Simon was friendly with Rafe Tuckleton and his precious gang.

Billy Wingo, shoving cartridges through the loading-gate of a Winchester, slouched casually past the window through which Simon was looking. He perceived, kicking his way through the snow, Mr. Tom Driver, the local Justice of the Peace. There was no one else in sight.

"Lordy, how the snow dazzles your eyes," remarked Billy, stepping back and squinting. "Is that Tom Driver coming here?"

"Where?" inquired Simon Reelfoot, and looked through the wrong window. Yet when Simon had glanced through the other window a moment before, he must have seen the judge. Hum-m! Billy Wingo continued thoughtfully to shove cartridges through the loading-gate.

Entered the judge. "Good morning, gentlemen!" was the judicial greeting. The judicial eyes absorbed the sheriff's preparations. "You're not going anywhere, are you, Bill?" he inquired, hooking a chair up to the table and sitting down after he had hung up his hat and coat behind the door.

"Reelfoot's had two cows shot," explained Billy. "He thinks he knows who did it. Shotgun and I are going to see about it."

"Only two cows," said the judge. "Then your presence isn't absolutely necessary. You can send Riley Tyler instead. I have a little business to go over with you, Bill—a county matter. And——"

"Is it important?"

"I think it is."

"All right. I'll stay. Riley, I guess you'd better go with Shotgun."

It was pure chance that enabled Billy to catch the gleam of satisfaction in Reelfoot's eyes. He had just happened to be looking at the man. Satisfaction, yes. Why? Why was Simon glad that he, Billy Wingo, was not going with him on the trail of the beef-killers?

When Shotgun and Riley were gone away with Reelfoot, Billy looked across at the judge and nodded.

"Fly at it," said he.

Without haste the judge fished some papers from his pocket and opened them on the table. He did it awkwardly. His fingers might have been all thumbs. He seemed to have difficulty in finding the paper he wanted.

Billy Wingo, his eyes drowsy-looking, watched silently. "What's it all about?" he asked curiously.

"Jake Kilroe," replied Judge Driver. "He's been selling liquor to the Indians."

"He always has."

"I know he has. And it's a disgrace to the community. It's got to stop."

Billy stared at the judge even more curiously. For this high and moral tone he did not understand at all. It was not like the judge. It was not in the least like the judge. No, not at all.

"Stopping liquor-selling to the war-whoops is none of my job," pointed out Billy Wingo, "the man you want to see is Henry Black, the United States Marshal at Hillsville. Besides, what have you got to do with it, anyway? You're not a Federal judge?"

"But the Federal authorities have ordered me to coöperate with them," the judge said smoothly.

"Which one asked you?" probed Billy Wingo.

"The second deputy."

"Slim Chalmers, huh? When did you see Slim Chalmers?"

"Day before yesterday."

"Here?"

"No, over at Hillsville."

"I didn't know you'd been out of town," Billy Wingo burrowed along.

"Just got back this morning."

"No trouble getting through?"

"Not a bit. This chinook has thawed the drifts."

"Did you go by stage?"

"No, I rode."

The judge was answering these apparently most unnecessary questions without a quiver or trace of annoyance. Billy made another cast.

"Did you ride your gray horse?"

"No, the black."

"I hope you wore a coat." The gravity of Billy's tone could not have been bettered.

"An overcoat?" smiled Judge Driver. "Naturally."

"That's good, that's good. I like to see you looking after your health thisaway. You'd be a valuable citizen to lose, Judge. I dunno what we'd do without you. I don't indeed."

What had gone before had been bad enough in all conscience. But this was even worse. Yet the judge took no offense. He merely smiled blandly upon Billy Wingo and proffered the latter gentleman his cigar case. Billy declined with thanks. Whereupon the judge drew a long and very black cigar from the case and bit off the end.

"It's funny I didn't meet you in Hillsville," mused Billy, turning his head as if to look at the stove but in reality looking at a mirror hanging on the wall beside the stove that showed on its face an excellent reflection of Judge Driver's features.

As he expected, the judge gave him a quick sharp glance, but what he had not expected was the demoniac expression of hatred that flashed across the judge's face as summer lightning flashes across the face of a dark cloud.

Billy Wingo turned a slow head. His eyes met those of the judge squarely. Gone was the expression of hatred. In its place was one of courteous regret,—regret that he had been so unfortunate as to miss his friend Sheriff Wingo in Hillsville.

Billy nodded indifferently. "That's all right. I wasn't in Hillsville. My mistake. Sorry."

The judge stared in frowning puzzlement.

It was at this juncture that the door opened and Skinny Shindle entered. He greeted the two men surlily and laid a note on the desk in front of Billy.

"I stopped at Walton's on my way back from Hillsville," said Shindle, "and Tom's niece gimme this. She said I was to be sure and give it to you soon as I could. Seemed worried like, I should say."

"When did she give you the note," Billy inquired casually.

"When I stopped there for a drink. I was only there about five minutes."

"When was that?"

"Oh, round half-past two."

"And you came straight here?"

"Sure I did. You don't think I was gonna stop anywhere a day like this, do you?"

Without another word Shindle pulled his fur cap forward, turned and walked out. He closed the door with a slam that shook the building. Billy Wingo opened the note.

DEAR BILLY:

Please come out here as soon as you can. Come to-night without fail. I need you.

It was signed with Hazel Walton's full name.

Billy folded the note carefully. He did not look directly at the judge. He looked at him by way of the mirror. He was not unduly astonished to perceive that the judge was watching him like the proverbial hawk.

Billy unfolded the note, read it again, then refolded it. He started to put it into a vest pocket, though better of it, balled it into a crumple and tossed it into the cardboard box that served for a waste-paper basket.

He got to his feet, pulled out his watch and glanced at the time.

"Four-thirty-two," he muttered, apparently oblivious to the judge's presence. "I'll have to hurry."

He crossed the room to an open door giving into one of the inner rooms. Passing through the doorway, he pushed the door partly to behind him. Turning sharply to the left he sat down on a cot that creaked. The foot of the cot butted against the jamb on which the door was hung. Billy threw himself sidewise and applied his eye to the crack between the door and the jamb. His feet at the end of the cot were busy the while, gently kicking the

wall and iron-work of the cot. Any one hearing the noise would have been reasonably assured that Billy Wingo was employed in God knows what, at a distance from the door of at least a cot length. What he might be doing did not matter. The point was to give the judge the impression that he was not close to the doorway.

Evidently the judge was thus impressed. Billy saw him lean forward, pluck the wadded-up note from the wastebasket and dive noiselessly across the room to the stove. Without a sound the judge opened the stove door and dropped the letter on the top of the blazing wood. Closing the door as noiselessly as he had opened it, the judge returned to his chair, sat down and crossed one knee over the other. His expression was that of the cat that has just eaten the canary. Billy could almost see him licking his demure chops.

Billy returned to the office. He was carrying a box of cartridges and an extra six-shooter. His regular six-shooter, with its holster and belt, hung on the wall behind the table.

"About Jake Kilroe now," said Billy, sitting down at the table and snicking open the box of cartridges, "about Jake Kilroe—what does the marshal want me to do?"

"Get evidence against him," was the smooth reply. "Enough to convict him, of course."

"Of course. Not enough to convict him would help us very little. Yeah. Any suggestions, Judge?"

"What kind of suggestions?" the judge inquired with just a trace of impatience.

"How I'm to start in—what do you guess? I don't know much about Jake, y'understand. For instance, where does Jake get his liquor in the first place?"

"How should I know?"

"I dunno. Thought maybe you might. Judges are supposed to know a lot. But if you don't, you don't, that's all."

Judge Driver sat up a trifle straighter in his chair. He looked at Billy with some suspicion. It could not be humanly possible that Billy was joking with him, yet——

"I guess I'd better start in this afternoon," continued Billy briskly. "There's nothing like a quick start. And the marshal would like it too. Suppose you and I, Judge, go down to Jake's and see what we can see."

"I thought you were going somewhere else," demurred Judge Driver.

"What makes you think so?"

"That note— You said you had to go some place in a hurry."

"Did I? Well, I am. I'm going down to Jake Kilroe's, and you're going with me, huh?"

"Look here," said the judge, the light of desperation in his eyes, "you don't have to go down to Kilroe's now. That can wait. The marshal ain't in such a fright of a hurry as all that. Go on and do whatever you have to do. I didn't mean—I don't want this to interfere with your personal business, and I'm sure the marshal wouldn't. He'll understand. I know he will. You go on and do whatever you have to do, Bill."

"I will," murmured Billy. "I will. Where are you going, Judge?"

"Oh, I guess I'll be drifting along, Bill," smiled the judge, half-turning on his way to the door. "You don't need me any longer."

"Yes, I do too," Billy declared fretfully. "You come on back and set down. I've got something here I want to read you."

Involuntarily the judge's eyes strayed to the wastebasket. He came back and sat down.

On the table between the extra six-shooter that Billy had finished loading and the box of cartridges was a small leather-bound book. Billy picked up this book and turned to the index. He ran his finger down the page till he came to that which he sought.

"'Morality, rules of, where consonant with those of law,'" he read aloud, and turned back to page twenty-eight.

Judge Driver stared at Billy Wingo in some amazement. What on earth was the sheriff driving at. Rules of morality? Well!

"This book," said Billy, glancing across at the judge, "is a copy of the grounds and maxims of the English laws, by William Noy, of Lincoln's Inn, Attorney General, and a member of the Privy Council to King Charles the First."

"What in God's name," demanded the now thoroughly amazed judge, "has that to do with me?"

"I want to read you something," persisted Billy. "You know that our laws were practically taken from the English laws. Our grounds and maxims are the same as theirs. What's good law with them is good law with us, and *vice versa*. You're a judge. You know that as well as I do. Don't you?"

The judge nodded. "I suppose so."

"It says here," resumed Billy Wingo, "in section thirty-three under Moral Rules, that the 'law favoreth works of charity, right and truth, and abhorreth fraud, covin, and incertainties which obscure the truth; contrarities, delays, unnecessary circumstances, and such like. Deceit and fraud should be remedied on all occasions.' How about it? Don't you agree with Mr. William Noy?"

"He's right; but there's nothing new about it. I knew it already."

"Then you'll understand me, perhaps, when I tell you that I intend to get to the bottom of everything that has gone on here this afternoon."

"What do you mean?"

"I mean that there has been more 'fraud, covin, and incertainties which obscure the truth' scattered round in this room to-day than by right there should have been. I don't mind a little. Human beings are odd numbers, anyway. You've got to take all that into consideration."

"I don't understand you."

"Then, too," pursued the unheeding Billy, "'contrarities, delays, unnecessary circumstances, and such like,' I despise. They give me a bad taste in my mouth. Don't they you?"

"They would any one," acquiesced the judge, and made to rise. "Well, now you've read me what you wanted to, I won't keep you any longer. I know you must be in a hurry to get away. We'll let the Kilroe business wait over a few days."

"Sit down, Judge," Billy Wingo murmured softly, his hand resting as if by chance on the butt of the six-shooter lying on the table. "Sit down, do."

The judge hesitated. Then with the well-known hollow laugh, he sat down. He looked at Billy Wingo. The latter looked at him in silence for a space.

"Judge," he remarked suddenly, "deceit and fraud should remedied on all occasions. Tell me why you put that letter in the fire?"

The judge continued to sit perfectly still. It might be said that he was frozen to his chair. Then slowly, almost imperceptibly, his right hand began to steal upward under the tail of his coat.

"I wouldn't, Judge," continued Billy, "I just wouldn't if I were you."

The judge's hand hung straight by his side. "You're getting in pretty deep, Bill," he observed with a cold smile.

"But not as deep as you are already," said Billy Wingo, with an even colder smile. "You haven't answered my question yet—about the burning of

the letter. Why, Judge, why?"

"Give it any name you like," replied the jurist carelessly. "I don't feel like answering any more questions."

"Yet a li'l while back you didn't mind answering any questions I felt like asking. Was it to gain time, Judge—to gain time till Skinny Shindle came in and did his part with the note from Miss Walton? Was it, Judge, was it? Dumb, huh? Aw right, perhaps you'd rather tell me why Simon Reelfoot acted about the same way, except Simon was special careful to make us mad besides—mad when it wasn't necessary to make us mad if Simon was playing a straight game, but necessary enough if Simon wanted to gain more time. Yeah, Simon sure beat around the bush time and again before he came to the point. I expect you were delayed getting here, huh, Judge? Simon kept looking out of the window alla time, I remember."

Billy Wingo felt silent and contemplated the judge. The latter stared back, his face impassive.

"Be advised," said the judge suddenly. "You can't buck us alone. You should know that."

"I should—maybe," returned Billy Wingo. "But I feel like taking a gamble with you. So instead of going to Kilroe's, we'll do what the letter said and go out to Walton's to-day."

The judge lifted his eyebrows. "We?"

"We," confirmed Billy calmly. "You're going with me."

"No," said the judge.

"Yes," insisted Billy Wingo. "And what's more, I'll lend you a suit of my clothes and my white hat and my red-and-white pinto. Which there ain't another paint pony colored like mine in this county; and just to make it a fair deal, I'll wear your buffalo coat and your fur cap, and I'll ride one of your horses,—that long-legged gray, I guess, will be all right."

The judge's face wore a curiously mottled pallor that gave it the hue of a dead fish's belly. "Are you insane?" he gasped.

"Not me," denied Billy Wingo. "It's like I said. I'm gambling with you. I guess we understand each other, Judge. Ain't it luck, you and I being about of a size? Dressed up in my clothes with that white hat and all, you'd have to excuse anybody for mistaking you for me. Ca-a-areful, Judge, careful. Don't do anything we would be sorry for. And don't take it so to heart; perhaps he'll miss you."

For a space he considered the judge, then he said:

"I guess we're ready for Riley, now."

Despite his professional calm the judge almost bounced out of his chair. "Riley! Where——"

"In the kitchen with the door open," explained Billy. "He didn't go with Shotgun and Reelfoot a-tall—that is, not far. Only round the house to the back door. Reelfoot wasn't completely successful in separating me from my deputies. You didn't catch me whispering in Riley's ear while he was getting ready, did you? I thought maybe you wouldn't. Your back was turned. Moral: Never turn your back when there's a mirror behind you. Riley, you'd better come in now."

Whereupon there was a noise of bootheels, and Riley entered and smiled cheerfully upon the discomfited judge.

"Howdy, your honor," said Riley Tyler.

The judge made no acknowledgment of the greeting. He continued to gaze before him with a set and stony face.

"Riley," said Billy Wingo, without, however, removing his eyes from the judge, "I guess we'll need another witness. I wonder if you could get hold of Guerilla Melody."

Riley nodded and went out.

"And that's that," said Billy Wingo, smiling.

The judge's hands gripped the arms of the chair. "You know that the man Melody is an enemy of mine," he said in a shaken voice.

"I know that he is an honest man," returned Billy Wingo.

"I won't go," the judge declared feebly.

"You said that before," said Billy Wingo, in no wise moved. "You'll go all right. Yes, indeedy. Do you wanna know why? I'll tell you. You see, Judge, I know what I'm up against. I know that the only barrier that stands between me and the graveyard is the lead in this gun. I like life. I enjoy it. Besides, I'm too young to die and too sinful and all that. Therefore it's my business to see I ain't cut off in the flower of my youth, *et cetera*. You're considerably older than me, Judge, considerably. The gray is in your hair like frost on a punkin, and the devil has drawn two mighty mean lines down from your nose to the corners of your mouth, and the crows have messed up your eye-corners too, for that matter, and may the Lord have mercy on your soul, you miserable sinner, because I won't—if you don't do exactly what I tell you to do. It's my life or yours, and it's not gonna be mine."

"Baby talk," said the judge, but there was no conviction in his tone.

"You think so? Aw right, let it go at that. Here's the rest of the baby talk: The first false move you start to make between now and the time I'm through with you, you get it."

"You wouldn't dare!"

"Wouldn't I? Call me and see. No trouble to show goods."

The judge hesitated. It was obvious that he was of two minds. He chose the safer course—for the present.

"There is a law in this country—" he began.

Billy Wingo leaned forward, his chin jutting out. His eyes were unpleasantly cold. They matched his voice when he spoke.

"Don't talk to me of the law," he said. "It's you and your friends that have made the law in Crocker County a spectacle for decent men. Law! You've dragged the statutes in the mud till you can't tell 'em apart from the turnips underground. Law! You've prostituted your office for a little filthy money here, there and everywhere, till it's a wonder you're able to live with yourself. How do you do it? Don't you ever get tired of your own stink, you polecat?"

This was too much. The judge was, after all, a human being. He had his pride, such as it was, and courage of a kind. He threw himself sidewise, and at the same time his right hand flipped up under his coat tail, flipped up and flipped out.

There was a flash and a roar and a spirtle of smoke. The judge's six-shooter was wrenched from his fingers and sent spinning across the room. The judge remained upon the floor. There was no feeling in his right hand. But his right arm felt as if it had been struck with a spike-maul.

The acrid smoke rose slowly toward the ceiling.

"You can get up, Judge," Billy Wingo said calmly.

The judge rose slowly and collapsed into the chair he had so abruptly vacated. He held his right hand before his face and waggled it. Stupidly he looked at it. The flesh of the trigger finger was slightly torn. It bled a little.

"The bullet didn't touch you," said Billy. "The trigger guard did that when the gun was twiddled out of your hand. The lead hit the frame in front of the cylinder. Wait, I'll show you." He crossed the room to where the judge's six-shooter lay, picked it up and brought it to the judge for his inspection.

"See how I trust you," said Billy sardonically, holding up the judge's six-shooter within ten inches of the judge's eyes. "You could almost grab this gun out of my hand if you felt like it. I really dunno but what I hope you'll feel like it."

But the judge did not feel like it. He perceived without difficulty the gray splotch on the frame of the six-shooter that marked the spot where Billy Wingo's lead had struck, and he felt absolutely no inclination to gamble further with fate. Not he. No!

Billy tucked the judge's six-shooter into his waistband and ran a hand over and under the jurist's outer clothing.

"You might be carrying a derringer or something," he murmured in apology.

But he found no other weapon, and he returned to his seat to await the arrival of Riley Tyler and Guerilla Melody.

CHAPTER TWELVE

THE TRAP

Guerilla Melody regarded the judge without expression. "Huh," he grunted. "Huh."

The judge did not look at him. He had cheated Melody in a cattle deal the previous year and had since found himself unable to look Melody in the eye. Some villains are like that. They are usually of the cheaper variety.

"It's good and dark now," observed Billy Wingo, "and the moon will rise in another hour. We don't want it to be too high when we strike the Walton ranch. Why the smile, Judge? Oh, I know. You think we'll be seen by one of your friends when we're leaving, and he'll get to the ranch ahead of us. I doubt it, Judge. You know we ain't going by way of Main Street. No, we're going out back of the corral. The cottonwoods grow right up close to the back of the corral, and if we lead our horses and hug the posts, there ain't much chance of anybody seeing us. No. Come along, Judge, lessee how my clothes fit you."

Within the quarter-hour they rode out of a belt of cottonwoods into the Hillsville trail, three wooden-faced men and the wretched judge. The latter rode in front, with head bowed on hunched shoulders.

Where the snow permitted they trotted, but most of the time they were forced to walk their horses. Four times before they reached the draw leading to the Walton ranch they floundered through drifts that powdered the horse's shoulders.

At the mouth of the draw the trail to Walton's was clotted with the tracks of a few ridden horses.

"I guess," remarked Billy Wingo, "that Skinny Shindle came this way all right when he brought that note from Walton's."

The judge shivered, but not with cold. He was very miserable and looked it.

The moon lifted an inquiring face over the rim of the neighboring ridge and threw their shadows, thin and long, across the green-white snow.

"We turn here toward Walton's, Judge," suggested Billy, when the jurist continued to ride straight ahead.

The judge pulled up.

"I'm not going to Walton's!" he cried aloud. "I'm not going, I tell you! You can't make me! You can't."

His voice broke at the last word. He threw his arms aloft in a wild gesture. The features of the face he turned toward Billy were contorted with emotion. He gibbered and mowed at them in the moon-light. He looked like an inmate of Bedlam. He was certainly in a bad way, was Judge Driver.

Suddenly he lost his head. He clapped heels to his horse's flanks in an effort to escape. But both Billy Wingo and Riley Tyler had been waiting for precisely such a move ever since leaving Golden Bar. Two ropes shot out simultaneously. One fastened on the red-and-white pinto's neck, the other settled round the Judge's shoulders. The paint pony stopped abruptly. The judge flew backward from the saddle and hit the snow on the back of his neck.

The three friends dismounted and gathered around the judge. Riley loosened his rope. The judge lay still and gasped and crowed. The wind had been considerably knocked out of him. When he sat up, he was promptly sick, very sick. The paroxysm shook him from head to heels.

It was half an hour before he was able to stand on his feet without support. The three boosted him into the saddle, mounted their own horses and proceeded along the draw.

Whenever the judge made as if to check his horse, which he did more than once, Billy Wingo would crowd his horse forward and kick the pinto. Their progress may be said to have been fairly regular.

A mile from the ranch house they climbed the shelving side of the draw and rode across the flat to where a straggling growth of pine and spruce made a black, pear-shaped blot along the smooth white slope of a saddle-backed hill. The tail of this evergreen plantation ran out across the flat from the base of the hill almost to the edge of the draw they had just quitted. A tall spruce, towering high above his fellows, formed the tip, as it were, of the stem of the pear.

Beyond and below this spruce, where the draw met lower ground and lost its identity as a draw, was the Walton ranch house. On the flat the evergreens barred the four riders from the eyes of any one watching from the house.

The four men reached the trees, rode in among them. Three of them dismounted and tied their horses. The fourth remained in the saddle. Said Billy Wingo to the fourth:

"Get down."

The judge got down. Swiftly his hands were tied behind his back, and his eyes were thoroughly blindfolded with his own silk handkerchief.

"Now, boys," said Billy, lowering his voice, "I guess we know what to do. You, Judge, won't have to say anything, but if anybody else thinks he has to say anything, he's got to do it in a whisper, and a skinny whisper at that. Let's go."

As Billy uttered the last low words Guerilla Melody seized the judge's right arm and forced him into motion. With Riley Tyler leading the judge's mount, the three men scuffled in among the trees on the back trail.

Billy Wingo stood silently in his tracks until the trio were out of earshot, then he padded to the spruce and halted behind it. He removed his overcoat. From a voluminous pocket he took what appeared to be a roll of cloth. He

shook out the roll and discovered the common or garden variety of cotton nightshirt, size fifty.

"If whoever's in the house can pick me out from the snow after I'm wearing this, I'll give his eyes credit," he muttered, pulling on the garment in question over his head.

He buttoned the nightshirt with meticulous care, fished a washed flour sack from a hip pocket and pulled it over his head. A minute or two later he was joined by Riley Tyler.

"If I didn't know it was you," whispered Riley in a delighted hiss, "I'd be scared out of a year's growth. Those eyeholes are plumb gashly."

"I expect," said Billy grimly. "Get on your outfit. I guess you ain't needed, but we can't afford to take any chances."

Riley Tyler threw off his blanket capote, dragged from an inner pocket a disguise similar to the sheriff's and hurriedly put it on.

"Don't come till you see the signal," cautioned Billy, "and if you hear any shots before I give the signal, stay right here where the cover's good and drop anybody you see running away. Y'understand?"

"You bet."

"Judge swallow it all right?"

"Down to the pole. He thinks we're all three with him."

Billy nodded. "Better move along the draw about twenty yards," was his parting order. "You can't see the side the cedars are on from here."

Boldly, without any attempt at concealment, he walked straight to the edge of the draw. Below him barely fifty yards distant were the snow-covered buildings that were the Walton ranch house, the bunk house and the blacksmith shop. He could not see the corrals. They lay beyond the crowding cottonwoods growing beside the little stream that supplied the ranch house with water.

He half slid, half walked down the side of the draw and headed straight for the ranch house. He could not see lamplight shining through any of the windows. But there was a faint glow at the farthest of the windows in the side of the house. This window he knew was one of three lighting the front room, a room that ran clear across the house. This side of the house was clear of young trees and bushes. But on the other side of the house, the north side, Hazel had planted young cedars to serve as a windbreak. These cedars grew within a yard of the house.

Without any fear of being discovered, so confident was he that it would be impossible to see him against the white background, he approached the blacksmith shop, slid between it and the empty bunk house and came to the right angle end of the kitchen. His gun was out, be it known, but he held it behind his back. He wanted no touch of blackness to mar the hue of his costume.

At the corner of the kitchen he dropped on his knees and one hand. Here behind the windbreak the snow was no more than two or three inches deep, and he crawled along the side of the house toward the faintly glowing window that was his goal, at walking speed.

Crouched beneath the window he laid his ear close to the window sill and listened. For a space he heard nothing, then feet shuffled across the floor and there was the "chuck" of a log being thrown on the fire. Then the shuffle of feet again.

Silence.

Inch by inch Billy raised a slow head above the window sill. When his eyes were level with the lower crosspiece of the sash, he paused. For a long time he could see nothing within the room but the fire in the ruddy jaws of the fireplace with its attendant pile of logs, and a big chair over which had been thrown a buffalo robe. Then after a time he saw, beyond the chair, the boot soles of a man lying on the floor. The body of the man lay in the shadow cast by the big chair.

There was something about those boot soles that told Billy that the man was dead.

"I figured it would be this way," Billy told himself. "I didn't see how else it could be. Damn their souls! They don't stop at anything!"

He continued to stare unblinkingly into the room and after a time he made out the dim lines of another man's figure sitting on the table beside one of the front windows. The head of this other man was turned away from Billy. He was watching the draw through the front window. But there was no life in the draw—yet.

Billy waited. He continued to wait. His feet began to get cold. They gradually grew numb. The hand that held the six-shooter began to have a fellow feeling, or lack of it rather, with the feet. He changed hands and stuffed the chilled hand under his nightshirt into his armpit. A cramp seized his left knee. He straightened it gingerly and ironed out the cramp with the back of his gun hand.

The cold crept up both legs. When it reached his middle a cramp fell hammer-and-tongs upon his right knee, calf and sole of his foot. He straightened that leg and dealt with it like a brother.

S-s-suschoop! A section of snow several yards square slid off the roof and avalanched upon him. At the sound the figure at the window turned as if shot. Billy, by a supreme effort of will, stifled the impulse to dodge and held his body motionless. He was covered with snow. Snow was down the back of his neck as well as on the window sill in front of his mouth. To all intents and purposes and to any eye he was a pile of snow fallen from the roof.

Swiftly the figure on the table walked across the room to Billy's window and looked out. Billy remained with considerable less movement than the proverbial mouse. The snow, while it covered his head, did not completely conceal his forehead and eyes. But Billy reckoned on the reflection of the firelight on the window-pane to blind somewhat the man within. For a few seconds the man stood looking out the window over Billy's head. The pile of snow he gave but the most passing of glances.

But to the frozen nucleus of the snow pile it seemed that the few seconds were hours and that the snow pile was subjected to the most searching

scrutiny.

The man returned to his post on the table by the front window, and Billy breathed again. He had been unable to distinguish the man's features. The light from the fire was not strong enough.

After another century of waiting Billy perceived that the fire was again burning low. There was a small spurt of sparks as the remnant of the log fell apart. The man slipped from the table and strode across the room to the pile of logs and sticks beside the fireplace.

This was the moment for which Billy Wingo had been waiting. He scrambled on hands and knees to the front corner of the ranch house. Whipping a box of matches from a hip pocket, he lit one in a cupped hand.

He let the match burn his fingers before flipping it down. He stood at gaze, straining his eyes down the draw toward the Hillsville trail. Even as he looked a dark object detached itself from some bushes several hundred yards distant and moved toward the house.

Billy returned to his post at the window. Slowly he raised his head to the level of the lower crosspiece of the sash. When his eyes again became accustomed to the darkness of the room he saw that the man was no longer near the fireplace. He was standing at the front window, staring down the trail.

On account of the soft snow Billy did not hear the approaching horse until it had almost reached the ranch house door. When the horse stopped the man inside the ranch house moved quietly to the door and stood at one side of it. His hand moved to his leg and came away.

The rider dismounted. Billy heard him rattle the latch of the door.

"Don't shoot!" he heard him say in an agonized whisper. "Don't shoot, for Gawd's sake!"

Billy, watching at the window, saw the man in the room fling open the door. For an instant the tall and hatless form of Judge Driver showed black

against the expanse of snow framed in the doorway. Again came the plea for mercy—a whisper no longer, but a wild cry of "Don't shoot! Don't shoot! It's me! Driver!" as the judge, realizing only too well that any such outcry was tantamount to a confession of guilt, plunged into the room. Obviously his purpose was to escape the fire of the avenging rifles that he had every reason to believe were somewhere in the brush along the draw. He was acting precisely as Billy had reckoned he would act, and there was not the slightest danger of Billy or any of his men shooting him. But a very real danger lay behind the ranch house door. The judge's only chance lay in convincing the man behind the door in time.

He convinced him. The man yanked him roughly into the room and slammed the door shut.

"Thank Gawd! Thank Gawd!" babbled the judge, sinking back against the door, "I thought you'd shoot me!"

"I damn near did," remarked the man, whose voice Billy now recognized as that of a late arrival in town, named Slike. "If you hadn't jerked your hat off so's I could see your face, I would have. When will Wingo get here, and didja get him to come by himself all right? Huh? Why don't you answer? Whatsa matter? Isn't he coming or what? By Gawd, *you're wearing his clothes!* Where is he?"

"He's here!" gurgled the judge.

"Where?" Slike's voice was a terrible snarl.

"Here—up on the flat."

Slike promptly seized the judge by the throat. "Then you led him here. What are you trying to do—double-cross me?"

"No, no!" gulped the judge, pulling at the other's wrists. "I couldn't help it! He forced me to come!"

"Then you did lead him here, damn your soul! You white-livered cur, do you think I'm gonna hang on your account? What did you tell him? Answer

me, damn you!"

To the accompaniment of a string of most ferocious oaths, Slike shook the judge as the terrier shakes the rat. The judge fought back as best he could. But he was no match for this man of violence. Tiring at last, Slike flung him on the floor and kicked him.

"I'd oughta stomp you to death!" he squalled. "What did you tell him?"

"Nothing! Nothing!" cried the judge. "He must have guessed it!"

Dan Slike laughed. It was a laugh to make you flinch away. The hair at the base of Billy Wingo's neck lifted like the hackles of a fighting dog.

"Guessed it!" yelled Slike. "Guessed it! Aw right, let it go at that. How far away is he?"

But the judge had his cue by now. "He's two or three miles back," he said faintly. "If you start now you can get away."

"You know damn well there's too much snow," snapped Slike. "How many's he got with him?"

"One—two."

Slike kicked the judge in the short ribs. "How many? Tell the truth!"

"Tut-two."

"Three in all, huh? and you and me are two—say one man and a half, anyway. Two to one call it. What's fairer than that, I'd like to know? We'll finish it out in the smoke right now."

"What?" There was considerably more than pained incredulity in the judge's tone.

"We'll shoot it out with 'em here, I said. I ain't kicked all the fighting blood out of you, have I? If I have I can soon kick it in again. Here, come alive, you lousy pup! Get the gun off that feller I downed. It's on his leg yet.

His Winchester is over there in the corner. It's loaded, and there's two boxes of cartridges on that shelf. Bring 'em all over here. Then you take that window and I'll take this one. We'll give 'em the surprise of their young lives. Get a wiggle on you, Judge. You've got a brush ahead of you. Fight? You can gamble you'll fight! It's you or them, remember!"

"Suppose he comes bustin' in the back way?" quavered the judge, perceiving that he had indeed fallen between two stools.

"We'll try to take care of him. But he'll come the other way, I guess."

But Slike guessed wrong, for Billy Wingo, judging that the psychological moment had arrived, shoved his gun hand through a window pane and shouted, "Hands up!"

"You dirty Judas!" yelled Slike and, firing from the hip, he whipped three shots into the judge before he himself fell with four of Billy Wingo's bullets through his shoulder and neck.

Shot through and through, Judge Driver dropped in a huddle and died.

Slike, supporting himself on an elbow, mouthed curses at the man who he believed had betrayed him. The murderer's supporting arm slid out from under and he collapsed in a dead faint, even as Billy Wingo, with window glass cascading from his head and shoulders, sprang into the room.

CHAPTER THIRTEEN

OPEN AND SHUT

"Well," said the district attorney, "you can't hold this man on any such biased evidence as this."

"But you see I am holding him," pointed out Billy Wingo.

"They'll get him out on a writ of habeas corpus."

"They? Who's they?"

"His friends. I suppose the man has friends."

"Oh, yes," acquiesced Billy, "the man has friends. Too many friends."

The district attorney looked away. "You'd better let him escape—or something," he suggested brazenly. "We—we mustn't be made ridiculous, you know."

"We? We? Don't get me mixed up with you, Rale. I'm particular who I bracket with, sort of. Another thing, the last time you were in here you went out on your head, remember. Well, lemme point out that you're here, I'm here, so's the door, and history is just the same thing over again."

The close-set little eyes wavered. "I tell you, Wingo, the case looks black for you too."

Billy Wingo rolled and lit a placid cigarette before he spoke. "Black? For me?" Inquiringly.

"I'm afraid so."

"You mean you hope so. Go on."

"There are a great many strange things about the whole affair. For instance, why was Judge Driver wearing your clothes when the bodies were found? If, as you say, you saw the whole thing, why did you not prevent the murder? How do we know that you did not kill both Tom Walton and the judge and then lay the blame on this stranger?"

"You don't know," admitted Billy. "That's the worst of it. But you will know. Yeah, you will know."

"I intend to look into your side of the case very closely, Wingo," declared the district attorney. "It may be that everything has not yet been told."

"There is more in this than meets the eye," nodded Billy. "Considerable more."

"If you persist in holding this man for a hearing," said Rale impressively, "it may—will, I should say—involve you. I'd hate to see you get into trouble."

"I'll bet you would," Billy concurred warmly. "You'd hate it like you do your left eye. But I'm gonna gamble with you. I'll hold the man till the judge decides what to do."

"In that case, I'll send for Judge Clasp at once."

"Why Judge Clasp? Why bother that old gent?"

"Because Driver's dead," the district attorney explained impatiently. "We have to have a judge to hold the hearing."

"Oh, I know all about that. I've sent for one."

"Who?"

"Judge Donelson."

"But he's the Federal judge, and he lives way over in Hillsville," objected Rale. "Judge Clasp is nearer. In a case of this kind when the judge of a district is unavailable, the nearest judge takes over the district. The statutes——"

"The statutes say 'any judge,'" interrupted Billy Wingo. "On this point I am quite clear. I looked it up to make sure. 'Any judge' means 'any judge.' Nothing else. And you know that Judge Donelson is a territorial as well as Federal Judge. Technicalities can't pull your wagon out of this hole, Arthur, old settler."

"I shall send for Judge Clasp at once," bumbled Arthur, old settler.

"If you send right away, he should be here by day after to-morrow. Yep, day after to-morrow at the earliest."

"Judge Donelson can't get here till the day after that," said Rale triumphantly.

"Oh, he can't, can't he?" smiled Billy. "Unless he has an accident he'll be here to-morrow. You see, Arthur, I started Riley Tyler off to Hillsville ten minutes after I arrested Slike. That's why I'm gamblin' that Judge Donelson will get here first."

The district attorney openly lost his temper. "I don't regard the evidence as given sufficient for indictment. I shall ask the judge not to hold him."

"Don't do anything rash, Arthur. Remember the hearing will be at the Walton ranch to-morrow afternoon."

"The Walton ranch! It'll be held here in Driver's office, that's where it will be held."

"Not a-tall. I want Judge Donelson to see the layout. Then he'll be able to tell better what's what. The Walton ranch to-morrow afternoon. Don't forget."

"Your Honor, I don't see how this man can be held," protested the district attorney. "I claim that the sheriff's testimony is biased. How do we know that it wasn't the sheriff himself who murdered both men and wounded Slike?"

"You can easily see, Judge," put in the coroner smoothly, "How flimsy the evidence is against the prisoner. It is practically his word against the sheriff's. The prisoner has explained everything—how he was coming to the ranch on business and was arrested by the sheriff the minute he stepped inside the doorway. Why, your Honor, it's the plainest open-and-shut case I ever saw. Absolutely nothing to it."

"The coroner's right," boomed the district attorney. "And I hereby ask that Dan Slike be released from custody and——" he paused dramatically.

"Well—" prompted Judge Donelson, his old eyes inscrutable.

"And I feel it my duty to charge the sheriff, William H. Wingo, with the murder of Thomas Walton, the murder of Judge Driver, and assault with intent to kill upon Daniel Slike."

"Didn't the coroner's jury bring in a verdict of 'at the hands of persons unknown'?" inquired Judge Donelson.

"They did," admitted the district attorney, "but it was in direct opposition to the evidence. Indeed, the coroner instructed the jurymen otherwise."

"Then he exceeded his duty. But that by the way. The jury brought in a 'persons unknown' verdict. However, I do not agree with the jury."

"I knew you would not," the district attorney cried triumphantly.

"No, I believe the person is known. Sheriff, will you tell us in your own words, how you happened to be on hand in time to be a witness of the murder of Judge Driver?"

Like so many trained seals those present turned their heads to stare at the sheriff. Some eyes were friendly, some noncommittal, but the majority were unfriendly. This was because the crowd consisted largely of county office-holders. Billy gave a straightforward and detailed account of everything that had led up to the murder of Judge Driver.

As he concluded his story Judge Donelson nodded a slow head. "Why did you not immediately enter the ranch house after you looked in the window and saw the boot soles of the dead man?"

"Judge," said Billy, with a whimsical smile, "suppose now you went out hunting and you wanted to get more than one deer and had only one cartridge, what would you do—shoot the first deer you saw or wait till you got two in line?"

"I see," nodded the Judge. "I see. Still, Sheriff, there is the word of Dan Slike. It would have been better had you had another witness."

"Another witness," said Billy. "If that's all you want I have one. Riley Tyler, stand up."

The younger deputy stood up and was duly sworn. He deposed that the sheriff's match signal to Guerilla Melody to send the judge down to the house had been also a signal to him, Riley Tyler, to come down from the flat and take position under the window directly opposite the one at which the sheriff was posted. All this had taken place according to plan. Riley Tyler had heard every word uttered by both the judge and Dan Slike and had also seen Slike shoot the judge. Furthermore he had talked with the Federal deputy marshal in Hillsville and learned that the marshal had never even thought of asking Judge Driver to approach the sheriff concerning the alleged bootlegging activities of Jake Kilroe.

Riley Tyler concluded his testimony and sat down, taking occasion as he did so to wink at the district attorney. The latter glared back with frank dislike.

"The evidence I have just heard," said Judge Donelson, "is clear. There is no shred, jot or tittle of it that throws suspicion on Sheriff Wingo. I will hold Daniel Slike for the grand jury. If Judge Driver were alive, I would hold him as accessory before and after the fact. Do you still think, Mr. Rale, that Mr. Wingo should be held?"

"Why—uh—uh——" stalled the district attorney.

"Tell me," persisted Judge Donelson, "exactly what you think?"

But the district attorney did not dare tell Judge Donelson anything like that. Instead he said, with a smile he strove to make natural and pleasant:

"Hold Mr. Wingo? Certainly not. I have misjudged him. I am sure he will not bear malice against me."

"Hold it against Mr. Rale?" said Billy, with the straightest face in the world. "Certainly not. I have misjudged him. But I am sure he will not bear malice against me."

Even the judge smiled.

Dan Slike, lying on an improvised bed of blankets in the corner of the room, raised his head. "You'll never hang me, y'understand," said Dan Slike. "And you ain't got a jail in the territory big enough to hold me after I get shut of these scratches. I'll see you later, Sheriff."

Dan Slike added a curse or two and relapsed into silence. Not a likable person, Mr. Slike. No, not at all.

"This," said Rafe Tuckleton, "is a helluva note."

"It's all your fault," the district attorney recriminated bitterly.

"You did most of it," flung back Rafe, always an enthusiastic player at the great game of passing the buck. "You know damn well——"

"Who thought of it first?" interrupted the district attorney. "Who was the bright li'l feller, I'd like to know?"

"Don't you try to ride me," snarled the genial Rafe. "Dontcha do it."

"Aw, shut up; you gimme a pain! Gawd, and I'll bet your parents thought you was just too cunnin' for anything. It's a shame they let you live. To think of all the fatal accidents that might have happened to you, and didn't, almost makes a feller lose his faith in Providence. 'Oh, yes,' says you, 'Wingo will walk into the trap with his eyes shut. It'll be just too easy.'"

"Well, the first part worked all right," protested Rafe Tuckleton. "Dan downed Walton without any trouble. How could I tell Driver would slip up on his part? I'm glad Slike downed him. Served him right for being a fool. Reelfoot did his part all right, too."

"How do we know Reelfoot did? How do we know what happened before the fraycas at Walton's? We don't. We don't know anything except that Tom Driver is dead, Dan Slike wounded in the calaboose, and Skinny Shindle has skedaddled."

"Skinny tell any one where he was goin'?"

"He did not. Soon as he heard that infernal Bill Wingo had pulled through without a hole in him, Skinny saddled his horse and went some'ers else a-whoopin'. And I don't think he expects to come back. Oh, it's a fine mix-up all round, a fine mix-up."

"Sh-sh," cautioned Rafe. "Somebody coming—oh, it's you, Tip. 'Lo."

"Yeah, it's me, Tip," said O'Gorman, closing the door carefully and sitting down on the only vacant chair. "Look here, Rafe, what did I tell you about downing Tom Walton?"

"I ain't downed Tom Walton," denied Rafe sullenly.

"You had it done," insisted O'Gorman.

"How do you know I did?" dodged Rafe.

"By the way it was gormed up."

"I suppose now if you'd planned it——"

"I wouldn't have planned it in the first place. I told you to keep your paws off, and now look at the damn thing."

"It wasn't my fault," barked back Rafe.

"Can't you say anything different?" the district attorney threw in drearily.

"You don't even seem able to obey orders any more," said Tip O'Gorman.

"I don't have to take orders from you," flared up Rafe.

"No, you don't have to. Nobody has to do anything they don't want to. But we've decided, Rafe, that hereafter you sit on the tail-board. You don't pick up the lines again, see."

"Who's we?" demanded Rafe.

"Craft, Larder and myself."

"You can't do anything!" Contemptuously.

"No? For one thing, we can keep you from shipping so much as a single cow."

"How?"

"Our ranges surround you on three sides, and where we don't fit in, the mountains do. You can't drive through the mountains, and we won't let you drive through us. That's how."

"Huh?"

"Yeah, it's root, hog, or die, feller. You gonna be good?"

"I—I suppose so."

"Good enough. One slip on your part and you know what happens, Rafe. Bear it in mind, and it'll be money in your pocket."

"You talk like a minister."

"I wish I was one, preaching the funeral sermon over your grave. Lord, what a stinking skunk you are, Rafe!"

"Look here——"

"Blah! You are a skunk. So crazy after money you had to go and hurt li'l Hazel Walton. Damn your soul, I told you not to do anything to hurt her! And you bulled right ahead! You lousy packrat, you've broken that child's heart! She thought the world and all of her uncle, she did. I tell you, Rafe, you ain't fit to drink with a Digger or eat with a dog!"

"I ain't gonna fight with you," declared Rafe Tuckleton.

"I was hoping you would," averred Tip. "There'd be one tom-fool less to worry about if you did."

"No, I can wait," said Rafe with a feline grin.

"Oh, I'll be watching you, you rattle-snake," nodded Tip.

"Go easy, you two!" snapped the district attorney, as a dog in the next room began to bark. "There's somebody comin' up the path."

The squabble went dead.

"Good thing the wind's yowlin' its head off to-night," observed Tip O'Gorman. "I forgot myself for a shake."

Rafe Tuckleton looked at the floor. There was venom in his heart and death in his thoughts.

Tip O'Gorman fingered out the makings.

He was shaking in the tobacco when Billy Wingo opened the door and strode without ceremony into the office. He was followed by Riley Tyler. The latter slammed the door behind him and set his back against it.

"Three li'l friends together," said Billy, his eyes gleaming at them beneath the peak of his fur cap. "I saw your light as I was passing, Arthur, and I thought I'd sift in and thank you for all those kind words of yours yesterday. I appreciated 'em, you bet. You too, Rafe, did about as well as could be expected. Tip is the only one I can't thank."

He smiled lazily on Tip. The latter grinned back.

"It ain't my fault you can't," returned Tip cryptically.

Billy nodded, although naturally he did not grasp the other's meaning, and said, "Got another li'l matter for you gentlemen. Finding you all together thisaway is gonna save me trouble. I'm in luck to-night."

"Aw, spit it out!" Rafe directed rudely.

Billy looked pained. "Our long-faced li'l playmate seems all fussed up over something. Well, boys will be boys, I suppose, and burned fingers now and then have got to be expected."

He paused and regarded them gravely. Rafe's answering stare was darkling, the district attorney's uncomfortable, while Tip's was impersonal.

"I hope you boys are feeling generous to-night," resumed Billy.

Rafe Tuckleton stole a glance at O'Gorman. Generous?

"The fact is," went on the calm voice, "I'm takin' up a collection—a collection for Tom Walton's niece, Hazel."

Billy thought that at the mention of the ranchman's name both the district attorney and Tuckleton stiffened their slouching bodies, but he could not be positive. The lamp on the table gave a poor, weak light.

"Her uncle's gettin' downed thisaway will be a bad blow for her. He was all she had. Y'understand now—the girl won't ever know that this is any benefit like. She mustn't ever know. It's insurance on Tom's life, see? Sam Prescott was keepin' the policy for him in his safe. Tom must have forgot to tell her about it. That's what Sam's going to tell her. How much will you boys give?"

Tip O'Gorman did not hesitate. "You can put us down for a thousand apiece."

"*What!*" chorused the district attorney and Rafe Tuckleton.

The sheriff cocked an eyebrow at the two men. "You think it's too little? Well, I guess maybe you're right. A thousand is enough for Tip here, but you two are rich men. Say twice that—two thousand from each of you will be about right."

The two rich men were speechless. But only for a moment.

"Two thousand!" gasped Rafe. "Not a nickel."

"Not a thin dime!" contradicted the district attorney.

"Say not so!" said Billy Wingo.

Tip O'Gorman nodded. "'Say not so,' is right."

Billy looked at the speaker approvingly. "I'm glad Tip agrees with me. I'll take the money in gold, greenbacks and silver. No drafts."

The district attorney squealed like a stuck pig. "No nothing, you mean! Whadda you think we are?"

"A couple of rascals," was the prompt reply. "And there's a tax on rascals. *That li'l girl has got to be taken care of.*"

Billy's voice was earnest. But a sardonic devil looked out of his eyes. He yearned with a great yearning for the district attorney and Rafe Tuckleton to join battle with him. He knew that he could easily take care of both. Tip O'Gorman was the unknown quantity. One could never be quite sure what Tip was thinking. One thing, Tip was neither a murderer nor a dealer in murder. That had never been Tip's way. And something told Billy that in the present crisis Tip would keep his hands off. The issue lay strictly between Rafe, the district attorney and Billy Wingo.

The district attorney by a great effort recovered his mental balance. "You are threatening," he bumbled lamely.

"Not a-tall," returned Bill. "I only said you and Rafe are a couple of rascals. What's fairer than that, I'd like to know?"

"It's blackmail—extortion," the district attorney trotted on.

"Blackmail and extortion to subscribe money for the support of a girl whose uncle has been murdered? No, no, you don't mean it, Arthur, old settler. You mean that you and Rafe will be glad to do your parts. That's what you mean."

"No." Thus Rafe Tuckleton.

"Yes—and again yes. Three times in fact. Rafe, how about that last deal of yours with the Indian agent? Remember it? The agent, y'understand, gets drunk sometimes, and a drunk will talk. Ever thought of that?"

If Rafe had not thought of that, he thought of it now.

"And how about that last bribe you took?" pressed Billy, turning accusingly on the district attorney.

The immediate shrinkage in the form of the district attorney was plainly visible to the naked eye. He went a trifle paler too.

"Do I get the two thousand apiece for Hazel Walton, Arthur?" demanded Billy.

"Why-uh—yes, yes, of course. I'd always intended to contribute. I was just fooling. Yes."

"And you, Rafe?"

Rafe Tuckleton nodded a reluctant head. "I'll pay."

"That's fine," said Billy heartily. "I'll be around to-morrow for the money."

Rafe Tuckleton did not attempt to demur at the shortness of time as he had done with Dan Slike. He recognized the utter futility of arguing with a man like Billy Wingo.

"By the way," said Billy, staring hard at Rafe Tuckleton, "I wonder if it was any part of Dan Slike's plan to kill Miss Walton too?"

Rafe's face went wooden. "How should I know?"

Billy nodded. "I was just wonderin'. No harm in that, I suppose. Lucky she wasn't there alla same."

"It was lucky," stated Tip O'Gorman. "Do you know I've been doing a li'l wondering myself. Why wasn't she there?"

"She just happened to be visiting the Prescotts'," replied Billy Wingo, his eyes on Rafe's face.

Rafe did his best to return the stare, but his eyes would drop despite his best effort.

"You know that letter from Miss Walton Judge Driver threw in the fire—the one you heard me telling Judge Donelson about?" went on Billy. "Yeah, that one. It might have fooled me—I'm only human, you know, if——"

"You're too modest," Tip interrupted dryly.

"If it hadn't been for one or two li'l things," resumed Billy. "The handwriting was a fine imitation—you couldn't beat it. But I knew she hadn't written it." He paused, and began to roll a cigarette.

Rafe Tuckleton passed his tongue across his lips. The district attorney looked down at his locked hands. Of the three Tip O'Gorman was the only one to remain his natural self.

"G'on," urged Tip, "give it a name."

"You see," said Billy, "Skinny Shindle told me Miss Walton gave him the note about 2.30 P.M. Now on that afternoon I happened to be at the Prescott ranch. Miss Walton was there visiting Miss Prescott. I didn't leave the Prescotts' till nearly three o'clock, and Miss Walton was still there and intending to spend the night. That's how I knew she couldn't have written that note."

"Nine miles from Prescott's to Walton's," said Tip.

"Nearer ten," corrected Billy. "Skinny was sure careless. So were several other men. You've got to make things fit."

He nodded kindly to the company and abruptly departed with his companion.

"I wonder what he meant by 'making things fit,'" mused the district attorney, following five minutes' silence.

"I dunno," Rafe mumbled in accents of the deepest gloom, "but you can put down a bet he meant something."

"He did," declared Tip O'Gorman, "and I'm telling you two straight, flat and final, you ain't fit to play checkers with a blind man. It makes a feller ashamed to do business with you, you're so thumb-handed, tumble-footed foolish. At the time the note was written from Walton's the girl was at Prescott's. Oh, great! And he knew it alla time. And you two jokes wondered why your scheme fell through! You know now, don't you? Gawd! What a pair you are! Oh, I've always believed that a man makes his own li'l hell. Whatever devilishness he does on this earth he pays for on this earth. You fellers are already beginning to pay."

Thus Tip O'Gorman, the moralist. He departed wrapped in a virtuous silence. He did not dare let the others know the actual worry that rode his soul. He knew it was only a matter of time when Billy Wingo would be camping on his trail too. Lord, how he'd been fooled! He had never suspected that the sheriff possessed such capabilities. And how had the sheriff learned of that flour deal between Rafe and the Indian agent. The flour supposed to have been bought through another man. Rafe had not appeared in the affair at all, yet Billy Wingo knew all about it.

And the bribe taken by the district attorney. There was another odd chance. Besides the two principals, Rafe Tuckleton and himself, Tip had not supposed that any one knew of the matter. It was very mysterious.

Tip could have kicked himself. He alone was the individual responsible for the whole trouble. If only he had not proposed the election of Billy Wingo— But he had proposed it, and now look at the result!

"Say, Bill," said the greatly impressed Riley Tyler on the way to the office, "what's this about that deal of Rafe's with the Indian agent? You never said anything about it before."

"Good reason," grinned Billy, "it just occurred to me."

"Occurred to you?" puzzled Riley.

"Yeah, I don't actually know of any deal between Rafe and that thief of an agent; but knowing Rafe and knowing the agent, I guessed likely they had been mixed up together in a business way. Seems I guessed right. Same with the district attorney, only easier. If he's taken one bribe, he's taken forty. Wouldn't be Arthur Rale if he hadn't."

Riley Tyler chuckled. "Poker is one fine game," said Riley Tyler.

At the office they found Shotgun Shillman.

"What luck?" asked Billy.

"Plenty," was the reply. "We went to the Cayley cabin first. Nobody livin' there. Ashes in the fireplace might have been a week or a month old. But the balsam tips in the bunks were older than that. They were last summer's cutting—all stiffer than a porcupine's quills."

"As I remember that cabin," reflected Billy, "the balsam grew all around it."

"They still do. We found a quarter of beef hanging on a stub back of the house. 'There,' says Simon, 'there's proof for you.' 'Yes,' I says, 'let's see the cow it came off of.' 'Whatsa use?' says Simon.

"'Lots,' I says. 'C'mon.' He did reluctant, bellowing alla time how we'd oughta follow the tracks leading away from the house toward the Hillsville trail a mile away."

"Were those tracks made by one man?" inquired Billy.

"Looked so to me—anyway, we went along on the line of tracks leading to the dead cow. It had been shot all right enough. It oughta been shot. It had big-jaw."

"'You mean to tell me them fellers cut that quarter off a big-jaw cow?' I says to Simon. 'Sure,' he says. 'Aw right,' I says. 'Let it go at that.' I poked around to find the other cow. Simon raising objections alla time to me wastin' so much time and trying to get me off the trail. Oh, he didn't care a

whoop about me finding the second cow. Wasn't one enough? Oh, sure, to hear him talk! But I found the cow. It hadn't been shot a-tall. Died of the yallers last fall. And it had just about half rotted before freezing weather set in. 'I suppose,' I says sarcastic, 'both cows were killed about the same time.' 'You've guessed it,' says Simon, bold as brass. 'Now all you gotta do is chase right along back to the cabin and take up the trail like I wanted you to do in the first place and trail 'em down.' He acted real disappointed when I left him standin' there and came away. I'd have arrested him right then only you said not to."

"Good enough," approved Billy. "Plenty of time to arrest him later. I want to give him plenty of rope. One of these days I'll get a subpoena from Judge Donelson and serve it on him. That'll give him plenty of time to think things over between now and the trial."

"Simon ain't the kind to take things easy," mused Shotgun Shillman.

"He'll fret his head off. About the time Slike is well enough to stand prosecution, Simon Reelfoot will be ready to bust."

But the well-known best-laid plans are more breakable than the equally well-known best-laid eggs.

CHAPTER FOURTEEN

WHEN THIEVES FALL OUT

"I tell you, Rafe," said Reelfoot in a panic, "they suspect me—they think I'm mixed up in this murder business."

"Accessory before and after the fact," slipped in the district attorney. A reptile himself, he relished the wriggings of another reptile. "If they prove it on you, you'll be hanged sure as Dan Slike will hang."

"I ain't the only one they can prove it on," snarled Simon Reelfoot.

"Who have you got in mind?" Rafe Tuckleton said in a colorless voice.

"Both of you, for instance," Reelfoot informed him.

"You do us a grave injustice." Thus the district attorney solemnly.

Rafe Tuckleton shook his head at Simon. "Wrong tree. You don't know anything about us."

Simon Reelfoot gaped at both of them. "Why, we fixed it up between us. You know we did. You even wanted two cows killed so's to make it look lifelike to the deputies."

Rafe looked at the district attorney. "The man's mad."

Simon's teeth snapped together like a cornered coyote. "If you're trying to put this thing all off on me—" he began, and stopped.

"We're not trying to put anything off on you," the district attorney told him silkily. "There's nothing to put off on you anyway. Not a thing. You're nervous, that's all, Simon. Your imagination is working overtime."

"Sure is," corroborated Rafe. "You don't think we've got anything to do with the murder of Tom Walton, do you, Simon?"

The Reelfoot jaw dropped. The man stared helplessly at Rafe and the district attorney. "Whatell did— Say, what else was all that rigamarole for then?"

"What rigamarole?" Oh, so patient was the voice of Rafe Tuckleton.

Reelfoot gulped. "You had me go to Wingo's office, and rile him up, and spin him a lot of jerkwater stuff about my rustled cows, so's to get him and his deputies all ready to go away with me, when Driver was to come in with that stuff about Kilroe and keep Bill in town while the deputies went with me. Well, you know how only Shillman went. But I couldn't help that. Anyway, I suppose you thought you was foxy not to tell me the rest of the

story about Skinny Shindle and the fake letter and so forth. Gents, you was foxy. Yeah, you was foxy. But I'm foxy himself. I can put two and two together and make four any day."

He paused and glared at the pair of them. "I wondered what it was all about. Yeah, I wondered, and I asked you and you said it was to keep Bill Wingo from mixing into a li'l stock deal. Stock deal!" Here Simon spat upon the floor. "Stock deal!" rushed on Simon. "You never said it was murder."

Rafe Tuckleton and the district attorney exchanged wooden looks.

"Now that you mention it," said Rafe, "I don't believe we did."

"I thought you didn't like Tom Walton," observed the district attorney.

Simon Reelfoot swore a string of oaths. "I didn't like him, not a bit. But I don't want to be hung for helping having him killed."

"That would be unfortunate," murmured the district attorney.

"I ain't sorry he was killed, of course," Simon fretted on, unheeding. "That part was all right, but I didn't want to be mixed up in it. There's no sense in doing a thing like that if you're gonna be caught. And I don't mean to be caught! You didn't have no right to get me into this deal without telling me all the circumstances first," he concluded weakly.

"Then you think you've been badly treated?" purred the district attorney.

"I know it," declared Simon.

"I'm sorry."

"I didn't come here for sympathy."

"What did you come for?"

"Protection. What do you s'pose? You've gotta protect me."

"Listen to him, Rafe. Says we gotta protect him. That new brand of whisky at George's Place is certainly awful stuff. If you'll take my advice, Simon, you'll go a li'l easy on it till your system gets used to it."

"Yeah, sosh up by degrees like," offered Rafe.

"Look here," said the exasperated Reelfoot, "either you fellers pull suspicion off o' me, or I go to Wingo with the whole story."

"What'll that get you?" demanded Rafe. "Nothin', just nothin'. Wild tales of dead cows and separatin' Bill from his deputies and all ain't evidence. Nawsir. Think again, brother, think again."

"And, anyway," tucked in the district attorney, "what was wrong with the wild tale? It came straight enough. There were the tracks and there were the cows. Who can say your story wasn't the truth?"

"I tell you, they *know* it ain't the truth."

"How do they know?"

Simon did not make immediate reply. It was the worst thing he could have done.

"Well?" prompted Rafe.

"They—uh—uh—they know it."

"How, I asked you?"

"They didn't—Shillman got suspicious over the cows."

"Why did he get suspicious over the cows?"

Simon Reelfoot wriggled in his chair. "Well—uh—I—he did, that's all."

Rafe leaned forward. His face was sharp with suspicion. "*Why did he?*"

"I—I——" Simon stammered, and bogged down right there.

"C'mon," directed Rafe inexorably. "Spit it out."

"One of the cows had big-jaw," admitted Reelfoot.

Rafe sucked in his breath.

"What did the other one have?" almost whispered the district attorney.

"The other one died of the yallars last fall," said Reelfoot in a voice that matched the district attorney's. "But," he added hastily, "it come on to freeze soon after. I—I sort o' hated to kill two *good* cows."

"Seeing that two good cows were all you were putting up in return for the benefits you would derive from the—uh—political situation, you could have afforded to lose them." Thus the district attorney, staring at Reelfoot.

The latter looked with sullen foreboding at Rafe. The Tuckleton face was bloated with rage.

"So that's how it is!" he choked out. "You had your orders and you muddled them out of rank meanness! Too stingy to kill a couple of healthy cows, you hadda risk everything with one that died last year and another with big-jaw! And then, after you've got 'em suspectin' you good and strong through what's first, last, and only your own fault, you come to us for help!"

"Where else could I go?" queried Reelfoot sulkily.

"To hell for all I care, you half-witted fool! A big-jaw steer! And the other one half rotten, I'll bet!"

"I didn't think he'd notice it," defended Simon.

"You didn't think! No, I'll gamble you didn't! You never have! You couldn't! My Gawd, you deserve to be hung! I hope you are!"

"You forget, Rafe," said the district attorney, "that you and I don't know what all Mr. Reelfoot is driving at."

But Rafe Tuckleton was too angry to keep up the farce any longer. "I hope the fool's hung!" he panted.

"I'll take care not to go alone," said Reelfoot, pressing his advantage. "You fellers will have to see that I'm protected or I'll tell what I know."

"Blah!" blared the district attorney. "You wouldn't dare snitch!"

"I'll dare more than that to save my skin," Reelfoot declared hardily.

Rafe Tuckleton returned to the charge. "What in so-and-so and such-and-such did you do such a fool trick for? Don't you know—couldn't you—oh, whatsa use?"

"You oughta told me all the circumstances," persisted Reelfoot. "That was *your* fault. If I'd knowed, I could have managed better."

"I expect—you couldn't," said Rafe Tuckleton, with an appreciable pause after each word.

"What you gonna do about it?" Reelfoot wanted to know, fidgeting in his chair.

"You'll be taken care of now, you needn't to worry."

"Oh, fine, fi-ine. That helps a lot, that does, with either Bill Wingo or one of his deputies over to my place about every other day, snoopin' round and talking to my men."

"They do that, do they?"

"Yes, they do that."

"What of it?" demanded Rafe. "They can't find out anything, can they? You weren't fool enough to let on to your men—your foreman or anybody, were you?"

"Sure not. But——"

"But what?"

"I don't like 'em slouchin' round this way. You dunno what'll happen. They might find out somethin' you can't tell."

"If you didn't tell any of your men, you're safe," soothed the district attorney, "so long as you keep your upper lip stiff. You're just a li'l nervous, that's all, Simon. Nothing to worry you a-tall. Here, have another drink. Rafe, shove the bottle over, will you?"

Rafe Tuckleton pettishly obeyed, muttering under his breath. It was only too painfully obvious that Reelfoot's remarks had upset him, and he didn't care who knew it.

"Look here, Simon," he said suddenly. "You wanna leave right here your notion that you'll snitch if it comes to the squeak."

"I'll think about it," said Simon, setting down his glass deliberately.

"Because," Rafe continued, as though there had been no interruption, "you wanna remember it's almost as easy to kill two men as it is one."

"I'd thought of that," said Simon, "and I brought two of my men with me to-night. They're down at the saloon waiting for me now."

"A lot of good they are down there," sneered Rafe.

"But they can do you and Arthur here a lot of harm later—if anything happens."

"Don't you trust us?"

"Not so far as I can throw a calf by the tail," was the candid reply. "I'm goin' now. You fellers scratch your heads over what I've said. I ain't gonna go to the pen for anybody, and you can stick a pin in that."

When Simon was gone, the district attorney and Rafe sat in silence while a man, had one been so inclined, might have counted three hundred. Neither

looked at the other. Rafe fiddled with his glass on the tabletop. The district attorney rolled a slow cigarette.

The district attorney was the first to break the silence with, "Simon's got a bad case of nerves."

"We oughtn't to have used him," said Rafe. "First thing you know the tom fool will say or do something we'll all be sorry for. I didn't think he was like that."

"Maybe we'd ought to have told him all of it from the beginning."

"Not that. No, he'd never have gone in it then. He ain't got nerve enough. I'm afraid Reelfoot's days of usefulness to us are over."

"He's done good work in the past."

"The past ain't now. And I tell you, Arthur, if Simon gets any more jumpy than he is now, he'll kick the kettle over. You hear me, he'll do it, the pup!"

Rafe allowed the district attorney two full minutes to mull over this, then he continued:

"We gotta get rid of him."

The district attorney looked over at Rafe, his upper lip lifting. "I suppose we gotta."

"We'll work the old game over again."

"Not on your life! We turned it once! And that was one too many."

"We had bad luck, that's all. Just a li'l hard luck. Look here, didn't Simon say either Bill or one of his deputies were always snooping round his ranch? All right, what more do we want? We can fix it so's to get rid of two birds at a clip. And it'll work this trip. We'll do it all right."

"We'll have to." The district attorney smiled grimly.

Rafe Tuckleton gazed speculatively upon his friend. "How about Tip O'Gorman?"

"Well?"

Rafe came flatly to the point. "How about gettin' rid of him, too?"

But this was going too fast for the district attorney. He shook his head. "No. Too dangerous."

"Now look here," said Rafe, leaning forward and tapping the district attorney's knee with a persuasive forefinger, "you're forgetting that all this trouble we're having is due to Tip O'Gorman. If it hadn't been for him wanting a 'safe' man, Jack Murray would have been elected, and everything about now would be fine as frawg's hair in January."

"Well, we had to give 'em one honest man," said the district attorney cynically. "The voters were getting ideas."

"Rats," snorted Rafe. "What if they were? I don't give a damn what Tip or anybody says, we were strong enough to elect our whole ticket. Huh? No 'maybe' about it. I know. Tip's an old woman, I tell you. He's gettin' too big for his boots. He needs a lesson."

"Who'll give him one?"

"We will."

"No. Not for a minute. I know Tip. I ain't locking horns with that gent."

"Whatcha afraid of? He can't do anything."

"Can't, huh? Aw right, let it go at that. Not any for me, thanks."

Again Rafe's persuasive forefinger came into action. "Say, Tip ain't any grizzly bear, feller. He's only a two-legged man like you and me. He can be put where he belongs."

The district attorney remained unconvinced. "I hear you say it."

"Ain't you got any nerve a-tall?"

"Where Tip is concerned, not much," was the frank reply. "I've seen that man in action."

"Action nothin'. That's just what's the matter with that man—not enough action. He'll go so far and no farther. He don't want anybody wiped out if he can help it. You saw what a fuss he made over Tom Walton's killing. Lord! He made me sick! You might 'a' thought Tom was a good friend of his. I tell you, Arthur, that sort of squeamishness don't get you anywhere. Nawsir. You gotta go the whole hog or you'll wind up in the calaboose. You bet I ain't for any of them half-way plans. It's kill a bull every time, or I don't shoot. Tip O'Gorman must go."

"Lessee what Sam Larder and Crafty say," the district attorney offered uneasily.

"No, not them, either of 'em," Rafe declared firmly. "They're friends of Tip's."

"You tell 'em just like you told me," suggested the other. "Maybe you could persuade 'em."

Rafe shook a decided head. "Not a chance. I know them. They're soft and bull-headed where Tip's concerned. They think he's hell on the Wabash, you know that. Those three stand together always. No, Arthur, if we shove this deal through, we gotta do it alone."

But the district attorney remained dubious. "It's too big an order."

"Not by a jugful it ain't. Gimme the bottle."

Rafe poured out a stiff four fingers. He drank it slowly. Then he had another. His eyes began to gleam redly. Suddenly he stood up and struck the table with his fist.

"I'll show 'em," he exclaimed. "Tip needn't think he can gimme orders! Won't let you ship cows if you get your leg over the pole again, says

O'Gorman, Larder and Craft. Just as if I'd done something out of the way instead of tryin' to put one more polecat out of the world. I'll show 'em! Say, Arthur, whatsa matter with buckin' Larder and Craft after we put Tip out of business?"

"Wait till we do," replied the district attorney, who foresaw many difficulties in the proposed operation. "And if you ask me, I don't know how we're going to do it."

Rafe Tuckleton scratched a tousled head. "Jonesy might shoot him cleaning' his gun," he proffered.

"Why don't you do it yourself?"

Rafe showed the requisite amount of contempt for such a foolish question. "It's more'n possible Tip might start cleanin' his own gun about that time. And I *could* spare Jonesy if I had to."

"Jonesy might not want to take the chance. You haven't thought of that, have you?"

Rafe, by way of reply, took another drink. When he set the bottle down, the district attorney picked it up, held it against the daylight, then looked reproachfully at his friend and put the bottle away in the cupboard.

"Tell you what we can do," said Rafe. "We can have Simon do it."

"Simon Reelfoot?"

"Who else. Sure. Why not?"

"You're crazy. Simon may be a fool, but he has more sense than that."

"Simon drinks a skinful sometimes. Ever see him when he gets that way? He acts very rowdy. Yeah. I'm almost certain if, when Simon was under the influence thataway, he was told that Tip had found out about his share in the Walton killing and was making threats against him, that Friend Simon would just naturally hop out and fill Tip full of holes."

"But I thought you were saving Simon for Wingo? The sheriff's more important than Tip just now."

It was evident that the district attorney was becoming more and more worried at the prospect of giving Tip his quietus.

"We'll have to figure out something else for Wingo," said Rafe. Then he brought his open palm down on his knee with a crack like a pistol shot. The district attorney jumped in his chair. "I got it!" cried Rafe. "I got it! It just came to me when you said 'Wingo.' We'll get the three of 'em at one lick."

"I knew I didn't put that bottle away soon enough."

"Rats. My head's clear as a bell—two bells, by Gawd! Listen. We'll get Simon and that foreman of his drunk. We'll sick the pair of 'em on Tip O'Gorman. They'll put the kibosh on Tip, and the word will be passed for the sheriff. He will go to make the arrest and they'll plug him. Being drunk, they'll be desperate and won't care what they do."

"Suppose the deputies go with Bill?"

"We'll have to fix it so they won't. Oh, it'll be natural this time. We'll wait till they're taking somebody over to Hillsville, or gone to make an arrest or something."

"But the sheriff may swear in a posse to help chase 'em."

"There won't be any chase. For a chase you gotta have horses, and we'll take away their horses first thing. No, it's a cinch Bill Wingo will go to arrest 'em by his lonesome. He's that kind."

"And we took him for a mark," was the district attorney's bitter remark.

"I didn't," lied Rafe. "I always knowed what he was."

The district attorney did not contradict this statement. Nothing was to be gained by a fight with Rafe Tuckleton.

CHAPTER FIFTEEN

THE BEST-LAID PLANS

March had come in a-roaring. Almanac-wise it was passing out a-bleating. Except in the high places the snow was going fast. The frost was coming out of the ground, making it necessary for the Hillsville stage to employ eight horses instead of six. The gray geese were flying northward. Here and there on the southern flanks of the lean hills the grass showed bravely green. That uncomfortable person, Dan Slike, was well enough to stand his trial. Spring was in the air, but winter still held sway in the heart of Billy Wingo. He had not been able to make up his difference with Hazel Walton, or rather she had not made up her difference with him. Manlike, or mulelike, whichever you prefer, Billy Wingo was stubbornly determined that the girl should make the first move. True, he had seen her. It was also true that he had gone out of his way to see her. Always his reception had been friendly, but not the least cordial. Obviously she had not forgiven him his outburst.

Whenever he thought on what he was pleased to consider his ill-treatment at her hands, he was prone to rail at the foolishness of women. He did not stop to reflect that there was another side to the shield. Certainly not. The woman was clearly and wholly in the wrong. Adam, I believe, was the first man to express this opinion. His sons have been following in his footsteps ever since.

Came a night of heavy rain and wind. Billy Wingo, a lamp on the table at his elbow, was reading a Denver newspaper. A sudden gust drove a spatter of rain across the windows. There was a soft thump followed by a sliding sound against the outside door. Some one uttered in a woman's voice a muffled wail.

Billy went at once to the door and lifted the latch. The wind pushed it back against him and flung a spray of wet into his face. There was something lying on the doorstep and sill, something that moved a little. Billy let the door fly open. The something was apparently a woman in distress. Billy bent down, endeavoring to slip his hands under her shoulders. But the woman was heavy and her clothing was very wet and slippery. Billy bent a little lower and—Smash!

"He's coming out of it," a voice was saying. "I saw his eyelids flicker."

"You hit him a mite too hard," declared another voice. "Y'oughta used a club instead of that wagon wrench."

"I didn't know how hard his head was," offered a third voice, "and we can't afford to take chances. You know that. Anybody, he's coming along all right, so what's the odds?"

"He's ruined that pillow," complained the first voice. "And I know he's bled on through the sheets into the mattress. Spoil the mattress, that will. Cake the feathers all up. Make 'em nubbly."

"Don't be so dainty, Sam," laughed the second voice. "You're so all-fired fat what's a rough mattress to you? Sleep on the floor, and you wouldn't know the difference."

Billy kept his eyes shut, although he was now completely conscious. His head ached like forty. Seemed as if the whole top had come off and dozens of little devils were inside hammering like mad. He believed he knew the owners of those three voices. Sam Larder, Felix Craft and Tip O'Gorman. He opened his eyes. Yes, he was right. There they were, the three of them. But it was daylight, and a day of sunshine too. And the last thing he remembered was a night of wind and rain.

Tip gave back his look with a smile. Sam Larder and Felix Craft did not smile. Their faces were serious.

"Glad to see you're coming round," said Tip O'Gorman. "Here, let me fix that bandage. Looks as if it might be slipping. How you feel—pretty good?"

"Pretty good—considering," replied Bill.

"That's fine, fine. Want a li'l something to eat?"

"Rather have a drink."

The cool water revived him like wine. He lay back on the pillows greatly refreshed. He thought his head ached a little less, perhaps.

"Where am I and how did I get here?"

"You're in my house," said Sam Larder. "You were—uh—brought here."

"After the roof fell on me?" said Billy, fingering the bandage round his head.

"Well, you see," said Tip, in some embarrassment, "we knew you wouldn't have accepted our invitation unless you were knocked silly first. But I—I planned the whole thing, Bill—I didn't intend to keep you senseless as long as this. It's a matter of ten hours since you were hit. I didn't know but what maybe we were due to lose you, after all."

"That would have been a pity," said Billy.

"Wouldn't it? Yeah. Don't blame me for that crack, though. I told Crafty not to use anything made of iron. But I'm afraid he used his own judgment."

"I always do," said Felix Craft.

"Who was the woman?" inquired Billy.

"I was the woman," replied Craft demurely.

"That was one on me. But I'm still wonderin'. You fellers went to a lot of trouble to carry me clear out here. I suppose it's too much to hope you were seen doing it."

"I don't guess we were seen," said Tip. "We kind of took care not to be.

"How long do you count on boardin' me, Sam?"

"Just a li'l while," was the reply.

"No longer than is necessary," slipped in Tip, with emphasis on the last word.

"Necessary, huh. *Necessary*. I suppose you fellers think you'll be able to get Dan Slike off by kidnappin' me. You forget there's Riley Tyler."

"We know there's Riley Tyler," said Tip, "like we know Riley and Shotgun went to Hillsville yesterday and won't be back for three-four days. And about Dan Slike we don't care three whoops in hell. To tell you the truth, Bill, I'm surprised you don't know us better than that. We three didn't have any hand in that Walton business."

"I didn't really think you did," said Billy frankly, "but knowing how you and Tuckleton——"

"No, no, Bill," interrupted Tip hastily, "don't go fussin' about Rafe. That's a cat with another tail entirely. Your business right now this minute is with us. Our business is with you. Here we are. Here's you."

But Billy was apparently paying no further attention to Tip's words. He was looking at the ceiling. He was smiling. He chuckled.

"Do you know," he said, glancing sidewise at Tip, "when I was a kid, I often wondered how it would feel to be kidnapped. I had a idea it would be romantic sort of. But it ain't, not a mite. I feel like I'd been on a tear—head, y'understand, and mouth all furry and *thirsty*! Where's that pitcher? Oh, I can sit up all right."

He swung up to a sitting position with a lurch. "Here's how," he said, reaching for the pitcher.

He drank his fill and again lay down, supporting his head on a bent elbow.

"Crafty," he said severely, "why for are you monkeying with that gun?"

"I thought I had it hidden behind the table," replied Craft, shamefacedly depositing a six-shooter on the table in front of him.

He folded his arms behind the gun, but Billy noticed that the fingers of his right hand were touching the wood of the butt.

"The truth is," said Tip, "that we intend to watch you pretty closely. But you haven't any kick coming. You ain't gagged or hogtied even."

"Seeing that Sam's house is a mile out of town and a good eight hundred yards west of the Hillsville trail, gaggin' me and tying me up are hardly necessary. Sam, that water sure gave me a appetite. I feel considerable better. Suppose now you send along the chambermaid with several eggs, more or less, let 'em lay, and two-three-four slices of nice ham, and some fried potatoes, and bread and butter, and a li'l jam if you have it—if not, I'll take what you've got handy and some coffee, black, with sugar. Better have her bring a full pot of coffee. And Samuel, my own dear boyhood friend, will you send along the golden-haired chambermaid?"

"That's the way," approved Tip, smiling, as Sam Larder slumped kitchenward. "Make a joke of it. No sense in taking it to heart."

"Tip," said Bill, "I always knew you were an old scoundrel."

Tip looked hurt. "The scoundrel perhaps, and only *perhaps*, mind you, but I deny the age. I'm only a short fifty."

"Plenty of time for you to be hung yet," admitted Bill. "Felix, old settler, that gun of yours is pointing right at me. Is it easy on the trigger?"

"Mighty easy," said Felix Craft, altering slightly the angle of the weapon's barrel.

Billy hitched himself up to a sitting position. By means of the bed's two pillows he made himself comfortable against the wall.

"You spoke of some business," he said. "Le's hear it."

Tip cleared his throat. "It ain't much. All we want is for you to leave us alone."

"Seems to me you asked me something like that before," mused Billy.

"And your answer was unsatisfactory."

"What kind of an answer did you expect?"

"We expected you'd be a sensible man, the sort of feller who wouldn't throw down his friends."

"You said that before, too."

Tip nodded. "We still think maybe you can be brought to see our side of it."

"We don't want to do anything we'd all be sorry for," Felix Craft nipped in significantly.

"Hear the clanking chains," said Billy. "The man's threatening me, I do believe."

Craft returned his stare woodenly.

"You see," Tip remarked, "we expect to do a li'l business this year."

"Do you think this will be a good year for business?" Billy cocked a questioning eyebrow.

"We hope so, we hope so," pronounced Tip. "I'll be open with you, Bill. If you keep on nosing into our affairs the way you've started in, we'll lose money. Couldn't help but lose it. You didn't take office till the first of January and business won't be done in any volume till well into the year ____"

"When the ground is hard," interrupted Billy, "and the volume of business won't be apt to leave telltale tracks. I get the innards of your meaning."

"Exactly. So you see how absolutely necessary it is for us to be sure that you won't horn into any of our li'l deals."

"We intend to be sure," declared Craft.

"Tip," said Billy, "that man is threatening me again. You stop him. He makes me nervous. Sometimes I almost think he means it."

"I'm afraid he does mean it," said Tip. "I—we don't want to do you any harm, Bill, physically or otherwise. You understand, that, don't you?"

"Seein' that you keep on tellin' me so over and over, I'll try and believe it. But what I want to know is if you decide finally to do me harm, physically or otherwise, what kind of harm you'll do. Will you drop me over the cliff on a dark and moonlight night and dash my quiverin' body to death on the cruel rocks below, or will you slip a li'l wolf poison into my morning coffee, or will you just cut my throat or what? I'd like to know. Honest, I would. My curiosity is standin' on its hind legs."

"It's no joke," Tip told him seriously.

"Of course it ain't. Who said it was. Not me. I'm serious as lead in your lung. Likewise I'm scared to death. If I was standin' up you'd hear my knees clacking together. Not to disappoint you I'll shake the bed. There! How's that?"

He grinned at them disarmingly. They did not return the grin.

"Might as well tell him now," suggested Craft.

Tip nodded. "I was going to. Bill, you left your office in Golden Bar last night." He paused, looking up at the ceiling.

"You needn't try to make me think you're making it up as you go along," Billy fleered with a wink. "I know better. Flap along, flap along."

"You took your rifle with you and both your guns," resumed Tip. "You went to the stable and saddled your red-and-white pinto and rode out of town."

"Right down Main Street, I suppose, where everybody could see me?"

"Nothing so coarse as that. You were careful to strike the shelter of the cottonwoods that grow so close to the rear of your corral."

Bill's eyes widened with well-feigned enjoyment. He was reasonably sure he knew what was coming. "I'll bet somebody saw me, alla same."

"Several people saw you, saw you so plainly that they could swear to your identity on the witness stand."

Billy leaned forward interestedly. "They *could*, but would they?"

"All five of 'em would."

"Five, huh? Don't you think that's a good many folks to have on hand so providentially, a night like last night? Raining and blowing for Gawd's sake, remember? You don't want to override this thing—whatever it is."

Felix Craft laughed sardonically. "We won't. Don't you worry any about that, Bill. We've thought it out pretty average careful."

"That's good. I'd be sorry to see you fellers make any mistakes. Go'n, Tippy, old settler. You've got to where me and my gallant steed are a-skulking in the underbrush with half the town watching us like lynxes. What did I do next?"

"You haven't done it yet. And whether you do it or not all depends on yourself. If you stay stubborn, then this afternoon you'll hold up the Hillsville stage."

"Don't lemme forget myself too much. Will I wear a mask?"

"Naturally—and your horse will be seen, your red-and-white pinto that everybody knows. It's something like the trick you worked on Driver and Slike. We listened very careful to your testimony at the hearing. We're grateful to you for the idea, Bill."

Bill tossed away all credit with a wave of his hand. "Oh, you clever fellers would have thought of something just as good. Trust you. Next."

"Everybody on the stage will be able to swear to your clothes and your horse and your guns. One of your guns has a brass guard. That gun especially will be remembered."

"You do think of everything," Bill said in admiration. "But does it sound natural that I'd be using my horse, especially such a conspicuous-lookin' horse as that red-and-white pinto, right where everybody in the stage could see him? Even if I am crazy enough to hold up the stage, you've gotta give me credit for a li'l sense."

"I said there wouldn't be any coarse work," averred Tip. "Your horse will be tied in a li'l patch of woods put of sight of the stage, but just about the time you're lining the passengers up on the trail, your horse will bust out of the li'l patch of woods and show himself plain for everybody to take a look at."

"Somebody will have to drive him out. Suppose *he's* seen, too?"

Tip shook a lazy head. "Not him. He won't be seen. It will all look mighty natural like an accident. Somethin' scared the horse, that's all."

"After I've robbed the stage what do I do?"

"There you have me," confessed Tip. "I don't know what you'll do. You might ride away and keep going for several weeks. That would be the sensible thing to do."

"Or I can ride back to Golden Bar and be arrested by my own deputies for stage robbery. I don't suppose anybody would believe it if I said I was kidnapped."

Tip smiled slightly. "They might. You never can tell what people would believe."

Billy drew his knees up to the level of his chin and hugged them.

"No," he drawled, "too fishy. Folks don't kidnap folks nowadays—only in books. Shucks, I'll bet you fellers were counting on just that particular snag in human nature. Looks like you've got me, don't it?"

Tip nodded his head. "Looks like it."

"You've only got yourself to blame," said Felix Craft, studying the gun on the table so handy to his fingers.

"True," acquiesced Billy. "I've only got myself to blame. So what care I for poverty or precious stones? Look here, fellow citizens, who is going to take my part in this stage hold-up?"

"I will," said Craft modestly. "I rode your pinto out of town last night, and I think I made a good impression. Yeah, I'm sure I did. And I have more than a sneaking idea I can get away with the hold-up."

"Don't doubt it," said Billy. "Don't doubt it for a minute. You've got nerve enough, I know that, and we're about of a size. I—uh—I *thought* there was something familiar about that vest you're wearing. And are those my other pants you have on? The table hides 'em so I can't tell for sure."

"They are your other pants, and your coat and hat are hanging on a hook in the kitchen. I had to put your spurs on my boots though. Yours were too small."

"Oh, I'm sorry," mourned Billy, genuine concern in his tone. "If I'd only known— However, suppose some one in the stage puts a hole in your face right over the eye, Felix. Have you thought of that?"

Craft nodded. "We have to take some chances."

"That's so. You've got a sporting spirit after all, Crafty. You'd think running a gambling house so long would have taken it out of you, sort of. Might be your ranch has saved you. And suppose I don't feel like having you risk your valuable life, Crafty, what then?"

"Then the deal can be arranged," Tip answered for Craft. "Give us your word Bill, and you can walk out that door and ride back to Golden Bar right after breakfast. Right now, if you don't want to wait."

Billy looked incredulous. "You mean to tell me, Tip, that you'd take my bare word?"

"You're whistling we would," Tip declared heartily. "Everybody knows your word is good."

"I've never broken it yet, but don't you see, once broken, what good is it?"

"But if you give it, you wouldn't break it. We know you."

"But if I give my word to you to do this thing, I will have broken it—to the territory. When I took office I made oath to obey and uphold the laws. I guess maybe you forgot that."

Tip looked a trifle dashed. "Well—" he began.

"You see," interrupted Billy, "If I broke my word to the territory, I'd break it to you likely. Anyway, what guarantee have you that I wouldn't?"

"Looks like there was only one trail out," Craft said briefly.

"Gimme something to eat first," Billy implored, rubbing his empty stomach.

"We'll do that much for you," said Tip. "And while you're eatin' you think it over. There's a lot to be said for what we want you to do. Think how easy it is, Bill. Just go a li'l slow is all we want. And think what you get by it—complete freedom otherwise and that ten thousand a year easy money we spoke of a while back. Ten thousand ain't to be sneezed at these days. I dunno where you'd make it any easier."

"Neither do I," Billy admitted frankly.

"You don't want to go to jail now, do you, Bill?" wheedled Tip.

"Sure not," was the prompt answer.

"Of course you don't. And if you decide to accept our offer, Bill, the secret will be left behind right in this room. No one will ever know anything about it. To your friends you will be one of the straightest sheriffs Crocker County ever had. Oh, I know what you're thinking of. You're afraid of what Hazel Walton might think. But——"

"Let's leave her out of this," Bill struck in sharply.

"All right," acquiesced Tip, with a slight cough, "we will. Alla same, Bill, who's to ever know what you did?"

"I'd know for one," Billy observed simply. "And suppose I tell somebody? You know I never could keep a secret."

"I told you how it would be, Tip," remarked Craft. "He's too damn honest for any use."

Billy nodded his gratitude. "Felix, I thank you. At least you are a friend of mine."

"You forget me," said the disappointed Tip. "If it hadn't been for the ground-and-lofty talking done by yours truly, you, William, would have already gone where the good Indians go. I can tell you, Felix and Sam are downright disgruntled with you."

"Felix, I take it all back," grieved Billy. "At the first convenient opportunity I shall drop a li'l arsenic in your coffee or a li'l lead pill in your system. I dunno which yet. And that goes for you too, Sam."

"What's that?" queried Sam, entering with a large platter of ham, eggs and potatoes and setting it down on the table. When Bill had explained, he smiled grimly. "Yep," said Sam Larder. "You've been a thorn in our well-known side for some time. Trimming you off the parent stem would do you—and us—a heap of good."

"I see," remarked Billy, sliding from the bed and hooking up a chair to the table, "I see that the patient is not yet out of danger. But the doctors have not completely despaired of his life. How about it, Tip? You haven't given me up yet, have you?"

"Bill," said Tip irritably, "you're a fool."

"But not a damn fool," returned Bill with his mouth full. "You'll have to admit there is a method in my madness."

CHAPTER SIXTEEN

OBSCURING THE ISSUE

"Well," said Felix Craft, attempting a pleasantry, "how do I look?"

"You look," said Billy, following a meticulous survey of his questioner's attire, "you look like Mr. Felix Craft, our genial gambler and non-resident ranch owner."

"Shucks, I was hoping I'd look like you. I'd sure enjoy making a good appearance. Maybe the mask will make a difference."

"Mask won't disguise your voice any."

"I'll talk like I had a cold. Oh, I won't have any trouble making folks think it's you."

Felix Craft spoke with tremendous confidence. More than the occasion warranted, thought Billy Wingo.

"Why don't you wear my star?" suggested Bill. "Then folks would sure think it was me."

"Too raw, and you know it. Even you wouldn't do a fool thing like that."

"Thanks for the compliment," Billy said humbly. "Suppose now you get plugged, Felix?"

"I won't get plugged. Not me," declared Craft, pulling the six-shooter with the brass trigger guard and making sure that the hammer rested on an empty chamber.

"What makes you think you won't be plugged?" persisted Billy.

Craft darted a quick look at his questioner. "Because I know I won't. I'll have the drop on 'em, don't you see? Nobody will dare cut down on me."

"How do you know they won't?"

"I'm sure, that's all."

"What makes you so sure?"

"Because I am, that's why!" was the snappish reply. Then in a pleasanter tone Craft continued, "Because, Bill, I've figured out my chances carefully. Not once in a thousand times do stage passengers resist a road agent."

"How about the Wells-Fargo guard?"

"He ain't riding this trip."

"How do you know he ain't?"

"Now don't you worry how we know, Bill. We know, and you can bet on that. It's like I told you, we've figured this thing out to the last li'l detail. We _____"

"You bet we have," cut in Tip quickly. "For the last time, Bill, hadn't you better change your mind?"

"I couldn't change it for the last time till I'd changed it at least two other times, Tip," Billy drawled, one-half his brain busy trying to fathom why Tip

should have interrupted Craft so brusquely. Tip never did anything without reason. Never. And why was Craft so unnaturally sure that he could hold up the stage without being shot? Unnaturally, exactly. Because Felix Craft was one not given to explaining anything he did. Yet in this instance he had taken the trouble to explain at some length. Why?

Billy tilted back on the rear legs of his chair, cocked his heels up on the table and stared at the ceiling.

"Well, how about it?" Tip demanded impatiently. "You going to be sensible?"

Billy waved a hand for silence and then sang in a whining bobtail bass:

"Barney Bodkin broke his nose;
Want of money makes us sad;
Without feet we can't have toes;
Crazy folks are always mad;
A nickel candle's very small;
Many fiddlers can't play jigs;
One that's dumb can never bawl;
Pickled pork is made of pigs.

"Ain't that a nice song?" Billy broke off, glancing round him for praise. "Lot of truth in that song, too. Especially that part about crazy folks. They always are mad—like you and Felix, Tip, and our fat friend, Mr. Samuel Larder. Why all the delay, Felix? If you really are gonna to be a bold bad man, go'n and be one. Don't dally round here any longer. Suppose you miss the stage? You'd be disappointed. So would I. Because I don't want anything to prevent you from having a fair crack at it. I'd like you to have every chance—but I forgot, you ain't taking any chances, are you? This is a sure thing."

Billy, through half-shut eyes, was watching the men he was talking to. He was watching Sam Larder especially. For Sam was not a good poker player. Never had been. His plump features were too expressive. And now

the open-faced Sam was looking at Billy with a slightly worried expression. Furthermore, the worry was tinged with some astonishment. At least, so it seemed to Billy. Again why?

Here were three men, each of whom within five minutes had done that which was not wholly warranted by the apparent facts. He again had cropped up and out those unnatural circumstances so ably dwelt upon by Mr. William Noy. As has been said, the law abhors such things and seeks a remedy. There is always a remedy; and investigation, patient and thorough, will always find it. Billy rather prided himself on being a patient and thorough investigator.

Nevertheless he did not fail to realize that he was in a tight hole. He felt the pinch already. So he smiled at the three men his sunniest smile.

"Looks like a wild night on the canal," he said calmly. "I expect the mules are pinning back their ears. Yeah. Going, Crafty? Well, be good and—oh, say, Crafty, ain't Jerry Fern the stage driver this trip?"

"I don't know," was the short reply.

"But you knew everything else," complained Billy, making a mental note of another unnatural circumstance. "Seems like you'd oughta know this, too."

"Well, I don't," Craft tossed back over his shoulder, as he flung out of the house.

The door slammed. Billy looked at Sam Larder and grinned. "If this is Jerry Fern's trip, and I'm most sure it is, Felix will be out of luck. Jerry is one stage driver who will always give a bandit a battle."

"Oh, I guess Crafty will get the drop on him all right," Sam Larder averred easily,—too easily by half.

"I can see," said Billy with strange placidity, "I can see that I've got to get out of here."

Both Sam and Tip laughed,—Tip heartily, Sam with a false note.

"Well, anyway," resumed Billy, "I've got my choice of hitting the trail or being arrested."

Tip shook his head. "You haven't any choice—none."

"Huh?" Surprisedly.

"Yeah. You see, we talked it over again while you were asleep a while back, and we decided if you couldn't see our way of it and be sensible like we want, that we'd better just put you where you won't be mislaid. Givin' you your choice of ridin' away or bein' arrested like I said at first would be a bad move. If you chose to hit the trail— You're a sport with ideas, Bill, and you might think up one to put the kybosh on us. But if you're in jail, your ideas won't help you much. See?"

"I see I ain't gonna get a chance for my alley a-tall. Who'll arrest me—my own deputies?"

"No, we'll do that. Here's the story: Your horse gave out and Sam caught you trying to rustle a pony out of his corral. Sam threw down on you, held you up and when we, Sam, Crafty and I, y'understand searched you, we found on you a couple of pocketbooks and Jerry Fern's watch. See?"

"I see, all right. I see you haven't been quite open with our friend Mr. Craft."

"How do you make that out?"

Billy hunched his shoulders. He was observing the marked unease that spread upon the countenance of Sam Larder. Tip was forced to repeat his question.

Billy gazed at him vacantly. "Huh? How—uh—oh, you want to know how, do you? Is that it? Yeah. Well, I'll tell you. Here you knew alla time that Jerry Fern was going to drive the stage this trip and yet you didn't tell

Crafty. He didn't know who was the driver when I asked him, remember? You should have told him, Tip. Skin game not to."

Tip laughed. Was the laughter forced? Billy thought it sounded as if it were. But he couldn't be sure. Not with Tip O'Gorman. For Tip was a good poker player. Still——

Billy wagged a forefinger at Tip. "Why didn't you tell Crafty, you careless child?"

"Crafty knew, all right," Tip stated. "He was just joking with you, I guess."

"I guess so too," drawled Billy Wingo. "I guess so too."

He stood up and started to walk casually toward the door.

"That will be about far enough," said Tip.

Billy's hands fell away from the latch. "If that gun goes off, it'll make a fine mess on the floor."

"You come back and sit on the bed again," directed Tip, the six-shooter trained unwaveringly on the captive's abdomen. "Of course," he added, "you might try the windows. But even if I didn't drill you three times where you live while you were doing it, you can't wiggle through those windows. Your shoulders are too broad and the sashes are too narrow. That's why we picked this room. Only one in the house with small windows."

"I'd noticed that," said Billy, returning to the bed. "How about a drink, Tip? I'm thirsty."

"Sam will get you a drink," said Tip.

Billy smiled. "Why not you? Can't you trust me with Sam? Think I'll corrupt his morals or something?"

"There's no telling what you'll do, Bill, and as I may have told you once or twice we can't afford to take any chances."

"When am I going to be arrested for rustling one of Sam's horses?"

"Soon after Crafty gets here."

Billy's face assumed a peevish expression. "Say, look here, Tip, I don't just cotton to the idea of havin' Sam the one to throw down on me and hold me up. I've got my pride, such as it is, and I'd hate for folks to go round blating that a slow-pulling sport like Sam Larder held me up. Can't you make it yourself, Tip? You've got a reputation. I dunno that I'd feel so bad about it if it was you."

"Shucks, Bill, you're too sensitive. I'm afraid we'll have to let the scheme go through as it lays. I don't believe in changing any part of a plan once I've started to carry it out."

"There's something in that," admitted Billy. "I'm a li'l superstitious that way myself. Ain't Sam taking a goshawful time to that drink? Maybe you better step out and look for him."

Tip grinned. "I hear him comin' now."

"Sam," said Billy, when the owner of the house appeared with the drink, "Sam, how about a li'l hot something to eat? I know it's only the shank of the afternoon, but I'm hungry and I probably have a long hard night ahead of me."

"You have, all right," concurred Sam. "All your own fault, too. But I expect you know what's best."

Sam eased his fat self into a chair and began to construct a cigarette.

Billy elevated his eyebrows. "Say. I thought I asked you for something to eat?"

Sam ran his tongue along the side of the cigarette. "I heard you, but I don't cook a thing till supper. That's flat. I been in and out of that kitchen all day, and I've got enough, you bet you."

"You don't have to cook anythin' yourself. Let your cook do it."

"I let him go to town for the day."

"I don't s'pose you could persuade one of your boys to throw a li'l bite together for me, now, could you?"

Sam shook a decided head. "I couldn't, Bill. There ain't a boy on the place. I sent them all down on the Wagonjack to fence off a quicksand."

Billy closed his eyes to conceal the satisfaction in their depths. Not a man on the place! Which was just what he had been working to find out. But the odds were still two to one, and an armed two to a weaponless one at that. When Craft returned, they would be three to one, provided Billy still was a prisoner.

He surveyed his captors through drop-lidded eyes. Sam Larder was looking out of the window. But Tip was on the alert, even as he had been from the beginning. And Billy knew well that Tip would not hesitate to shoot. Most decidedly the future did not look bright and shining. But Billy's was a confident nature.

"What's that?" queried Tip.

"What do—oh, that! Simon says 'thumbs up,' you mean? It doesn't mean anythin' serious, Tip. Just another way of saying, 'Faint heart never won a bet in its life' and 'It's always darkest 'round midnight.' Don't mind if I take a snooze, do you, Tippy, old boy?"

Billy rolled over on his stomach, rammed his head into the pillow and completely relaxed his body, but, although his breathing soon became deceptively regular, he was far from being asleep. He was thinking as purposefully as ever he had in his life. He had to escape. *He had to!* To permit his enemies to do this thing was intolerable. There was a way out. Every strait, no matter how close and awkward it may be, has its way out.

He built many plans while he lay there. But there was a flaw in each and every one of them. His brain was still feverishly busy when Felix Craft returned about the middle of the afternoon.

As the door opened and Craft entered, Billy sat up. "Have a nice time?" he drawled.

"Went through like clockwork," replied Craft, slumping into a chair beside the table.

"Not even a li'l teeny-weeny hole in you anywhere?" Billy demanded hopefully. "Hell, I shore had a better opinion of Jerry Fern than that."

"Jerry didn't do any fightin' to-day," said Felix. "Handed over his watch like a major."

"Yeah, Tip said you'd take his watch. Funny you didn't know Jerry Fern was driving this trip when I asked you. Tip knew."

"Oh, I knew all right," Craft said carelessly. "Lord A'mighty, I'm hungry. My stomach is sticking to my backbone closer than a postage stamp to a letter. I ain't had a thing to eat since breakfast. Got any more eggs and ham, Sam?"

"If you want anything to eat, you can cook it yourself," said Sam. "It's like I told Bill here, I ain't goin' into that kitchen till supptime."

"That's always the way," grumbled Craft, kicking his chair back. "Here I ride from hell to breakfast and back—and I wanna say again that having that hold-up fifteen miles from here was too much of a good thing. Just as well have had it two or three miles away. It wouldn't have made a bit of difference, not a smidgin, by Gawd."

"You know, Felix," defended Tip, "that we had it fifteen miles away so the give-out horse of Bill's would look more natural."

"Damn his give-out horse," snarled Craft, moving stiffly toward the hall leading to the kitchen. "I wish it had give out before I was born."

"So you found out how rough-gaited the pinto was, did you, Felix?" Billy observed sweetly. "Do you know, I had an idea you would. Yeah. You don't ride enough, that's whatsa matter. Stick too close behind your faro

box, you do. Y'oughta try the open air and the range more. Tell you, Felix, I'll gamble you'll do more ridin' and less card playin' in the next sixty days than you ever did in any two months of your life before. In round numbers I'll bet you ride more than six hundred miles in the next two months. Go you a hundred even. The bet payable in Golden Bar sixty days—say any time after the first day of June."

"Humor him, Crafty," suggested Tip, glad of the diversion. "Sometimes they turn real violent."

"Make it five hundred even," said Craft, who was nothing if not commercial.

Billy smiled pityingly. "You poor feller! But you've asked for it. Five hundred she is. It'll have to be a finger bet, because I haven't a cent with me."

"Your word's good," said Craft and went on his way.

"How about you fellers?" Billy pursued brightly. "Any chance of my turning a honest penny? I'll go you both the same as Crafty. I suppose my word's good."

"Better than gold," declared Tip, "but I don't see how you're going to check up on anybody's riding."

Billy waved a complacent hand. "That's the least of my troubles. How about it? You fellers want to bet? No? Aw right, my loss is your gain. Tippy, I wonder if you'd mind opening the door and hollering to Felix to fry me up a mess of eggs while he's at it? Tell him to let 'em lay. That's the way I like 'em. I thank you. Tip, you've made a mistake."

"How?"

"Having that hold-up fifteen miles away and then having me arrested here so close to Golden Bar. You poor flap, is it reasonable to suppose I'd hold up the Hillsville stage and then come scamperin' right home, especially when I knew my horse had been seen? You'll find the judge and jury lookin'

cross-eyed at that li'l bit. Yeah, flaw in your title, Tippy. Y'oughta be more careful."

"Bill's right," said Sam Larder unexpectedly. "I always thought fifteen miles away was too far, and I know the jury will think it's funny he came right back to Golden Bar. That don't look natural. Nawsir."

"Blah!" snorted Tip. "You never thought anything about it till Bill pointed it out to you, and at that, he's wrong. And anyway, he ain't arrested yet. We can always rub out Bill if we feel like it. This is one county that has plenty of good places to leave a man—places where he won't be found for years and years, and not then, judging by the way the coyotes scatter a feller's bones. Have you thought of that, Bill? You'd better. So far I've been dead against making you hard to find, but if you keep on trying to show me where I'm wrong, maybe I'll accept your view of the case."

This was plain speaking. Billy accepted it at its face value. Tip was good-hearted enough. He had proved it. But he was desperate. He had proved that, too.

Billy smiled engagingly at Tip. "Shucks, I was only talking to you for your own good," he said in an injured tone. "And here you go and get all het up. You make me more tired than a day's work."

"We may make you tireder," was the grim return.

When Felix Craft brought the eggs, he drew up at one side of the table and Billy at the other. The platter of eggs was between them. Tip looked on from his seat near the fireplace. Sam lounged comfortably in his chair.

Billy looked with a dissatisfied air upon the eggs. "Ain't there any bread, Felix? One thing I like is to sort of smush a piece of bread round my eggs till it gets all gooey and good. A li'l butter on the bread wouldn't hurt neither."

So Felix made another trip to the kitchen. When he returned with the bread and butter, Billy discovered that the pepper had been overlooked.

"For Gawd's sake use salt on 'em!" implored Felix. "I never use pepper, I don't. Salt is just as good. Healthier, too."

"But I don't like salt," protested Billy. "I've got no manner of use for it. I want pepper, I do."

"Use salt," mumbled Craft, stoking busily.

Billy pushed right back from the table and refused to be comforted. "I want some pepper! Whatsa matter with you jiggers—tryin' to starve me to death? Sam, you lazy lump of slumgullion, get me some pepper, will you?"

"No, I won't. I'm too comfortable and you're too finicky."

Bill glanced across at Tip. "You going to refuse me too, Tip, old citizen?"

"No," said Tip with a weary air, "I suppose not."

He arose and betook himself to the kitchen. Returning with a large old-fashioned tin pepper pot he thumped it down upon the table in front of the captive. "There y'are. Now, stop your squalling."

"Thank you, Tippy, I will. Yeah."

Billy scraped up to the table as Tip turned away. "What's the matter with this pepper pot, anyway?"

Tip turned to look. Billy picked up the pepper pot slowly and stared hard at it. Felix Craft craned his neck.

"I don't see anything the matter with it," said Craft.

"Don't you?" murmured Billy, his fingers busy with the removable top. "Look here."

Sam Larder did not move, but both Tip and Craft obeyed. In fact, they obeyed with such good will that the handful of pepper that Billy instantly swept into their faces dusted up their nostrils as well as into their eyes.

In throwing the pepper Billy had employed his left hand. This left hand had not completed the motion before Billy was reaching for the platter of eggs with his right hand.

It was unfortunate for Sam Larder that he was a slow-going gentleman. The platter struck him edgewise over the eye when his six-shooter had barely cleared the holster. The six-shooter thudded to the floor. Sam and his chair went over backward and lay together in a tangle amid the fragments of broken platter and the remains of several eggs. On the way down some of the eggs painted Sam's countenance and part of his shirt a bright yellow. But Sam made no attempt to rise and scrape himself off. He was unconscious.

Billy, arriving in Sam's immediate neighborhood a split second after Sam struck the floor, scooped up the fallen six-shooter and wheeled back to face his other two enemies. But they were too occupied with their very real misery to be an immediate menace. Felix Craft was sitting on the floor, clawing at his eyes and swearing continuously. Tip, coughing and sneezing, was not swearing. Perhaps he had not sufficient breath. At any rate, he was on his feet, arms spread wide, feeling his way along the wall toward the door giving into the hall.

Billy cat-footed up behind Tip and snatched away his six-shooter. Tip spun round at the touch, but Billy dodged away from the clutching hands.

Bang! a revolver bullet cut a button from his vest and tucked into the wall at his elbow. Billy's sudden movement had saved his life. He leaped back another two yards to get out of the smoke and crouched, balancing his tense body on the balls of his feet.

He saw beyond the table Felix Craft with a gun in each hand. The gambler's face, despite the tears that overflowed his eyes and ran down his cheeks, was fairly murderous.

"Tip! Where are you? Don't you move, Bill," Craft was saying, the barrels of his two guns weaving to and fro uncertainly. "Get away from that door, Bill. Don't you try and get away. I can see you."

Billy leaned forward, picked up a fork from his set-out on the table and flung it across the room. It fell with a clatter. Craft fired at the sound. The next instant Billy kicked him under the chin and flattened him out.

"First time I ever saw a feller shoot by ear," observed Billy, calmly divesting Craft of his gun belt and exchanging Sam's six-shooter for his own gun with the brass-trigger guard. "He did pretty good, considering. Tip, don't you try to bluff me, like Crafty, that you can see. Hey! do you want to be the third senseless man in this room?"

Tip answered the question by halting his groping way toward the speaker. He stood still, his body swaying, his muscular fingers locked in the palms of his hands. Billy stooped over the senseless Craft and whipped off his neckerchief.

"Put your hands behind you, Tip," he directed.

"Damfi will!" Tip declared.

"I don't want to whang you over the head, Tip, but I'll have to if you won't be good. Stick 'em behind you."

Tip hesitated, then suddenly he thrust his hands behind him. Billy slipped around him, laid his six-shooter on a chair seat and drew the handkerchief beneath Tip's crossed wrists. The next instant Tip had whirled about, Tip's knees were between his legs and Tip's long arms were wrapped round him in an under-hold.

Tip was essaying the wrestling chip Cumberland men call the swinging hype. It is a crack chip and when well done is disastrous to an opponent. But it must be well done—the right arm under, hyping with the right leg and striking outside with the left. Fortunately for Bill, Tip, although his right arm was under in a strong hold, had made the mistake of sticking his left knee between Bill's legs. He struck outside with his right leg and missed. With the right arm under, he had not the leverage he should have had.

Billy, fighting for his life, dropped his arms—back-heeled Tip and ran over him. Thump! The wrestlers, Tip underneath, landed full upon the senseless back of Felix Craft. Tip freed a hand, writhed his body sidewise and struck viciously at Billy's unprotected stomach. He struck too low and the blow glanced off Billy's hipbone. Billy, striking in turn, drove a smashing right against the point of Tip's chin. Tip merely grunted and struck again at Billy's stomach. Billy parried the blow with his left and brought up his knee with the laudable intention of kicking Tip in the abdomen.

Blinded though he was, Tip apparently sensed what was impending, for he crowded his body against Billy and struck outside with all his might. In an instant Tip was on top and Billy underneath. The older man jammed both thumbs into Billy's windpipe and wrenched himself astride Billy's body. The strangling Billy spread wide his legs, hunched up his knees, planted both feet against Tip's ribs and straightened his legs with a jerk. Tip's hands were torn loose from Billy's throat and Tip himself crashed backward against the wall.

Billy scrambled to his feet and without the slightest hesitation clipped Tip over the head with the barrel of his six-shooter. Tip remained where he was. Billy stood over him, pistol poised, till he made sure he was senseless. Then he took pains to make fast the trio's respective arms and legs with strips torn from a nightgown belonging to Sam. He likewise removed his spurs from Craft's heels to his own.

This being done, he stripped Tip and Sam of their gun belts, gathered up all the guns and ran out into the kitchen. Here, on the floor, Craft had thrown his saddle, bridle and saddle blanket. Bill added the lot to his burden and sped out to the corral. The pinto was there, looking very tired. Bill hastily unstrapped his rope and dropped the loop over a rangy-bodied chestnut with good legs and a mule stripe. This animal he bridled and saddled, left it standing and ran back to Sam's storeroom for another set of horse equipment. It was his laudable intention to pack the unconscious Felix into town and jail him for the stage-coach robbery. It was a bold plan, but Billy always rather favored the bold plan. The plan had not occurred to him till almost the instant of throwing the pepper so he had had no time to

thoroughly mature it, but it seemed to contain more elements of success than any other because it would forestall his enemies' scheme so neatly. With Craft in jail and wearing the clothing worn by the robber, to which clothing the complaisant Jerry Fern and his passengers would undoubtedly be prepared to swear, it would be hard indeed, if Bill could not fasten the robbery on him, Craft.

He swore bitterly as he pulled taut the cinch strap of the second horse. Fastening the robbery on Craft was one thing, obtaining his indictment and conviction were decidedly two others. What though Judge Donelson would do his best to see justice done, the doing of said justice would rest in the laps of twelve men, each and every one of them the opposite of good and true. But at least he, Billy Wingo, would not be the victim of an outrageous conspiracy. There was that much gained.

He led the two horses to the kitchen door and went within to fetch out Felix Craft.

It must have been his good angel who caused him to look through the front window. He looked and saw a cloud of horsemen scouring toward the ranch house. Sam's field glasses were on the shelf above the window. He opened the window, snatched up the glasses and focussed them on the approaching riders. He immediately recognized, to his great disgust, half a dozen of Sam Larder's punchers. Obviously they had completed the fencing-off of the quicksand sooner than expected.

"This," said Billy, dropping the glasses and leaving the room at speed, "is no place for me."

At the first sight of the riders he had abandoned the plan of taking Felix Craft to town. He would be hard put to escape himself. A burdened led horse was an impossibility, even if he had had time to carry out Craft and tie him to the saddle. The punchers would be at the ranch house in another sixty seconds, and if they should discover him with their bound and unconscious employer and two of his friends, they would shoot first and ask questions later. Any one would,—under the circumstances.

Billy topped his mount, struck in the spurs and fled. The other horse he perforce left standing.

As he flashed past the corner of the building, one of Larder's punchers raised a yell. Some well-meaning fool fired. Zung-g! the bullet buzzed overhead. Smack! Zung-g! Smack! Several bits of lead either ripped past his ears or tucked into the posts of the corral he was skirting. It was borne in upon him that the Larder employees were mistaking him for a horse thief, or some one worse.

He leaned over his saddle horn and began to ride. From the Larder corral to a clump of trees on the edge of a draw was a long hundred yards. As Billy galloped in among the trees he glanced over his shoulder. The corral concealed the horsemen. He pulled up at the edge of the draw, slid down the bank in a shower of stones and dirt, turned sharp to the left at the bottom and tore ahead. A mile farther on he looked back. No one was in sight yet.

"Ropin' themselves fresh horses," was his muttered verdict. "Damitall, running away was about the worst thing I could have done, after all! But what else was there to do, I'd like to know? If I'd stayed I'd have been plugged for a holdup and now I'm a heap likely to be lynched for a horse thief and a hold-up both."

He knew what he might expect from the brisk Larder outfit after Sam had given it his careful version of the stage robbery.

"And that goes double for the rest of the county," he said to himself, staring ahead over the flattened ears of his racing horse. "It looks like a cold day for Billy Wingo. I'll have to do some almighty tall hustling, that's a cinch."

Two miles and a half from the clump of trees at the back of Larder's corral he turned his horse and scuffled up the right-hand bank of the draw. At the top he looked back. He could see the clump of trees quite plainly and below it, in the bottom of the draw, were several black beads. He counted four beads. No doubt the remaining beads were spreading out to right and left to head him off.

"Thank Gawd for the mule stripe," he muttered piously, trotting onward. "We'll diddle 'em yet, old-timer."

Old-timer cocked an ear. His muscles were moving rhythmically, his long free stride was steady and collected. His breathing, while audible, showed no catchiness or other sign of distress. He was good for many miles yet, this chestnut with the mule stripe.

"Alla same, I've got to have another horse," Billy decided. "The quicker this feller gets back on the Larder range the better."

He didn't quite know how to get another horse. When he came in town to assume the duties of his office he brought with him from his ranch two horses besides the red-and-white pinto. His remaining horses he had turned out into the hills, upon whose tops, when the snow flew, they could grub up a living without too much difficulty. These hills lay sixty miles away beyond the Tuckleton range, and every horse on them would be carrying a grass belly.

"Not one of 'em fit for hard riding right off the reel," he told himself, and cursed a little. "Looks like Sam Prescott was my one best bet."

He came to a stream and rode in it till almost sunset when he left it, dismounted beside a tall cottonwood and shinned to the top. To his earnest satisfaction he saw, hopelessly distant and following utterly wrong lines, the tiny black beads that were his pursuers.

"And that's that," said Billy Wingo, rustling groundward rapidly.

CHAPTER SEVENTEEN

WHAT HAZEL THOUGHT

Nate Samson, weighing sugar for Hazel Walton, looked at her sidewise. "Heard the news, Hazel?"

She removed her gaze from the flyspecked window and stared abstractedly at Nate. "What news?"

Nate swelled his chest with satisfaction. Some people enjoy being the bearers of evil tidings. Besides, Nate had stopped going to see Hazel. Somehow he had been made to feel that his visits were not the bright spots in her drab existence that he had considered them to be. There was more than a little malice in Nate's make-up. And the news——

"Somebody killed Tip O'Gorman in his own house last night."

Nate's hand pushed the sliding weight several notches along the scale beam. Red Herring, the town marshal, slouching with seeming aimlessness against a showcase at the other end of the counter, covertly watched the girl.

"Somebody killed Tip O'Gorman in his own house last night," said Nate.

Hazel wondered why Nate's eyes never left her face. "Tip O'Gorman! He was one of Uncle Tom's friends. Who did it?"

Nate's eyes were fairly devouring her. The man looked positively pleased. "They don't know yet. But——" He paused.

She waited. What was he goggling and boggling at? "Well?"

"They found Bill Wingo's quirt on the floor beside the body and right inside the door a snakeskin hat-band the whole town knows belongs to Bill."

Hazel's cheeks began to glow. "That doesn't prove anything," she declared in a level voice. "Bill owns three quirts to my knowledge, and he hasn't worn that snake hatband since last July. It began to stretch then and was always working up off the crown, and he couldn't tighten it without ruining the skin, so he stopped wearing it."

"It worked off the crown once too often last night," offered Nate.

Hazel's black eyes were glittering through slitted eyelids. Really, Nate Samson should have been warned.

"You think Bill did it?" asked Hazel Walton.

Nate nodded. "So does everybody else."

This was not strictly true. Billy Wingo had several warm friends.

"At any rate," Nate pursued with relish, "there's a warrant out for Bill."

"Another warrant!" Hazel's hand moved imperceptibly nearer a broad-bladed cheese-knife that lay on the counter.

"Another warrant. You bet another warrant. That makes three counts he's wanted on—stage robbery, rustling that chestnut horse of Sam Larder's and now this murder. I always said Bill Wingo was too good to be true."

Hazel Walton made no further remark. She reached for the cheese-knife. Nate Samson ducked under the counter. The cheese-knife whirled within an inch of his prickling scalp and stuck quivering in the edge of a shelf.

"Liar!" announced Hazel in a loud, unsympathetic tone. "I'm only sorry I haven't a gun with me. Talking like that about a man you're not fit to say hello to. Here, I don't want any of this stuff! You can keep it."

So saying, she toppled over her whole pile of wrapped purchases and marched out of the store. The marshal followed her to the door. He returned to his post at the counter a minute later.

"It's all right, Nate," he said. "She's gone over to the other store."

Nate Samson emerged slowly. His pouchy cheeks were pale with fear. There was a dew of perspiration on his forehead.

"She—she threw a knife at me," said Nate Samson.

"It's stuck in the shelf behind you." Thus the marshal with indifference.

"That's assault with a deadly weapon," averred Nate, freeing the deadly weapon and putting it carefully out of reach of other possibly petulant customers. "Why didn't you arrest her, Red?"

"She missed you, Nate. She'd have had to cut you some before I could arrest her. 'Threaten or Inflict a wound,' the statutes say, and she didn't do either. No."

"But she might have," grumbled the discomfited Nate. "If I hadn't dodged, she'd have split my head open."

"That's so," the marshal assented with relish. "Do you know, Nate, I'm glad it happened. I dunno that I'd have thought of it if I hadn't seen her buzz that knife at you."

"Thought of what?" fretted Nate, stopping to gather up the parcels that had cascaded over his head to the floor. "What you talking about, anyway?"

The marshal settled himself to elucidate. "I know that Bill had cut you out with Hazel and——"

"No such thing," Nate contradicted sharply, with a reddening cheek. "No such thing. You got it all wrong, Red. I stopped going to see Hazel because it was so far and all. I—uh—I got tired ridin' all that distance."

"All right," the marshal gave in pacifically, "you stopped goin' to see her because it was so far from town. Bill started going to see her, and he went to see her right smart for a spell."

"He didn't go any more than that good-for-nothing flibberty-gibbet of a Riley Tyler or any other of half a dozen chaps," declared Nate.

"Aw right, aw right, have it your own way for Gawd's sake! If you don't shut up, I won't tell you what I think!"

"I'll tell you what I think! I think I'm a idjit to let you stop around my store alla time and fill your fat stomach to the neck with my prunes and dried peaches and sweet crackers, It would be bad enough if you took the

salt fellers, but not you. Oh, no, not a-tall. Mr. Herring has to have sweet ones!"

"I like them best," Mr. Herring said matter-of-factly. "Lessee, where was I? Oh, yeah, you had gotten wore to a frazzle by the distance to the Walton ranch, and Bill had started goin' in that direction, himself. Then this winter sometime he stopped goin' to see Hazel, didn't he?"

"She got tired of him—naturally."

"You dunno what happened. Neither do I know. But that they had a fight is as good a guess as any, and Love's young dream went bust. We all thought so, didn't we, and while we were trailin' Bill we didn't take Hazel into consideration a-tall. But what happens to-day when you run down Bill to her face. She slings a knife at you so prompt and free you almost lost four fifths of your looks. She said things too, and all going to show that they've made it up and she's in love again with Bill. Well then, if she's in love with Bill, he's either coming to see her off and on or else she knows where he is."

"Not necessarily. It don't follow a-tall."

"You've soured on the girl, that's all the matter with you. I tell you, Nate, if a girl as pretty as Hazel Walton is in love with a feller, do you think for a minute he wouldn't come to see her sometimes, or anyway let her know where he is? Why, you poor flap, he'd be a wooden man if he didn't do one or both of those things. And Bill Wingo ain't anybody's wooden man. Not that boy. He's an upstandin' citizen with all his brains and legs and arms and fingers and feet, and that's the kind of hairpin he is."

"All that's a heap interesting, but let's hear the point of the joke—if there is one."

"The point is that if a gent was to watch Hazel Walton and her traipsings to and fro, by and by he'd get news of Bill Wingo. And I'm a great li'l watcher myself—especially when there's two thousand dollars reward, like there is for Bill. It's worth some trouble. Tell you, Nate, I'm glad I dropped in here this morning."

"You're marshal," pointed out Nate. "You can't leave town."

"I ain't supposed to work all night—only day-times and part of the evening. It's a cinch Bill won't make any social calls in daylight and it's a cinch the distance from town to Walton's won't tire me out like it has you."

"Putting it that way," said Nate, suddenly perceiving an opportunity to make a little easy money, "putting it that way, maybe I'll go too."

"It ain't necessary," protested the marshal, alarmed at the bare thought of dividing a profit. "I can manage it myself."

"I'll help you, though."

"Look here, whose scheme is this, huh?"

"You may have thought of it," conceded Nate, "but she was my girl first, and I got as much right to go out there again and see her as you have, and I got as much right to that two thousand dollars as you have."

The marshal swore frankly. "I'll never tell you anything again. Taking advantage of a feller this way. I thought you were my friend."

"I am. We'll go out together, huh?"

"We will not," contradicted the marshal. "So you can just as well stop stretching your mouth about it."

"Is that so? Is *that* so?"

"Yes, that's so. This is my private party, and you wanna keep paws off."

"Aw, go sit on yourself!"

"Remember what I told you," the marshal said in part and took his departure.

Arrived home, Hazel unhitched and unharnessed, turned the team into the corral and carried her purchases into the kitchen and dumped them on the table. She hung up her man's hat on one of the hooks that held the Winchester, and fluffed the hair about her temples by the aid of the mirror that hung below the Terry clock her uncle had brought West with him. She had always liked the Terry clock,—from the cheerful painted pumpkins and grapes that graced the patterned top to the peculiar throbbing ring it gave on striking the hour, she liked it.

And on a day the old clock was destined to repay that liking full measure, pressed down and running over.

While she was fixing her hair, the clock struck three.

Silently she unwrapped her bundles and stored away the contents in crock and box and drawer. A tidy person, Hazel. Then, because she was still in a temper with Nate Samson, she changed her dress, donned a pair of overalls and began to scrub the kitchen floor.

"Liar!" she said aloud, scraping a vigorous brush under the dresser. "Liar! I hope your old store burns up!"

So occupied was she with her thoughts and her work that she failed to hear the approach of a rider.

"Lo, Hazel," was the rider's greeting delivered across the doorsill.

Hazel's brush stopped swishing to and fro.

"Hello, Sally Jane," she said smilingly, supporting herself on one arm and pushing back the hair that had fallen over her hot face. "Put your horse in the corral and come on in."

"I tied him to the wagon," said Sally Jane.

Out of respect for the wet floor she jiggled on her heels across to a chair and seated herself, hooking her heels in a rung. Sally Jane looked at Hazel

with speculation in her eyes.

"You look mad, dear," Sally Jane said.

"I am," declared Hazel, and began to sizzle anew. "Just listen," she continued, hopping up to seat herself on the table, "to what I heard in town this morning. Nate told me—"

"——there now," she concluded. "What do you think of that for a put-up job? Why, it's not even clever."

"No," agreed Sally Jane. "Too many articles belonging to Bill. Either the quirt or the hatband, but not both. I'd like to know how they got hold of them."

"They?"

"Or he. It may have been one man, and it may have been more than one. You can't tell. Tip had enemies—several. But I'm afraid the gang won't take that into consideration,—much. All they'll be able to see is the quirt and the hatband. And on top of what's happened already! Confound it, Bill shouldn't have disappeared this way. All his friends know he didn't—couldn't have either held up the stage or really rustled Sam Larder's precious horse, which, by the way, was found mud to the ears near Sam's corral this morning. Fact, Dad told me. But why didn't Bill stay and face the music? That's what I'd like to know. He should have known he'd only hurt himself by running off this way. That's where he made one big mistake."

At which Hazel jumped right off the table. Her black eyes snapped. "He didn't make any mistake!" she cried. "He did just right! I know he did. If he ran—went away—he had a good reason and you can't tell me different, Sally Jane Prescott!"

The older girl threw out a hand in mock alarm. "There, there, honey, calm down. I didn't mean anything against your precious Bill. Not a thing."

"He's not my precious Bill," denied Hazel with vigor. "He's just a good fuf-friend."

Sally Jane looked at her shrewdly. "What makes you think your—friend didn't make a mistake in going away?"

"Because he couldn't make a mistake if he tried. That's why." Oh, the defiance in the voice of Hazel.

"Heavens above, child! Men are only human beings and human beings make mistakes. Bill's a man, and he's liable to make mistakes like any other one of them."

"Not Bill," Hazel contradicted flatly. "He—he's different. He——"

Alarums and excursions without—the gallop of several horses, shouts of men, the jingle and stamp of riders dismounting at the door. Entered then Felix Craft and Sam Larder with drawn guns, in their rear the district attorney, likewise with weapon displayed.

"Whose horse is that?" Craft demanded, fixing Hazel with a baleful eye.

"If you mean the one tied to the wagon," replied Hazel, "it belongs to Sally Jane Prescott."

"What of it?" demanded Sally Jane, appraising the trio with a cool glance.

"Visitors in my kitchen take off their hats," reminded Hazel severely.

The three men sheepishly removed their hats and sheathed their firearms.

"That's better," said Hazel. "You don't know how silly you looked, rushing in here brandishing your guns that way. I was quite frightened for a minute." Here she giggled and winked at Sally Jane.

"We thought maybe Bill Wingo was here," said Craft.

"And what made you think Bill Wingo was here?" asked Hazel.

"That horse outside," he replied, watching her shrewdly. "Do you mind if I search the house?"

"I certain do mind!" cried Hazel. "You dare search this house! Just you try it!"

"I'll bet the man's here," struck in the district attorney, pushing to the front. "Good thing we surrounded the house first. If you've got Bill Wingo hidden anywhere, you give him up, do you hear, Hazel?"

"Miss Walton to you, do you hear, Rale?"

He eyed her a moment venomously.

"Gettin' particular, ain't you?" he sneered. "Any one would think—" His tongue ceased suddenly to wag as she dipped the floor brush in the dirty water of the bucket and drew back her arm.

"Yes?" prompted Hazel, her eyes beginning to glitter with a dangerous light.

"Nothing," capitulated the district attorney and tried to smile. "I was thinking of a joke I heard last night, Miss Walton."

"That's better," approved Hazel.

"Look here," said the district attorney, "if Bill Wingo ain't here, what did you go to town for to-day and buy all those supplies?"

Genuine astonishment showed on Hazel's countenance. "Those supplies were my regular supplies. Don't you suppose I buy something to eat once in a while?"

"Queer you should have come in and got that stuff the day after Tip O'Gorman was murdered."

"We figure," said Sam Larder, "that Bill Wingo will have to eat right along, and that unless he's left the country, it's natural he'll get his supplies from his friends, and we know that you drove in town and bought supplies this morning."

"Well, I've told you who I bought 'em for," snapped Hazel. "Anything else?"

"There is," said the district attorney smoothly. "We're going to search the house."

"You won't take my word that Bill Wingo isn't here?" demanded Hazel.

"In a matter like this we can't," replied the district attorney.

"One moment," murmured Hazel, stepping back.

The next instant she had jerked her Winchester off the hooks and cocked the hammer. "Now," she resumed, holding the weapon level with her belt, "now go ahead and search the house."

The district attorney, with a haste that was ludicrous, slid behind the fat bulk of Sam Larder. Even Felix Craft smiled.

"She's bluffing," declared the district attorney. "I'll go out and get the marshal."

He departed hurriedly, to return almost immediately with Red Herring. The latter, sheepish as to the face and with shambling legs, advanced into the room. The district attorney pointed dramatically at Hazel.

"Arrest her," he directed.

"Huh?" remarked the marshal, eyeing Hazel's artillery.

"Arrest her, I said. To threaten with a deadly weapon is a statutory offense."

"Well, I dunno," balked the marshal.

"Go on and arrest her. I'll back you up."

"Will you?" Absolutely no enthusiasm on the part of the marshal.

"G'on! What are you waiting for?" barked the exasperated district attorney.

"I'm waiting for her to put up her gun," was the truthful reply.

"What you afraid of? She won't shoot. She's only bluffing, I tell you."

"You arrest her then. I ain't none sure I got a right to. I'm only supposed to make arrests in town. You better get one of the deputies to arrest her, Arthur, I—I'd rather you would."

The marshal oozed outdoors. The district attorney said something.

"No more of that," Sam Larder enjoined him. "You stop your cussin', you hear. There's ladies present."

"Where?" the district attorney demanded, staring about him insolently.

"My father will ask you what you mean by that," said Sally Jane.

"I didn't mean you," mumbled the angry man, perceiving that he had gone a little too far. "I—I was a li'l hasty, I guess. No offense, ladies, I hope."

He achieved a clumsy bow and again faced Hazel. "Now, look here, you can't go on acting this way, you know. You're only hurting your own case. Be reasonable, be reasonable."

"And let you poke all through my house!" she snapped him up. "Not much. I don't want any trouble, but I'll have to shoot the first man that goes beyond this room."

"Told you you'd get her all stirred up," said Sam Larder.

"We didn't want you to come along anyway, Rale," contributed Felix Craft. "You're too baffle-headed for any human use. Y'oughta take things more easy with the girl. If you'd left it to us, everything would have been all right."

"I suppose busting in with your guns pulled is one way of taking it easy."

"I notice you had yours out," supplied Felix.

"I thought the man might be here, same as you," defended the district attorney.

"Which is why you let us go first," sneered Sam.

"When you're quite through bickering among yourselves—" drawled Hazel.

"I wish you'd point that rifle somewhere else," the district attorney remarked uneasily.

"It's all right where it is," was the instant return.

"I could arrest you, you know, if I wanted to," he pointed out.

"I heard you say something like that to the marshal," nodded Hazel.

The district attorney stared a moment.

"Huh!" he muttered finally and strode to the door. "Hey, Red!" he called. "Come here a minute, will you?"

"Now I ain't gonna arrest her for you and that's flat!" announced a sulky voice without.

"Nobody's asking you to. Come in, man, come in."

The marshal sidled in, stumbling in his efforts to keep one eye on the district attorney and the other on Hazel's Winchester.

"You were in Nate Samson's store this morning, weren't you, Red?" It was more of a statement than a question.

The marshal immediately gave the district attorney the full benefit of both eyes. "Huh?"

"You were there when this girl, Miss Walton, made some purchases, weren't you?"

"Yeah," admitted the marshal.

"When Nate told her of the murder and the warrant sworn out again Bill Wingo, what did she do?"

"Why—" stuttered the marshal.

"She flew into a rage, didn't she? She threw a knife at Nate, didn't she?"

"Who told you all this?" the marshal wished to know.

"Nate told me."

"Damn Nate, that's all I got to say," pronounced the marshal, disgusted at the duplicity of a former friend. "I was wonderin' where you got the notion so sudden of coming out here. Damn that— Excuse me, Miss, for cussin'. What's that you want to know, Rale? Yes, I was there and she slung a knife at Nate. With any luck she'd had hit him and serve him right, the flat-tongued snitch."

"There now," exclaimed the triumphant district attorney, "you hear that, Miss Walton? You drove into town the morning after the murder. When you are told of the murder and the warrant, you fly into a passion and try to kill the inoffensive storekeeper who told you the news. Not content with this, you throw what you've already bought at the storekeeper and make your purchases at the other store. I have learned that among the purchases were twelve boxes of .45-90 rifle cartridges and six boxes of .45 caliber Colt cartridges. I have reason to believe that these cartridges are not intended for your personal use. In fact, I am positive you bought them for the murderer, William H. Wingo."

The marshal glanced quickly at the district attorney. He himself had not been aware of the ammunition item. The marshal inwardly cursed the district attorney and Nate Samson.

"Well," boomed the district attorney, when Hazel did not instantly speak, "what have you to say?"

"Plenty," said she then. "I bought those cartridges for my personal use. This Winchester is a .45-90 and my six-shooter is a .45. I guess I've got a right to buy ammunition now and then if I like."

"Rats!" snarled the district attorney, stiff in his conceit. "What does a girl want with two hundred and forty rifle cartridges and three hundred revolver cartridges? Those revolver cartridges especially? You won't have use for 'em in ten years. You bought them for Bill Wingo. You can't fool me! You know where he is, you know you do, and I know you do, and I intend to put you in jail as a suspicious character until you tell us where he is."

"What a filthy animal you are, anyway, Rale! I didn't know such things as you lived!" Thus Sally Jane, her upper lip fairly, curling with disgust.

"When I get back to Golden Bar, Miss Walton," fumed the district attorney, unmoved by the insult, "I intend to swear out a warrant for your arrest, and have it served by deputy sheriffs. If necessary, I shall swear in deputies other than the two men, Shotgun Shillman and Riley Tyler, for the purpose of serving this warrant. I intend to have the law obeyed."

"She ain't busted any law that I can see," struck in Sam Larder gruffly.

Neither he nor Felix Craft had intended to go as far as an actual arrest of the girl. They were bad enough, in all conscience, but they drew the line somewhere.

Felix Craft shook his head. "No arrest, Arthur. That don't go."

"I can arrest her, I tell you," insisted the district attorney.

"No," said Craft firmly. "Miss Walton," he went on, turning to the girl, "we were a li'l excited when we came in here. Seeing that horse outside and all, we got the idea that maybe Bill was here. Will you give us your word he isn't?"

"Why, certainly," she said. "Bill isn't here, I give you my word."

"Fair enough," said Craft. "We'll be going. Come along, Arthur, move."

He and Sam hustled the district attorney out between them. Craft called in the cordon of horsemen that had surrounded the ranch-house.

"Crawl your horse, Arthur," ordered Craft. "What you waiting for?"

Arthur, swearing heartily, did as directed. "I don't see why you don't want me to have her arrested," he said in part as they rode townward. "A few days in the cooler——"

"No sense in it," declared Craft. "A lot of folks in the county wouldn't like it either, she being a woman and a good-lookin' one besides. You leave her alone."

"Yeah," slipped in Sam, "wait till you get some real evidence against her. Suspicion ain't anything."

"It would be enough for me to arrest her all right," persisted the district attorney.

"Blah! You couldn't hold her a week," averred Craft, "and you know it. And lemme tell you, I don't believe she knows any more about Bill Wingo than I do. You know they busted up this winter some time."

"Changed your tune mighty sudden," sneered the district attorney. "On the way out you were as sure as the rest of us we'd get some kind of a clue at Walton's. Those cartridges——"

"Dry up about those cartridges!" exclaimed Felix. "You got cartridges on the brain."

Then the wrangle became general.

Hazel, standing in the doorway, watched the cavalcade disappear around the bend in the draw.

"I guess," she said, taking a box of cartridges from the top shelf and snicking open the sealing with a finger nail, "I guess I'd better load this rifle."

CHAPTER EIGHTEEN

THE BARE-HEADED MAN

"But I rode over here especially to bring you back with me to stay a while, a long while, as long as you like and longer." Thus Sally Jane, looking injured.

Hazel shook her head. "Can't, dear. Honestly, I'd like nothing better than to go a-visiting, but I've just got to look after the ranch."

Sally Jane gazed at her friend a moment in silence, then: "You don't really have to stay here, Hazel. You only think you do. You'd much better come over and stay with us. You know I'd love to have you, and this is no place for you all alone by yourself this way. Suppose——"

"Who'd hurt me?" interrupted Hazel. "Anyway, I'm not going to be driven off my own ranch by anybody. I'm going to stay here until I find a buyer for the place."

"But that may be a year," objected Sally Jane.

"It may be several years. Money's awfully tight just now, the Hillsville cashier said, the last time I was over."

"I don't care, somebody—some man ought to be here. Can't you get Ray back earlier than usual?"

Hazel shook her head. "I don't want to, Sally Jane. He went east to Missouri to visit his folks, and I'm not going to spoil his good time. He'll be

back in time for the spring round-up, though."

"That won't be till next month," objected Sally Jane. "Anything might happen in the meantime. Land alive, just look at this afternoon!"

"Well, look at it. Not a thing happened to hurt, did it? Lord, Sally Jane, men are the easiest things in the world to handle when you know how."

"You don't give them half enough credit," said Sally Jane dryly. "Scratch a man and you'll catch a savage every time. Beasts!"

"Rats!" remarked Hazel, and gave her head a toss and turned her attention to practical things. "*Look* at this clean floor! *Look* at the dirt they tracked in! Oh, the devil! I could swear!"

She fetched a fresh bucket of water and began to scrub the floor anew.

"I'm going," announced Sally Jane. "Once more, Hazel, won't you change your mind and visit with us for a while?"

Hazel shook her head. "I only wish I felt able to. But you don't have to go yet. Stay to supper, do. Let the male parent get his own supper for a change. It won't hurt him. And there'll be a fine old moon to-night about eight."

"I promised Dad French bread for to-night, or I would. I can't disappoint him. So long. Ride over first chance you get."

When Sally Jane was gone, Hazel hurried to finish the scrubbing of the floor. When she had wrung out the last mop rag and hung it to dry behind the stove, she fed the chickens and horses, took the ax and bucksaw, went out to the woodpile and sawed and split a man's size jag of stove wood and kindling.

In the red glory of the sunset she returned to the house with her arms piled high with wood. She made sufficient trips to fill the woodbox, then started a fire in the stove, put on the coffeepot and ground up enough coffee for four cupfuls. She liked coffee, did Hazel Walton.

Bacon and potatoes were sputtering in their respective pans on the stove before it was so dark that she was forced to light the lamp.

She had slipped back the chimney into the clamps and was waiting for it to heat so that she could turn up the wick when the faintest of creaks at the door made her look up.

She did not move, just stood there staring stupidly at the bareheaded man that blocked the open doorway. For the bareheaded man was Dan Slike, his harsh face rendered even less prepossessing than usual by a week's stubble of beard. A six-shooter was in Dan Slike's hand, and the barrel was pointing at her breast.

"Don't go makin' any move toward that rifle on the hooks back of you," said Dan Slike, slipping into the room and closing the door behind him. "If you do, I'll have to beef you. I don't wanna hurt you—I ain't in the habit of hurting women, but by Gawd, if it comes to me or you, why it'll just naturally have to be you. Dish up that grub a-frying there on the stove. I'm hungry. Get a move on."

At that she turned in a flash and reached for the Winchester. She had it barely off the hooks when Dan Slike was beside her. With his left hand he seized the gun barrel and shoved it upward. And as he did so, he smote her across the top of the head with his pistol barrel.

A rocketing sheaf of sparks danced before her eyes and her knees gave way. She sank to the floor in a dazed heap. He dragged the Winchester from her failing grasp as she fell.

He began to work the lever of the rifle with expert rapidity. A twinkling stream of cartridges twirled against his chest and fell to the floor. Carefully he gathered all the cartridges and dropped them into the side pocket of his coat. The unloaded rifle he leaned against the door jamb.

Hazel slowly raised her body to a sitting position. She clung to a leg of the table for support. She passed a hand very tenderly across the top of her head. She felt a little nauseated.

Dan Slike, watching her with hard, bright eyes, strode to the stove and poured himself out a cup of coffee. He spaded in a spoonful of sugar and stirred the mixture meditatively. But he did not cease to watch her.

"You'll be all right in about ten minutes," he said calmly. "I didn't hit you so awful hard. I didn't go to. Gawd, no! I figure always to be as gentle with a woman as I can. No sense in bein' rougher than you got to be, I say."

He drank the coffee slowly, with evident enjoyment.

"Nothing like coffee when your cork's pulled," he rambled on, sloshing round the last of the coffee in the bottom of the cup. "It beats whisky, but now that I've had the coffee I don't care if I do. Got a bottle tucked away somewhere, li'l girl?"

She was still unable to speak. Her mouth had an odd, cottony feeling. She shook her head in reply to his question.

"Is that so?" he said in the chatty tone he had been using. "I guess maybe you're mistaken."

He set the cup down on the table, reached down and twisted his fingers into her hair. With a yank that brought the tears springing to her eyes, he said:

"About that bottle now—ain't you a mite mistaken? What's the matter? Cat got your tongue?"

Again he pulled her hair, pulled it till the tears ran down her cheeks, and she moaned and cried in purest agony.

"C'mon!" directed Dan Slike. "Quit your bluffin', you triflin' hussy! You ain't hurt a-tall. And I can't stay here all night while you sit on the floor and beller. Stand up on your two legs and bring me that bottle. And no monkey business either. Say, have you got a six-shooter? Answer me, have you?"

"No! No! I haven't! I haven't another gun." She told him this lie in such a heart-breaking tone that he was constrained to believe her.

"I'll have to take your word for it," he grumbled. "But you remember, girl, the first false move you make with a knife or anything else, I'll blow you apart. Damn you, get up!"

With which he gave her hair such a terrific twist that the exquisite pain expelled all her initial fear of him, and she leaped at him like a wildcat, her nails curving at his eyes.

Dan Slike dodged backward, set himself and swung his right fist without mercy. He was no boxer. The accurate placing of blows was beyond him. So it was that the swing intended for her jaw landed on her cheekbone, a much less vulnerable spot. Nevertheless the smash was enough to send her spinning sidewise over a chair and piled her sicker and dizzier than before in a corner of the room.

She lay still and panted.

"You see how it is," he pointed out. "You ain't gainin' a thing by fighting me. Might as well be sensible first as last. But lemme tell you if you keep on a-fussin' at me thisaway, I'll sure have to be rough with you."

He sat down on the edge of the table and rolled a cigarette. Lighting it he drew in a slow luxurious lungful.

"One thing I gotta say for your sheriff," he observed behind a barrier of smoke, "he gimme plenty of tobacco while I was his guest. I can't say but he took right good care of me—for a sheriff."

His incarceration having deprived Dan Slike of conversational opportunities, he was now experiencing the natural reaction. He was talking too much.

"Fed me well too," he resumed. "Oh, I ain't complainin'. I—Hell, your grub's beginnin' to burn. I'll just move those frypans back. Feelin' any better, girl?"

He came and stood over her, hands on hips, and looked down at her grimly. She shrank away, her wide eyes fixed upon him in fright and

loathing.

It was evident that he found his survey of her satisfactory, for he kicked her in the side. Not hard. Simply as an earnest of what lay in store for her in case she chose to continue contumacious. "Get up," he commanded.

The nausea and most of the dizzy feeling had evaporated. She was perfectly able to get up, but it was intolerable that she should do the bidding of her uncle's murderer. She continued to lie still.

"Get up!" he repeated, and kicked her again—harder.

She got up, gasping, a hand at her side. She felt as though one of her ribs was broken. His long fingers fastened on the tender flesh of her shoulder. He shoved her across the room. She brought up against the stove. Instinctively she thrust out a hand to save herself. Her bare palm smacked down upon the hottest stove lid.

She sprang back with a choked cry and clapped the burned hand to her mouth.

Dan Slike laughed merrily—for him. "Serve you right. You're too damn pernicky, anyway. Aw, whatcha blubberin' about, cry-baby? Dontcha know enough to put some bakin' soda on the burn and tie a rag round it? Ain't you got any brains a-tall? Pick up that kettle! Just pick it up!"

Her unburned hand fell away from the kettle. She had seen the six-shooter flash out at his last words. She knew now that this man meant what he said. He would kill her, even as he had killed her uncle.

With a shudder that began at her knees and ended at the nape of her neck she went to the cupboard and took out a carton of baking soda.

"Here," he said roughly, when he saw that she was making a poor job at bandaging, "here, you can't tie that one-handed. Lemme."

He bandaged the hand, made fast the bandage with a too-tight knot. He obviously lingered over the business, deriving pleasure from her state of

terror.

It has been shown that Hazel was not lacking in courage. Indeed, she had more than the average woman's share of it. But this man staggered her mentally. She did not know what he would do next and was in a panic accordingly.

"Scared stiff," he remarked, as he twirled her about and headed her toward the stove. "You don't like me a-tall, do you? Nemmine. Lessee how your grub tastes."

She had set the table for herself before he came in. He sat down at her place, his eyes bright upon her. Fumblingly she filled a plate with bacon and fried potatoes. She brought him another cup of coffee and placed the condensed milk and the sugar within his reach.

"Spoon," he said shortly.

She took the one from the cup he had just drunk from and handed it to him. He caught her wrist. The spoon fell with a clatter.

"You're so scared of me, you can't hardly breathe," he said calmly. "I don't like li'l girls to be scared of me, so you can just get you another plate and cup and saucer and sit down there on the other side of the table and eat your supper with me."

To eat supper with her uncle's murderer! Here was a grotesque jape of fate. It was unthinkable. Absolutely. The man divined something of what was passing in her mind.

"All in the line of business, li'l girl," he said, with a backward jerk of his head toward the front room where he had killed her uncle. "I didn't have a thing against him—personally."

"There were dishes here on the table," she babbled hysterically. "They found them here after—after—showing how he'd fed you first, and——"

"Sure he fed me," he interrupted. "I was hungry, hungrier than I am now. Alla same, you gotta eat supper with me. I want you to, and I always get what I want."

He twisted her wrist to emphasize his wish. She uttered a little moan. "Don't! Oh, don't hurt me any more! I'll do what you want."

Beaten, body and soul, she went to the cupboard and got herself plate and cup and saucer, knife and fork and spoon. Her six-shooter was in the next room, hanging in a holster on the wall. A loaded shotgun stood at the head of her bed. But it is doubtful that even if the weapon had been within short reach, she would have dared attempt to use either. Dan Slike had scared her too much.

She sat down opposite the man and tried to eat. It required every atom of will power to induce her throat muscles to permit her to swallow. Dan Slike watched her with savage satisfaction. He found the situation intensely amusing. To murder her uncle and later eat a meal with the niece. What a joke!

"I haven't forgotten about that bottle," he remarked suddenly, pushing back his chair. "You thought it had slipped my mind, I guess, didn't you? I always have a drink after meals, or my victuals don't set good."

Without a word she went to the cupboard and brought back a bottle of whisky. He took it from her and held it up against the lamplight.

"This is only half full," he said severely. "You got another round somewhere?"

It was fright and not the lie that made her stammer. "Nun-no."

Oddly enough, he saw fit to believe her. Perhaps it was because he had just eaten and was at bodily ease with the world. She stood before him, arms limp, eyes on the floor. He drew the cork from the bottle and took a long pull.

"Good whisky," he vouchsafed between the third and fourth drags. "I'll take what's left with me—if you don't mind."

He was going then! Her poor terrified heart beat with a trifle more spirit. She looked up. Their eyes met.

"Don't look so happy!" he snarled. "Maybe I'll take you with me!"

He eyed her discomfiture with a sinister look. He uttered a short bark of a laugh. "Dontcha fret. I ain't got time to fuss with any female. Not that I would, even if I had time, so don't go flatterin' yourself any. Women ain't in my line. You're all a squalling bunch of Gawd's mistakes, every last one of you, and you can stick a pin in that. Women? Phutt!"

So saying, Dan Slike turned his head slightly and spat accurately through the open draft into the stove. An engaging gentleman, Mr. Slike!

"I saw two mules and a horse in the corral when I came by," he resumed, dandling the whisky bottle on his knee. "Looks like a good horse—better than the one I left up in the timber. I'll ride your horse and lead the other. Where do you keep your saddle and bridle? In the shed, huh? Aw right, you can show me when we go out. Listen, I expect to-morrow some time you'll have a few gents a-callin' on you. Yeah, to-morrow. It'll likely take those Golden Bar citizens till about then to pick up my trail. You needn't to look too hopeful. Those jiggers don't know they're alive. I saw 'em scatterin' off hell-bent the wrong way before I ever started this way, you bet. Why, hells bells, I even topped a horse behind a corral with the woman right in the house gettin' supper, and she never knowed it. Tell you, girl, I'm slick. And if I didn't have more sense in the tip of my finger than all those fellers and their li'l tin sheriff and his li'l tin deputies, I'd be a heap ashamed of myself. Say—about that sheriff; I heard folks talkin' in the street this afternoon and they said the sheriff had skedaddled because he'd murdered a sport named O'Gorman. A fi-ine sheriff he is, to slop around turnin' tricks like that. A fi-ine sheriff, and you can tell him I said so."

He drove in the cork with the heel of his hand and slipped the bottle into a side pocket of his coat. Standing up, he tapped her smartly on the

shoulder. "Get me that hat over there on the hook. I left town in such a hurry I clean forgot to fetch mine along."

Silently she brought the hat.

"Why do you women always wear hats too big for you?" he grumbled, after trying it on. "I couldn't keep this thing on my head."

She had brought an Omaha newspaper from town that day. It lay outspread on the table. He tore off a half page, plaited it neatly and stuffed the thickened strip in behind the sweatband of the hat.

"It will fit me now," he said briskly, pulling on the hat. "Gimme those cantenas and saddle pockets hanging on the wall."

She obeyed stumbingly. Into the cantenas, from her store of provisions, he packed bacon, coffee, a sack of flour a third full, a tin can full of salt, another can filled with matches, a salt pack full of sugar, several cans of tomatoes and peaches, a frying-pan and a small can of lard. In the saddle pockets he stowed away the twelve boxes of rifle cartridges, the six boxes of revolver cartridges and a knife, fork and spoon. The long-bladed butcher knife he nonchalantly slipped down his boot-leg.

"I'll tie the coffee pot on the saddle," he said, buckling the billet of a cantena flap. "It's too wet to go in here. Can't take a chance on spoiling my flour. C'mon, le's go find the saddle."

CHAPTER NINETEEN

THE PERSISTENT SUITOR

"You see," said Dan Slike, as he topped his mount, "I ain't really been hard on you. I didn't ask you for a nickel. I only took what I needed. And if

you hadn't fought me like you did, I wouldn't have laid a finger on you. Think of that and be happy."

He whirled the horse and rode away toward the lower ground behind the house, the coffeepot clacking rhythmically against the barrel of the Winchester Hazel had vainly hoped he would forget to take with him.

Hazel remained standing beside the corral gate. Suddenly she was conscious of a great weariness. She was as one who has traveled a day's journey without food. Her arms and legs were leaden. Her head ached, her body ached, her spirit ached.

With dragging steps she returned to the house. From the cupboard she brought forth the bottle of whisky she had lied to save and poured a stiff four fingers into a teacup. She drank off the liquor in three gulps. But she was so spent that, other than a fit of coughing, there was no effect.

The lamp was burning low and fitfully, filling the kitchen with a smell of burning wicking. She had forgotten to refill it that morning. She put away the whisky bottle, turned out the lamp and filled it by the faint light from an opened draft-chink. But in reaching for the chimney, she knocked it to the floor and broke it.

Apathetically, every movement mechanical, she found another chimney and adjusted it in the clamps. A smell of burned hair suddenly filled her nostrils. A lock of hair had fallen against the lamp chimney. She put her hand to her head. Her hair was in a slovenly tangle over one ear. She did it up any way and skewered it fast with a few pins.

Crunch! The remains of the lamp chimney crackled under foot. She brought out the dustpan and brushed and swept up the pieces. She carried the broken glass out to the trash pile. When she returned to the kitchen, there was a man standing in the middle of the room.

Nothing had the power to surprise her now. She would not have been amazed had the devil himself popped into the room. The man turned at her entry. He was Rafe Tuckleton. He glowered down at her. She shut the door and put away the dustpan and brush behind the wood-box.

"What do you want?" she asked lifelessly.

"Who's been here?" he demanded, pointing an accusing finger at the table. "Two plates, two cups, two saucers—who you been entertaining?"

Entertaining! Good Lord! Hazel sat down on the wood-box and laughed hysterically.

He was around the table and confronting her in three strides. "Who's been here?" he kept at her.

"Dan Slike," she said with a spasmodic giggle.

"You're a liar," he told her promptly. "Dan Slike didn't come this way. He—he went another way. There's a posse on his trail now. You've had Bill Wingo here, that's whatsamatter."

"I haven't," she denied, wagging her head at him. "Dan Slike was here, I tell you."

"The hell he was. You must think I'm a fool. Bill Wingo's been here, I tell you. Think I don't know, huh, you deceivin' hussy! Trying to make small of me, carryin' on with other men, huh?"

She said nothing. It is doubtful if she heard him, for all his roaring voice and gesturing fists. Billy Wingo! *Her* Billy—once. He had loved her too—once. What a queer, queer world it was. Everybody and everything at cross-purposes. Yet there was a reason for it all. Must be. Even a reason for Rafe. She looked up at Rafe. He was glaring down at her with a most villainous expression on his lean features.

"How long has Bill Wingo been gone?" he demanded.

"It wasn't Bill," she insisted doggedly. "It was Dan Slike, and he's been gone maybe half an hour."

"Say, whatsa use of lyin' to me? You're an odd number, by all accounts, but you ain't so odd you could sit here and eat and drink and carry on with your uncle's murderer. You can't tell me *that*."

She was regarding him with curious eyes. "I thought you always said Dan Slike didn't kill my uncle?"

"Well—uh—you see, everybody else seems to think he did. And—ah—maybe I was wrong. Anyway, say I was. For all I know to the contrary, he did kill your uncle. What's fairer than that, I'd like to know? You think he killed Tom Walton, don't you?"

She continued to stare at Rafe. "I know he did."

"Then how do you expect me to believe you ate supper with him? You're foolish. You had Bill Wingo here, and we'll settle this Wingo business right now. You see, don't you, how you can never marry the feller? This Tip O'Gorman murder has queered him round here for keeps. Sooner or later he'll hang for it. You'd look fine wouldn't you, the widow of a——"

"Don't say it," she cut him short. "Billy Wingo is no murderer. He fights fair, which is more than I can say for you. However, you can set your mind at rest. I'm not likely to marry Billy Wingo, or anybody else."

"Then what do you care whether I call him a murderer or not, if you don't love him?" he probed. "I thought a while back you had taken my advice and busted it off with Bill, but now after hearin' what you tried to do to Nate Samson, and all that ammunition and grub you bought to-day, the day after Tip was killed, why I began to think maybe you was startin' in to play the Jack again. I told you last fall I was gonna have you myself. You ain't forgot it, have you?"

His eyes, savage and mean, held hers steadily. "I come over here, to-night to get you. I'm taking you back with me to-night to my ranch. Tomorrow you can marry me or not. It'll be just as you say."

"You're taking me to your ranch!" she gasped. "*Me?*"

He nodded. "You, nobody else."

She laughed harshly without a note of hysteria. "You're two hundred years behind the times. Men don't carry off their women any more."

"Here's one that will," he told her. "You're going with me, y'understand. And you needn't stop to wash your face or change into petticoats either. I'm not letting you out of my sight. If you wanna take any extra duds along, you can wrap 'em up. What's the answer—you going willing or will I have to tie you up in a bundle?"

"You idiot, even your friends wouldn't stand you turning such a trick as this! I'll bet you couldn't get your own men to help you. That's why you had to come alone."

His suddenly bloating features gave evidence that her shot had told. Bending down, he shook her shoulder roughly. And now for the first time she smelt his breath. It was rank with the raw odor of whisky. So that was what had given him the wild idea of carrying her off by force. The man was drunk. Sober, he was bad enough. Drunk, he was capable of anything.

She reached stoveward for the lid lifter. Rafe seized her wrist and jerked her sidewise.

"None of that!" he snarled. "Gonna get your clothes or not?"

"I'll get them," she said calmly. "Let go of my wrist."

If she could win into the next room where the six-shooter was hanging on the wall, it might be possible to—but he did not release her wrist.

"I'll go with you," he told her with a leer. "You're too slippery a customer to trust alone."

As he turned with her, the lamplight fell full on his face, and she saw that his eyes were bloodshot! He also saw something that had hitherto escaped his notice. He saw the whisky bottle on the shelf in the cupboard. She had neglected to close the cupboard door.

"I'll have a short drink first," he said, and dragged her to the cupboard.

He was holding her left-handed. She was on the wrong side to reach his gun. Nevertheless she swung her body in front of him and snatched wildly

at the pistol butt.

He did not divine her intention but thought she was trying to keep him away from the whisky. The result was the same, for he wrenched her back with a twist that started the tears in her eyes.

Holding the bottle in one hand, he drew the cork with his teeth, spat it out and applied his lips to the bottle neck. He swallowed long and generously. Hazel saw his Adam's apple slide up and down a dozen times. At such a rate the man would be a fiend in no time.

"Let me get my clothes," she begged.

Anything to get him away from the liquor. But Rafe was not so easily separated from his old friend.

"Wait a minute," he said peevishly, lowering the bottle and fixing her with his bloodshot gaze. "Don't be in such a hurry. Here, have one yourself."

He thrust the bottle toward her. She took it from him, held it to her mouth and then the bottle seemed to slip from her fingers. She snatched at it, juggled it a split second and—the bottle smashed in bits on a corner of the stove.

"Oh, I'm so sorry!" she cried, quite as if she had not contrived the catastrophe on purpose.

"I'll make you sorrier!" Rafe exclaimed and without more ado cast both arms around her.

He was striving to kiss her and she, face crushed against his rough shirt, fought him like the primeval female every woman becomes in like circumstances. Her right hand clawed upward at his face. Her left arm, doubled between their two bodies, she strove to work free so that she could grab his gun.

Rafe received three distinct clawings that considerably altered the appearance of one side of his face, before he was able to confine those active fingers.

"Here!" he bawled in a fury. "I'll fix you!"

He tried to seize her by the throat and his thumb slipped by mistake into her mouth. She promptly clamped down hard on the thumb. With a yell, Rafe released his grip on her body and worked a thumb and ring finger into her cheeks in a frantic effort to force open her locked jaws.

Suddenly she opened her mouth. Rafe sprang back a yard, shaking a bleeding thumb and swearing, and as he sprang she dragged the six-shooter from his holster.

Her palm swept down to cock the gun. But Rafe was as quick to see his danger as Dan Slike had been. He made a long arm as he hurled himself at her and knocked the barrel to one side at the moment of the shot. Before she could fire again, he had torn the weapon from her grasp and flung it across the room.

"You tried to murder me!" he panted. "You tried to murder me!"

She dived headlong beneath his arm, but he caught the slack of her overalls as she went by and dragged her to a standstill. She immediately butted him in the stomach with her head. He stumbled back but caught her arm. Her head flashed down and her teeth fastened on his wrist. Again he broke the grip of her teeth by the application of ring finger and thumb to her cheeks, and then he reached purposefully for her throat and began to strangle her in dead earnest.

She kicked and thrashed about like a wild thing in a trap,—as indeed she was. Her nails scratched desperately at his arms. She might as well have been petting him. Tighter and tighter became the choking grasp of those long fingers. She could not breathe. Her temples were bursting. Her head felt like a balloon. With her last flare-up of failing strength, she kicked him on the knee-cap.

He jumped back against the wall, dragging her with him, and began to shake her as a dog does a rat. And then the old Terry clock did that for which it surely must have been originally made. For, as his shoulders struck the wall, his head knocked away the support of the bracket that held the clock. Involuntarily he ducked his head. It was the worst thing he could have done, giving, as it did, the clock an extra foot to fall. It fell. One corner struck him fairly on the temple and knocked him cold as a wedge.

When Hazel's reeling senses had reestablished their equilibrium, she found herself on the floor, lying across the inert legs of Rafe Tuckleton. She raised herself on her two arms and looked at him. He was breathing very lightly. It occurred to her that it would not worry her overmuch if he breathed not at all.

She dragged herself on hands and knees to where he had thrown his six-shooter. She picked it up and threw out the cylinder. Evidently Rafe was accustomed to carry his hammer on an empty chamber, for there were four cartridges and a spent shell in the cylinder. She ejected the spent shell, crawled back to the senseless Rafe and plucked two cartridges from his belt.

She loaded those two empty chambers and cocked the gun. Then she pulled herself up into a chair at the table, and leaning across the cloth, trained the six-shooter on Rafe's stomach.

And as she sat there watching a senseless man through the gunsights, it suddenly seemed to her that she was not one person, but two,—herself and a stranger. And the Hazel Walton that had gone through the evening's adventures was the stranger. She herself apparently stood at one side observing. But she saw the room and its contents with new eyes, the eyes of the stranger. It was a most amazing feeling, and she was oddly frightened while it lasted.

Slowly the feeling passed as her muscles renewed their strength, and her jangled nerves steadied and quieted. She came back to herself with a jerk as Rafe Tuckleton stirred and put his hand to his head. She saw the hand come away covered with blood. That side of Rafe's head being in the shadow she had not previously noted that it had sustained a shrewd cut.

Rafe groaned a little. He rolled over and sat up, his chin sagging forward on his chest. He moved his head and looked at her vacantly. The blood ran down his cheek and dripped slowly off his chin.

The light of reason glared of a sudden in Rafe's eyes. She could see that he was absorbing the situation from every angle.

"I'll give you five minutes to pull yourself together and get out," she announced clearly. "If you're still here by the time I've counted three hundred I'll begin to shoot."

Rafe started to go by the time she reached sixty. With the six-shooter pointing at the small of his back, her finger on the trigger, step by step she drove him out of the house to where he had left his horse.

Hazel watched him ride away and after a little become at one with the moonlit landscape. She walked back to the house. She felt that she was taking enormous strides. In reality she was stepping short and staggering badly. She went into the kitchen. She closed the door, dropped the bar into place and fell into the nearest chair.

"My God!" she said aloud, "I wonder what will happen next?"

CHAPTER TWENTY

A DISCOVERY

"I tell you I ain't satisfied," nagged the district attorney.

"Say something new," growled that amiable person, Felix Craft.

"If you fellers weren't blinded by a pretty face, you'd see it like I do."

"The girl said those cartridges were for her own personal use," pointed out Sam Larder, scratching a plump ear. "I believe that girl."

"You can't believe any girl most of the time," denied the district attorney.

"And where a girl's feller is concerned, you can't believe her any of the time. Sam, can't you understand a girl will lie just for the fun of it, if she hasn't any other reason. It's female nature to act that way. You've got to take it into consideration and make allowances accordingly, when dealing with a woman. You can't trust 'em, damn 'em, one li'l short inch."

Sam grinned at Felix. "Ain't he got a pleasant nature."

"Milk of human kindness has curdled in him complete," declared Felix.

"Never you mind about any milk of human kindness. I ain't got a smidgin of it with a girl like Hazel Walton, the lying hussy."

"Do you know, Arthur," said Sam solemnly, "I don't believe you like that lady."

"I don't," admitted the district attorney, and wondered why both men laughed.

"Be a Scotchman," advised Sam Larder, "and give her the benefit of the doubt."

"I'd like to give her a good swift week or two in jail," snarled the district attorney. "That would bring her to her senses. That would make her talk."

"Well, you can't do it," said Felix, weary of the argument. "So why waste your breath?"

"Tell you what I can do," said the district attorney, brightening with hope. "I can go out to Walton's and question her some more."

"Good Gawd, ain't you had enough ridin' for one day?" said Sam.

"I'm good for a li'l bit more."

Felix laughed. "I had to laugh to-day. First time you ever went out with a posse, I guess. Guess they must have thought you were crazy."

"I know damwell Shotgun and Riley Tyler thought so," declared Sam. "They kept a-looking at you almighty hard."

The district attorney nodded. "They're a suspicious pair, those two. I'll give you fellers credit. If it hadn't been for you, I'd never have been able to bluff it through! I don't think anybody suspects anything out of the way."

"Only that you're a damfool, Arthur. And they don't suspect that. They're absolutely sure of it."

"Alla same," said Felix, "it's a good thing Sam Prescott wasn't along. It would have been just like him to make out those tracks we followed were a day old instead of one hour."

"I was worried some," admitted the district attorney, "when Shotgun Shillman said they were too old to be the marks of Dan Slike's horse."

"That didn't bother me," declared Felix. "I knew it would be all right if we could contradict him fast enough and loud enough before anybody else could agree with him. Folks are like sheep thataway. They'll most always believe the boys makin' the most noise. No, Shotgun didn't bother me any. What made me feel like scratching my head was where the tracks crossed the stage trail. There were the hoof-marks and wheeltracks of the stage overlying the horse-tracks we were following. I drew a long breath when I had 'em blotted out, you can gamble on that."

"Was that why you rode ahead and twisted your horse round and round on the trail so funny?"

"Sure that was why. Why else do you suppose?"

"I never thought of the stage passing," said the district attorney.

"No, you wouldn't, of course not. I don't see, Arthur, when you made those tracks so careful in the first place you couldn't have kept off the stage

trail. It wasn't necessary, and it mighty near put the kibosh on the whole deal."

"I wanted to end the trail in the west fork of the Wagonjack," defended the district attorney. "It seemed like a good place."

"It was—only for the stage trail being in the way," said Felix warmly. "If that infernal Wildcat Simms had come up half-a-minute earlier he'd seen how those horse tracks lay, same as I did. Oh, lovely! Wouldn't it have been a joke?"

"Well, it ended all right, anyway," offered the district attorney pacifically.

"I didn't like to have that Slike jigger get off that-away," grumbled Sam Larder. "I'd like to see him hung, the lousy murderer! I wish we could have worked it some other way."

"There wasn't any other way," the district attorney hastened to assure him. "We couldn't risk having Slike tried. He'd have snitched on Rafe Tuckleton, sure as fate. It was the only thing for us to do, and you know it."

Sam nodded. "I know, but——" He left the sentence unfinished.

"Now that we've got Dan out of the way," the district attorney pattered on, "we've got to glom onto Bill Wingo, and the sooner the quicker. Me, I'm going out to Walton's to-night and question Hazel some more. You boys don't have to go, you know. I can get hold of somebody, I guess."

"We'll go," said Sam Larder decidedly. "I ain't a heap attracted by your methods with the ladies, and I intend to see the girl gets a square deal."

"Me too," chimed in Felix Craft.

The district attorney was none too well pleased and showed it. "I'll get two other jiggers then," he grumbled.

"Why not another posse?" suggested the sarcastic Mr. Larder. "Us three might not be able to handle her by ourselves."

"Suppose Bill Wingo is there, then what? We took a big bunch before and——"

"And got damwell laughed at by the whole town for our trouble," snapped Sam. "Serves us right. Wild goose chase, anyway, and to-night will be another. C'mon, if you're goin'."

The moon was high in the heavens when the three men came to the mouth of the draw leading to the Walton ranch. A quarter-mile up this draw they came upon a man standing beside a horse. This man they surrounded immediately. He proved to be the town marshal, Red Herring, engaged in the prosaic business of tightening a slipped cinch.

"What are you doing here," demanded the district attorney.

"Same thing you're doing," the marshal returned sulkily.

"It ain't necessary for you to be watching the Walton ranch," said the crotchety district attorney.

"I got as much right to the reward as the next one, I guess," flared the marshal. "If I wanna watch the ranch, I guess I got a right to do that too. You don't want to cherish any idea that you own the earth and me too, Artie Rale!"

"Well, you can ride along with us if you want to," condescended the district attorney.

"Thanks," said the marshal, with sarcasm, "I kind of thought I would, anyway."

Two hundred yards short of the bend in the draw that concealed the ranchhouse from view the district attorney's horse which was leading, snorted at something that lay across his path, and shied with great vigor, coming within a red hair of throwing the district attorney off on his ear.

The district attorney swore and jerked the animal back. Then he dismounted hurriedly and ran forward to view at close range the object that

had startled the horse.

The three others pulled up and followed his example.

"My Gawd!" shrilled the district attorney. "It's Rafe Tuckleton!"

It was indeed Rafe Tuckleton. There he lay on his back, his legs and arms spread-eagled abroad, his body displaying the flattened appearance a corpse assumes for the first few hours after death. Rafe's throat had been slit from ear to ear. His head was cut open and lay in a pool of blood. His face was scored with scratches. There was blood on his coat and vest and shirt, they found on examination. The district attorney ripped open the shirt and found four distinct stab wounds in the region of Rafe's heart. From one of these wounds protruded the broken end of a broad-bladed knife.

"Pull it out," urged Sam Larder, with a slight shudder, his fat face so white that it showed green in the moonlight.

"I can't," said the district attorney. "Jammed in between his ribs, I guess. That's what busted her. See if you can find the handle, Red."

"There it is," pointed out the marshal. "Right by his elbow."

"Oh, yeah," said the district attorney, picking up the knife handle. From force of habit he fitted the broken part of the knife remaining attached to the handle to the part protruding from the wound. Of course they fitted perfectly.

The marshal ran his hand along Rafe's naked waist. Then he lifted one of Rafe's arms and let it go. The arm snapped stiffly back into position.

"Been dead about two hours," proffered the marshal.

"About that," agreed Felix. "What you lookin' at, Arthur?"

"This," replied the district attorney, holding up the handle of the butcher knife.

With his fingers he traced two initials on the wood. The initials were T.W.

"You can't tell me," said the district attorney belligerently, "that this butcher knife didn't come from the Walton ranch."

Sam Larder stated his belief at once. "She couldn't have done it, Arthur. Why Rafe's carved up like an issue steer. She——"

"She's a woman," interrupted the district attorney. "And a woman will do anything when her dander is up. And we know what this particular woman will do when she's mad. Didn't she try to split open Nate Samson's head when he was hardly more than joking with her? Didn't she throw down on us with a rifle without any excuse a-tall? I tell you this Hazel Walton is a murderess, and I'm going to see her hung."

"Are you?" said Felix Craft. "Seems to me you've overlooked a bet. Didn't we run across Red Herring at the end of the draw?"

"Now look here, Craft," cried the marshal. "You can't hook this killing up with me! I can prove I was in Golden Bar an hour ago. I can get people to swear I was."

The district attorney nodded. "Red's innocent of this, all right. He couldn't have done it. It wouldn't be reasonable. He always was friendly with Rafe, and this was a grudge killing. It couldn't have been robbery, because nothing of Rafe's was stolen; watch, money, it's all here. It's Hazel Walton, and you can stick a pin in that. C'mon, let's go."

CHAPTER TWENTY-ONE

THE DISTRICT ATTORNEY'S NIGHTMARE

Behind the corral of Guerilla Melody, at the tip end of Golden Bar, Main Street, a small spring bubbled to life amid rocks. It was the custom of Guerilla Melody to slip out to this spring for a long cool drink of fresh water each night before going to bed.

On the night of the first of April, Guerilla, having spent a short but profitable poker evening with several friends in a saloon, reached the spring at eleven o'clock.

"I thought you were never coming," announced a peevish voice from the black shadow of a large rock. "I've been waiting here since nine o'clock."

"You talk much louder, Bill," said Guerilla calmly, "and you'll wait here a while longer—say about twenty years longer or fifteen, if the judge feels good-natured. Man alive, ain't you got *any* sense?"

"I was lonesome," Billy excused himself. "I've got to talk to somebody. And anyway, a feller hardly ever gets more'n ten years for a hold-up where nobody's killed."

"But where somebody is killed the penalty is worth considerin'," pointed out Guerilla Melody. "And Tip O'Gorman was found yesterday morning lying on the floor of his front room dead as Julius Cæsar, with your quirt beside him, and your snakeskin hatband inside the door."

"Tip killed! Tip!"

"Yes, Tip, and on account of the quirt and the hatband there's a warrant issued for you for the murder, and two posses are out looking for you."

"I saw them," said Billy placidly. "I thought it was on account of the stage hold-up. And they think I downed Tip?"

"Half the town's sure you did, and half is sure you didn't, and the other half is straddlin' the fence."

"That makes three halves," Billy said dryly. "Golden Bar must have considerably increased in population since I left."

"You know what I mean," snapped Guerilla, irritated at what he chose to consider callous flippancy on the part of his friend. "And Tip ain't the only one cashed. Rafe Tuckleton passed out last night."

"How?"

"Throat cut, head cut, and three knife cuts through his heart. Hazel Walton is in jail charged with the job."

Billy Wingo stiffened where he sat. Hazel Walton in jail! For an instant he couldn't realize it. His fingers closed on Guerilla's forearm.

Guerilla jerked away the arm. "You don't need to cut my arm in two," he remonstrated, tenderly fingering the member in question. "I didn't have nothing to do with it. Lord A'mighty, Bill, I'll bet you squeezed a muscle out of place."

"My mistake," apologized Billy. "I forgot myself for a minute."

"Then I don't want to be around when you remember yourself. I——"

"What evidence is there against Hazel?" Billy cut in sharply.

"In the first place there's the knife that killed Rafe," said Guerilla, seating himself beside his friend in the shadow of the rock. "Butcher knife with T.W. on the handle that Hazel admitted was hers when they showed it to her. But she said Dan Slike had taken the knife—stuck it in his boot when he left. Then there was Rafe's own gun which Hazel had lying on her kitchen table, showing he'd been there. She admitted that too, but said he'd attacked her, and she'd managed to get hold of his gun after the clock fell on him, and drive him out."

"Rafe attacked her, huh? And she drove him out?" Billy leaned back against the rock in order to steady his shaking body. When he spoke, he found some difficulty in keeping his voice down. "*He attacked her and she drove him out!* Then what in hell is she arrested for—defending herself?"

"Now, listen, Bill, you know me. I believe anything that girl says, no matter what. But there are some other people harder to convince. The district attorney, and he's got a good many others stringing their chips with his, says how this story of Rafe's attacking her ain't true. That Rafe wouldn't hurt her on a bet, because he liked her too much. And to back that up, here's Rafe's foreman, Jonesy, steps up and swears Rafe told him he was going to see Hazel last night and ask her to marry him. Hazel says Rafe was drunk when he came to see her, and Jonesy says he wasn't. So there's that."

"Weren't there any tracks round Rafe's body to show——"

"You know yourself there was a li'l freeze last night and the ground stiffened up some, and I guess the district attorney and the three others who found Rafe were so flustered they walked all over the ground round Rafe and wiped out every sign there was."

"Who was with the district attorney?"

Guerilla told him and resumed the thread of his discourse. "When the district attorney and the other witnesses examined the Walton premises, they found plenty of evidence that there'd been a fight, and they found a lot of supplies gone, cartridges, grub and such, Hazel had bought in town the morning before."

"Is that all?" asked Billy when Guerilla paused.

"Lemme get my breath," Guerilla begged indignantly. "The whole business is so tangled and mixed up it's hard to tell it straight. No, it ain't all. The district attorney says those supplies were bought for you and they were taken by you. Hazel's ridin' horse, the one used to be her uncle's, that's gone too—with you."

"If Rafe thinks I was at Hazel's, it's reasonable to assume I might have had a hand in killin' Rafe my own self. That goes double for Dan Slike, seeing he had the knife last."

"It's reasonable all right enough, but then you and Dan Slike ain't no ways available, and Hazel is right handy. Rafe admits you might have

done it, and he keeps yawpin' the evidence is strong against Hazel, and he would be false to his oath of office if he didn't put her in jail."

"False to his oath of office! Rale!"

"Yeah, ain't it a joke?" contemptuously.

"But how did Slike get hold of the butcher knife, that's what I want to know? He didn't have it on him when I arrested him last January."

"That's the damndest part of the whole deal, Bill. Hazel says Dan Slike came to her place before Rafe did, and it was him took the supplies and her horse and her hat and that very same butcher knife which gave Rafe his come-uppance. Slike beat her almost senseless too, she said."

Billy Wingo looked up at the stars. His lips moved. But no sound issued. After a moment he said, in an oddly dead tone of voice, "How did Slike escape?"

"Far as anybody can tell, he made him a key somehow and unlocked the jail door and walked out. Anyway, Riley Tyler found the door open yesterday afternoon and Dan's cell empty. And the district attorney lost a horse and saddle."

"The district attorney, huh?"

"The district attorney."

"It was to some people's interests to have Dan Slike escape," Billy said musingly.

"You bet it was, and I'm gamblin' somebody let him out all right, but—well, I dunno. Anyway, Rale, he led the posse that trailed Slike, him and Felix Craft. Nobody could have been more energetic than those two."

"If they were so energetic and there was any kind of a trail, which there should have been, because it was a warm afternoon, it's queer they didn't run up on Slike at Hazel's."

"That's the funny part of it. The trail led in the opposite direction toward Jacksboro. The posse followed it clear to the West Fork of the Wagonjack, where they lost it on the rocky ground on the other side."

"Slike might have doubled back."

Guerilla Melody shook his head. "Not without gettin' caught—if he rode to the West Fork first. Besides, Hazel says he came to her house a li'l after sunset, and he escaped, near as we can figure out, between three and four. So you see he'd never have had time to make it to Walton's from the West Fork by sunset."

"Did Hazel say how long he stayed?"

"About an hour."

"An hour! Then Slike knew he wasn't being followed. He never went to the West Fork a-tall."

Guerilla nodded a grave head. "I never was sure he did, especially after Shotgun Shillman told me when he got back that the tracks they followed to the West Fork looked a damsight older than they had a right to, always supposin' they were made that afternoon. Oh, you can't blame Shotgun, Bill, or Riley either. The district attorney was in charge of the posse, and him and Felix and the rest of his friends said it was the wind a-blowing so hard made the tracks look old. And there was a tearin' breeze, worse luck."

"Do you know somethin', Guerilla? It wouldn't surprise me a whole lot to find out the district attorney his own self made that trail to the Wagonjack."

"It would surprise me if you *found it out*. You ain't catchin' him so easy. Not that feller."

"Leave it to me. And he provided Slike with the horse too. You'll see."

"I'm sure hoping I do. I'd like nothing better than to see Art Rale stretching the kinks out of a new rope."

"Stranger things have happened. I guess I'd better go see the district attorney."

Guerilla Melody chuckled as one does at a pleasantry.

"I mean it," pronounced Billy. "He needs a li'l straight talk, and he's going to get it prompt and soon. Luckily he likes fresh air."

"Fresh air?" puzzled Guerilla.

"Leaves his window partly open at night," explained Billy. "Which being so, I'll be out of luck if I can't creep in and give him the surprise of his life."

"He may not have gone to sleep yet. I'll find out."

Before Billy could stay him, Guerilla was gone. Fifteen minutes later he returned.

"He's abed, snoring like a circular saw working on a knotty log," Guerilla informed him. "But there's a light in the kitchen."

"That means his housekeeper's up—probably settin' bread for to-morrow. Ain't she quite a friend of yours, Guerilla?"

The darkness veiled Guerilla's blush. "I see her now and then."

"Then go see her now," urged Billy. "It's kind of late for an evening call, but you can tell her some kind of a lie. If she likes you, she'll believe it. You go see her and keep her in the kitchen for the next thirty minutes. Then meet me here."

The district attorney, lying on the broad of his back in bed, suddenly snored his way into a nightmare. He dreamed that he was in the woods, that he had lain down upon an inviting bank and that a ninety-foot pine had fallen upon his chest, to the prejudice of his breathing. He squirmed and wriggled but the tree was immovable. It was slowly crushing the walls of his chest. The district attorney gasped—awoke, and discovered to his horror that his bad dream was partly true. There was something roosting on his chest. If not a tree, it was at least confoundedly heavy. Furthermore, adding

as it were to the interest of the occasion, a something chilly and hard was rooting into the angle of his chin and neck.

The something on his chest spoke in a carefully restrained whisper. "Keep very quiet."

The district attorney would have shivered had he been able to move that much. He knew that voice. It belonged to Billy Wingo.

"You shouldn't have left your window open," pointed out Billy. "Your insane love for fresh air will be the death of you yet."

The district attorney did nothing but gasp faintly.

"Would it be more comfortable if I sat on your stomach instead?" asked the oppressor prodding the other man in the throat with his gun muzzle.

"I—I—cuc-can't breathe!" the district attorney choked out.

"Just a minute," said Billy, feeling beneath the pillows, but finding no weapon, he slid from the district attorney's chest to the side of the bed. "You didn't expect to see me so soon, did you, Arthur?"

"No," was the truthful reply, "I didn't."

"I was counting on that. I hear you arrested Miss Walton."

"I—er—I had to," explained the district attorney, beginning to feel that, in the matter of Miss Walton, he had perhaps been a trifle hasty.

"Fool mistake. You didn't have any evidence against her a-tall."

"But—" began the district attorney.

Billy cut him short. "No evidence a-tall. Not a smidgin. No. You were too previous, Arthur, with your duty and your oath of office. Damn your duty, damn your oath of office. I've got a sneaking idea, old settler, that you are cluttering up the face of the earth. Be reasonable now, don't you think so yourself?"

But this was more than the district attorney was willing to admit. "I'll tell you what I think," he grunted. "I think if Hazel Walton didn't kill Rafe Tuckleton then you did."

"About *Miss Walton* there ain't any ifs, nary an if. She didn't do it. There is a reasonable doubt that I did, several reasonable doubts, in fact. Anyway, Arthur, try keeping your suspicions to yourself to oblige me, will you? Lord knows one murder and a stage hold-up are enough crimes to be charged with at one time."

"You thought you were very clever," sneered the district attorney, "getting that girl to pack your supplies out from town for you. Didn't have nerve enough to do it yourself. Had to hide behind a woman's skirts and get her in trouble, didn't you?"

"You mean about the horse and cartridges and grub that Slike took from Walton's?"

"I mean about the horse and cartridges and grub that you took from Walton's. Slike had nothing to do with that. Slike didn't go to Walton's. He went north to the West Fork, where we lost his trail."

"You're sure of this?"

"Sure? Of course I'm sure. Didn't I trail him to the river myself. Didn't— Say, where'd you get your information?"

"A li'l bird told me. But he asked me not to mention his name. Sorry."

The district stared helplessly into the shadowy features of the man at his bedside. The moonlight shone in at the open window through which Billy had entered. The rays touched a corner of the bed, turning the bedpost to shiny ebony and the counterpane to dull silver. The district attorney could hear the murmur of his housekeeper's voice in the kitchen. Some man then, was in the kitchen with her. Lord! if he dared yell for help!

As though sensing what was passing in the mind of the district attorney, Billy jabbed the gunsight up under the man's chin. "Don't gamble with me,

Arthur. Think how your friends would miss you."

But Arthur had already decided against doing any gambling. "What do you want?" he whispered.

"I've been hoping you'd ask me that. It gives me an opening and shows you're willing to be reasonable. Yeah. Arthur, I want you to set Miss Walton free."

"You go to hell," was the sharp return.

"You don't understand," said Billy, in his lightsome whisper. "You're thinking because I'm talking to you so bright and merry that I don't mean what I say. Listen—" the whisper lost its airness and became a ruthless, snarling growl—"listen to me. Because of what you've done to her, it's all I can do to keep from strangling the breath out of you here and now. If I talked to you the way I feel like talking to you, I'd lose my temper and you'd lose your life. I'm trying to hang on to both—for now. Don't make it any harder for me than you have to." He paused. "About Miss Walton," he continued in his former tone. "I'll give you your choice. Let her go, and I won't down you by Sunday night."

"Huh?"

"Sunday night. If she isn't out of jail and the warrant against her withdrawn by noon to-morrow, I give you my word that I'll down you on or before midnight Sunday. And I have a habit of keeping my promises."

The district attorney knew this to be true. But he was a wriggler by nature. "I—" he began.

"You can do it," interrupted Billy. "You have the power."

"I can't," denied the wretched man in the bed, now more than ever aware that he had made a mistake in arresting Hazel, yet not at all clear in his mind how to set matters right without being ridiculed into political extinction. Yet if he didn't set matters right, he would lose his life. Metaphorically speaking, he eased himself down between the horns of the

dilemma and considered. "I can't," he repeated after a moment of silence. "I can't let her go after arresting her. Judge Donelson wouldn't understand it. The Governor would remove me from office."

"You're a liar. Judge Donelson would understand it all right if you explained it carefully. So would the Governor. They are human beings, even if you aren't."

"Well," bumbled the district attorney, "maybe I *could* manage it. But look here, what's the use of me letting her go? You couldn't run away with her. *You'd* be caught, sure as fate, and then where would you be?"

"I don't intend to run away with her or without her. Only a fool runs away. A man of sense stays comfortably in the background waiting for the cat to jump."

"You ran away," pointed out the district attorney.

"Not at all. I'm staying comfortably in the background, waiting for the cat to jump."

"But—" The district attorney stopped abruptly at the word.

Billy Wingo smiled. The district attorney saw his white teeth gleam in the darkness. "But you can't understand if I stayed in the vicinity why I haven't been caught," he completed the sentence for the other man. "I realize your posses have been very active."

"Shotgun Shillman and Riley Tyler are in league with you! They led the posses astray on purpose. I'll get their hides for this!"

Billy quieted the district attorney with a gesture that drove the man's head almost through the pillow.

"There goes your snap judgment again," complained Billy. "Shotgun and Riley are doing their duty. They've done their damndest to catch me. You hurt my feelings when you hint that I may be tampering with them. You

don't really think I have, do you, Arthur? Both Shotgun and Riley are straight as strings, aren't they, Arthur?"

The gun muzzle pressed ever so gently upon Arthur's Adam's apple. "They are," he apologized. "Both of 'em."

"And you'll free the girl to-night?"

"To-night? Why not to-morrow?"

"To-night. I don't like her having to sleep in that calaboose. You let her out and tell Shotgun Shillman to take her to Sam Prescott's right away—right away, to-night, y'understand?"

"All right," capitulated the district attorney. "I'll do it if I lose my job. But you needn't go swarmin' off with any idea that you'll cheat the gallows. You'll swing, my bold boy, for that O'Gorman murder. There's nothing you can do to me that will fix up that business for you—not if you were to kill me here and now. Judge Donelson wouldn't allow me to withdraw that warrant, even I wanted to. The evidence is too strong."

"So you really think I downed Tip?" Billy asked curiously.

"I know it."

"And held up the stage? Unofficially, Arthur, are you holding that against me, too?"

"You held up the stage. Jerry Fern saw your horse. So did all the passengers. Your clothes were identified, too. Jerry told the passengers to pay particular attention to your clothes and the brass guard on your gun and be able to describe 'em later. They did, and everybody in town recognized 'em. Oh, we've got you."

"So clever of you—and cleverer of Jerry Fern. He told the passengers to remember what I wore, did he?"

"Naturally," said the district attorney hastily. "It was the obvious thing to do."

Billy nodded. "Of course it was. Bright man, Jerry. Tell you, Arthur, suppose I bring back Dan Slike, would that help me in—my trouble?"

"How do you mean?"

"You want Dan Slike caught, don't you?"

"Of course I do."

"Liar," Billy said to himself. Aloud he remarked. "You've come around, I see. You really believe now that Dan Slike killed Tom Walton and Judge Driver?"

"Certainly, he killed them," avowed the district attorney. "And when he's caught we'll hang him."

"That's the proper spirit, Arthur. I have a theory that, since it seems certain that Dan Slike didn't go to Walton's after he escaped, he went north to the Medicine Mountains."

"Why?"

"You followed his trail north to where the West Fork swings due west and there you lost it, didn't you?"

"Yes."

"Well, then, it's certain Slike didn't follow the Fork down. That would bring him to the country east of here, and Tom Read County is no place for a murderer. Now, what he did was ride the rocky ground along the Fork till it swung north again, when he'd either swing north with it straight for the Medicine Mountains, or else ride a li'l west of north and hit the Medicines away to the westward of Jacksboro. And in the Medicines you might as well look for a needle in a bale of hay. He'll lie low there for a spell, probably during spring and summer. You may depend on it, that's what he's done."

"I believe you're right," agreed the district attorney, striving to inject a note of excitement in his whisper. "I'll have a posse riding that way tomorrow."

"Not a posse. Too many men in a posse. He'd be able to keep out of their way, Slike's no ordinary murderer, Rale. Remember that. He's a killer from Killersville, and he probable knows more about keeping out of sight than a grizzly bear. But one man would have a chance to get him. He wouldn't be expecting one man, do you see?"

"I don't see what you're driving at."

"I mean I'll make a bargain with you, Rale. I'll trade you Slike for myself. You will prosecute these cases against me, if I'm caught. It lies with you whether I get a chance for my alley or not."

"How?"

"You could fail to take advantage of points as they come up. You could. You're clever enough, Gawd knows. Now, in the O'Gorman deal I'd plead not guilty. I killed Tip in self-defense, see? Well, you could let me prove I did mighty easy. Same with the hold-up. I'll get me a clever lawyer who'd take advantage of some flaw in the indictment. You would draw up that indictment. I don't believe we could risk flaws in both indictments, could we?"

The district attorney could hardly believe his wicked ears. It simply was not possible that Bill Wingo could be such a simpleton as to believe that. "Flaws in both indictments would be a li'l too raw," said the district attorney, almost suffocating in the effort to dissemble his glee.

"Yes, well, all right. In the O'Gorman murder trial, you'll let me prove my case, and in the other you'll stick in a flaw. The Tuckleton case you can't do a thing with. There's not enough evidence, so you'll have to let it drop. What do you think of the proposition, Dan Slike for Bill Wingo? You can make a record with Dan Slike too. He hasn't a friend in the county. Another thing. That last bribe of yours I mentioned a while ago. I'll throw in what I know about that for good measure with Slike."

"But why stand your trial at all?" fenced the district attorney. "Why not try to escape?"

"You forget that not ten minutes ago you told me I couldn't possibly escape. You were wrong, naturally. But I don't want to escape. If I did, I'd have these things hanging over me the rest of my life. No matter where I went, I'd always be looking for a warrant waiting for me at every bend in the trail. No, the only sensible way out is to get this thing over with and settled as soon as possible. I don't want to leave Crocker County. I like it here."

"Oh," murmured the district attorney, believing that he knew the reason why Billy Wingo did not care to leave the county. It was a good and sufficient reason, and he expected to release it from jail that very night.

"But you'd have to get supplies from time to time," he said leadingly. "Your description is in every town by now."

"I'll only go to Jacksboro when I have to buy anything," explained Billy, "and as it happens, I never was there but once and that was five years ago. If I let my beard and hair grow, who'd know me? It would take somebody from Golden Bar to recognize my voice, and I'll take care to keep out of the way of anybody from Golden Bar. Oh, it'll be safe enough. I'll make my camp somewhere on Coldstream Creek and work all through the Medicines from there. I'll get Dan and bring him back. How about it now—willing to make it easy for me at the trial?"

The district attorney could hardly control his voice. At last the devil had delivered his enemy into his hands. Now he could pay him back for kicking him out into the snow. You bet he could. "I'll do as you suggest," he said, "and drop the Tuckleton case in so far as you and Miss Walton are concerned, and I'll let you win on the other two counts—provided you bring back Dan Slike."

"Fair enough. In the meantime I want a free hand. You'll have to call off the posses that are out after me. You can do that without exciting suspicion. Look how long they've been out."

"I'll manage it," declared the district attorney. "You think the Coldstream is a good place to camp?"

"Sure it is. I've been there before."

"Don't risk going to any other town than Jacksboro."

"I won't," said Billy. "Be sure of that. Well, I guess I'd better be draggin' it. You'll be wanting to let Miss Walton out. By the way, don't forget that I'm not leaving the neighborhood till I hear that Miss Walton is safe at Prescott's and the warrant against her withdrawn. Just bear that in mind, Arthur."

"I will," Arthur said warmly. "Shall I suggest to Miss Walton that a letter would be sure to reach you at Jacksboro—under an assumed name, of course?"

"It would be hardly worth while," replied Billy. "Unless I catch Dan Slike sooner, I don't expect to be in Jacksboro under a month. Yeah, a month, anyway."

"A month, huh? Here's wishing you luck."

Billy failed to observe the brazenly outstretched hand. "Thanks," he drawled. "So long."

But in spite of the agreement it was noticeable that he kept the district attorney covered till his bootsoles touched the ground beneath the window.

"Are you crazy?" demanded Guerilla Melody when he had heard all, or thought he had, rather. "You don't actually sure-enough trust him, do you?"

"Certainly not," Billy replied calmly, flicking the ash from his cigarette. "Certainly I don't trust him. That's why I told him what I did."

Guerilla Melody screwed a forefinger into the side of his head. "Wheels, wheels, wheels, hear 'em buzz."

"You don't understand, Guerilla. You're all right lots of ways, and I'm your friend, and don't let anybody tell you different, but you haven't any brains, not a brain."

"Now, look here," began indignant Guerilla, "if you——"

"Shut up and listen," Billy cut him short. "I ain't going to the Medicine Mountains a-tall."

"Where *are* you going?"

"South—after Dan Slike. Don't you see, this fool district attorney won't think of skirmishing after me *south* of Golden Bar. But I'll bet he'll have posses combin' the Medicines within seven days. And if I haven't read him wrong, he'll have a warrant for the Tuckleton murder issued for me, too."

Guerilla nodded a grave head. "With Miss Walton out of it, he'll have to cinch it on to somebody else. But I don't see yet how finding Dan Slike, always supposin' you do find him, is going to help you any. You'll still have to stand your own trial. And you ain't thinkin' that Arthur Rale——"

"Oh, angels ever bright and fair! The man doesn't see it yet! I intend to bring in the murderer of Tip O'Gorman and the man who held up the stage, too, while I'm at it. In words of one syllable *that* is my plan."

The expression on the face of Guerilla Melody was one of awe diluted with doubt. "All by your lonesome?"

"Why not?"

"Maybe I'd better go with you?" offered Guerilla.

"No," said Bill decidedly, "I'd rather you were here in Golden Bar. Then you can tell me the news now and then. Outside of you and Shotgun and Riley, there ain't a soul in town I can trust, and for official reasons I can't go near the deputies. So I guess you're elected, Guerilla."

"Aw right," said his friend. "You're the doctor. Have another drink?"

"Not to-night. Look at the time. Here we've been gassin' a solid hour. I didn't have any business coming into your house anyway. Never can tell who might walk in on us."

"You better wait till I find out from Riley if Rale kept his word about Hazel Walton."

"I won't have to wait here for that. When you come back from talking to Riley, if everything is O.K. and Hazel has started with Shotgun for Prescott's, you set a lamp on your kitchen table and open and close your kitchen door four times. If Hale hasn't moved, open your kitchen door and stand in the door-way for half a minute. I'll be watchin' from the ridge—Huh? Sure, I've got field glasses. Borrowed a pair from Sam Prescott same time I borrowed a horse. So long, Guerilla!"

Guerilla Melody blocked off the light of the lamp with his hat while Billy opened the door and vanished into outer darkness.

Twenty minutes later, Billy, sitting his horse on the crest of the aforementioned ridge, saw a rectangle of light at the tip end of town, show and go out four distinct times. He clucked to his horse and moved quartering down the slope in the direction of the Hillsville trail. His goal was Prescott's, his intention to obtain from Hazel a detailed account of what had happened at the ranch the night of the Tuckleton murder.

CHAPTER TWENTY-TWO

THE HUNCH

The time was an evening in the first week in May; the place was the Arkansas Saloon in Willow Bend, Redstone County, the man was Billy Wingo, wearing a sevenweeks' beard and an air of preoccupation. He was draped against the bar, making rings on the bar top with the wet bottom of his whisky glass.

The weather was unseasonably warm, and the big double-burner reflector lamps in the saloon raised the bar-room temperature at least fifteen degrees. Billy felt the salty moisture running down into his eyes. He pushed back his hat and with a fillip of his fingers slatted off the perspiration.

He did not see a man at the other end of the bar look up at his sudden movement. Nor, when he departed after his second glass, did he know that the other man was following until he had passed out into the street. Then, with that sixth sense men who carry their lives in their holsters so frequently develop, he knew it. Hence, quite naturally, instead of going directly to the hotel hitching-rail where his horse was tied, he sauntered with apparent aimlessness round the corner of the saloon, along the blank side wall and round the next corner.

In the darkness behind this corner, gun in hand, he waited. The other man slid round the corner in his wake and ran plump into the muzzle of the Wingo six-shooter.

"Were you looking for me?" Bill asked in a low tone.

The man, having shown that he was no shorthorn by promptly throwing up his hands, laughed low. "I was looking for you," he said, still chuckling, "but not the way you mean."

"Your voice sounds familiar," said the sceptical Billy. "Suppose you step over here into the light from this window. Keep your hands up."

"Glad to—both ways," agreed the man, obeying instantly. "Satisfied now?"

"You can put 'em down," said Billy sliding his gun back into the holster as soon as the light fell on the man's face. "I thought you went up to Jacksboro to visit your uncle."

"I did," said John Dawson. "But I thought I'd drift back for the Cross T round-up. On my way south I stopped at Golden Bar."

"Yeah?"

"Yeah. I was looking for a gent name of Tuckleton. I saw where he was buried."

"I guess you heard something while you were there, huh?"

"I heard something in Jacksboro, too. That's why I followed you. Let's go where we can talk private."

On a log, in the darkness, behind the dance hall, they sat down to talk "private."

"What did you hear in Jacksboro?" Billy asked.

"I heard a posse talk—six men. I met 'em over on Coldstream Creek three-four times."

Billy uttered a light laugh. "I figured it would be that way."

"They seemed to think you'd oughta been camping on Coldstream."

"What kind of a warrant did they have?"

"All kinds. Two murders and a stage hold up."

"Was one of 'em on account of Tuckleton?"

"Yep. I didn't know whether to hold it against you or not."

"You needn't. It wasn't me."

Dawson grinned his appreciation. "I'm glad. If you had it would have always been between us. I had figured on playing even-Steven with Tuckleton myself."

"I'm looking for the man who killed him. If I don't find him I needn't go back to Golden Bar."

"I heard you'd been suspended from office," said Dawson bluntly.

"I hadn't heard it yet, but I expected it. Anybody else appointed?"

"Shotgun Shillman, pro tem."

"I almost wish it was somebody else," he said whimsically. "Shotgun is a friend of mine, and energetic as a bear with a bee tree. He'll maybe dump me before I do what I want."

"If he's a friend of yours——" hinted Dawson.

"He'd arrest his own brother, if there was a warrant issued against him. He's that kind."

"A conscience is a heavy load to pack," said the cynical Dawson. "Me, I believe the end justifies the means. It don't matter much what trail you follow, so you get there. Can I help you any?"

"How?"

"I dunno—any old way. You did me one good turn, and I'm not forgetting it. Anything I got you can have any time anywhere."

"Now, that's right clever of you," said Billy, somewhat embarrassed at the other's gratitude. "But I don't guess you can help me any."

"Try me," urged Dawson.

"The man who killed Tuckleton is a man named Dan Slike, who broke out of jail just before he was going to be tried for another murder. The only way you can help me is by telling me where he is, and I expect you can't do that."

"Not right off the reel," admitted Dawson. "Ain't you picked up any trail of this sport?"

"I've cut his trail five different places, Bow Bells, Gunsight, Dragoon, Shadyside, and the Rafter L. I figured he'd come here after leavin' the Rafter L—it's only thirty miles. But I guess he didn't. Leastwise nobody seems to have noticed anybody of his description."

"You haven't described him to me yet," pointed out Dawson.

Billy began. "—and maybe a black beard by now," he concluded.

"Bow Bells, Gunsight, Dragoon, Shadyside and the Rafter L," repeated Dawson, rasping a hand across his stubbly chin.

"South, y'understand, till he reached Shadyside, and then he headed northeast to the Rafter L. What I'd like to know is what made him change direction thataway?"

"He ain't in any hurry to leave the territory, that's a cinch."

"Not after he left Shadyside, anyway."

"Something happened there to head him."

"Sure. But whatever it was it wasn't visible to the naked eye. Rafter L, the same way. He stopped there for dinner and rode away without spending the night."

"He may have gone to Marquis."

Billy nodded. "He may. But Marquis is more north than east. That's why I came here first. Anyway, to-morrow morning I'm riding to Marquis, and if he ain't there I'll sift through the country between Marquis and Dorothy. There are several ranches in between those two towns."

"I'll go with you," announced Dawson.

Billy surveyed his neighbor in surprise. "You. What for?"

"For him—exercise—any old thing you like, that is, if it ain't a private party."

"You can sit in if you want to," said Billy slowly, more glad to accept an ally than he cared to admit. "But you've got a job."

"The job can wait. Round up's over, so it won't hurt the ranch to lose my valuable services for a spell. To-morrow we go to Marquis, huh?"

By mid-afternoon the following day Billy Wingo was riding into Marquis from one direction and Dawson was riding in from another. As

apparent strangers they believed they could do better work. Before six o'clock Billy had judiciously canvassed every saloon in the place and had learned absolutely nothing. Either Slike had not entered Marquis, or else he was wearing a disguise. In the twilight, in the brush beyond the far-flung skirmishline of empty tin cans and bottles that surrounds every cow-country town, he met his friend Dawson. The latter had worked the stores and the dance hall, but he had nothing to report. The following day Billy journeyed by the one road to Dorothy, while Dawson traveled by a more circuitous route that would take him past two ranch houses where there might be information to be picked up. Billy Wingo, without pushing his horse, reached Dorothy too late for the regular dinner at the hotel. Adjoining the Carnation Saloon was a two-by-four restaurant. He entered the place, sat down at the oilcloth-covered table and gave his order to the good-looking young woman who was evidently cook, hasher and washer combined.

In one corner of the restaurant an eight-year-old girl was squatting on the floor and bathing two wooden dollies in a tin wash-basin. A small dog waggled in from the street, sniffed respectfully at Billy's boots, then hunted along a crack in the floor with his nose till he came within reach of the eight-year-old, who promptly seized him by his short tail and dragged him, ki-yiing his protests, to her bosom.

"You need a bath," said the eight-year-old. "I'll wash you."

Gripping her victim firmly by one ear and his tail she plumped him splash into the washbasin. To the dog's eternal credit he made no attempt to bite her, but he wriggled and squirmed and threw his body about, and ever he lamented loudly.

The good-looking young woman poked her head in from the kitchen. "Winnie, you leave Towler be. You know he doesn't like to be teased. Why don't you go on giving Emmaline and Sally Jane their baths. There! Now, see what's happened—basin upset and water all over the floor. That's the third time to-day I've had to mop up after you."

Little Winnie was a damsel of parts. "I'm sorry, auntie. I'll mop up. Towler, you git."

Towler got. Winnie began to sop up the water with a floor rag which she wrung out in the washbasin.

"I'll finish giving you your bath, Sally Jane, soon as I get fresh water. Emmaline is nice and clean, but you're a dirty, dirty girl, Sally Jane."

Sally Jane! There it was again. Merely a coincidence, of course, but it was odd to run across this combination of proper names. Billy began to take more than a passing interest in the eight-year-old.

The little girl resumed her animated monologue. "I tell you what, Sally Jane, if you don't keep yourself cleaner, I'm gonna go back to calling you Maria again."

Then it was that the hunch came to Billy Wingo.

"Winnie," he said, leaning forward with his elbows on his knees and wearing his most engaging smile, "Winnie, that Sally Jane dolly is sure one fine-looking lady."

Winnie regarded him with an indulgent eye. "She's my favorite, Sally Jane is."

"Sally Jane is a pretty name too."

"I like it."

"You haven't always called her Sally Jane, have you?"

"Not always. I used to call her Mariar. My auntie says Mariar sounds like a cat talking, but I liked it till I heard Sally Jane, then I liked Sally Jane best."

"And when did you hear the name Sally Jane?"

"Long, long ago."

"Oh!" Disappointment on the part of Billy Wingo. Farewell, hunch. Nevertheless he essayed a forlorn hope. "How long?"

"Most a week."

Most a week! Billy had forgotten that child-time runs faster than grown-up time. The hunch pricked up its little ears and began to return. "Where did you hear that name?"

"Man in the Carnation. He was drunk, and he went round talking to God in the saloon. I heard him through the window. Lots of men do that. My Auntie says they'll frizzle when they die."

"They ought to," pronounced the righteously indignant Bill. "Did this man say anything, about Sally Jane?"

"Lots."

"In the saloon?"

"At the woodpile out back. I was making a li'l doll-house behind it, and he came and lay down beside the woodpile to sleep it off."

Oh, the wisdom of the frontier child.

"Weren't you afraid?" probed Billy.

"Nah. Why, you needn't ever be afraid of a drunk man. They can't hurt you if you keep out of their way. I've seen lots of drunk men, I have, in my time."

Billy was somewhat overwhelmed. "That's fine," he said lamely. "Did you run away when the drunk man came out to the woodpile to sleep it off?"

"Nah. Ain't I said I ain't scared of drunks? I didn't run away. I stayed right there on the other side of the woodpile listening to the drunk man."

"I thought you said he went to sleep."

"He talked in his sleep," patiently explained the amazing Winnie.

"What did he say?"

"Lots."

"Did he say anything about Sally Jane?"

"He said he loved her."

"Anything else?"

"He said he was gonna marry Sally Jane, by Gawd, and nobody else was gonna do it but him."

"Did he talk about any men?"

"He talked about Bill."

"Bill who?"

"Bill Wingo."

"Now, we're gettin' there. Did he say anything particular about Bill Wingo?"

"He said he was gonna shoot him."

"What for?"

"For being sheriff, or something. I don't remember that exactly."

"You've remembered enough. What kind of a looking man was this drunk?"

"Oh, he was an old, old man."

"Old, huh? How old?"

"Oh, about your age."

Billy began to feel like Methuselah. "What did he look like in the face?"

The winsome Winnie looked at him critically. "Something like you in the face. Sort of scrubby-looking and dirty—except maybe his whiskers wasn't so long as yours."

"What color were the whiskers?"

"Oh, black."

"Was his hair black?"

"Yop, his hair was black."

"Was he a li'l, short, runty feller?"

"Nope, he was a big, tall feller, skinny sort of."

"Did you hear his name?"

"His friend called him Damn-your-soul sometimes and Jack sometimes."

So Jack Murray had gathered unto himself a friend. This was interesting, especially as Jack was apparently still cherishing plans for revenge. If Jack and the anonymous friend were in the vicinity of Dorothy, it behooved a man in Billy's position to look to himself.

Billy had no illusions about Jack Murray. The man was perfectly capable of making another try at him from ambush. He did not believe that Jack would "snitch." Such procedure would indubitably attract too much public attention to Jack. He couldn't afford that. Not with three thousand dollars on his head.

"Is the drunk with the black hair and whiskers around town?" he asked.

"They ate dinner here yesterday."

"They—oh, he and his friend?"

"Yep, him and his friend."

Billy got up and went to the door of the kitchen. "Excuse me, ma'am, do you remember a tall, black-haired feller and a friend with him who ate in here yesterday noon?"

Oh, yes, the good-looking girl remembered perfectly both men. Billy thought that it would be as well to have a description of the friend. Would she describe him. She would and did. The description was that of Slike, Slike with a short beard. The man's eyes, she said, seemed to bore right through her. They gave her the creeps.

Billy believed he had heard enough for the time being.

After dinner Billy went up and down Main Street, scraping acquaintance with storekeepers, saloon keepers, the hotel proprietor and the town marshall. By five o'clock he had established the fact that two ranches of the neighborhood, the TU and the Horseshoe were at loggerheads, and that the Horseshoe was hiring gunfighters; that the black-haired man called Jack and his friend, whose name no one knew, had been engaged in conversation with the Horseshoe foreman; that the following day they had told a bartender that they had offers of good jobs at one hundred a month apiece; and that finally, a wolfer had met them on the range riding in the direction of the Horseshoe ranch.

That night Billy and Dawson disappeared from Dorothy.

CHAPTER TWENTY-THREE

THE GUNFIGHTERS

Crack! Crack! Crack! the voices of the Winchesters drifted faintly down wind to the ears of Billy and Dawson. Billy, fearful that some one else had

seen their quarry first, swore frankly.

"Cheer up," said Dawson. "It may be just the chance we're lookin' for. They've stopped shootin'."

Billy remained pessimistic. He had been disappointed so often. But it was the chance they were looking for, after all.

Five minutes later from the edge of a flat-topped hill, they were looking down upon a scene that has had many counterparts in the history of the West.

Below the flat-topped hill a wide stretch of rolling ground reached away to a semi-circle of low hills. A quarter-mile out from the base of the hills a tiny fire smoked fitfully. Beyond the fire lay a hog-tied calf. Beyond the calf, a man sprawled behind the body of a pony. He was aiming a rifle at another man ensconced below a cutbank bordering a small creek that meandered with many windings across the rolling country. This second man was not blatantly visible. Even with the glasses it was difficult to make him out. For cottonwoods grew above the cutbank and the man lay in deep shadow.

Between this man and the man behind the pony were three hundred yards of ground as flat as a floor. Billy swept the background of the cutbank man with his glasses. "There are two horses tied behind a windfall alongside those rocks. Where's the other man?"

"There's the other man," said Dawson, pointing toward a gap in the cottonwoods alongside the creek fifty yards down stream from the cutbank. "What's he doing—drinking?"

Billy turned his glasses on the spot indicated. "He ain't drinking," he said soberly. "His head's under water."

"I'm sure hoping he ain't Dan Slike," Dawson said matter-of-factly.

"Me too. What——"

For the man behind the cutbank was climbing up among the cottonwoods—climbing up and walking out into plain sight of the man behind the pony. Not only that, but, the rifle across the crook of his elbow, nursing the butt with his right hand, he began to walk directly toward him. Still the man behind the pony did not fire.

"He's cashed all right," Billy remarked suddenly. "He looked so natural he fooled me for a minute. Let's go down across the creek. We're in luck today."

They ran down the reverse slope of the flat-topped hill, cut across the creek and approached the horses tied behind the windfall.

"I'm afraid we'll just naturally have to kill Dan, after all," grieved Billy. "He won't ever surrender. I——"

"Tell you," said Dawson, "loosen the cinches; then no matter which horse he tops he'll jerk himself down. Then maybe while he's all tangled up with himself and the saddle——"

"Catchem-alivoes ourselves," said Billy, with a hard grin, and tossed up the near fender of one of the saddles.

When both saddles had been carefully doctored, Billy and his friend retired modestly behind some red willows.

Soon they heard a scramble and a splash in the creek. Dan Slike was coming back. Through the screen of leaves they watched him coming toward them. They heard his voice. He was swearing a great string of oaths. Billy crouched a trifle lower. His six-shooter was out, but not cocked. Dawson had followed his example.

Slike jammed his Winchester into one of the empty scabbards and untied the bridle reins of the horses. Holding the reins in one hand, he gripped a saddle horn and simultaneously stuck toe in stirrup. Ensued then a mighty creak of saddle leather, a snort, a plunge, and Slike found himself on his back on the ground with one foot higher than his head. A gun barrel

appeared from nowhere and smote him smartly over the ear. Oh, ye sun, moon and stars! Total darkness.

Billy sprang to the heads of the capering horses. "Take his hat off, Johnny!" he cried. "See what you find under the sweatband!"

When Slike emerged into the full possession of his senses, he was the most disgusted man in the territory.

"You gave us quite a run," Billy observed smilelessly.

Slike damned everybody. "You needn't have tied my hands too," he added.

"We can't afford to take chances. Do you feel like admitting that the district attorney helped you break jail?"

Slike glared defiantly. "Nothin' to say," declared Dan Slike, the unrepentant.

"That's your privilege. Suppose now we heave him up on his horse and go see what happened."

They freed his feet, mounted him on the horse that was not packing the rifle and proceeded. Behind the gap in the cottonwoods, fifty yards below the spot under the cutbank where Slike had lain, they found the body of the man with his face in the water. Billy dragged out the body and turned it on its back.

"What you cussin' for?" inquired Dawson.

"This feller ain't Jack Murray," cried the perplexed Mr. Wingo. "It's Skinny Shindle."

"Looks like we must have missed a bet somewhere," said Dawson. "Plugged him plumb center, didn't he?" he added, alluding to the red-and-blue bullet hole squarely between the staring eyes.

"I got the other sport," snarled Slike.

"Where's Jack Murray?" demanded Billy.

"What difference does that make?" flung back Dan Slike.

It was evident that Slike was not in a confiding mood.

Nobody said anything further. They left Skinny Shindle lying beside the little creek and went on to where the other dead man lay beside the embers of the branding fire.

"That's a TU horse," said Dawson, glancing at the brand on the pony's hip.

Billy turned the dead man face upward. He whistled. "Here's an odd number, Johnny. This feller is Simon Reelfoot's foreman. You've heard me speak of that low-lived persimmon, Simon Reelfoot. This boy is named Conley. Been with Reelfoot for years. I'd sure like to know why he's riding for the T.U."

Came then a puncher riding on his occasions. At sight of the three men and the calf and the fire, he spurred toward them. A hundred yards away he suddenly pulled up and slipped to the far side of his horse.

"I know him," said Dawson. "Used to ride for Tasker once. C'mon, Tommy, what you scared of? It's me, Johnny Dawson."

Tommy at once remounted and rode in to them. "'Lo, Johnny," he said, with a straight mouth. "Did that man with his arms tied kill Daley?"

"Is that his name?" asked Billy, flicking his thumb toward the dead man.

"Jim Daley," said Tommy. "Did he?"

"Sure, I killed him," Slike truculently answered the question. "What about it?"

At that instant Billy demonstrated that the hand is sometimes quicker than the eye.

"He'll die anyway," he said mildly. "You better let us do it."

"I pass," surrendered Tommy, removing his hand from the butt of his six-shooter.

"Daley got one before he went," said Billy, returning his six-shooter whence it came. "He's back there on the bank of the creek if you want to look."

"This is sure hard on Daley," observed Tommy, dismounting to turn loose the calf. "He told me he came north for his health."

"North?"

"Yeah, couldn't stand the climate in Arizona, he said," amplified Tommy, loosening the knot. "Git up, feller, pull your freight. Life's sure funny. I'll bet that calf's the first Daley ran our iron on. He only joined the outfit last week. Let's go see if I know the other feller."

Since the place where the dead man lay was on their back trail, they went with Tommy, the TU boy.

"Sure, I know him," declared Tommy, after one look at the dead face. "He's named Brindley—been with the Horseshoe since February."

Which simple statement explained the presence of Skinny Shindle, but left Jack Murray completely to the imagination. After all, decided Billy, Jack Murray did not matter, and promptly forgot him. Had he known how important a place the slippery Mr. Murray actually held in the scheme of things, he, Billy Wingo, would not have been so casual.

"We gotta make a heap of trail," said Dawson to Billy, when Tommy had departed in suspicious haste. "That damn Tommy is going to the ranch for the rest of his bunch. First thing we know we'll lose our prisoner."

"Don't hurry on my account," said the sardonic Slike. "If I gotta be hung, lemme be hung and no fuss about it. I don't want to ride all the way north again."

"We need you, Dan," said Billy briefly. "No hanging goes yet a while."

Forthwith they began to "make a heap of trail." It may as well be said at once that they saw no further signs of Tommy or any other of the TU boys.

Toward dawn next day the horses showed signs of tiring. "Mine won't last another five miles," said Johnny Dawson.

"This is as good a place as any," said Billy briefly. "We'll stop here."

They dismounted Slike and stripped and hobbled the horses. Slike had not enjoyed the long night ride. He was disposed to be peevish. "I want a smoke," he demanded.

Billy ceased pounding coffee and fixed him with a hard eye. "You won't get it," he said shortly.

"Helluva way to treat a prisoner," snarled Slike. "You done better by me when I was in jail."

"Lots of things have happened since. But don't you fret. I'll give you what you deserve in about five minutes. I missed out on it yesterday, but I'll try to see you don't lose anything by the delay."

"Huh?" puzzled Slike.

"You remember going to Miss Walton's ranch," elaborated Billy in a cold, monotonous tone. "You beat her."

"Hell, nothin' to that. I only pulled her hair a few times and slammed her once or twice."

"You kicked her, too."

"Not hard, though. Besides, I had to. She was stubborn. My Gawd, you wouldn't begin to believe how stubborn that girl was!"

Billy laid aside the rock with which he had been pounding coffee. "I guess the coffee can wait better than I can."

He stood up limberly and unbuckled his cartridge belt and dropped it beside Johnny Dawson, who was slicing bacon. Then he crossed to Slike and untied the knots of the rope that bound him. Slike stretched his arms and legs but made no offer to rise. Billy nudged him in the ribs with the toe of his boot.

"What's that for?" roared Slike, scrambling to his feet.

"I'm going to give you the best licking you ever got. You've had it coming a long time, and now you're going to get it."

"Is that so?" sneered Slike. "Is that so? You expecting to do all this without help?"

Fists doubled, Billy started for Slike. The latter side-stepped and feinted Billy into a position between himself and Dawson. Slike crouched. His right hand flashed downward. The fingers fumbled at his bootleg. Billy ran in, expecting to beat Slike flat.

"Look out!" cried Dawson, as Slike's hand shot up and out, accompanied by the vicious twinkle of steel.

But Billy, coming in with the speed of a springing wildcat, slipped a bootsole on a rock and fell. Slike's thrust sped past his head so close that Slike's knuckles brushed his ear.

Billy got one foot under himself and threw up an arm in time to catch on the turn the wrist of Slike's knife hand. Slike promptly changed hands. But Billy caught the other wrist, not, however, before the knife had narrowly missed slicing the flesh on his floating ribs. Slike's head dipped forward and he sank his teeth in Billy's shoulder. Billy drove a knee into Slike's stomach and Slike unclamped his teeth with a gasp. Over he went. Billy stayed with him.

Dawson, who had dropped bacon and frying-pan at the first blow, saw his opportunity and lunged down to wrench away Slike's knife. Which was not at all to Billy's mind.

"Let it alone!" gasped the warrior. "He ain't giving me a bit o' trouble."

The reluctant Dawson obeyed.

Slike, his body writhing like that of a scotched snake, could not budge his pinned-down knife hand. Inch by inch Billy dragged his own body forward and upward until he was resting on his knees with Slike between his legs.

"Leggo that knife!" he directed.

Slike's reaction was humanly natural. At least, there were no hobbles on his tongue.

"Well, all right, if you say so," Billy told him, and rejoiced to perceive the top of a small rock not six inches from Slike's knife hand.

He forced the knife hand inward toward the rock. Then he proceeded, with all his might, to batter the back of Slike's hand against the pointed top of the rock. Slike's face changed at the first blow; at the second he involuntarily groaned; at the third his fingers unclosed. The knife tinkled on the rock.

Billy pounced on the knife, threw it yards away and scrambled to his feet. "Get up, Slike! Stand on your feet! Come and get it!"

Whatever other thing Slike was, he was certainly no coward. Instead he was a glutton for punishment. He jerked himself to his feet and ran headlong into a straight-arm blow that made his nose bleed and his neck ache. As has been said, Slike had no science. Neither had Billy. In which respect the fight was equal. But Slike was only fighting for himself. Billy was fighting not only for himself but to revenge Slike's treatment of the girl he loved.

When he flattened Slike's nose, pleasure ensued—for Billy. It was joy to his heart when the next blow landed on Slike's right eye and laid him all along the grass. Three times Billy knocked Slike down, and three times the killer hopped to his feet and came back for more. But after the third

knockdown it was noticeable that Slike was appreciably slower and considerably more cautious. His face was a sight. One eye was completely closed. His nose was broken, his lips cut and two teeth were missing.

Slike came to a halt in front of Billy, blew a bubble of blood from his lips and wiped his good eye with the back of his hand. He swayed on his legs. But this display of weakness was more apparent than genuine. Billy, watching Slike's one good eye, was not misled thereby. There was no hint of weakness in Slike's eye. Indeed, there was strength and hatred a-plenty.

Accordingly, when Slike suddenly lowered his head and dodged in under Billy's guard with the evident intention of starting another "snatch and wrastle," Billy was ready, very ready. His uplifted knee met Slike full in the face. Slike straightened instantly, and Billy hooked his right to the point of the chin. Slike didn't need that last blow. The knee blow had already given him a clean knockout.

He took the ground limply and lay motionless. Billy stood and looked at him and blew upon his skinned knuckles and suddenly realized that it was a good old world, after all. There might be some mean citizens scattered here and there. But they always got their come-uppances in the end.

Dawson joined him. "Sure looked like a mule had kicked in his dashboard. I dunno when I ever saw a more complete job. That face don't look genuine a-tall."

"I'm sure ashamed of myself," muttered Billy.

"Whyfor? You did just right. I'd have done the same in your place. You got no call to be ashamed."

"Not for licking him. That was all right. But I searched him and let him hide out a butcher knife on me in his bootleg—in *his bootleg*."

"That handle was down inside the leather. You couldn't see it. I didn't."

"I should have found it alla same," fretted Billy. "There's no excuse for such carelessness—none."

He went across to where he had thrown the knife and picked it up. He caught his breath. On the handle of the butcher knife the letters TW were cut deep into the wood.

When, for the second time that day, Slike recovered consciousness, Billy showed him the butcher knife.

"How many butcher knives did you take from Walton's?" he demanded.

"One," replied Slike.

"And is this the one?"

"Sure it is. Why not?"

"Why, hells bells!" exclaimed Billy, "then you didn't kill Rafe Tuckleton."

"First I knew he was dead," Slike said thoughtfully. "As a rule, I don't kill my customers," he added, with a grin rendered more horrible by his battered and bloody features. "I can't afford to. Maybe you killed him yourself. How about it? Aw, right! Go to hell then! And I want to say right here you tied my arms and legs too tight! There ain't no feelin' in any of 'em!"

Billy paid Slike no further attention. His brain seemed to find it difficult to function. "She said he only took one knife," he told himself stupidly and sat down to think it over.

He had caught Slike. But he was no nearer the solution of the Tuckleton murder than he was in the beginning. His theory that Slike had killed Tuckleton was smashed to smithereens by the discovery of the Walton butcher knife in Slike's bootleg. Unless Slike had taken two knives. But Slike had not taken two knives. According to Hazel's testimony, he had taken only one.

It was then that Billy suddenly realized that he should have known better in the first place than to connect Slike with the murder of Tuckleton. Dan

Slike was too experienced a longhorn to leave incriminating evidence behind him if he could help it. And if he had killed Tuckleton, he would at least have taken away the handle of the knife. But the handle had been left beside the body for any one to pick up. Manifestly, then, it had been left there with the design to throw suspicion upon a person other than the murderer,—for instance, a person intimately connected with the Walton ranch.

Obviously the Tuckleton murder and the O'Gorman murder were parallel cases. In both, clues had been left to manufacture circumstantial evidence against the wrong person. While it did not necessarily follow that the same brain and hands had planned and carried out both murders, yet the point was worth considering. For it was absolutely necessary to lay at least Tuckleton's murderer by the heels. There were no two ways about that. Because if he were not caught, it would only be a matter of time before Rale, by reason of his peculiar temperament, would recover from his fright, decide to risk the wrath to come, and once more turn the cold light of suspicion upon Hazel Walton. And that would entail her arrest sooner or later. Indeed, to Billy Wingo the future bore the appearance of a mighty boggy ford.

Mechanically he began to play mumblotypeg with the butcher knife—palm of hand, back of hand, right fist, left fist, and had progressed as far as his left pinky in the movement known as off fingers of each hand when he sat back and stared at the knife quivering in the turf. He thought he saw a gleam of light. The very fact of the two knives, each a match of the other, was as obvious a contrariety as any that ever delighted the soul of Mr. William Noy. Attaching to the demise of Rafe Tuckleton was another contrariety, several others in fact. Billy checked off the various contrarieties on his fingers. The gleam of light became a ray, the ray broadened to the bright light of complete understanding.

He hugged his knees and smiled the pleasant self-satisfied smile of the proverbial cat that has just received the canary into its midst. "I got him! I got him where the hair is short. It's one complete cinch."

Early one morning several days later the sheriff *pro tem.* of Crocker County was roused by rappings on the office door. Being an experienced

man, Shotgun Shillman did not open the front door. He went round the back way with his gun in his hand. But his caution was needless. For, on circling the house, he found no one at the front door but Dan Slike—a hatless Dan Slike flat on his back in the dust, tied hand and foot, and with a gag in his mouth. Looped around Dan's ankles was one end of a lariat. At the other end of the lariat stood Hazel Walton's riding horse.

Later in the day Guerilla Melody called on Nate Samson, asked the storekeeper several apparently aimless questions and leafed through the cutlery pages of Nate's hardware catalogue. Still later in the day Johnny Dawson rode out of Golden Bar. Only two people besides himself knew that he was bound for the railroad and a telegraph line.

CHAPTER TWENTY-FOUR

CONTRARIETIES

"There's a lot of this stuff I don't understand," said Guerilla Melody the day after Dawson's return from the railroad. "Why did Conley go south? Reelfoot and he were almighty friendly. Got drunk together and everything. And Conley ain't committed any crime round here that I know of."

"I'm betting he did, alla same," said Billy. "Or else why was he so particular to tell those TU boys he was from Arizona? Folks don't hide where they come from without a reason. We know there have been two murders committed here by unknown murderers. It never occurred to me till you said Conley hadn't committed any crime that you know of that maybe —" He left the sentence unfinished.

Guerilla looked bewildered. "What did Conley have against Tip?"

"I don't know," said Billy. "But I intend to find out."

"That's the trick," chipped in Dawson. "In cases like this it pays to dig into the innards of everything you don't understand. You're almost sure to find out somethin'."

"Maybe friend Simon can tell us somethin'," Billy said. "Let's go. It'll be sunrise in two hours."

Simon Reelfoot, riding the range that day, met a horseman who said he was strayman for the Wagonwheel outfit north of the West Fork. Did Simon know where Park Valley was? Simon knew, and gave the strayman minute directions.

"Shucks," said the strayman, "I can't carry all that in my head. Here's a envelope and a pencil. Make a li'l map like, will you?"

Simon was not an adept with the pencil. To use either it or a pen required the most perfect concentration and his tongue in his cheek. Wondering greatly at the strayman's claimed inability to remember a few simple landmarks, Simon took the pencil and envelope and bent over his saddle horn.

"Here," he said, after three minutes' work, holding out the envelope, "This ought to fix you up."

To this horror, the well-known voice of Billy Wingo at his back concurred readily. "It ought to," said Billy Wingo. "We're obliged to you, Simon. Kindly clasp your hands over your hat."

The envelope and pencil fell to the ground as Simon obeyed. The strayman dismounted and picked them up.

"You oughtn't to have given him that envelope," Billy admonished the strayman. "It has the confession in it. You got to be more careful."

"I will," said the strayman humbly, and tucked the envelope into his pocket.

Simon stirred uneasily on his saddle. Confession! Whose confession? He recalled that there had been several folded sheets of paper in the envelope. Of course, Simon could not know that these sheets were white,—innocent of either handwriting or printing. But Simon's conscience was a helpful little thing. And Simon's mind was prone to jump at conclusions.

"I'll just take your gun, Simon," murmured Billy. "I don't think you'd do anything reckless, but you might. Slide off easy. That's it. You look kind of bewildered, Simon. Don't know how I got here, do you? Easy, like eatin' pie. While you were hard at work with your pencil, Guerilla and I were tippytoeing out of that stand of timber behind us a ways. You shouldn't be so trusting of strangers, feller. *Keep your paws up!* Just because I've felt you all over and haven't found an extra gun or knife doesn't signify you can do as you please. You stand right still and steady. Johnny, let's have that envelope. My friend will watch you, Simon, while I glance over this."

Billy took the envelope, fingered out the sheets of paper and unfolded them. His lip moved as he solemnly looked them over. It was apparent to Reelfoot that he was refreshing his memory.

"Simon," Billy said, glancing up suddenly, "why did Conley go South?"

Simon's leathery face assumed a richly jaundiced hue. "I—I dunno!"

"Yes, you do," Billy insisted, striking the sheets of paper with his fist. "We found Conley. He was working for the TU when he died."

Simon's face went even yellower. "I told him not to go," muttered Simon Reelfoot.

"Conley talked before he died," said Billy. "He told me some interesting things about himself—and you. We've got you dead to rights, Simon." Here Billy stuffed the sheets of paper into his trousers pocket and gripped Simon by the throat. "You damned murderer, what did you kill him for?"

At the fierce clutch of Billy's fingers, Simon's shaking legs refused to uphold him longer. He fell on his knees. "I—I didn't kill him!" he spluttered. "He was dead when——"

"You lie! You killed him! Conley said so! You tried to throw the blame on me by leaving behind—" Billy's voice trailed off into silence.

"That was Conley's idea!" screamed the panicky Reelfoot. "He got the hatband and quirt one day when nobody was in the office. I didn't have anything to do with it! Conley shot him, too!"

"Conley shot him too, huh? Then you shot Tip your own self?"

"He was gonna squeal! He was gonna get me mixed into that Walton murder! They told me he was! He—he pulled first, I tell you! It was an even break! I was drunk! I didn't know what I was doing! Oh, my Gawd!"

Billy flung the groveling Simon from him. "This ought to be enough for you."

Guerilla wagged an admiring head as he set about securing the arms of the wretched Reelfoot. "Gotta give you credit, Bill. I never thought it would work."

"I did," said the strayman, Johnny Dawson. "I've seen it done before. Most folks are sheep when it comes to a bluff."

"Don't tie him too tight, Guerilla. Might as well ask him some more questions."

That evening there was another prisoner in the Golden Bar calaboose. "If they keep on coming in like this," said Shotgun Shillman to Riley Tyler, "we'll have to build an addition to the jail."

"The more the merrier," grinned Riley Tyler. "Listen to that skunkified Reelfoot! You'd think he was having the horrors, the way he's carrying on."

"Did you hear what he said about leaving a lantern outside the cell all night, account of Tip haunting him in the dark?"

Riley nodded. "I heard. His nerve has gone completely bust."

"It's funny how he keeps insisting that Bill Wingo was with Guerilla and that Dawson man when they captured him. Why, everybody knows Bill Wingo is far, far away." Thus Shotgun Shillman, his tongue in his cheek.

"Damfunny," Riley assented with a wink. "Especially when Guerilla and Dawson said they hadn't seen a sign of Bill, not a sign. You might almost think Simon Reelfoot was mistaken."

"You might," chuckled Shotgun Shillman. "I wonder, speaking as man to man, and not as sheriff *pro tem.* to his deputy, where Bill is anyway."

"Probably in town this minute. It would be just like him."

"Guessin' thataway is bad business," Shotgun reproved Riley. "Besides, you're mistaken. If we thought Billy was in town, it would be our duty to hop out and arrest him, wouldn't it? You bet it would. So we don't think he's in town. That is certain sure. You wanna mix a li'l common sense with your

job, Riley. You're too half-baked by a jugful. You keep on expressin' opinions so free and easy, and first thing you know folks will think we ain't so anxious to arrest Bill."

"Some of 'em think so now," said the unimpressed Riley.

"Ain't that the public all over!" exclaimed the justly indignant Shotgun. "Tell you, an honest officer of the law is never appreciated, never. Is that bottle empty, Riley?"

In the meantime Billy Wingo was calmly eating his supper in the house of Guerilla Melody. On Guerilla's bed Dawson was snoring the sleep of exhaustion.

"What next?" asked Guerilla Melody, when Billy was lighting his after-supper cigarette. "With Tip's murder settled and knowin' who killed Tuckleton——"

"Certainly doesn't help us any with the stage holdup," cut in Billy. "Before we spring the joke in the Tuckleton deal, I've got to do a li'l more work on the hold-up. Dumping Rafe's murderer won't do me a heap of good while I'm breaking rock for twenty years at Hillsville. Don't look so glum, Guerilla. There's a trail out. There always is."

At the tail of the woods a convivial voice in the street broke into boisterous song. "Who's that?" asked Billy.

"It's Jerry Fern," said Guerilla indifferently. "He's drunk again."

"Ain't it kind of new for him? He never used to drink much."

"Oh, he can't stand prosperity."

"Prosperity?"

"Yep. Aunt died, left him some money. He ain't drove for nearly a month."

"The lucky devil. Big legacy?"

"I dunno how much. Fair size, I guess. Must have been for Crafty to lend him money to play with."

"What?"

"Don't get so excited," cautioned Guerilla, with a nervous glance over his shoulder. "You've no idea how your voice carries. Even if you don't mind being dumped, I do. And I don't care three whoops about spending two or three years in jail for giving aid and comfort to——"

"Shut up, for Gawd's sake!" begged Billy. "Do you know Crafty's been lending money to Jerry?"

"Didn't I see him with my own eyes more than once? But——"

"Say, don't you see anything else yet?"

"I see you, but that ain't sayin' much."

"Guerilla, if you weren't so serious you'd be funny. But don't get downhearted. I'm as foolish as you are, every bit. Why, when they had me corraled in Sam Larder's house, and Crafty blatted right out loud that he didn't know Jerry Fern was driving that trip and Tip and Sam said later that they knew Jerry was, I had the answer to the puzzle if I had the sense to follow it up. Especially when it turned out later that Jerry, who always gives a bandit a battle, didn't even try to lock horns with Crafty. But I never caught the connection till you said Crafty was lending money to Jerry. Lending him money! Do you think you can get Jerry Fern in here and make him drunk?"

"When?" asked Guerilla, beginning to get a glimmering.

"To-night. Now. I want to get Jerry so full he'll talk. Tell us all he knows, see?"

"I'll make him drunk," Guerilla said earnestly. "And I'll make him talk, or there ain't a drop of virtue in Old Crow."

Guerilla flipped on his hat and departed.

Half an hour later Guerilla returned, bringing his sheaves with him. And, oh, the sheaves were merry and, oh, the sheaves were drunk. Guerilla himself was giving an admirable imitation of a roistering blade.

"Meet my friend, Mister Johnny Dawson," said Guerilla, waving an expansive hand toward the erstwhile strayman.

"Huh, h'are you, Misher Juh-johnny Duh-duh-daw-son," said Jerry Fern, solemnly shoving out a wavering paw and missing the mark by eighteen inches. "Washer name of other tut-tut-twin?"

For a bad moment Dawson feared that Billy Wingo had been foolish enough to come in from the other room. Then he understood. "His name's Eliphalet," he made reply, solemnly turning to the empty air on his right.

Jerry Fern again pumphandled the empty air. "Pup-pup-pleased meetcha," he stuttered. "Cuc-cuc-cuc-can't pup-pronounce name, but thash all ri'. All li'l friends tut-together. Wheresh bottle? You gug-got bub-bub-bottle, Guh-guh-gil-Guerilla?"

"Sit down," urged Guerilla, steering Jerry to anchor. "Here's your bottle."

Jerry Fern clasped the bottle to his bosom and sang a lusty stave.

"Rye whisky, rye whisky,
Rye whisky, I cry.
If I don't get rye whisky
I surely will die."

Like the boy in the story, Jerry could sing without stuttering. But when he began again to talk, his enunciation was worse than ever. "Buh-buh-buh-whistle for the crossing—but I ain't gug-gug-gargle gonna die. Nun-nun-not me. I gug-got rye whuh-whisky."

He put the bottle to his lips and went through all the motions of taking a hearty pull. "Fuf-funny," he said, holding the bottle at arm's length. "Wuh-

wuh whisky lul-lul-lost all its taste."

"Take the cork out," suggested Guerilla.

"Cuc-cuc-cork?" smiled Jerry Fern. "I'll tut-take cuc-cork out."

So saying he smashed the bottle neck against the edge of the table, broke it short off, and drank without ceasing till the bottle was empty. He held the bottle against the light. He pressed it to his ear. He shook it. Then he tossed it nonchalantly over his shoulder, laid his cheek on the table and began to snore.

This would never do. Guerilla and Dawson shook him awake.

"Mush been shleep," mumbled Jerry, knuckling his eyes. "Gimme anuzzer dud-drink."

"Not yet," said Guerilla firmly. "Is Felix Craft a good friend of yours, Jerry?"

"Helluva good fuf-fuf-friend," was the instant reply.

"He doesn't pay you enough," prompted the carefully drilled Dawson.

"Thash whu-what I tut-told him!" cried Jerry Fern, pounding the table with a vehement fist. "I ought tut-tut-to have num-more."

"He's treatin' you mean," said Guerilla. "He ain't goin' to give you any more money."

"Yesh he wuh-will," insisted Jerry.

"He told me different." Thus Dawson.

"Yesh he wuh-will. Huh-he'll have to gimme all money I want. Pup-put him in juh-juh-jail if he don't."

Guerilla and Dawson looked toward the doorway giving into the other room. Then they began to laugh immoderately. "That's a good one," cried

Guerilla, wiping his eyes. "You can't put Felix Craft in jail. He hasn't done anything wrong."

"Oh, ain't he?" flared Jerry Fern with all the drunkard's irritation at being disbelieved. "I know more abub-bub-bout Fuf-felix Cuc-craft than you thuh-think. I cuc-can muh-make Fuf-felix Cuc-craft lul-lie dud-down and rur-roll over."

"Yes, you can." With derision.

"Yeah, I cuc-can!"

"What makes you think so?"

"I know all rur-right," vaguely.

This was maddening. Billy, in the other room, yearned to take Jerry Fern by the scruff of his drunken neck and squeeze the truth out of him.

"You don't know a thing about Felix Craft," persisted Guerilla. "Not a thing."

"Damn shame he don't pay you enough," chipped in Dawson.

"Maybe if I went to him I could get more money for you," suggested Guerilla. He waited a moment for the meaning of this to sink in before adding, "What will I tell him."

"Tut-tell him I'll tell if he dud-don't pup-pay."

This sounded promising. "Tell what?"

"Tut-tell whuh-who held up the sush-sush-stage."

"Oh, that's nothing," said Guerilla. "Felix told me all about that. He said you didn't help him out a-tall."

Jerry Fern was instantly up in arms. "I dud-did so," he chattered. "He knows bub-better. Did-didn't he plan it all out wuh-with mum-me nun-nun-

not to cuc-cuc-cut down on him, and didn't I tut-tell the pup-passengers to muh-make sure of Bub-bill's clothes and the bub-brass gug-gug-guard of his six-shu-shooter? Did-didn't I? Did-didn't I? Yeah, and his huh-horse and all too? Dud-didn't I do all them thuh-things acc-acc-accordin' to cuc-contract? Did-didn't I? Cuc-course I did. And if Fuf-felix do-don't pay up, I'll pup-put him in jail."

"That's right," Guerilla soothed him. "Do anything you want with him." He went to the door of the other room and whispered, "Has he said enough, Bill?"

"About," answered Billy, pushing his chair back and standing up.

"But maybe he won't repeat it under oath when he's sober," worried Guerilla.

"We won't wait that long. We'll sic him on Felix right now. You go find out where Felix is, will you, Guerilla, and— Here, wait a shake! Better have Shotgun Shillman and Riley Tyler in on this. Huh? Course not! Don't tell 'em I'm here. Tell 'em——"

CHAPTER TWENTY-FIVE

JONESY'S ULTIMATUM

"You can't tell me that infernal Bill Wingo ain't at the bottom of all this business!" snarled Felix Craft. "Guerilla Melody and that Dawson friend of his didn't get Slike by themselves any more than I did. I tell you flat, Bill Wingo was the boss of that job. He was the brains, and you can't tell me different."

"And there was a time when we thought Bill didn't have any brains," Sam Larder grieved bitterly.

"I didn't," avowed the district attorney. "I always knew——"

"Oh, you!" interrupted Felix with a sneer. "You know it all, you do. You know so much, maybe you'll explain why Reelfoot says you told him Tip O'Gorman was gonna tangle him up in the Walton murder and that the easiest way was for him to down Tip."

"He says Rafe Tuckleton told him that," corrected the district attorney.

"He says you did too," accused Sam Larder. "What did you tell him a thing like that for?"

"Reelfoot's a liar," declared the district attorney. "I never told him anything of the kind. Why should I?"

"I don't know. I'd like to find out." The fat man's stare was bright with suspicion.

The district attorney bristled. "Good Lord, man, I was always friendly with Tip."

"You were friendlier with Rafe Tuckleton," pointed out Felix, "and we all know Tip didn't have any use for Rafe after that Walton deal, and Rafe knew it."

"It's just possible," put in Sam Larder, "that Rafe put Reelfoot up to downing Tip."

"In which case," supplemented Felix, "you bein' so friendly with Rafe, it would be natural for you to help him."

"Next thing you'll be saying I killed Tip." Thus the district attorney with sarcasm.

"No, because that wouldn't be true. I know you didn't kill him. But I'm not sure you aren't an accessory before and after the fact."

The district attorney went pale. But he made no attempt to go after his gun. Not against Felix Craft. Not now at any rate. "I'll settle this with you

later," he began. "I——"

"You'll never settle anything with anybody," Felix flung the insult with contempt.

"We'll gain nothing by fighting among ourselves," went on the district attorney evenly. "If we don't stick together, we'll hang together, and you can gamble on that. If Slike talks——"

"He'll implicate you and Tuckleton," Larder chipped in swiftly. "We're out of *that* proposition."

"But we all aided him to escape from jail, so we are all guilty of felony. If Slike should choose to blat about it—" The district attorney left the remainder of the sentence to his comrades' imagination.

"He's right," said Sam Larder suddenly. "We've got to stick together."

"All right," Felix Craft said grudgingly, "I'll wait until we're out of this muss before I ask you any more questions about egging Reelfoot to down Tip O'Gorman, Rale. Afterward I'll get the truth out of you if I have to choke you to death first. Oh, you needn't show your teeth at me, feller. You won't bite."

The district attorney swallowed hard. "You'll find your suspicion is baseless, Felix, baseless and unjust. I had absolutely nothing to do with the murder of Tip O'Gorman. Whoever told you——"

"Nobody told me anything. I——"

"Let it go for now," broke in Sam Larder. "We've got to think of our skins. And if we don't catch Bill Wingo, they'll be gone skins."

"You bet they will," said the district attorney. "That man at large is a menace. He'd bushwhack any or all of us three without a moment's hesitation. He's—he's capable of anything."

"I know he's capable of anything," Sam Larder said with deep feeling, thinking of Billy's escape from the Larder ranch house. "And I'd give a

good deal to know he was two feet underground. But Gawd knows we can't do more than we have done to catch him. Felix and me have ridden ourselves bowlegged combin' the Medicines for him."

"You bet we have," agreed Felix. "There ain't a square foot of those mountains we don't know intimate. Speaking personal, I've ridden—" He paused and looked across at Sam Larder. "That bet was I'd ride more than six hundred miles in sixty days. Remember, Sam? And the sixty days ain't up yet, and I've ridden more than six hundred already."

"What bet's that?" asked the district attorney chattily, anxious to reestablish friendly relations. "Who you bettin' with?"

"Nobody you're interested in," parried Felix Craft, it having been thought better to keep the district attorney in the dark regarding the happenings at the Larder ranch house on the day of the stage hold-up.

"I'll go the limit we've covered a thousand miles," groaned Sam. "I've lost thirty pounds myself. I don't believe Bill ever went near the Medicines."

"Oh, he went there, all right," said the district attorney. "Take my word _____"

A pounding on the office door cut the sentence in half.

"You are certainly jumpy this evening, Rale," Felix Craft said dryly. "Open the door. Maybe it's our friend Bill."

The district attorney obeyed with caution. Not that he expected Billy. But then, he did not quite know what to expect. That it would be something to trouble him he was positive. He was not disappointed. It was a trio of the Tuckleton outfit, to wit, the foreman, Jonesy, and two punchers, Ben Shanklin and Tim Mullin. All three were in the worst of tempers.

"Look here, Rale," Jonesy began without preliminary, "you've fooled with us long enough, and we're sick of it."

"We want action," rapped out Ben Shanklin.

"You can't come any of this high and mighty stuff over me," said the district attorney, with an eye that flickered in spite of himself. "I don't know what you're talking about, but if you want anything, you'll have to ask for it in the right way, and maybe you'll get it and maybe you won't."

"Is that so?" fleered Jonesy. "We'll see about that. What have you done in Rafe's case?"

"We hope to land the murderer very soon. We have several clues. We _____"

Jonesy banged his fist down on the table with a force that made the windows dance. "Shut up! You and your 'we's!' Rafe's murderer is that damn niece of Walton's, and you know it. You had her in the jug and you turned her loose. The evidence was insufficient to hold her on, you said. You said at that time you had evidence against Bill Wingo and expected to catch him soon. You haven't caught him, and we want to know what the evidence against him is. What is it? C'mon! Spit it out!"

"Now look here," temporized the district attorney, "I can't tell you——"

"You bet you can't," interrupted the angry Shanklin. "'Cause why?' Cause you haven't any evidence against him! The only evidence you've got is against Hazel Walton, and you've got enough of that to put her over the jumps."

"Lemme do the talkin', Ben," directed Jonesy. "Look here, Rafe, either you tell us what evidence you got against Bill Wingo, or you issue a warrant for Hazel Walton's arrest. One or the other. Take your choice."

"Say, are you friends of Bill Wingo?" demanded the district attorney.

"You know better than that," snapped back Jonesy. "It's just that we're gonna know what's what."

"But what good will it do to rearrest Hazel Walton?"

"Then you haven't any evidence against Bill Wingo?" persisted Jonesy.

"I didn't say that. I——"

"If you can't tell us what the evidence is, we'll take it you haven't any. I knew there was some trick in it when you turned Hazel loose. You and your evidence against Bill Wingo! You lousy liar, you gotta get up early in the morning to pile us! You listen to me! You issue a warrant for that girl's arrest immediate!"

"I can't," denied the district attorney. "I haven't the power to issue warrants. No justice of the peace has yet been appointed to fill Driver's place, and the nearest judge is Donelson at Hillsville."

"Under the law," horned in Felix Craft, suddenly choosing his side, "when a felony has been committed, and there is reasonable cause for believing that the person to be arrested has committed it, that person may be arrested without a warrant."

"I thought you didn't want anything to happen to Hazel Walton," fleered the district attorney.

"I don't want her hurt, that's all. I haven't any objection to her being tried for the murder of Tuckleton. But I ain't going to have you haze her around. Understand?"

"There y'are," said Jonesy. "You don't need a warrant for the girl. All you have to do is to give your orders to Shotgun and Riley. They'll do the rest."

"But after turning her loose thisaway——" began the thoroughly frightened district attorney.

"You can rearrest her and have her tried on that butcher-knife evidence," insisted the stubborn Jonesy. "Just going by what she says herself, there's enough to fix her clock twice over. You dump her, Rale, and dump her quick."

"Or we'll fix your clock," inserted Tim Mullin.

The hapless district attorney cast his distressed gaze this way and that. But every eye that met his either was unfriendly or wrathfully hostile. Certainly there was no help for him in that room. The district attorney shuddered. He knew Jonesy and the rest of the Tuckleton outfit; knew, too, if he did not do as these men of violence demanded, that they would make him hard to find. On the other hand, if he obeyed them, Bill Wingo would as surely kill him. The district attorney shuddered again.

"What you shivering about?" demanded the sarcastic Tim Mullin.

The district attorney squared his afflicted shoulders and did the obvious,—chose the more remote of the two evils. "I'll send Shotgun and Tyler to Prescott's to-morrow," he said, rose to his feet and,—the door flew open, and, Jerry Fern, wild-eyed with liquor, stumbled into the room. The stage driver rolled straight to Felix Craft and pawed him. "Fuf-felix," he babbled, "I wan' shush-shome mon-money."

The furious Felix shook him off. But Jerry Fern was nothing if not persistent. He returned with bellowings.

The grinning faces of Guerilla Melody, Johnny Dawson, Shotgun and Riley looked in through the open doorway.

"Come along, Jerry," called Guerilla. "We been hunting you all over."

Jerry Fern was not in the least interested in coming along. He had another and very definite end in view. "Fuf-felix, gug-gimme shome mum-money!"

Felix bit off a curse. "Look here, Jerry," he said soothingly, patting the hysterical drunkard on the back, "you go home and sleep it off. You don't want to go whoppin' round this way at your age."

The district attorney, Jonesy and his two punchers stared. This was another Felix. The Felix they knew would have knocked the sot down.

"I wuh-wuh-wan' shush-shome mum-money," gargled Jerry, even as Billy's four friends pushed in through the open doorway.

"You come along with me," urged Felix, gently propelling Jerry toward the street.

Jerry braced his feet mulewise. "I wuh-won't! I wuh-won't! I wuh-wan' mum-money you promised me."

"I didn't promise you a nickel," said Felix, wrestling with his emotions. "But come along, and I'll give you some money if you're hard up."

"Huh-how much?"

"Plenty. I'll give you what you deserve." There was cream and butter in the gambler's voice, but there was grisly menace in his restless eyes.

"Gug-guve mum-me more than you gug-gave bub-before?"

"Yes, yes. C'mon!"

"Wuh-want mum-money now!" yelled the contumacious Jerry, "or I'll pup-put you in jail!"

At which Felix lost his patience and his head and gave Jerry the bum's rush through the doorway. Jerry skidded across the sidewalk and slid a yard on his nose. This annoyed him considerably. He sat up, supporting himself on a wavering elbow and squalled, "Yuh-you nun-needn't thuh-think I'm gug-gonna lul-lie for you nun-no longer! If you dud-don't gug-gimme plenty mum-money, I'm gug-gonna tell folks how yuh-you huh-held up the sush-stage yourself all dressed up in Bill Wingo's clothes sho you cuc-could throw the bub-blame on him!"

Most certainly then the gambler would have put a bullet through Jerry Fern had not Shotgun Shillman and Riley Tyler been too quick for him.

"Now, now, Felix, calm down," suggested Shotgun.

"He's a liar!" foamed Felix, struggling to jerk his gun arm free. "I never held up the stage! Bill Wingo did it himself! Ask Sam Larder!"

"Was Sam there, too?" said Riley, with fresh interest. "Here, Sam, wait a minute. What's your hurry?"

"Got to see a man," mumbled Sam. "Be right back."

"Stay a while," invited Riley Tyler.

Sam Larder regarded the muzzle of Riley's gun. "All right," said Sam Larder.

"Felix," said Shotgun Shillman, "I don't *want* to plug you."

Felix Craft took the hint.

Johnny Dawson went out into the street and returned with Jerry Fern, who had forgotten his grievance against Felix Craft and wished only to sleep.

Shotgun Shillman looked at the district attorney. "Rale, this sort of puts a crimp in the notion that Bill Wingo held up the stage."

"It looks like it," admitted the district attorney, fumbling the papers on his desk. "Of course, we'll have to do some more investigating first."

"Before any investigating is done, we want Hazel Walton arrested," tucked in the malevolent Jonesy.

"All right! All right!" snarled the badgered Rale. "I'll have her arrested first thing in the morning."

CHAPTER TWENTY-SIX

THE FOOL-KILLER

The district attorney, having looked carefully to the fastenings of his windows, tucked a six shooter under his pillow and began to unlace his shoes. Came a rapping at his chamber door and the voice of his housekeeper.

"Say, Art, here's another of your infernal friends at the kitchen door. Says his name's Johnson."

The district attorney, jumping at a conclusion, immediately reached for his six-shooter. "I don't know any Johnsons. Not around here, anyway. What's he look like?"

"Middlin' tall, scrubby lot of black whiskers, talks sort of thick like."

"Pebbles under his tongue, most likely. Tell him to come into the kitchen, so I can get a look without him knowing."

"He won't come in. Says he wants you to come to the door your own self. Says it's important."

At which the district attorney was more than ever certain that the midnight visitor was Billy Wingo. "You go tell him that he'll have to come into the kitchen before I'll talk to him. Close the kitchen door most to. I can look at him through the crack."

The housekeeper departed, and the district attorney slipped off his shoes and tip-toed into the hall. The housekeeper, hair in curl papers and wearing a wrapper, met him before he reached the kitchen door.

"He says he won't come in," she told him, "and told me to tell you he wanted to see about a note for five thousand dollars he has in his pocket."

"Now I know who it is," said the district attorney. "You go to bed. I'll let him in."

After the district attorney heard the slam and following click of his housekeeper's door, he went into the kitchen, turned down the flame of the lamp and opened the kitchen door.

"That you, Rale?" inquired a muffled voice.

"Yes! Come in! Come in!"

The man in outer darkness spat out two pebbles. "Is that damn woman there?" he asked in the natural tone of voice of Jack Murray.

"No! Come *in*! I want to shut the door."

Jack Murray entered quickly.

"What in hell are you doing here?" demanded the district attorney, when he and the other were behind the closed door of the office. "Don't you know _____"

"I wanted to see you," Jack Murray said, seating himself in the nearest chair. "Ain't you glad to see me?"

"Not very," the district attorney said frankly. "If you get caught——"

"I ain't gonna get caught. The man ain't born yet to catch me. I suppose you got the money for that note."

"No, I haven't."

"Why haven't you?"

"I couldn't raise it."

"What's the matter with you? Ain't you got any credit left?"

"Folks won't lend money unless they get security, and I haven't any security that hasn't already been put up."

"*He* didn't ask for security," thus Jack Murray with an indescribable leer.

"That—was—different."

"I guess it was. Yeah. I always had an idea you were a rich man."

"A lot of people thought so," the district attorney said bitterly. "As a matter of fact, I've been hard pressed for money all my life. I've always had a hand in too many deals."

"You were able to chip in on that reward for me without any trouble."

"I knew I'd never have to pay it. Some day, when all my different enterprises pan out, I'll have money, but now I haven't got any."

"How about that bribe in the Jacksboro range case last fall? Why, they must have paid you all of three or four thousand dollars."

The district attorney shook his head. "No, only twenty-five hundred, and two thousand of that went for some insurance I had to pay in January."

"Two thousand dollars for insurance!"

"That's what I said."

"You're lying. Whoever heard of two thousand dollars for insurance?"

"Oh, I wasn't the only one. Rafe had to pay the same. And Tip a thousand. Oh, never mind trying to understand it. It's too long a story now."

"I guess it is. I ain't carin' much about listening to any such stories, anyway. I didn't ride alla way north from Dorothy just for that. I want the money for that note."

"I haven't it, and you could have gotten that information by writing for it. You didn't have to take the trip. You——"

"The money ain't all I come for. I want to settle my li'l account with Bill Wingo."

"I thought that li'l account was closed," said the district attorney, with the shadow of a sneer that Murray did not catch.

"It won't be closed till Bill Wingo is pushin' up the grass," averred Jack Murray. "This territory ain't big enough for the two of us."

"If you had any sense it would be."

"Meanin'?"

"Meaning that Bill Wingo is a pretty cold proposition for you to handle."

"I'm better than he ever thought of being, and don't you let anybody tell you different. I'll get that —— —— if I have to follow him to hell! Damn his soul! If it wasn't for him, I wouldn't be where I am now! If it wasn't for him, I'd be sheriff of this county! If it wasn't for him— Oh, I got a-plenty reasons for putting that Wingo where he belongs."

"Sally Jane, huh?" the district attorney supplied with malice.

"I didn't say anything about Sally Jane."

"I know you didn't. But I got eyes, man. I'll bet you like her still."

"Don't you lose any sleep over who I like."

"I ain't. I only thought you might be interested in knowin' that she and Bill are thick again, like they used to be. Thicker, you might say."

Jack Murray's thin lips became thinner. "Skinny Shindle told me somethin' about him switching to Hazel Walton."

"Don't you believe it," blattered the district attorney, continuing to rapidly pump the bellows on the fire of Jack Murray's hatred. "Hazel Walton was only a passing fancy. Sally Jane is the girl for him, you can gamble on it. Tough luck, Jack. I'll bet you'd have stood better than a fighting chance with her if she hadn't listened to his lies."

"He'll never have her!" snarled Jack Murray, wagging a vicious head. "By Gawd, he won't!"

"I guess she thinks he will—when this muss is cleared up," said the district attorney, with admirably simulated carelessness. "Hazel—I mean Sally Jane——"

"Yeah, Hazel! I'd say Hazel, I would. I should think her name *would* stick in your craw!"

"Well, never mind about that. I fixed it once to turn her loose, but here this Jonesy comes squallin' for her scalp to-night, and I had to promise to have her arrested to-morrow. What else could I do?"

"Just as if you wanted it any other way! Why, I'll bet you even fixed it with Jonesy to raise a roar so that you'd get this second chance at her. What did that li'l girl ever do to you? Not that I give a damn—just between friends."

"She cost me some money, if you want to know," snarled the district attorney, who saw red every time he thought of the two thousand dollars he had been taxed by Billy Wingo for Hazel's benefit. "And anybody that costs me money will pay for what they get. Look here," he added with an abrupt change of subject, "how did you find out Bill was still in this county?"

Jack Murray gripped the district attorney's wrist. "Do you know where he is?"

Rale shook off the restraining hand. "I don't know exactly where he is," he said coldly, "but I'm reasonably sure he's round here somewhere. Good Gawd, man, don't you suppose if I knew where he was, I'd have him dumped so quick his hair would curl?"

Jack Murray nodded. "He's round here all right, unless he's gone north beyond the West Fork. I cut his trail at Dorothy."

"Was he there?"

"Considerable. Yeah, him and another feller were there. Between 'em they caught Slike."

"Were you with Slike?"

"Not at the time he was caught, I wasn't. But a while before that I met him in Shadyside and I told him what Skinny Shindle wrote about the

Horseshoe outfit needin' gunfighters. Slike, he didn't want to leave the country yet, anyway, and we decided to throw in with the Horseshoe a spell."

"But how did Bill——"

"Trailed us, I suppose. First thing I knew, here we found Skinny dead as Julius Cæsar alongside Fenley's Creek, and Slike he'd disappeared complete. There'd been a brush, and Shindle and a TU puncher had cashed."

"And where were you during the—brush?"

"I was on the other side of the range with a couple of the Horseshoe bunch payin' a visit to a nester. If I'd been with Slike and Skinny, the deal would have turned out different, and you can stick a pin in that."

"Yes, you'd have been downed or dumped too."

"Meanin' you wished I had been."

"I didn't say so," the district attorney hastened to assure him.

"You don't always have to say so," said Jack Murray, with heavy suspicion. "I'm reading you like a page of big print, you lizard!"

The district attorney forced a laugh. "You're too clever for me, Jack. Look here, what makes you think it was Bill Wingo caught Slike?"

"Because no posses from here went south so far, and because if anybody else but Bill had caught him, he'd either have been killed outright or brought into Dorothy or Marquis, and there'd have been a big time. Instead of that, there wasn't a peep. So it must have been Bill, see?"

"I see. And you're going to get this Bill?"

"You've got the idea,"

"And you trailed him here?"

"I didn't have to. I knew he'd bring Slike to Golden Bar, so I came along the shortest way. It'll be quite a joke on you, this Slike business. Will he snitch, do you think?"

"He'd better not."

"You frown at him thataway, and you'll scare him to death, Art. He's one timid fawn, that Slike person."

"He'll be——"

"Never mind what he'll be, Art. That's his business, and yours. I didn't come here to help Slike. I came here to get Bill and help yours truly. I want some money."

"I told you I haven't any."

"But you can get it."

"I told you folks want security."

"That will do to tell somebody else besides me. I've got my growth and cut most all my teeth a long time since. You'll have to raise some money—say about fifteen hundred."

"You might as well make it fifteen thousand."

"Maybe I will. Thousand sounds kind of good. Say about three of 'em. Three thousand dollars, Art, and I'll let you alone a while."

"But I tell you——"

"And I tell you that if you don't, that same identical note with a written account of what I know goes to Judge Donelson."

"You wouldn't dare."

"Think I wouldn't? You don't know me, feller. When it comes to money, I'm the most daring cuss you ever saw. That's me, Jack Murray. Three

thousand dollars, Artie, or you'll wish you'd never been born."

"I can't raise it," the district attorney insisted despairingly.

"I kind of thought you'd stick to that poverty squeal," smiled Jack Murray, fishing a folded paper from a shirt pocket. "So I took care before I came here to write down what I know about this li'l deal. I thought you might like to see how interestin' it all looks on paper. Hang your eyes over it, feller. Never mind snatchin' at it! I'll hold it for you to read. See, there's my name signed to it all complete. How do you like it, huh? Gives you a thrill, don't it? I'll bet it will give Judge Donelson two thrills. And as an evidence of good faith, to show you I still got it safe, here's your note for that five thousand. It will go with the letter to the judge—unless you listen to reason and raise the three thousand—What's that?"

"That" was a rapping on the kitchen door.

"Go in the bedroom," whispered the district attorney with a very pale face. "You can slide out one of the windows, if I have to let him in."

"I'll go in the bedroom," Jack Murray whispered back, with a chilling smile, "but I ain't sliding out of any windows—not until you and I have come to an agreement about that money. I'll stick right there in the bedroom, Mister Man, right there where I can keep an eye on you. Now go see what's wanted."

"You don't think I've stacked the cards on you, do you?" grunted the district attorney.

"I don't," replied Jack Murray. "Not while I've got that note and the Donelson letter in my pocket, you bet I don't. I ain't worryin' a mite, not me. Run along now, there's a good boy. Papa will be right in the next room."

Thus adjured, the district attorney ran along. Yet not without heart-thumping misgivings. For his was a fearful soul that night. A great deal had happened to upset him.

On his demand that the late caller declare himself, a voice whispered, "It's me, Guerilla Melody. Let me in quick."

"What do you want to see me about?"

"I got a bargain to make with you—a bargain about Bill Wingo."

"Did Bill Wingo send you?"

"You can take it that he did."

After all, why not? What danger was there in listening to the details of Guerilla's bargain? Perhaps he would learn something. Quite so. The district attorney unlocked the kitchen door and opened it.

A tall man pushed in at once. The tall man had a sardonic gleam in his gray eyes, a ragged brown beard, and a derringer. The twin-barreled firearm was pointing directly at the stomach of the district attorney. The district attorney's gun arm hung up and down. The tall, brown-bearded man shot out a quick left hand and deftly twitched away the district attorney's weapon.

"You won't need that," he remarked in a hoarse whisper, tucking the six-shooter into his waistband. "Have you any other weapon on your person? Hold still while I look. No, I guess you haven't. We will now go into your office, Arthur. I have a li'l something for your private ear. I guess I'll lock the kitchen door, so we won't run any risk of being disturbed."

So saying he reached behind him, slammed the door shut, shook it, and turned the key in the lock. The key he dropped into a trouser's pocket.

"What are you waiting for?" he demanded, still in that hoarse whisper.

The district attorney found his tongue—and stood his ground. "Where's Guerilla?"

"I don't know. He left when you decided to let him in. You see, I thought you'd be more likely to open up if it was some one you knew, so I got

Guerilla to do the honors. Just a li'l trick, Arthur, just a li'l trick. You're such a shy bird. No hard feelings, I hope. No? Yes? Well?"

"Whonell are you?"

"Me? Oh, I'm the Fool-Killer. Let us walk into your office says the fly to the spider, you being the spider, of course. And if the fly has to say it again, the spider will have something to think about besides the pitfalls of this wicked world. Thank you. I thought you would. And bear in mind that any wild snatches toward table drawers and so forth will be treated as hostile acts."

The district attorney continued to lead the way into the office. He started to sit down in his accustomed chair behind the table.

"Not there—there," said the brown-bearded man, indicating a chair on the other side of the table. "I'd rather sit on the drawer side myself. Not that I expect you to gamble with me, Arthur. But in my business we can't afford to take chances. Are you ready. Gentlemen, be seated."

He uttered the last three words in his natural voice. The district attorney failed to suppress a bleak smile.

"There's my old Arthur," approved Billy Wingo. "I knew he'd be glad to see me, give him time."

"Yes, indeed," declared the district attorney in a loud voice. "I'm always glad to see Bill Wingo. Bill Wingo, you bet."

Billy Wingo's gray eyes narrowed. "Not quite so loud," he reproved the district attorney. "No need to disturb the neighbors."

"Why, no, of course not." The grimy soul of the district attorney capered with joy. What luck! Here was his enemy, and there was his enemy's enemy in the very next room. It would make a cat laugh. It would indeed.

"Arthur," said Billy, "I've been hearing bad reports of you. I understand you've decided to have Miss Walton arrested. Is that correct?"

"Correct, sure. Sorry, but the law's the law, you know."

"You remember what I said I'd do to you."

The district attorney dismissed this with a simple wave of the hand. "Oh, that. A mere bluff."

"It may not be quite as mere as you seem to think. Let me argue with you, Arthur. Suppose I can prove that Dan Slike was at Miss Walton's the night Rafe Tuckleton was murdered. Would that help any?"

"You can't prove it."

"Oh, yes, I can. When he was there, he stole her hat, besides some other stuff, and inside the sweatband of the hat he stuffed the folded upper half of the front page of the *Omaha Bee*. The other half of the newspaper was found at the Walton ranch house by Shotgun Shillman. He has it now, and when Slike was caught, he was wearing Miss Walton's hat, and inside the sweatband was this particular folded upper half-page I'm telling you about. This evidence is in the possession of Guerilla Melody right now. When this comes out at the trial, why wouldn't that show that Slike was in the vicinity when Tuckleton was killed? And being in the vicinity, why——"

"Impossible!" snapped the district attorney. "I don't see how it could be hung on him."

"Won't you even have his presence there investigated?" Why, Bill was actually pleading. The district attorney swelled his chest like a turkey cock. He would show Bill that he couldn't be bluffed. Not he.

"No, I won't have his presence at the Walton ranch investigated. In the first place——"

"In the first place," said Billy, "I know he didn't kill Tuckleton."

"Then why are you trying to prove he did?"

"Just to see what you'd say. Just to see how dead set against investigating Slike you are. Just to double-cinch the proof against the real criminal. You

know that Dan Slike didn't kill Tuckleton, but that isn't why you don't dare read his trail too much. One reason is that if you do, he'll be sure to blat right out how you and Felix and Sam Larder helped him to escape from the calaboose. Don't blush, Arthur. I know how modest you are. So we'll take it I'm right."

"Oh, you're welcome to what you think," said the district attorney. "But just for the sake of argument, how do you know that Slike didn't kill Tuckleton?"

"Because the initialed butcher knife Slike took with him from Miss Walton's was still on him when he was caught."

"There must have been two knives!"

"There were two knives, but only one belonged to Miss Walton. Rale, when you and Felix and Larder caught Red Herring in the draw a few minutes before you found the dead body of Tuckleton, why didn't you ask more questions about Red being there so handy?"

"Because Red couldn't have had anything to do with it."

"I know he couldn't, but you weren't supposed to know he couldn't. You were supposed to ask questions about any suspicious circumstances, and did you? Not a question did you ask in town as to Red's movements that evening. You simply took his word for it, which wasn't natural—except under a certain condition. A certain condition, you understand, and it never occurred to me until I found that second knife. It would have saved a lot of trouble if I had thought of it sooner. Rale, you didn't ask any questions either about Red being in the draw or Slike being at the Walton ranch house, and you gave out that Miss Walton herself had killed Tuckleton because you had planned ahead that she was the one you were going to hang the murder on. And why did you have it planned ahead? And how did you know it all so certain sure? How, damn you, how? Because you killed Tuckleton yourself!"

The district attorney sat perfectly still. His eyes stole toward the bedroom door. What on earth was the matter with Jack Murray? Why didn't

he shoot?

"I don't know why you killed him," went on the inexorable voice, "but you did. I've found out that early last spring you went to Nate Samson and borrowed his hardware catalogue, Nate being the only storekeeper here handling hardware. Yes, Nate. I knew you must have gone to Nate, because you weren't out of town all winter, that's how. Nate said that you were the only customer to borrow the catalogue. He said too that you told him when you returned it that you hadn't found what you wanted. I sent a telegram to the supply house getting out this catalogue, and their answer stated that you had ordered from them back in February, a butcher knife, paying for it in stamps. They gave the catalogue number of this butcher knife, and the catalogue number is the same number as that of the butcher knife with which Tuckleton was killed. You cut TW on the handle of this knife, rusted it a little and ground it some, and then you—well, after you did for Rafe there in the draw near her house, you rode back to Golden Bar, gassed a while with Felix and Sam, and then you were in such a sweat to get the thing settled you couldn't even wait till next day. You had to ride out to question Miss Walton that same night. Another unnecessary circumstance. Rafe, you rat, I've got you right where you can't even wriggle."

Billy leaned across the table to emphasize what he was saying, heard a slight sound in the bedroom and promptly blew out the lamp. With a heave of one arm he slammed the table over on the district attorney. The latter, taking the table to his bosom, went over backward, together with the chair he sat in, and wallowed on the floor.

Bang! a six-shooter crashed in the bedroom. A streak of yellow flame cut the darkness. A bullet snicked into the floor a yard from where Billy crouched. He emptied his derringer at the flash and changed position hurriedly. As he pulled his six-shooter, there was another shot from the bedroom, a shot that wrung an apprehensive yelp from the district attorney.

"Don't shoot so far to the right! Y'almost hit me! He's over to the left more. About where the red chair stands."

This would never do. Never. First thing Billy knew, he would be shot. He stretched forth a hand, and breathed an inward curse. There was

certainly a chair not a foot from his face. Taking care not to make a sound he lifted the chair by one leg and lobbed it through the air in the general direction of the district attorney. The results were immediate. The chair arrived, the district attorney squawked, and the man in the bedroom fired again, not according to the orders of the district attorney, but toward the spot where the chair had fallen. Billy pulled trigger at the flash of the other's gun. Then he began to crawl toward the bedroom door. He was a thorough believer in the doctrine of "getting in where it's warm." He succeeded beyond his expectations. The occupant of the bedroom, who had removed his boots, tiptoed around the door jamb and stepped on Billy's hand.

Both guns exploded simultaneously. What happened next has never been clear in Billy's mind. He only knows that his head rang like a struck bell at the shot, and burning powder grains stung his ear and neck. He fired blind. A voice above his head cried aloud on the name of God, a hot and sweaty body collapsed upon him, and he dragged himself out from under precisely in time to glimpse the district attorney who, having torn open the door into the hall, was silhouetted for an instant against the dim radiance emanating from the kitchen.

Billy hunched his right shoulder, took a snapshot, and drove an accurate bullet through the right leg of the district attorney.

"He's comin' around," said Shotgun Shillman. "You shot too high, Bill. Y'ought to held lower, and you'd drilled his heart or anyway, a lung. Now he'll be a invalid nuisance for a while, like Rale."

"If I'd known you'd be so upset about it, I'd obliged you, Shotgun," returned Billy sarcastically. "As a matter of fact, I wanted both of 'em alive. You can't try dead men."

"That's so," assented Shotgun. "But what a waste of time, when— Oh, all right, all right, Bill. Have it your own way. You're the dog with the brass collar, even if you do have to sleep in the jail till the warrants against you are annulled."

"What's Jack trying to do?" Riley Tyler asked. "Here, take that out of your mouth!"

It was Billy who reached Jack Murray first. He snatched the wadded ball of paper from Jack before he could close his teeth over it. Jack groaned.

"I didn't mean to hurt you," apologized Billy. "But I had to grab your jaw. You were so quick."

"You didn't hurt me," snarled Jack Murray. "It was somethin' else."

"What is the thing?" queried Guerilla Melody.

Billy smoothed out the crumpled wad. It appeared to be a letter and a promissory note.

"I forbid you to read that!" cried the district attorney, attempting to drag himself across the floor toward Billy. "That letter is personal and my private property!"

"You lie quiet," directed Riley Tyler. "If you go busting those bandages open, I'll bust you. Lie back, lie down, and take it easy. There's nothing for you to get excited over. Everything's all right. Yeah. That's the boy. Do as Uncle says."

"What's the writing, Bill?" inquired Shotgun. "Read her off."

Billy read:

JUDGE HIRAM DONELSON,
Hillsville.

DEAR SIR:—The man who killed Rafe Tuckleton is the county prosecutor Arthur Rale. Rale owed Tuckleton five thousand dollars on a note and couldn't pay it. Rafe wanted his money. Early in the evening on the day he was killed, Tuckleton came to Rale's house where I was at the time, and demanded payment. He brought the note with him. Rale refused and they quarreled. Tuckleton had been drinking. Before Tuckleton left, he said he was going to the Walton

ranch. After he left, Rale told me he had planned some time ago to kill Tuckleton and get the note back at the first opportunity. This looked like a good opportunity. Rale showed me a butcher knife. He said it was just like one at the Walton ranch. He had cut Tom Walton's initials on the handle so it would be like it. Rale said he had tried to get the original knife, but had not been able to. This one he had fixed up had to do. He said when his knife was found on Rafe's body, everybody would think Hazel Walton had killed him, and nobody would believe her if she said the knife wasn't hers. He had it in for Hazel anyway, he said, and by rubbing out Rafe and laying the blame on her, he'd win two bets at one throw. Suppose they found the regular Walton knife, I said. Rale said it wouldn't make any difference. Anybody might know she could easy have two knives. Well, he offered me two hundred dollars cash to kill Rafe with this knife. I wouldn't do it, so he had a couple of drinks and said he'd kill Rafe himself. He asked me to go with him. I went, and we hung around Walton's till Tuckleton came out, and then we followed him, and Rale stopped him down the draw and said, I've got the money for you, Rafe. And Tuckleton got off his horse and then Rale stepped up close to him and let him have it. He stuck the knife in him a couple of times after Tuckleton was down and wriggling round. When Tuckleton was dead, Rale took the note out of Tuckleton's pocketbook, and I held Rale up and took the note away from him. I thought maybe I might want to show him up some day, or sell it to him or something, when he got hold of some money. I was going to make him pay for it, one way or another.

Here is the note he took off Tuckleton.

The district attorney will tell you who I am if I don't, so I haven't any objections to signing my name. I'll be in Old Mexico by the time you read this, anyway. So long, and give Rale what he deserves.

Yours truly,
(Signed) JACK MURRAY.

Billy handed the letter and the Rale note to Shotgun Shillman, who folded both carefully and slipped them into an inner pocket of his vest. "And did you hear Rale say these were his private property?"

Shotgun Shillman nodded happily. "Even without 'em, there is enough evidence to hang him. But there's nothing like swinging a wide loop if you want to rope two at a clatter."

Billy's eyes followed Shotgun's side glance at Jack Murray. "You needn't look at me thataway," snarled Jack. "I'm no snitch! I only wrote that letter to throw a scare into Rale. I'd never have sent it to the judge a-tall!"

"Maybe you're no snitch," Billy flung back, with deep disfavor, "even if it does look like it, but you were skunk enough to let an innocent girl be blamed for murder."

"That was different. She hadn't ought to horned in on what was none of her business. If she hadn't— Oh, hell, what's the use? Gimme a chew, somebody."

CHAPTER TWENTY-SEVEN

THE LONG DAY CLOSES

"Well," observed Sam Prescott, "folks will be sending Bill to Congress next. Directly or indirectly, he sure has put a crimp in county politics."

"Yes," assented his daughter, "now that the grand jury have indicted Craft, Larder, Murray and Rale, there isn't anything left of the Crocker

County ring but the hole."

"Maybe now Hazel will make it up with him."

"Maybe." With some indifference.

"Shucks, and he used to like you, Sally Jane."

"But I never liked him—enough." This with more indifference.

"More fool you. Bill's going to get there, and you can stick a pin in that."

She bounced up from her chair and ruffled her father's grizzled hair. "I'd rather stick a pin in you, Samuel. Where did Hazel go?"

"Room, I guess. I don't know what's got into the child. She didn't eat enough breakfast for a fly."

"She has been acting pretty meaching the last few days. I'll go see what's the matter."

Sally Jane found Hazel folding up her clothes as fast as she could fold. The bureau drawers were empty. Everything was on the bed.

"What on earth—" began Sally Jane.

"I'm going home," said Hazel, keeping her face turned away.

The direct Sally Jane cupped a hand under Hazel's chin. "Let me see something. I *thought* so. What's the matter?"

"Nothing," declared Hazel, beginning to sniff a little.

"Then why don't you tell him so?"

"*Him?* Him?"

"Yes, him. Bill. Mr. William H. Wingo. The sheriff of Crocker County. That's what *I'd* do if *I* loved him."

"I don't love him," snapped Hazel, the shine in her black eyes giving the lie to her words.

"You blessed child," said Sally Jane, and threw her arms around Hazel and drew her to her breast. "You blessed child. I don't know what ever came between you and Bill, but something did, and if you've got an atom of sense in your head, you'll move heaven and earth to make it up with him."

"He doesn't love me any more," declared Hazel, her emotion getting the better of her.

"Do you love him?" probed the older girls.

A pronounced snuffle.

"Do you?"

"I always have," came the dragging confession.

"Then, for heaven's sake, tell him so! I'll bet he loves you fast enough! Land alive, if you've got Love in your grasp, don't turn it down! Love is the greatest thing in the world, and if you throw it away, you'll never have any luck the rest of your life. And you won't deserve any either."

Hazel drew out a damp ball of a handkerchief and blew her nose vigorously. "It's no use," she told her friend with a catch in her voice. "I couldn't tell him. I just couldn't."

Sally Jane flung up her hands. "You're a coward, that's what you are. A moral coward. If I loved a man, which I don't, I'd tell him so, that is, providing he didn't tell me first," she added thoughtfully.

Hazel stooped to pick up a fallen chemise. "You're—you're different, Sally Jane. Besides, he doesn't love me any more. So it wouldn't do any good."

"Oh, no, of course not," Sally Jane waxed sarcastic. "And they say all mules are quadrupeds! Look here, Hazel, if it hadn't been for him, you'd be in a fine fix right now. Why, that Rale man— Oh, you make me so mad I

could shake you! I've told you more'n once how much you owe Bill. Look how he fought for you. Look— Oh, Lord! Haven't you got any gratitude at all?"

"Plenty," Hazel replied over her shoulder. "But my gratitude can't make him love me."

Sally Jane put her hand on her friend's shoulders and turned her around. "I tell you, you're making a mistake. I tell you he does love you. You remember that last winter he came here several times, and he certainly didn't come to see me or Dad. And you weren't overly cordial, you know, Hazel. You didn't fall on his neck exactly."

"I'm not going to throw myself at any man's head!"

"Oh, don't be so high-strung! You're too proud for any human use! And Bill's just like you, the stiff-necked lollop!"

"He is not!" Hazel cried, with a decided flash of temper. "He's not stiff-necked! He's not a lollop! Oh, Sally dear, don't spoil everything," she begged. "You've been so good to me."

Sally Jane immediately changed her tune. "But why leave here? Why go home?"

"Because I've imposed on you long enough. I'll be safe there—now."

Sally Jane looked long into the eyes of Hazel Walton. "All right," she said shortly. "I'll drive you over myself."

Billy Wingo stretched out his long legs and absent-mindedly hacked the edge of his desk with a pocket knife. "I told her she'd have to come to me and put her arms around my neck and tell me I was right and she was wrong, and now I've got to stick to it, damitall! Bill, you idiot, you always did let your tongue run away with you. Always. And now she won't make it up. Three days now, since I got my job back, and not a word. Not a word.

Well, one thing is certain sure, I ain't going to run after her. I ain't, not by a jugful."

"His lips are moving, but he ain't sayin' anything," announced Riley Tyler in a loud, cheerful tone. "Do you think he's going crazy, Shotgun, or is it only the beginnings of droolin' old age?"

"I dunno," said Shotgun. "Better watch him. If he begins to gibber and pull out his hair, he's looney and we'll have to tie him down, I expect. Is your rope strong, Riley?"

"You fellers," Billy remarked with dignity, "make me more tired than a week's work."

So saying, he arose and went to the corner where his saddle and bridle lay. Three minutes later he rode out of Golden Bar.

"He's taken the Hillsville trail," said Riley Tyler, his nose flattened against the window pane. "Where do you suppose he's going?"

"Going to spend some of the reward money, I expect. Joke on you, Riley, having to dig up a thousand plunks you haven't got."

"I'd rather owe it to him than cheat him out of it," grinned Riley, who had long since spent the money obtained from Jack Murray. "Alla same, I'll pay him when I get it. You lend me a hundred, Shotgun."

"Go 'way from me!" snarled Shotgun, flapping both hands at him. "If you're looking for easy money, sit into a game of draw, or rob a bank or somethin'. You won't get a single wheel from me. Nawsir!"

Billy, riding the Hillsville road, came at last to the mouth of the draw that led to Walton's. He stopped his horse and looked along the draw. Then he looked along the road.

"Of course, I was going to Hillsville," he lied rapidly to himself, "but I don't suppose it would hurt to sort of ride past her house. Seems to me I

heard somethin' about her leaving Prescott's. It may not be true, and then again— Let's go, feller."

Feller headed obediently into the draw.

Hazel Walton, sewing in the front room, saw a rider coming up the draw. "That looks like Bill's horse," she muttered. "And Bill's hat. It—it is Bill."

Her heart began to pound. Her throat constricted. There was something the matter with her knees. She dropped the sewing in her lap and clasped her hands together. She breathed in little gasps.

Billy Wingo came on. He came quite close—within twenty yards and stopped his horse and rested his hands on the saddle horn, and looked at the house. Just looked.

Although she knew he could not see her through the scrim curtains, she drew her chair a little away and to one side.

He pushed back his hat with the old familiar gesture. His face was expressionless. There were hollows under his eyes. He looked thin. Poor boy. He had had an awfully hard time. And he had fought for her. He had risked his life for her. Certainly she owed him a good deal,—everything, in fact. And here she couldn't even find sufficient courage to thank him. As though thanks, empty thanks, could possibly be adequate. Sally Jane was right. She was a coward. And proud. Especially proud. She shivered.

Suddenly Billy pulled his hat forward and picked up his reins. She saw his heel move. The horse began to turn. It was then that something snapped in Hazel's breast. Strength came to her shaking knees. She sprang to her feet, ran to the door, flung it open and dashed out. Billy's startled horse shied away. Billy dragged him back with a jerk.

Six feet from the horse Hazel stopped and stood very straight, her arms stiff at her sides. Her knees began to shake again. She knew that her voice would tremble. It did. "Bill, I—I've changed my mind. I was wrong. I—you—you did the right thing to see it through. If—if you hadn't, I don't know what would have become of me."

Then, of a sudden, he was off his horse, his arms were around her, and she knew that all her troubles were over.

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